

History of England

From the Fall of Wolsey
to
the Death of Elizabeth

Volume V

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CHAPTER XXIV

THE PROTECTORATE

IT has been said that, in the selection of his executors, Henry VIII. was guided by the desire to leave a Government behind him in which the parties of reaction and of progress should alike be represented, and should form a check one upon the other. No individual among them was given precedence over another, because no one could be trusted with supreme power. On both sides names were omitted which might naturally have been looked for. Gardiner was struck from the list as violent and dangerous; Lord Parr the Queen's brother, Lord Dorset who had married Henry's niece, were passed over as sectarian or imprudent; and, whatever further changes the King might himself have contemplated, he may be presumed to have desired that the existing order of things in Church and State should be maintained as he had left it till Edward's minority should expire.

In anticipation of the contingency which had now arrived, an Act of Parliament had been passed several years before, empowering sovereigns who might succeed to the crown while under age, to repeal by letters patent all measures which might have been passed in their names; and this Act, without doubt, was designed to prohibit regents, or councils of regency, from meddling with serious questions.¹ But the King did not leave the world without expressing his own views with elaborate explicitness. He spent the day before his death in conversation with Lord Hertford and Sir William Paget on the condition of the country. He urged them to follow out the Scottish marriage to the union of the Crowns, and by separate and earnest messages he commended Edward to the care both of Charles V. and of Francis I.² So much they communicated to the world; with respect to the rest they kept their secret. It is known only that the King continued his directions to them as long as he could speak, and they were with him when he died.

Whatever he said, however, the Earl of Hertford never afterwards dared to appeal to the verbal instructions of Henry as a justification of the course which he intended to follow. He had formed other schemes, and he had determined in his own mind that he was wiser

¹28 Henry VIII. cap. 17.

²Memoranda of Directions to the Ambassadors in France and Flanders: *MS. State Paper Office*.

than his master. The Earl of Hertford, ardent, generous, and enthusiastic, the popular successful general, the uncle of Edward, was ill satisfied with the limited powers and the narrow sphere of action which had been assigned him. He saw England, as he believed, ripe for mighty changes easy of accomplishment. He saw in imagination the yet imperfect revolution carried out to completion, and himself as the achiever of the triumph remembered in the history of his country. He had lived in a reign in which the laws had been severe beyond precedent and when even speech was criminal. He was himself a believer in liberty; he imagined that the strong hand could now be dispensed with, that an age of enlightenment was at hand when severity could be superseded with gentleness and force by persuasion.

But, to accomplish these great purposes, he required a larger measure of authority. Before the King's body was cold, in the corridor outside the room where it was lying, he entreated Paget to assist him in altering the arrangements, and Paget, with some cautions and warnings, and stipulating only that Hertford should be guided in all things by his advice, consented.³

It was now three o'clock in the morning of the 28th of January. The King had died at two, and after this hurried but momentous conversation, the Earl hastened off to bring up the Prince, who was in Hertfordshire with Elizabeth. In his haste he took with him the key of the will, for which Paget was obliged to send after him. In returning it, he recommended that for the present some caution should be used in communicating the contents to the world.⁴ The world should experience the benefit of the alterations before it was made aware of the nature of them.

In the afternoon of Monday the 31st he arrived at the Tower with Edward. The death of Henry had been formally made known only in the morning of that day. The council was in session, and Paget had

³Two years after, Paget reminded Hertford of their conversation, and of his own warnings. 'What seeth your Grace,' he wrote. 'Marry, the King's subjects all out of discipline, out of obedience, carrying neither for Protector nor King. What is the matter? Marry, sir, that which I said to your Grace in the gallery. Liberty! Liberty! and your Grace's too much gentleness, your softness, your opinion to be good to the poor—the opinion of such as saith to your Grace, 'Oh, sir, there was never man that had the hearts of the poor as you have.'—Paget to the Protector: *MS. Domestic*, Edward VI. vol. viii. State Paper Office.

⁴Hertford to Paget: TYTLER'S *Edward and Mary*, vol. i. p. 15.

already proposed a protectorate. Lord Wriothesley, the chancellor, spoke earnestly in opposition. Protectorates, especially when they had been held by the uncles of kings, had been occasions of disaster and crime; the Protector in the minority of Henry VI. had ruined the finances and lost France; Edward V. had been murdered by the Duke of Gloucester. But Paget's influence was stronger than Wriothesley's, and the chancellor reluctantly acquiescing, the form of Government as disposed by Henry, was modified on Hertford's appearance in the following instrument.

'We, the Archbishop of Canterbury, Thomas Lord Wriothesley, Chancellor of England, William Lord St John, John Lord Russell, Edward Earl of Hertford, John Viscount Lisle, Cuthbert Bishop of Durham, Anthony Browne, William Paget, Edward North, Edward Montague, Anthony Denny, and William Herbert, being all assembled together in the Tower of London the last day of January, have reverently and diligently considered the great charge committed to us, and calling to Almighty God for his aid and assistance, have resolved and agreed with one voice to stand to and maintain the last will and testament of our late master in every part and article of the same.

'Further, considering the greatness of the charge, the multitude of business, the number of executors appointed with like and equal charge, it should be more than necessary, as well for the honour, surety, and good government of the most royal person of the King our sovereign lord that now is, as for the more certain and assured direction of his affairs, that some special man of the number aforesaid should be preferred in name and place before other, to whom, as to the head of the rest, all strangers and others might have access, and who for his virtue, wisdom, and experience in things were meet and able to be a special remembrancer, and to keep a most certain account of all our proceedings, which otherwise could not choose within short time but grow into much disorder and confusion—

'We, therefore, the Archbishop and others whose names be hereunto subscribed, by our whole consent, concord, and agreement, upon mature consideration of the tenderness and proximity of blood between our sovereign lord that now is, and the said Earl of Hertford, by virtue of the authority given unto us by the said will and testament of our said late sovereign lord and master for the doing of any act or acts that may tend to the honour and surety

of our sovereign lord that now is, or for the advancement of his affairs, have given unto him the chief place among us, and also the name and title of the Protector of all the realms and dominions of the King's Majesty, and governor of his most royal person, with the special and express condition that he shall not do any act but with the advice and consent of the rest of the executors, in such manner, order, and form as in the will of our late sovereign lord is appointed and prescribed, which the said Earl hath promised to perform accordingly.⁵

The Protectorate had been gained with little difficulty; the conditions with which it was fettered could in due time be disposed of.

The other provisions, in the will fell next under consideration. A clause directed that all provisions made by the King in his lifetime should be fulfilled by the executors. On Sunday, the 6th of February, Paget said that a few weeks previously Henry had spoken to him of the decay of the English nobility. Many peerages had become extinct, 'some by attainder, some by misgovernance and riotous living, some by sickness and other means.' The order required refreshment with new blood, and Paget had been requested to make a 'book of names' of persons whom it was desirable to advance. A list had been drawn, in which Hertford had been named for a dukedom, Parr for a marquise, Lisle,⁶ St John,⁷ and Russell for earldoms, Sir Thomas Seymour, Sir Thomas Cheyne, Sir Richard Rich, Sir William Willoughby, Sir R. Arundel, Sir Edward Sheffield, Sir John St Leger, Sir — Wymbish, Sir Christopher Danby, and Vernon of the Peak, for baronies. The King entered opposite to each name the grants which should accompany the titles; and Paget had then submitted the Royal intentions to the different candidates.

Some of these gentlemen, however, were unambitious; others, perhaps, considered the estates allotted them too small to maintain an increased rank. There was a general expression of dissatisfaction, and the King hesitated what to do. Paget was directed to make another list, entering himself the endowments which would be thought adequate. A dukedom he again fixed for Hertford, and an earldom for his son, 'with 800 pound lands, and 300 pound of the next bishop's lands which should fall vacant.' Sir Thomas Seymour should be Lord

⁵Records of the Privy Council: Edward VI. *MS. Council Office*.

⁶John Dudley, afterwards Duke of Northumberland.

⁷Paulet, afterwards Marquis of Winchester.

Seymour of Sudleye, with 500*l.* lands; and he suggested grants on a similar scale for all the rest of the executors except for himself. The new schedule was read over to Henry in the presence of Sir William Herbert and Sir Anthony Denny.

'Mr Secretary has remembered all men save one,' said Herbert. 'You mean himself,' replied the King. 'I remember him well enough, and he shall be helped.'

But no distinct conclusion was arrived at. The grants were profuse and the Crown was in debt. Henry 'put the book in his poke,' and died without returning to the subject.⁸

The silence, however, was construed favourably. The hypothetical bequests in their own favour which the will did not contain the executors held themselves bound to accomplish. The legacies in money which were specially named they held it prudent to suspend, although, indeed, considerable sums were left to themselves. France might go to war with them to recover Boulogne. 'Their imperfect friend the Emperor' might go to war with them to reimpose the authority 'of the Bishop of Rome.' It would be unsafe to empty the treasury of coin, and 'leave the realm impoverished.' Making a merit of their virtue, they would wait with the other legatees for a more convenient season.

Another matter of importance was put off for the same reason. The will ordained that the Crown debts should have preference over every other disposition, and the encumbrances left by the war were still undischarged. The King had set the dangerous example of taking up money at interest from the Fuggers at Antwerp. Owing to the change of habits in the higher classes and to other causes, the annual expenses of the household, which at the beginning of Henry's reign had been but 14,000*l.*, had slowly and gradually risen. In the last year they had made a sudden violent start, in consequence of the rise of prices which attended the infection of the currency, and the charges for the last six months had reached 28,000*l.* Much of this was still unpaid, and again there were the loans from the Mint, met hitherto by the expedient of depreciation, which required an instant remedy. In the last four years, 24,000 lb. weight of silver had been coined, mixed on an average with an equal quantity of alloy.⁹ The gain to the Crown from this dangerous source had been 50,000*l.* The duty of the execu-

⁸Records of the Privy Council: Edward VI. *MS. Council Office*.

⁹*Annals of the Coinage*, vol. i. p. 176.

tors was to call in the impure coin. The estates which they divided among themselves to support their new honours might have been sold for five times the amount which in this early stage of the disease would have been required.

But Henry himself had been, perhaps, unaware of the peril of meddling with the currency. It seems not to have occurred to the council—perhaps it did not occur to him—that where a small quantity of debased coin is thrown into the midst of a circulation generally pure, the good will inevitably sink to the level of the bad. The money of the State could not be wasted in the payment of debts either to the Fuggers or to the Mint. In the large schemes which the Protector was meditating, the currency might prove a convenient resource. With the appropriation of the estates followed the distribution of honours and dignities. On the 16th of February it was ordered in council that Hertford should be Duke of Somerset, and that his brother should be Lord Seymour of Sudley; Lord Parr was to be Marquis of Northampton, Lisle and Wriothesley Earls of Warwick and Southampton. The patents were made out the next day at the Tower,¹⁰ and the will of Henry was thus disposed of.

The next step was to show the bishops that the change of rulers had not restored their liberty. They were to regard themselves as possessed of no authority independent of the Crown. They were not successors of the apostles, but merely ordinary officials; and, in evidence that they understood and submitted to their position, they were required to accept a renewal of their commissions. Cranmer set the willing example, in an acknowledgment that all jurisdiction, ecclesiastical as well as secular, within the realm, only emanated from the sovereign.¹¹ The other prelates consented, or were compelled, to imitate him.¹²

¹⁰*Privy Council Records, Edward VI. MS.*

¹¹*Quando quidem omnis iurisdicendi auctoritas atque etiam iurisdictio omni modo, tam illa quæ ecclesiastica dicitur quam sæcularis a Regiâ potestate velut a supremo capite ac omnium magistratuum intra regnum nostrum fonte et scaturigine primitus emanaverit.*—Cranmer's Renewal of his Commission: BURNET'S *Collectanea*.

¹²Gardiner complained to Paget, holding Paget in some way as responsible. Paget replied, 'I malign not bishops, but would that both they and all others were in such order as might be most to the glory of God and the benefit of this realm: much less I malign your Lordship, but wish ye well; and if the estate of bishops is or shall be thought meet to be reformed, I wish either that you were no bishop, or that you could have such a pliable will as could bear reformation. Your Lordship shall have

But for the measures which the reforming party meditated, the Protector was not yet wholly in the position which he or they desired. He was hampered by a council of which the chancellor was a member; and so long as he could do nothing without the council's consent, he could but walk in the track which Henry had marked for him. Wriothesley, however, by a fortunate want of judgment, gave Somerset an opportunity to shake him off. There was a jealousy of old standing in the profession to which he belonged between the civilians and the common law lawyers. The sympathies of the chancellor were with the former, and believing that he held his office irresponsibly and irremovably, and finding his occupation at the council-board interfere with his duties as a judge, he made out a commission in the King's name to the Master of the Rolls and three civilians, empowering them to hear and determine causes in the Court of Chancery as his representatives. The students at the inns of court complained to the council. The judges being consulted, reported unanimously that the issue of a commission under the great seal without sanction from the Crown was an offence by which, 'by the common law,' the chancellor had forfeited his office; and when first called to account, Wriothesley enhanced his misdemeanour by 'menacing divers of the learned men,' and 'using unfitting words to the Lord Protector.' The council 'considered what danger might ensue, if the great seal of England, whereby the King and the realm might be bound, should continue in the hands of so stout and arrogant a person as durst presume at his will to seal without warrant;' and they resolved, without a dissentient voice, that he should be deprived.¹³ They came to their determination on the morning of Sunday, the 6th of March. The chancellor was ordered to remain a prisoner in the council chamber till the end of the afternoon sermon. In the evening he withdrew to his house, and resigned the seals into the hands of Lord Seymour and Sir Anthony Browne.

The complaint of the students and the entries in the Council Register contain the only surviving account of this transaction, and from an *ex parte* statement no conclusion can be drawn on the fairness of Wriothesley's treatment. The Protector, however, was conveniently freed from his ablest opponent, and he was enabled to make a more consid-

your commission in as ample a manner as I have authority to make out the same, and in as ample a manner as you had it before, which I think you may execute now with less fear of danger than you have had cause hitherto to do.'—Paget to Gardiner: TYTLER, vol. i. p. 25.

¹³*Privy Council Records*, Edward VI. MS.

erable innovation in the structure of the Government. A week after he took out a new patent for the Protectorate, which was drawn in Edward's name. The executors were left as his advisers; but, probably under the pretence that the chancellor's conduct made it necessary that their position should be more distinctly defined, they were now represented as the nominees of Edward, and no longer as guardians appointed by his father. The Protector might accept their advice, or might neglect it, at his own pleasure. He might act with all of them, or with 'so many as he pleased to call to his assistance.' He might choose others, should he desire the help of others. In fact, he might 'do anything which a governor of the King's person, or Protector of the realm, ought to do,' and was left to his own unfettered discretion to decide what his obligations might be. ¹⁴

The Duke of Somerset had now obtained the reality of power. His precautions in withholding such parts of the will of the late King as he desired to conceal prevented the nation from being aware generally of the extent to which he had transgressed it. He was Edward's uncle; he had the art of popularity, and the factions opposed to him were disheartened and disunited. His virtual sovereignty was submitted to, it would seem, without outward complaint or opposition. Only he was bound to remember that jealous eyes were ever on the watch upon power illegitimately obtained; that, as he had taken the Protectorate on his own responsibility, so, for such errors as he might fall into, he would be called on to give a strict account. At the very outset he was not without warning that he was on dangerous ground. His new commission was countersigned only by seven of his co-executors. The names of all the rest, and among them that of the Earl of Warwick, were significantly withheld.

If Somerset was ambitious, however, it was only (as he persuaded himself) to do good. He commenced his administration with a prayer, in which he spoke of himself as called to rule by Providence; in which he described himself as a shepherd of God's people, a sword-bearer of God's justice; in which he asked prosperity, wisdom, and victory for the great things which God was to enable him to do. ¹⁵ Nevertheless, such language was better suited to a prince than, to a subject.

¹⁴Royal Commission for the Protectorate: BURNET'S *Collectanea*.

¹⁵'Thou, Lord, by thy Providence hast caused me to rule. I am, by thy appointment, minister for thy King, shepherd for thy people. By Thee kings do reign, and from Thee all power is derived; govern me as I shall govern,' &c.—STRYPE: *Memorials*, vol. iv. p. 311.

His own intrigues, and not the will of Heaven, had placed him in the position which he had achieved. In a letter to the King of France he so curiously forgot himself that 'he called his Majesty brother,' and Dr Wotton, the ambassador, was requested to remind him who and what he was.¹⁶ Such assistance as Heaven would grant him in the task which he had undertaken of governing England, he was likely to require. Of the religious factions at home, it was essential to the welfare of the country that neither should be allowed to prevail. With foreign powers there was peace, but it was a peace which had been dearly bought, and which the most delicate skill could alone succeed in maintaining.

The difficulty of the situation will be best seen in a review of the general condition of Europe.

And first for the Council of Trent.

From the commencement of the Reformation a general council had been in the mouth of the Christian world. All parties in turn had clamoured for it, all parties in turn had opposed it, as the predominant influence under which, if it assembled, it was likely to fall, varied between the great powers of Europe, the peoples, and the Papacy. So long as the Emperor was entangled in the war with France, he was compelled to temporize with the Protestant States of Germany, and the Germans pressed a council upon him which should be held within the frontiers of the Empire, where they could themselves be freely represented and freely heard. Such a council the Popes had as loudly deprecated, and Charles, embarrassed on one side with the necessity of conciliating the Diet, on the other with his loyalty to Catholicism, had again and again declared that a council was chiefly valuable as a possibility—as a threat—as a cannon to be kept loaded—minatory, but never to be discharged. There were books enough, he said, to determine the Catholic doctrines, codes and law courts to enforce Catholic discipline. Fresh definitions and fresh polemical organizations would only sharpen the edge of the schism and bring about a violent collision.¹⁷ While the war continued the Popes consented readily to a delay, which was of most advantage to themselves. Without the united support of the two great Catholic monarchies they distrusted their powers of overbearing opposition. The peace of Crêpy had for the first time presented the conditions which the Court of

¹⁶MSS. *France*, Edward VI. bundle 1. State Paper Office.

¹⁷PALLAVICINO.

Rome desired. Paul III., to lose no more time, sent Cardinal Farnese to the Emperor to entreat his consent. He could keep his promises to the Lutherans in the letter, if not in the spirit, by appointing for the place of assembly a city within the German frontier, where the Italian and Papal influences would, nevertheless, effectively predominate.

Charles, still anxious to put off an open rupture with Germany, hesitated. The Bishop of Arras replied for him, that if a council met, summoned by the Pope, the Protestants, assured of their intended condemnation, would take up arms. The Catholic States in Germany could not be relied upon, and the Elector and the Landgrave, as the best means of defending themselves, might perhaps carry the war into Italy, and dictate terms in the citadel of religion itself. The Pope would have to rely upon his own resources to protect himself; the Imperial treasury was exhausted, and, though his master would give his life, he could give no more.

With some doubt of the sincerity of these objections, Paul III. for the moment gave way to them. A few cardinals and bishops had collected at Trent to arrange preliminaries. They were instructed to wear away the time in a show of making preparations, and the Pope tried to persuade himself that the difficulty with Charles was really and truly, as he pretended, a want of power that when opportunity should offer, he would draw the sword with effect.¹⁸

In August the Emperor met the German Diet at Worms, when he again held out hopes of a satisfactory settlement. But he satisfied the Pope behind the scenes with private assurances, although he had alarmed the fathers at Trent by the vagueness of his language.¹⁹

So matters stood when the Duke of Orleans died. The war was likely to revive, and the Pope determined that he would wait no longer. He must make the best of the occasion while it endured, and in December, 1545; the Council of Trent was opened for despatch of business. The Emperor, dragged into a reluctant approval, permitted the attendance of the bishops of Spain, partly to gratify the Pope, partly to control the Italians; and so welcome were they, and so doubtful had been their coming, that when they arrived, the cardinals, legates, and prelates went out to receive them at the gates, and

¹⁸*Velle re verâ Cæsarem in hæresim ensem educere.*—PALLAVICINO.

¹⁹*Eoque magis quod ipsos latuit quid auri sub eo Cæsaris consilio latuit, quamvis deformi scoriâ illius indulgentiæ contactum. Quod consilium fuisset patribus patefactum nisi consuevisset Pontifex literas peculiares haud cæteris communicandas perscribere.*—*Ibid.*

a special seat of honour was assigned to the Archbishop of Toledo as the Imperial representative.²⁰

If prudence was still important, the presence of some one in authority who could keep his judgment cool was not unnecessary. The zealous fathers desired at once to draw the sword and pass a censure on the Germans before Charles was ready for the struggle for which he was obliged in haste to prepare himself. The Archbishop of Toledo interposed. In spite of a querulous murmur, he contrived for the time to turn the heat of discussion into less dangerous channels.²¹ Original sin was brought forward, and next a fertile discussion on the Immaculate Conception of the Virgin.²² And when on this point the fiery conflict had burnt out, the Bishop of Fiesoli threw in the inexhaustible and yet more agitating question, What was the Pope's authority, and what was a bishop's authority? How far could one bishop overrule another bishop in his own diocese? Here the strife of tongues, once kindled, raged without ceasing till Midsummer, 1546, when the Emperor was ready to take the field; and then at last the Council were allowed to approach subjects which would bring them in collision with the Reformers. An article was brought forward on the heresy of justification by faith: a league was concluded between Charles and Paul; and a holy war was proclaimed.

This is not a place to describe the campaign which closed at Muhlberg in the following spring, so disastrously for the Lutherans. The Pope undertook to provide an Italian contingent, and for a supply of funds he allowed the Emperor to sequester half the revenue of the Church of Spain, and to sell church lands to the value of a half-million crowns. But the Emperor's misgivings had not deceived him as to the strength of the enemy. The Elector of Saxe and the Landgrave of Hesse took the field at the head of an army far superior to the Papal Imperial troops in number, in equipment, in commissariat. Their artillery doubled the Emperor's: the people

²⁰Quod erat peculiars subsellium supra cunctos patres, quasi ex adverso Legatorum, cui adjectum erat scabellum duorum hominum capax.'—PALLAVICINO.

²¹Inter Patres querulus susurrus iucerebuit quasi Legati arbitratu suo semel in congregationibus statuta mutarent.'—Ibid.

²²Hâc ratione voto Cæsaris consulebat, initâ siquidem a Patribus quæstione de articulo intra duas Catholicorum scholas casque doctrina pollentes strenue agitato, qui in præfervidum diuturnumque certamen abiturus erat.'—Ibid.

were on their side; they possessed every advantage, except in the one point of a divided command and inferiority of military skill.²³

The result of the conflict seemed at one time so uncertain, that the fathers at the council were thrown into the utmost agitation. Some ferocious Protestant leader might stoop down upon them out of the mountains, lying out as they were exposed upon the frontier; they desired to flutter off to some safer residence;²⁴ and so much disturbed were they, that in the heat of their alarm they forgot the plainest proprieties of decorum. In an excited session one venerable prelate clutched another by the beard, and plucked out his hoary hair in handfuls;²⁵ and they would have broken up and dispersed on the spot, had not the Emperor sent a message, that if they were not quiet, he would have some of them flung into the Adige.

Finding himself meanwhile too weak to risk a battle, Charles had recourse to intrigue. The Protestant leaders used their strength unskilfully, and the summer had passed without an action. With the winter, Duke Maurice of Saxe, the Landgrave's son-in-law, and, if the family of John Frederick failed, the heir of the electorate, deserted his party, and came over to Charles, bringing with him the Duke of Wurtemberg and half the military power of the reforming States. The religious aspect of the war was thus exchanged for a political one. The reforming princes, in joining the Emperor, imagined that they were tying his hands, and it is true that the connection had its embarrassments for him. But the League of Smalcalde was broken up. The Landgrave and the Elector were placed under the ban of the Empire, and Saxony was bestowed on Maurice as a reward of his treachery.

²³A series of exceedingly valuable letters from the English ambassadors who followed the Imperial camp in the summer and autumn of, are printed in the eleventh volume of the *State Papers* of Henry VIII.

²⁴*Tridenti tamen adeo trepidatum fuerat ut episcopi fugere meditarentur.*—PALLAVICINO.

²⁵The Bishop of Capua having expressed an opinion rather vehemently, the Bishop of Chæronea whispered to his neighbour that such folly and impudence were inexcusable. The first Bishop asked what he was saying. 'I said, my Lord,' replied the Bishop of Chæronea, 'that your folly and impudence were without excuse.' Then the other, as the wont is among men, overcome with anger, blazed out into revenge; laying his hand on the beard of his brother prelate, he did tear away many of the hairs thereof, and straightway went his way. As the assembly gathered about him, the Bishop of Chæronea did show no other sign of displeasure save that in a loud voice he repeated his words again; the fathers at the unseemly spectacle were disturbed incredibly.'—PALLAVICINO.

Paul III., indignant at the return of a carnal policy, withdrew his contingent, discontinued his supplies of money, and cancelling his sanction for the appropriation of the Spanish benefices, began to look in despair towards France; France in turn began to meditate supporting the Elector, in order to prevent Charles from conquering Germany; and it was at this crisis, as all things appeared to be relapsing into confusion, that Henry VIII. died—'The most miserable of princes,' says Pallavicino; 'cursed in the extinction of his race, as if God would punish those distracted marriages, from which, in spite of fortune, he laboured to beget sons to succeed him; cursed in his country, which ever since has been an Africa, fertile only in monsters.'²⁶

In the autumn, while the league was yet unbroken between the Pope and the Emperor, Henry had offered to join the Protestants. The Elector, confident in his own strength, and over-hopeful of France, had evaded or declined the conditions on which the alliance was proposed to him, and the last directions of the King to his executors were unfavourable to further interference. The struggle was altering its character; Charles was again in connection with a section of the Lutherans, and Edward was especially recommended to the Imperial protection.

But if Henry had no longer a desire that England should interfere on the Continent, the Pope snatched at the opportunity of the departure of his dreaded enemy to revenge himself on England. Laying aside his immediate grounds of complaint against Charles, he wrote to urge upon him the duty of at once asserting by arms the right of the Princess Mary to the crown. Edward having been born in schism, was not to be recognized as legitimate; the daughter of Catherine was the only child of Henry whose rights could be admitted by Catholics.

Had there been a corresponding movement in England, had Surrey been alive or his father at liberty, it is likely that Paul would not have entreated in vain; the war might have been suspended in Germany, and the invasion so long threatened have become a fact. But, after a consultation at Brussels, it was decided that the Emperor should wait to see what the conduct of the new Government would be. To

²⁶*Britannia postmodo tanquam in Africam conversa est monstrorum omnium feracem.*—PALLAVICINO.

interfere without the support of a party in the country would be dangerous, and might cost Mary her life.²⁷

A smart reply was despatched, therefore, to the Pope's request, that the time was unsuited for the move which he proposed, and that the Holy See must be more constant in its alliances, if it looked for help in services of danger. The refusal filled the cup of the Papal displeasure; the panic revived at Trent with augmented force, as the frightened ecclesiastics saw themselves with open enemies and ambiguous friends in so dangerous a position; and at last, in an ecstasy of terror, they rose with scream and cry into the air, like Homer's birds from the banks of the Cayster, and alighted only within the safe precincts of Bologna. The Emperor was furious; the œcumeni-

²⁷'Il luy sembloit,' wrote the Bishop of Arras to Chancellor Granvelle (he was speaking of the Regent of the Netherlands), 'que l'on deut attendre jusques la conduite de la nouveauux gouvernement se vit, et par icelle sur quoy l'on se debvroit fonder, et selon ce, ce que l'on y debvroit faire: et depuis que le Roy est mort, et le Duc de Norfolk (it was not known that Norfolk's life had been spared) et son filz le Conte de Surrey executiez, le jeune Roy qu'est ja couronné envoyoit vers l'Empereur pour l'advertir du trespas du feu Roy et couronnement du nouveauux ung gentil-homme de la chambre dudit nouveauux Roy, et il a semblé que les raisons allegués par Chappuys militent encores.'

Her Majesty, he continued, is afraid of doing anything which might compromise Mary: 'Quia ubi opus est, comme vous dictes, ibi non verentur;'—those English will stick at nothing—and things being as they were, the Emperor would recognize Edward as king. Not to irritate the Pope, however, no funeral service should be said for Henry; 'S'il ne vous semble aultre chose l'on se resoult de ne faire exéques pour le Roy d'Angleterre, tant pour non irriter sa Saintité que pour non se pouvoir faire avec bonne conscience: et que ceulx qui s'en mesleroyent seroient irreguliers étant nominativement excommuniés, et à l'instance mesme, comme il me semble, de sa Majesté.'—Arras to Granvelle, Feb. 12, 1546–7: *Granvelle Papers*, vol. iii. p. 245, &c.

The allusion to the death of Surrey as affecting the resolution of the Imperial Government confirms and explains a remarkable passage in 'The Pilgrim,' a tract written in the spring of this year 1547 by an Englishman named William Thomas.

'A poor soldier,' says that writer, 'that came even now from the Emperor's camp, told me in Florence, not four days gone, that he had heard a whispering among the soldiers, how that the said Earl of Surrey, at his being with the Emperor before Landrecy, was entered into intelligence with divers great captains, and had gotten promises of aid towards the furniture of his intent. Yea, said he, and farther, he should have been the Emperor's man from the selfsame purpose. I will not say, quoth he, that this is true; but when the private soldiers are grown so commonly to talk of these things, it is to be presumed that there should be something of importance, for without some fire there was never smoke.

'It is possible enough, said a gentleman present, for I myself, who have been in the Emperor's camp, have heard much reasoning of the matter. It was doubted whether this young prince was legitimate or no.'—'The Pilgrim,' *MS. Harleian*, 355.

cal council of Christendom was thus converted into a private Pope's council, to which it was idle to hope that the Germans would submit. He sent imperative orders to the Spanish bishops to remain at their posts; but over the rest his anger was powerless; they were gone, and refused to return.

So long as this state of affairs continued, England had nothing to fear from Charles. It seemed, however, not impossible that England might be forced itself to take the initiative in a quarrel. The personal dislike of the Elector of Saxe for Henry VIII. had been the real ground for the rejection of the alliance when it was offered. No sooner was the King gone than John Frederick became as eager as he had been before unwilling. He sent commissioners to England to beg for assistance, and a State paper of Sir William Paget's remains to show that the acutest of English statesmen hesitated as to the course which it would be prudent to pursue.

The French, Paget said, were sore at the loss of Boulogne, which they were bent on recovering. The Pope desired to recover the allegiance of England; and the Emperor, in spite of appearances, would help him as soon as he could, 'partly moved by a corrupt conscience, partly by ambition to reign alone, besides old grudges and displeasures.' The first necessity, therefore, was quiet, and the re-establishment of the finances at home; the second, effective alliances abroad. At home all promised to go well; as a foreign ally, the safest would be either Francis or Charles; Francis, if he would wait the eight years for Boulogne; Charles, if he would detach himself conclusively from the Holy See.

'But we see either of them,' he continued, 'so affected in his own opinion, and by daily experience we know so little faith to be given in either of their promises when the breach of the same may serve to their purpose, as to have cause to be at point to despair to find friendship in either of them longer than they may not choose.'

There remained the present overture from the Elector, which it might be equally dangerous to accept or to refuse. To accept would in all likelihood unite the Catholic powers in a league against England, and war would follow with all its risk and cost. To refuse was either to leave the Protestants to be crushed, or to alienate them probably for ever—to throw them into the arms of France; while France, thus strengthened, might drive the English from Calais as well as from Boulogne.

On the side of France he concluded that the danger was most immediate. The problem, therefore, was to keep on terms, if possible, both with the Emperor and with the Protestants—if possible to reconcile them; at any rate, to give a gentle answer to the Elector's invitation.²⁸

The position was a difficult one. The privy council, not to send back John Frederick's emissaries with words only, gave with them a present of 50,000 crowns; but they added a stipulation that the liberality should be kept a secret.²⁹ More directly important and more menacing were, as Paget said, the relations of the country with France.

Francis himself had had enough of wars. The exequies of Henry VIII., which had been neglected at Brussels, were celebrated in Notre Dame, in defiance of the Papal authorities; and so long as Francis lived, peace was in no seeming danger. But on the 22nd of March Francis followed Henry to the grave. The Dauphin had been the leader of the party most opposed to England, and the consequences of the change were immediately felt. The frontier line of the tract of land surrendered with Boulogne had been left undetermined at the peace. Commissioners on both sides had been employed upon the survey, and had almost agreed upon a settlement, when the new King made difficulties, refused to ratify their arrangement, and while he professed to have no sinister intentions, persisted in keeping open an uncertainty which at any time might be the occasion of a quarrel. The Protector replied by a direct violation of the treaty. In the eight years during which Boulogne was to be in the hands of the English, they were to build no fresh fortifications there. An expensive and elaborate embankment was run out towards the sea; avowedly for the protection of the harbour, but in fact to carry cannon and command the approaches.³⁰

²⁸Judgment of Sir W. Paget,' printed by STRYPE: *Memorials*, vol. iii.

²⁹Records of the Privy Council, Edward VI. MS.

³⁰Lord Grey, Sir T. and Sir H. Palmer were standing one day, in the middle of April, watching the workmen, when two French officers approached, and fell into conversation with them. 'Your fort advances apace,' said they. 'No fort,' said we [Lord Grey is reporting], 'but a jetty to amend the haven, to save both your ships and ours.' 'Yea,' said they, 'but you intend to place ordnance upon it.' 'To what end?' quoth we; 'whereunto should we shoot?' 'Well,' said they, 'seeing it is no fort, you may do what you will; but if it was a fortress, we neither might nor would in any case endure it. But what news,' said they, 'we pray you have you of the Protestants?' 'None other,' quoth we, 'but that we hear they have great hopes in your aid, and that they begin to gather men.' 'Will you go walk with us,' said they, 'and we will tell you

A yet more critical occasion of quarrel was the condition of Scotland. The treaty of 1543, by which the Scotch Assembly had promised their young Queen to Edward, was still legally uncanceled. The influence of France had interrupted the fulfilment of it, and Cardinal Beton and the Church party had dragged the country into war instead of marriage; but at the close of the struggle, Henry VIII. had insisted successfully that the Scotch should reaccept their engagements; and there was still a party in Scotland sufficiently wise and farsighted to prefer the alliance of England to that of France. It was not to be doubted, however, that the compliance of the French Government had been extorted rather than given, and unless the Courts of London and Paris could arrive at some amicable understanding, by intrigue or force there would soon be fresh interference. But, on the other hand, 'the Italian question' was as far from settlement as ever. The death of the Duke of Orleans had broken up the arrangement by which it was to have been set at rest, and that quarrel would sooner or later break into flame again. The wisdom after the event which determines what ought to have been done in this or that embarrassment, is usually good for little; but it seems certainly that England having Boulogne and the Boullonnaise in its hands, and being still the creditor of the French Government for a heavy sum of money, political skill might have turned such advantages to some account, and by the immediate surrender of territory, which must, at all events, have soon been parted with, might have induced Henry to leave Scotland to itself. It is possible that the country would not have listened to prudence in a point which touched its pride; it is possible that, if such

more. The Protestants say they shall have, ere it be long, fifty thousand men in the field.' 'God send them well to do,' said we. 'And we also,' said they, 'desire no less, for there is no faith in that Emperor. The King that now is [Henry II.] saw enough by his father's time; and to be plain with you,' said they, 'intendeth to be revenged on him. Marry, not this year peradventure: but being once sure of you, yea, that you will but sit still, the next year at the farthest he will make him war. The Emperor,' they said, 'did seek to marry the daughter of England, to the intent he might have the better entry into our realm, and that now it appeareth well that the King of England, being of young years, had no such friend as the King his master; for the Emperor's drift is none other,' saith he, 'but seeing your prince young, the realm governed by divers heads, and tickle to stir upon small occasions, to take advantage of the time, with the credit of the daughter of the realm, and to be revenged for your opinions, whereof it behoveth you to have special regard, and wish good success to the Protestants; for if the Emperor have the overhand of them, he will think himself able to ask every man how he believeth, wherein it toucheth you to take heed more than we.'—Grey to the Council, from Boulogne, April 18: *Calais MSS. State Paper Office*, Edward VI.

an overture had been made, it would not have been accepted. It can only be said with safety, that when Somerset took possession of the Protectorate, the state of things was generally dangerous; that, if he left his relations with the European powers to accident, and trusted merely to force to accomplish the Scottish marriage, he would find himself before long at war certainly with France, and possibly with France, Scotland, and the Empire united; and it may be affirmed with equal certainty that with these outstanding difficulties, the opportunity was not the best for a religious revolution at home.

In Scotland itself the position of things was as follows:—

The Castle of St Andrews continued to be held by the party who had put to death Cardinal Beton. The Parliament at Edinburgh divided among themselves, and paralyzed by the loss of the one man of pre-eminent ability that they possessed, could neither resolutely condemn his murder nor resolutely approve it. The deed was done in May 1546. It was not till the last of July that the perpetrators were called on formally to surrender the castle. When they refused, 300*l.* a month was voted to enable the Regent to besiege it, and Leslie, Kirkcaldy, and the other conspirators were attainted. But the question, after all, was considered to touch the clergy more than the nation. For the first two months the money was to be found by the 'kirkmen.'³¹

In August the Earl of Arran, appeared under the walls, and attempted feebly to take possession. But the sea was open; a covered way was constructed from the castle to the water's edge, by which the English cruisers threw in supplies; and the desultory and heartless efforts of the Regent were without result. In January the siege was raised, and an agreement was made that Norman Leslie and his companions should keep the fortress till absolution for the murder could be obtained from Rome; that they should suffer no penalty in life or lands; and that Arran's eldest son, who was a prisoner in the castle, should remain a hostage till the composition was concluded.

So palpable an evidence of weakness in the anti-English faction showed how great was the discouragement into which the loss of Beton had thrown them; and the honour of the English Government required the maintenance at all costs of the men who had made so bold a venture in their interests. The common sense of the Scottish laity, the appetite of the lords for the Church lands, and the growing spirit of the Reformers, had only, it seemed, to be left to themselves,

³¹ *Acts of the Scotch Parliament*, 1546.

and the counter-influence of France and the Papacy would die a natural death. Balnavis, one of the St Andrew's party, was in London on a commission from Leslie at the time of the King's decease. Henry had directed that the leaders should be pensioned, and a sum be set apart to maintain a garrison in the castle. The privy council accepted the obligation and discharged it.³² It would have been well, both for England and for Scotland also, if in this direction they had continued their watchfulness, and left the natural tendencies of interest, right, and good sense, to do their work.

But time was too slow an agent for the eager ambition of Somerset, and the fate of a single castle and a handful of men was insignificant in the schemes which he was contemplating. Henry VIII. in the height of his power had refused to call in question the feudal independence of Scotland. He had rights, he had said, which he might have advanced, had he desired; but those rights he was contented to waive. The Duke of Somerset resolved to distinguish his Protectorate by reviving the pretensions and renewing the policy of Edward I., by putting forward the formal claim of England to the dominion of the entire island. To Balnavis he does not seem to have hinted his intentions. Indentures were drawn between the party in the castle and the English Government, in which Leslie and his friends promised to support the Protector in the enforcement of the execution of the marriage treaty;³³ but in none of these was the free sovereignty of Scotland called in question; it was rather admitted and confessed on the grounds which the Scots alleged for their conduct.

³²The late King having resolved, for various considerations, not only to give certain pensions to divers noblemen and others which keep and defend the Castle of St Andrews for his Majesty's service and for the advancement of the marriage, but also at his own cost and charge to entertain a hundred and twenty men for the more sure defence of the said castle against the King's Majesty's enemies in Scotland; in consequence the privy council resolved 'that 1189*l.* 17*s.* 3*d.* should be paid to Sir Henry Balnavis for the affairs of Scotland, that is to say, for the wages of eighty men within the Castle of St Andrews at 6*d.* by the day for six months, the sum of 336*l.* sterling. For the wages of forty horse at 8*d.* the day, appointed to keep abroad for the more surety of the said castle, for six months, 224*l.* For the amity of the Master of Rothes, for one half year ending at Michaelmas last past, 125*l.* For the like to the Laird of Grange, 100*l.* For the like to David Money penny, 50*l.* For the like to Mr Henry Balnavis, of Halhill, 62*l.* 10*s.* For the like to John Leslie, of Parkhill, 62*l.* 10*s.* James Leslie, of Abdour, 50*l.* W. Kircaldy, son to the Laird of Grange, 50*l.*, which sums make, on the whole, 1060*l.*; and on the exchange 1189*l.* 17*s.* 3*d.* — *Privy Council Records*, Feb. 6, MS. Edward VI.

³³RYMER, vol. vi. part 3, pp. 150–155.

'If the present chance was lost,' they said, 'for the determination of a perpetual peace, with amity and love between the kingdoms, the semblable was never likely to ensue hereafter, to the displeasure of Almighty God, and to the eternal condemnation of the workers of the same in hatred, rancour, malice, and vengeance, the one against the other.'

But, although the Scots were comprehended in the treaty with France, the Protector permitted the Borders to be wasted, and fire and sword carried to their homesteads, as if they were rebels; and he communicated his more ambitious views to the French ministers, requiring them formally to abstain from interference. The reply was prompt and stern. They answered, that 'they had no concern with pretensions revived after two centuries of abeyance.' 'Their King, being such a great prince, might not suffer the old friends of France to be oppressed and alienated from him;' nor would he suffer it to be written in books and chroniques that the Scots, who had ever been faithful friends to France, and whom his ancestors had ever defended, should in his reign be lost, and of friends made enemies.'³⁴

As if this matter did not threaten sufficient complications, the Protector found leisure simultaneously to proceed with religious reforms. The ultra-Protestants, whom Henry had held sternly in hand, at once upon his death began to take the bit between their teeth. On the 10th of February the wardens and curates of St Martin's in London, 'of their own authority pulled down the images of the saints in the church.' The paintings on the walls were whitewashed, and the royal arms, garnished with texts, were set in the place of the crucifix on the roodloft. Being called before the council to answer for themselves, the parish officers protested that they had acted with the purest horror of idolatry; but the council, as yet unpurged of its Catholic elements, would not accept the excuse; the over-zealous curates were committed to the Tower, and the churchwardens were bound in recognizances to 'erect a new crucifix, within two days, in its usual place.'³⁵ But as soon as the Protector, and those who went along with him, had shaken off inconvenient restraints, the rising spirit was encouraged to show itself. The sermons at Paul's Cross breathed of revolution. Barlow, Bishop of St David's, whose indis-

³⁴Wotton to the Council: *MS. France*, Edward VI. State Paper Office.

³⁵*Privy Council Records*, Feb. 10, 1547, Edward VI. *MS.*

cretion had already assisted to ruin Cromwell, preached on the most inflammable points of controversy.³⁶ Ridley, Principal of Pembroke Hall at Cambridge, then first emerging into prominence, denounced the use of holy water and the presence of images in churches, loudly and violently. When Lent opened, a Doctor Glazier affirmed that fasting had no divine sanction, that it was 'a politic ordinance of men.' and might therefore be broken by men at their pleasure:³⁷ and in a manuscript contemporary diary by some unknown writer, I find the significant entry, that 'this year the Archbishop of Canterbury did eat meat openly in Lent, in the Hall of Lambeth, the like of which was never seen since England was a Christian country.'³⁸

The Bishop of Winchester who, when in a minority, understood the merits of moderation, ventured, though excluded from the council, to advise some caution. He entreated Somerset to forget his elevation for a moment, and listen to him as a friend. He implored him not 'to trouble the realm with novelties' in religion, so long as the King was a child. The political position of things was embarrassing enough to task all his energies; and the country was full of speculations, not merely on points of difference between Catholics and Protestants, but on the Divinity of Christ himself. The late King had introduced reforms, but cautious and moderate reforms, which had given quiet and satisfaction; and for himself he 'would rather be wrong with Plato than right with others.' It was said that Henry VIII. 'had but one eye,' and 'saw not God's truth perfectly:' 'Gardiner said he had rather go to heaven with one eye after him, than travel for another eye with danger to lose both.'

The remonstrance was not recommended by the maker of it, but it was none the less wise in itself. To Ridley also Gardiner wrote in a similar strain. He might say what he pleased of the Papacy of Home and Roman pardons, but the objects against which he was now de-

³⁶I have not found a copy of the sermon, but the character of it may be gathered from a protest addressed by the Bishop of Winchester to the Protector; 'You need fear nothing,' wrote Gardiner, 'if quiet may be maintained at home, and at home, if the beginning may be resisted, the intended folly may easily be interrupted. But if my brother of St David's may, like a champion with a sword in his hand, make entry for the rest, the door of license is opened.'—Gardiner to the Protector, Feb. 28: *Foxe*, vol. vi.

³⁷*Stow*.

³⁸To four-fifths of the English world as agitating as if among ourselves the Opera House was to be opened on a Sunday and the Bishop of London to appear in a private box.

claiming were in use in the earliest ages of the Church; and he would be using his talents better if he had shown how things like holy water and images might continue to be used without offence, than by railing at them with 'light rash eloquence,' which, after all, was easy.
39

But it was a time, as such times will come, and perhaps ought to come, when passion had more weight with men than understanding. The spirit of iconoclasm spread fast. The inhabitants of Portsmouth cleared their churches. The chapter of Canterbury, in need of money to repair the cathedral, sent a crucifix and a pix to the Mint. The crucifix was melted into coin, the pix was arrested by order of council for a time only, before it followed the same route. Portsmouth was in the diocese of Winchester, and the Bishop thought at first of sending preachers there to check the people; but he would not, he said, make preaching an occasion of further folly. He appealed again to the Protector; and the Princess Mary, who, as heir-presumptive, was entitled to speak authoritatively, united with him to entreat, on grounds as well of legality as of prudence, that the settlement left by Henry should be for the present undisturbed. 'I see my late sovereign slandered,' said Gardiner, 'religion assaulted, the realm troubled, and peaceable men disquieted. I dare not desire your Grace to look earnestly to it, lest I should seem to note in you that which becometh me not.'

Somerset, however, had chosen his course, and an inability to comprehend objections which he did not himself perceive, was part of his nature. He made a point against Gardiner with replying that it was not worse to destroy an image than to burn a Bible; every day people were doing the latter, pretending to dislike the translation, and he had made no objection; 'but let a worthless, worm-eaten image be so disposed, and men exclaimed as if a saint were cast into the fire.'⁴⁰ Mary's complaints, the Protector supposed, had originated with some naughty, malicious persons, who had suggested them to her; and as to the late King's intentions, he was fulfilling them bet-

³⁹He touched Ridley's dread of the supposed idolatry of images with some humour. After all, he said, there was not much real superstition connected with them. Men knelt before the silver crucifix, but the churchwarden who took it home from church, was not afraid, like a reasonable man, to drink a pot of ale while the precious thing was under his gown.—Gardiner to Ridley: *FOXE*, vol. vi.

⁴⁰The Protector to Gardiner; *FOXE*, vol. vi.

ter in carrying out the Reformation, than she was fulfilling them by resisting it.

At last he gave the popular movement the formal sanction of the Government. Injunctions were issued for the general purification of the churches. From wall and window every picture, every image commemorative of saint, or prophet, or apostle, was to be extirpated and put away, 'so that there should remain no memory of the same.'⁴¹ Painted glass survives to show that the order was imperfectly obeyed; but, in general, spoliation became the law of the land—the statues crashed from their niches, rood and roodloft were laid low, and the sunlight stared in white and stainless upon the whitened aisles; 'the churches were new whitelimed, with the Commandments written on the walls,' where the quaint frescoes had told the story of the gospel to the eyes of generation after generation.⁴² The superstition which had paid an undue reverence to the symbols of holy things, was avenged by the superstition of as blind a hatred.⁴³

The passiveness with which the people appeared to submit encouraged the Government to go further. On the 4th of May a royal visitation, after the pattern set by Cromwell, was announced as to take effect throughout England. The country was divided into six circuits; a *Book of Homilies* as a guide to doctrine, a body of instructions for the ordinaries, and of injunctions for the clergy, were drawn up simultaneously under the direction of Cranmer, and the bishops were suspended from their functions until their duties should recommence under a new system.

The Crown visitors were to inquire how far the bishops had obeyed the orders of the late King; whether the English Litany had been in due use; whether the Pope's authority had been preached against; whether the old scandals of the bishops' courts continued, 'the commuting of penance for money,' and 'the excommunication for lucre;'

⁴¹Injunction on images: printed in JENKYN'S *Cranmer*, vol. iii.

⁴²*Grey Friars' Chronicle*.

⁴³The Grey Friars' chronicler mentions, with evident satisfaction, that when the rood at St Paul's, 'with Mary and John,' was taken down, 'two of the men that laboured at it were slain, and divers hurt.' Stow also tells a story in connection with these scenes which must not be forgotten:—

'Two priests were arraigned and condemned in the Guildhall for keeping of certain relics, amongst the which was a left arm and shoulder of a monk of the Charterhouse, on the which arm was written, it was the arm of such a monk which suffered martyrdom under King Henry VIII.'

whether 'excessive sums were taken' for 'religious services,' for the 'concealment of vice,' or 'for induction into benefices;' whether the long-standing grievance was yet abandoned of summoning persons *ex officio* suspected of heresy, and putting them to the shame of purgation. All this was well. Inveterate evils could be extirpated only with watchfulness and habitual investigation. Further, there might be instances remaining of immorality among the clergy requiring to be looked into. Fresh care was to be taken that copies of the Bible were accessible in the parish churches, and translations of Erasmus's *Paraphrase of the New Testament* were provided as a commentary. There was no objection, either, to touching, if the hand was delicate, the local practices—half-superstitious, half-imaginative—in use among the people. Customs which arise out of feeling become mischievous when made a law to the understanding, and there was reason in the general warning which the visitors were to enforce, 'that, while laudable ceremonies might decently be observed, they might be abused to the peril of the soul'—as, for instance (and the list throws an interesting light on ancient English usages), 'in casting holy water upon the beds, upon images, and other dead things; or bearing about holy bread, or St John's Gospel, or keeping of private holydays, as bakers, brewers, smiths, shoemakers, and such others do, or ringing of holy bells, or blessing with the holy candle, to the intent to be discharged of the burden of sin, or to drive away devils, or put away dreams and fantasies.'⁴⁴

The spirit of the innovations, however, was destructive merely, and customs which were interwoven in the details of common life could not rudely be torn away with impunity. To most men habit is the moral costume which saves them from barbarism; and although there are costumes which may be worse than nakedness, it is one thing to do what is right—it is another to do it rightly and at the right opportunity.

The *Book of Homilies* was a further element of discord. It was a perilous risk to throw abroad upon the world, as authoritative, a body of doctrine sanctioned neither by Convocation nor by Parliament. The Protector would have done better if he had waited till the political horizon was less clouded before he threw fresh fuel on the doctrinal

⁴⁴The various instructions for the visitation of 1547 are printed in BURNET's *Collectanea*, FULLER's *Church History*, STRYPE's *Memorials of the Reformation*, and JENKYN'S *Cranmer*.

controversies; and two calamities in the first half-year of his government, one of which it was his immediate duty to have attempted to avert, had not improved the prospects of the well-wishers of the Reformation.

On the evening of the 21st of April Charles V., with his Spanish infantry, was on the banks of the Elbe at Muhlberg. The Elector, who had driven Maurice out of Saxony in March, was across the river falling leisurely back upon Wittenberg, while the rafts and barges which had formed the floating bridge were drifting in flames down the stream, and the water was between himself and the enemy. John Frederick pitched his camp at a few miles' distance with no thought of danger. In the darkness the Castilians swam after the blazing boats, quenched the fire, and secured them, and before dawn there was again a bridge passable for artillery. The Emperor, on his bay horse, glittering in gilded armour, rode breast-high through the river, and caught the Protestants in their sleep. By the evening they were a rout of scattered fugitives, and the Elector was a prisoner.

If Somerset thought the English but lightly concerned in the catastrophe, there were those whom he ought to have feared who thought of it far differently. The fathers at Bologna offered up their thanksgivings. The Pope forgave the carnal policy which he had condemned in his joy at its success, and sending a legate with his congratulations, suggested again that now was the time for the 'expedition into Britain.'⁴⁵

No effort, however, which the English Government could have made would have averted the defeat of the Lutherans. The other misfortune was as easy to have been prevented as its consequences were ruinous. On the 21st of June, while the Protector was reforming the Church, and the English fleets were loitering in harbour, twenty-one French galleys, escorting transports loaded with French troops and French artillery, sailed up the Channel, and appeared under the walls of St Andrews. By the last agreement with the Regent the garrison were to remain in possession until absolution could be obtained for them from Rome. It was brought in language enigmatic as the answers from the Delphic tripod; *Remittimus irremissibile*—we pardon the act which admits of no pardon. With this they were required to be contented, and when they refused, the siege was commenced.

⁴⁵PALLAVICINO

Among the fugitive Protestants who had taken refuge there were two preachers—Rough, who was afterwards burnt by Bonner, and John Knox, who in that wild scene and wild company commenced his ministry. The garrison looked for help from England. Knox, with a shrewd insight which never failed him, told them that they should not see it. They talked of their walls. Their walls, he said, would be 'as egg-shells' against French cannon. The galleys fired on the castle from the sea: the batteries fired from the trenches and from the tower of the abbey. Heat and confinement brought the plague; and on the last of July, after six weeks' resistance, the defenders surrendered, under promise only of life, to the French commander. They were carried prisoners on board the galleys, while the castle itself, as the scene of a legate's murder was razed to the ground.

Without an effort to save them, the Scots, who had delivered England from the most dangerous and most successful of her enemies, were permitted to be overcome, not by a sudden attack, but by a long siege deliberately commenced and deliberately maintained; not at a place far inland and difficult of access, but on the sea, where the English affected a superiority, and at least could have forced a battle.

The attack, if not provoked, had been hastened by the injudicious pretensions which Somerset had advanced; and by his neglect he taught the Scottish Protestants that they could have no reliance upon him. The great families who had been gained over to the English interest, continued a pretended good feeling, but were alienated at heart; and no one any more would risk the odium of espousing so thankless a cause.

The hope of accomplishing the marriage otherwise than by force had now to be deliberately abandoned. At this conclusion the Protector had already arrived, and it was on this account that he had abandoned St Andrews to its fate. Careless of small things, and weary of the tedious labour of gaining over Scotland by supporting an English faction, he had resolved upon a gigantic invasion, which once and for ever should terminate the difficulty. In deference to the French menaces, he disavowed, indeed, his claims to the Scottish crown; and as the Scots were comprehended in the treaty of peace, an excuse was necessary for attacking them. But a pretext was found easily in the perpetual skirmishes which distracted the Borders—the English laying the fault upon the Scots, the Scots complaining that, without provocation, their homesteads were burnt over their heads.

War with France might or might not follow. The Protector was confident and indifferent. The Bishop of Winchester cautioned him in private.⁴⁶ The council, it is likely, disclaimed a share of the responsibility;⁴⁷ but he had chosen his course, and would follow it. The first intention was to follow the precedent of 1544, and send an army by sea to Leith. But a comparative estimate of expenses showed but a small balance in favour of water transport, while the havoc which would be inflicted by the march of a large force would more than compensate for the loss. It was determined to advance from the Border to Edinburgh along the coast, a fleet with the baggage and the commissariat reserve accompanying the march. There was no thought of permanent occupation. The Protector's aim was to strike a blow with all his might, which should bring the country stunned upon its knees; he was going to enter Scotland at the head of 18,000 men, go as far as he could, and inflict as much injury as he could in three weeks or a month, and then return. The necessary stores were collected in August at Berwick.⁴⁸ The daily consumption of food calculated for

⁴⁶'If I was sworn to say what I think of the world, I would for a time let Scots be Scots, with despair to have them unless it were by conquest, which shall be a goodly enterprise for our young master when he cometh of age, and in the mean time prepare him money for it, and set the realm in an order that it hath need of.'—Gardiner to the Protector: *Foxe*, vol. vi. p. 25.

⁴⁷As much as this seems to be implied in a subsequent letter of Paget's, remonstrating with the Protector for refusing generally to listen to advice: 'Alas, sir, take pity of the King, and of the conservation and state of the realm. Put no more so many irons in the fire at once as you have had within this twelve-month—war with Scotland, with France, though it be not so termed, commissions out for that matter, new laws for this, proclamations for another. When the whole council shall join in a matter, and your Grace travel to outreason them in it, and wrest them by reason of your authority to bow to it, or first show your own opinion in a matter, and then ask theirs; alas, sir, how shall this gear do well?'—Paget to the Protector: *MS. Domestic*, Edward VI. vol. viii. State Paper Office.

⁴⁸The estimate of the different things provided for the army is curiously illustrative of the nature of an English campaign in the sixteenth century.

'An estimate for victuals for twenty-eight days, as well for bread and drink as provender for horses and beasts.

'1. For 8 days' biscuit, 18,000 lbs. a day, is in 8 days 144,000 pounds weight, which will take in wheat meal 400 quarters.

'2. Also in wine 110 tonne, after 200 gallons in a tonne.

'3. Also provender for horses and beasts, 1420 quarters; all the which is ready at Berwick saving wine and baking of the biscuit, which wine must be sent to Berwick, and bakers for the biscuit.

'There must be sent unto the Frith, for 20 days more, after the like rate and proportion:

every soldier being two pounds of meat, a pound of bread or biscuit, and a pint of wine imperial measure. If the fighting of the troops depended on their stomachs, good precaution had been taken to secure a victory. The command in chief was held by Somerset in person, supported by Warwick and Grey. The fleet was assigned to Lord Clinton.

The effect of these preparations in Scotland was, as might have been foreseen, to unite all ranks and all opinions in the national cause. Beton was gone, and the Regent was feeble, but Scotland rose of herself, unsolicited. Although the affectation of a correspondence might still be maintained, the English party had, in fact, perished in the abandonment of St Andrews. The Douglasses and the Reformers were as forward to take the field as the Hamiltons and the priests. The fiery cross sped north and south, east and west. The Scots of the Isles brought up four thousand Irish archers. Priest and prelate and preacher buckled on his armour; and the baron from his Lowland castle, the Highland chief from his home among the crags of the Grampians, the trader from his desk, the night rider of the Border from his tower and peel, hurried to the gathering of the nation. Feuds of clans and enmities of creeds were no longer felt in the overpowering peril of Scottish freedom; there was one people with one cause; and the crowds who had listened to Wishart, and the kinsmen of those who were carried off prisoners for revenging his murder, were content to fight behind a banner on which a

'1. Biscuit, 36,000 lbs., and 220 tonne of sweet wine; and in provender 3510 quarters; and as for flesh, it shall be taken out of the carriage.

'2. And the carriage that must be provided by the King's Majesty for victual, provender, and ordnance is 262 carts, which may well be purveyed in York, where the great oxen be, and best wains.

'All which biscuit will take 28 days, with the largess of wheat, 1510 quarters, which after the rate of 13 shillings and 4 pence the quarter, amounteth to 1000*l.* ; and for sweet wine, which will take 560 butts, after six score gallons in a butt, and after 5*l.* the butt, amounteth to 2800*l.* ; and for carriage of the same, 262 carts, which will cost, after 2 shillings a cart a day, by the space of 50 days coming and going, 1510*l.*

'Whereof must be received for 18,000 men, after 2*d.* the man the day for bread and drink, 4200*d.* After 2½*d.* the man the day, 4914*l.* ; after 3*d.* the man the day, 5944*l.* ; so that after 2*d.* the man the day, the victual will be more than the receipt 910*l.* ; after 2½*l.* , 196*l.* more than the receipt; after 3*d.* there shall be more received than, the victuals draweth unto, towards the charge of bringing the victuals by sea, 834*l.*

'Also for two pounds of flesh 1½*d.* : and so every soldier shall have for his 4½*d.* one pound of biscuit, a pottell of drink, and two pounds of flesh.'—*MS. Domestic*, Edward VI. vol. iii. State Paper Office.

lady representing the Catholic Church was kneeling to Christ, and praying Him to save her from heresy.

In the last week in August, Somerset reached Berwick. He had sent before him a letter to the Scottish lords, repeating the language which he had learnt from his master, insisting on their promises, and urging the common interests of both nations in the marriage.⁴⁹ On Friday, the 2nd September, he put out a proclamation, though too late to undo his former errors, in which he said that he was not come to rob Scotland of her independence, but to compel her, in spite of herself, to accomplish the engagements of her Parliament.⁵⁰

Waiting till Sunday, for Sunday was his favourite day—on a Sunday he announced to Edward that he was King, on a Sunday he accepted from the council his dukedom and his lands, on a Sunday the seals were taken away from his rival Wriothesley, on a Sunday the commission was dated which made him Protector by the grace of the King—waiting, therefore, till Sunday, and invoking on his enterprise the blessing of the Almighty, he crossed the Tweed with fifteen cannon, fourteen thousand foot, and four thousand horse.⁵¹ Sun-

⁴⁹HAYWARD's *Life of Edward VI.*

⁵⁰HOLINSHED.

⁵¹Somerset's being one of the disputed characters in history, everything is welcome which throws light upon his inner nature. In the prayers of men it is hard to tell how much is real—they often cannot tell themselves; nevertheless, one reads with interest,

THE PRAYER OF THE PROTECTOR BEFORE THE SCOTTISH WAR.

'Most merciful God, the granter of all peace and quietness, the giver of all good gifts, the defender of all nations, who hast willed all men to be accounted as our neighbours, and commanded us to love them as ourself, and not to hate our enemies, but rather to wish them, yea, and also to do them good if we can, bow down thy holy and merciful eyes upon us, and look upon the small portion of the earth which professeth thy holy name and thy Son Jesus Christ. Give to us all desire of peace, unity, and quietness, and a speedy wearisomeness of all war, hostility, and enmity to all them that be our enemies, that we and they may in one heart and charitable agreement, praise thy Holy Name, and reform our lives to thy godly commandment. And especially have an eye to this small Isle of Britain; and that which was begun by thy great and infinite mercy and love to the unity and concord of both the nations, that the Scottishmen and we might hereafter live in one love and amity, knit into one nation by the most happy and godly marriage of the King's Majesty our Sovereign Lord and the young Scottish Queen, whereunto provision and agreement hath been heretofore most firmly made by human order. Grant, oh Lord, that the same might go forward, and that our sons' sons, and all our posterity hereafter may feel the benefit and commodity thereof. Thy great gift of unity grant in our days. Confound all those that worketh against it. Let not their counsel prevail. Diminish their strength. Lay thy sword of punishment upon them that interrupteth this godly

day, Monday, and Tuesday he marched steadily forward, keeping the sea-road with the fleet in sight of him, demolishing such small fortresses as lay in his route, but turning neither to the right nor the left. Wednesday he passed Dunbar within long cannon range, but without waiting to attack it; and that night he halted at Seton Castle. Thursday he again advanced over the ground where fourteen years later Mary Stuart, the object of his enterprise, practised archery with Bothwell, ten days after her husband's murder. The route lay along a ridge, with the sea on one side on the other a low range of marshy meadows; nothing happening of consequence on that day, except that an English officer, observing a party of the enemy hiding in a cave, stopped the opening, threw in fire, and smothered them. The march was short. Soon after the Protector had passed Prestonpans, famous also in Stuart history, he came in sight of the whole Scottish army, encamped on the slopes of Musselburgh, the English vessels lying in the Forth just out of gunshot of their tents.

In numbers the Scots almost doubled the English. The following morning Clinton sent boats on shore to communicate. Fifteen hundred Scotch cavalry and a few hundred pikemen came out to cut off the landing party, and provoke a skirmish. Sir Ralph Bulmer and Lord Grey, with some companies of Italians in the English service, dashed forward to engage them, and after a sharp scuffle of three hours, the Scots were driven back. In these bloody combats neither party cared to encumber themselves with prisoners, except where there was a likelihood of ransom, and thirteen hundred bodies were left dead upon the ground. The Duke, when the skirmish was ended, rode forward to examine the enemy's position. The sea was on their left, on their right a deep impracticable marsh. Between the two armies ran the Esk, low and half dry after the summer heat, but with high steep banks, and passable for horse or cannon

peace; or rather convert their hearts to the better way, and make them embrace that unity and peace which shall be most for thy glory and the profit of both the realms. Put away from us all war and hostility; and if we be driven thereto, hold thy holy and strong power and defence over us. Be our garrison, our shield and buckler; and seeing we seek but a perpetual amity and concord, and performance of quietness promised in thy name, pursue the same with us and send thy holy angels to be our aid, that either none at all, or else so little loss and effusion of Christian blood as can, be made thereby. Look not, oh Lord, upon our sins or the sins of our enemies what they deserve; but have regard to thy most plenteous and abundant mercy, which passeth all thy works, being so infinite and marvellous. Do this, oh Lord, for thy Son's sake Jesus Christ.'—*MS. Domestic*, Edward VI. vol. ii. State Paper Office.

only by a bridge, distant something less than a quarter of a mile from the mouth. Across the bridge, from camp to camp, there ran a road thirty feet wide, enclosed between turf hedges, along which Somerset advanced with his escort. The Scots fired upon him, and killed the horse of an aide-de-camp at his side; but he crossed the bridge, rode within two bowshots of the Scottish lines, and was returning at his leisure, when he was overtaken by a herald bringing him a challenge from the Earl of Huntley to fight out the quarrel either by themselves alone, or ten to ten, or twenty to twenty.

The time was passing away when disputes of nations could be settled by duels: Somerset's courage was unimpeachable, but he refused: the Earl of Warwick offered to take his place, but it could not be; the herald retired, and as the night closed, the English artillery was ordered forward to command the road. The enemy's position was dangerously strong; the morning would show if there was a practicable mode of assaulting it; but if the Scots had sat still to receive the attack, the defeat of Flodden might, perhaps, have been revenged at Musselburgh. As soon, however, as they had ascertained the extent of the force which the Protector had brought with him, confident in their numbers, their cause, and their enthusiasm, they began to think less of defeating the English than of preventing their escape. They persuaded themselves that, conscious of their inferiority, the invaders thought only of retreat, and that the fleet was in attendance to take them on board. When the day broke Somerset found them already across the water, their tents thrown down that not a loiterer might remain concealed there; the main body covering the hills between himself and the land to the south, the four thousand Irish archers in front of him towards the sea. The latter, as soon as daylight permitted, were fired into from the ships, and were rapidly scattered. The Scots on the other side pushed on in force, intending, evidently, to seize the ridges in the rear, where they would have the advantage of ground, wind, and sun, and, if victorious, would destroy the entire English army.

Their horses they had left behind, their heavy guns they had dragged up by hand, and they were moving with the greatest speed that they could command; but the Protector was in time to alter his dispositions, and secure the hills immediately behind him. His cannon was brought back and placed to cover the ground over which the Scots would pass to attack the camp, and Grey, with

the English horse, prepared to charge. The Earl of Angus, with 'the professors of the Gospel,' the heavy pikemen of the Lowlands, eight thousand strong, was leading; Arran was behind on the low ground with ten thousand more; and Huntley, with eight thousand Highlanders and the remains of the Irish, towards the stream, out of range from the fleet. On Angus the brunt of the battle was first to fall. He halted when he discovered that the English intended not to fly but to fight; but he could not fall back; the ground was unfavourable for cavalry—a wet fallow recently turned—and the pikemen formed to receive the charge, the first rank kneeling. Down upon them came Grey, with a heavy plunging gallop, but the horses were without barbs, and the lances were shorter than the Scottish pikes. Down as they closed rolled fifty men and horses, amidst the crash, of breaking spears. Grey himself was wounded in the mouth; Sir Arthur Darcy's hand was disabled, and the English standard was saved only by the flight of the bearer. The men turned, reeled, scattered, and rallied only when Grey and Lord Edward Seymour fought back their way to them out of the *mêlée*. They might as well charge, they said, upon a wall of steel.

But the line of the Scots which the enemy could not break was broken by victory. As they saw the English fly they rushed on in pursuit, and found themselves face to face with Warwick, the men-at-arms, and the Italian musketeers. Checked by the volleys of the matchlocks, and thrown into confusion, they were assailed next by the archers, and forced to cross the fire of the artillery; and the cavalry, once more forming, swept again upon their disordered lines, and drove the struggling mass back upon their comrades. Ill trained and undisciplined, the reserves were seized with panic; Arran and Huntley turned bridle and rode for their lives, and the whoops and yells of the Irish increased the terror; there was no thought of fighting more—it was only who could fly first and fly fastest. They flung away their arms: swords, pikes, and lances strewed the ground where they had been drawn up, 'as thick,' it was said, 'as rushes in a chamber.'⁵² Some crept under the willow pollards in the meadows, and lay concealed like otters with their mouths above the water; some made for Edinburgh, some along the sands to Leith under the fire of the fleet, some up the river-side towards Dalkeith; some lay as if dead and let the chase pass by them. The Highlanders held together and saved

⁵²HOLINSHED, from the account of an eye-witness.

themselves with an orderly retreat, but the crowd fell unresisting victims under the sabres of the avenging cavalry. It was a massacre more than a battle; for, of the English, at most, not more than two hundred fell, and those chiefly at the first charge under the lances of the pikemen; the number of Scots killed was from ten to fourteen thousand. Two causes provoked the English, it was said, to an especial vindictiveness; they resented ungenerously their own first repulse; but the chief reason was the treacherous surprise at Ancram Muir, and the death of Lord Evers, the hero of the Border troopers. Fifteen hundred prisoners were taken, but in general no quarter was given. Gentlemen might have been spared for their ransoms; but, for some unknown cause, the noble and the peasant were dressed alike in white leather or fustian; there was little to distinguish them, and they were cut down in indiscriminate heaps along the roads and fields to the very walls of Edinburgh. Multitudes of priests, at one time, it was said, as many as four thousand, were among the slain. The banner of the kneeling Lady was taken amidst the scorn of the victors; and when at last the retreat was sounded, and the pursuers, weary with killing, gathered again into their camp, they sent up a shout which legend said was heard in Edinburgh Castle. The day closed with one more act of barbarity. A detachment of Scots had been stationed with cannon in a small fort overlooking the field, and had given some trouble. When the battle was lost, they were left behind and unable to fly; they silenced their guns, therefore, and concealed themselves, intending to withdraw in the night. But they were discovered and surrounded; they were not offered the alternative of surrender; the place was set on fire, and they were destroyed.

In this deed of savageness closed the battle of Musselburgh, otherwise called Pinkie Cleugh or Slough; the last stricken field between Scot and Saxon before the union of the Crowns, the last and also the most piteous. A battle loses its terrors when a great cause is contended for, when it is a condition under which some interest or principle makes its way and establishes itself. But of Pinkie Cleugh the result was unmixed evil to both countries. The marriage of Mary and Edward was an object which England and Scotland ought to have equally desired. Yet England sought it by means which made it impossible, and the Scotch command more sympathy in the disaster brought upon them by their national pride than the conquerors command admiration either for their cause or for their courage. National

qualities are not to be measured by single consequences, and while indignation only can be felt at the crooked tricks of Beton, but for which the union would have been peaceably effected, the spirit which rose up against the invasion of Somerset had its source in the noblest instincts of the Scottish character. The Protector had gained a great battle, and by his victory he only renewed the lease of enmity which had almost expired. The Scots forgot their own differences in a great hatred of England, and the hearts of all parties among them turned passionately to France. Although the available military strength of the nation was for the moment annihilated, the conquerors could not follow up their success. The Queen was withdrawn to Stirling, and they could not reach her. They had brought supplies with them for a month only, and so long and no longer could they remain; neither force nor payment could extract the means of subsistence from a country where it did not exist; there were no more stores in readiness to be brought up from England, and Scotland, unsuccessful in her arms, drove the invaders back by her hardy poverty.

Leith was again burnt—so much of it as would burn: the ships in the harbour were taken and destroyed; two islands in the Forth were fortified, and small garrisons left there; a few castles were dismantled. These alone were the tangible fruits of the bloody inroad of the Duke of Somerset.

But at least he had surrounded himself with glory. He did not return with the Queen of Scots, but he had fought and won a great battle. He was the hero of the hour, and while the hour lasted, he could work his will in Church or State without fear of opposition.

When he set out for Scotland, the ecclesiastical visitors were in full activity. From the people, wherever they went, they met with no open opposition; in London they were indisputably popular. In London, the old, the timid, the superstitious, the imaginative, prayed in secret to the saints to deliver them from evil; but the industrious masses had caught the spirit of the age, and gave the changes cordial welcome. So it had been at Portsmouth; so it was in the towns generally, especially in the towns along the coast, where activity and enterprise shook the minds of men out of the control of routine. So, however, it was not in the country, as events came in time to show. As with the first spread of Christianity, so with the spread of the Reformation, the towns went first, and the country lagged behind reluctantly. The life of towns was a life of change; the life of the country was a life

of uniformity, where sons walked in the ways of their fathers, and each day and season brought with it its occupation, its custom, or its ceremony, unaltered for tens of generations. The fall of the abbeys had given the first shock to the stationary spirit, but the crimes of the monks were half forgotten in the sadness of their desolate homes. It was no light thing to the village peasant to see the royal arms staring above the empty socket of the crucifix to which he had prayed, the saints after which he was named in his baptism flung out into the mud, the pictures on the church walls daubed with plaster, over which his eyes had wandered wonderingly in childhood.

Other changes added to his restlessness. The Acts of Parliament which forbade enclosures and the amalgamation of farms were less and less observed; the peasant farmers were more and more declining into labourers, rents were rising, and the necessities of life were rising, and, in the experience of the agricultural poor, an increase of personal suffering was the chief result of the so-called Reformation.

Yet for the moment loyalty was stronger than discontent. If the country people murmured, they submitted, and the visitors met with important resistance only from the notorious Bishops of Winchester and of London. To Bonner they brought their injunctions and homilies at the end of August. He accepted them, but he accepted them with a protest; he could observe them, he said, only if they were not contrary to God's law and the ordinances of his Church, and he required the visitors to enter his conditions in the register. His answer was reported to the council, and was held to be to the evil example of such as should hear it, and to the contempt of the authority which the King justly possessed as head of the Church of England.⁵³ The Bishop of London was committed to the Fleet,⁵⁴ where, after eight days' meditation, he repented. A form of submission was drawn up for him peculiarly ignominious; he signed it, and was released.⁵⁵

⁵³*Privy Council Records, MS.* Edward VI.

⁵⁴In the Protector's absence, Cranmer must be considered the person responsible for measures of this kind.

⁵⁵'Where I did unadvisedly make such a protestation, as now upon better consideration of my duty of obedience and of the ill example that may ensue to others thereof, appears to me neither reasonable, nor such as might stand with the duty of a subject; and forasmuch as the same protestation, at my request, was then by the registrar of that visitation enacted and put in record, I do now revoke my said protestation; and I beseech your lordships that this revocation may likewise be put in the same records for a perpetual memory of the truth.'—Bonner's Recantation, printed in BURNET'S *Collectanea*.

The resistance of Gardiner was more skilful and more protracted. Up to the Protector's departure he had continued an anxious correspondence with him. Unlimited license had been allowed both to pulpit and printing press; John Bale, the noisiest, the most profane, the most indecent of the movement party, had been pouring out pamphlets and plays.⁵⁶ Gardiner wrote in protest to Somerset against the toleration by the Government of the insolence and brutality of him and others like him. He remonstrated also against the sudden alteration of doctrine contemplated in the homilies; and three weeks before the visitors were coming to Winchester, he was invited, at his own earnest request, to state his views to the council. 'If he could have written with the blood of his heart,' he told the Protector, 'he would have done it, to have stayed the thing till it had been more maturely digested.'⁵⁷ The whole proceedings on the visitation, he said, were illegal. No royal commission could have place against an Act of Parliament;⁵⁸ and even in the late King's reign, he said the prerogative had more than once come in collision with the law, and had been worsted by it.⁵⁹

⁵⁶The character of which, and the writer's character, may he judged from the following specimen. In one of his farces a priest is introduced, who, on the stage, offers the following prayer:—

'Omnipotens et sempiterna Deus, qui in usum nostrum formasti laicos, concede quæsumus ut eorum uxoriibus et filiabus—' The reader must imagine, or had better not imagine, the rest.

⁵⁷Gardiner to the Protector: *MS. Harleian*, 417. Printed by FOXE, vol. vi.

⁵⁸It is to be remembered that, throughout the correspondence, Gardiner speaks as if the Protector was being dragged on by Cranmer against his will. The Protector had once, he said, promised him that 'he would suffer no innovations.' According to Gardiner, it was not the Protector who caused the deposition of Wriothesley: 'Your Grace,' he said, 'showed so much favour to him that all the world commended your gentleness.' 'For the visitation,' he added, 'I saw a determination to do all things suddenly at one time, whereunto, although your Grace agreed, yet of your wisdom I conjectured ye had rather had it tarry till your return if ye had not been pressed. That word 'pressed,' I noted in your letter to me, when ye wrote ye were pressed on both sides; and methought if, by bringing myself into most extreme danger in your absence, I could have stayed the matter, beside my duty to God and my Sovereign Lord, I had done you a pleasure.'—Correspondence of Gardiner with the Protector: FOXE, vol. vi. On the other hand, Paget, in the letter of remonstrance to which I have referred, speaks as if Somerset listened to no one whose views did not coincide with his own.

⁵⁹He mentions curious instances;—'Whether a king may command against a common law or an Act of Parliament, there is never a judge or other man in the realm ought to know more by experience of that the laws have said than I.

The council permitted him to speak; but his plea of the law they set aside by the plea of their consciences; and they required him categorically to say whether he would or would not submit to the visitors. He said that he had three weeks in which to decide before they would come to him. At present he believed he could not submit, but he might change. The servant in the parable refused to do his master's will, and yet afterwards did it. It was hard to treat him as a criminal for an offence which, if offence it was, he had not yet committed, and might not commit.

But Cranmer chose to be obeyed. He summoned Gardiner privately before him at the deanery of St Paul's, and he told him that, if he would comply, he should be restored to the council, where his assistance would be welcomed. But Gardiner was unable to give the required promise, and was committed, like Bonner, to the Fleet. 'I have held my office sixteen years,' he wrote to Sir John Godsalue, who was one of the visitors; 'I have studied only how I may depart with it without offence to God's law; and I shall think the tragedy of my life well passed over, so I offend not God's law nor the King's;

'First, my Lord Cardinal, that obtained his legacy by our late Sovereign Lord's requirements at Rome, yet, because it was against the laws of the realm, the judges concluded the offence of Premunire, which matter I bare away, and took it for a law of the realm, because the lawyers said so, but my reason digested it not. The lawyers, for confirmation of their doings, brought in the case of Lord Tiptoft. An earl he was, and learned in the civil laws, who being chancellor, because in execution of the King's commandment he offended the laws of the realm, suffered on Tower Hill. They brought in examples of many judges that had fines set on their heads in like cases for transgression of laws by the King's commandment, and this I learned in that case.

'Since that time being of the council, when many proclamations were devised against the carriers out of corn, when it came to punish the offender, the judges would answer it might not be by the law, because the Act of Parliament gave liberty, wheat being under a price. Whereupon at last followed the Act of Proclamations, in the passing whereof were many large words spoken.'

After mentioning other cases, he goes on:—

'I reasoned once in the Parliament House, where there was free speech without danger; and the Lord Audely, to satisfy me, because I was in some secret estimation, as he knew, 'Thou art a good fellow, Bishop,' quoth he; 'look at the Act of Supremacy, and there the King's doings be restrained to spiritual jurisdiction; and in another Act no spiritual law shall have place contrary to a common law, or an Act of Parliament. An this were not,' quoth he, 'you bishops would enter in with the King, and by means of his supremacy order the laws as ye listed. But we will provide,' quoth he, 'that the Premunire shall never go off your heads.' This I bare away then, and held my peace.'—Gardiner to the Protector: *MS. Harleian*, 417; *FOXE*, vol. vi.

I will no more care to see my bishopric taken from me than myself taken from my bishopric; I am by nature already condemned to die, which sentence no man can pardon.’⁶⁰

Gardiner had endeavoured to destroy Cranmer. It was no more than retaliation that he suffered a small injustice in his turn at Cranmer’s hand. But injustice it was; his arbitrary committal had no pretext of law for it; nor, it seems, were he and Bonner the only sufferers. On the return of the Protector from Scotland, the imprisoned Bishop appealed to him in language which was not the less just because it was used by one who, when in power, knew as little what justice meant.

‘Whatever become of me,’ he said, ‘I would your Grace did well; men be mortal, and deeds revive: and methinketh my Lord of Canterbury doth well thus to entangle your Grace with this matter of religion, and to borrow of your authority the Fleet, the Marshalsea, and the King’s Bench, with prisonment in his house, wherewith to cause men to agree to that it pleaseth him to call truth in religion, not stablished by any law in the realm. A law it is not yet, and before a law made I have not seen such an imprisonment as I sustain. Our late sovereign lord, whom God pardon, suffered every man to say his mind without imprisonment, till the matter was established by law. If my Lord of Canterbury hath the strength of God’s Spirit, with such a learning in his laws, as to be able to overthrow with that breath all untruth, and establish truths, I would not desire the let of it by your Grace, nor the work of God’s truth any way hindered; in which case it shall be easy to reprove me in the face of the world with the sword of God’s Scriptures, which he should rather desire to do, than borrow the sword your Grace hath the rule of, which is a mean to slander all that is done.’⁶¹

But Parliament was now to meet. The Protector came back from Scotland surrounded with a halo of splendour; London proposed to receive him with a triumphal procession; and, although he declined this excess of honour, the mayor and aldermen met him on Finsbury fields in their robes, and formed his escort to the palace. Fresh distinctions were heaped on him by the council; his designation in future was to run in royal phrase—Edward, by the grace of God, Duke

⁶⁰Gardiner to Sir John Godsalue; BURNET’S *Collectanea*.

⁶¹Gardiner to the Protector: FOXE, vol. vi.

of Somerset, Protector of the Realm.⁶² An order was issued in the name of the boy King that 'our uncle shall sit alone, and be placed at all times, as well in our presence at our court of Parliament, as in our absence, next on the right hand of our seat royal in our Parliament chamber.'⁶³

In the midst of the sunshine, a few moles indeed were visible besides the imprisonment of Gardiner. Memoranda appear, in the council books and official papers, of complaints in the fleet on account of unpaid wages. The bills of the Antwerp money dealers, instead of being paid, had been renewed on interest, and fresh loans contracted. The bad money had not only not been called in, but more had been coined, and still the exchequer was running low. Lists were drawn of all gentlemen in England with, lands over forty pounds a year who had not compounded for their knighthoods, with a view to a levy of fines;⁶⁴ and a commission was designed to examine how far the Crown had been rightly dealt with in the disposition of confiscated estates.

These matters, however, were behind the scenes. Parliament assembled at Westminster on the 4th November, and Musselburgh was a sufficient guarantee that Somerset's influence would be omnipotent. The spirit of the hour was of universal benevolence. The Six Articles Bill was repealed. The Bills of Henry IV. and Henry V. against the Lollards were repealed. England had entered a golden age, when there was to be no more treason, no more conspiracy, no more hankering after the Pope or foreign invaders. And as, in the words of the Parliament, 'in tempest or winter one cover and garment was convenient, in calm or warm weather a more liberal case and lighter garment both might and ought to be used, the severe laws made by the King's Highness's father, good and useful as they had been in the past bad times, were held to be needed no longer. The Act of Words, and the sharper clauses of the Act of Supremacy, were blotted out of the statute book; and offences under those, or any other Acts which in the late reign had been raised into treason or felony, not having been treason or felony before, fell back into misdemeanours.'⁶⁵ Gardiner

⁶²The Titles of the Protector: *MS. Domestic*, Edward VI. vol. i. State Paper Office.

⁶³Place of the Protector in Parliament: *MS. Ibid.* vol. ii.

⁶⁴Privy Council Memoranda: *MS. Domestic*, Edward VI. vol. ii. State Paper Office.

⁶⁵1 Edward VI. cap. 12. The repeal was not carried without a conference between the Houses, nor was it approved of as universally as we might expect. Sir John Mason found fault with the alterations in a remarkable compliment to the English people.

was in the Fleet, but Gardiner was an exception, and persecution as such was to be at an end.⁶⁶

'The King,' nevertheless, 'desired unity and concord in religion;' and although 'he wished the same to be brought to pass with all clemency and mercy, and although he wished that his loving subjects should study rather for love than for fear to do their duties to Almighty God;'—there were yet profanities which could not wholly be tolerated, and those who spoke irreverently and profanely of the Eucharist might be punished with fine and imprisonment.⁶⁷ The concluding clause of this statute enjoined communion in both kinds⁶⁸ on laity as well as clergy; and in jealousy of the abused power of excommunication, the parish priest was prohibited from refusing the sacrament to any one who reverently desired it. The *congé d'élire* was next abolished in the election of bishops. There was to be no longer any affectation or delusion as to their position. They held their commissions under the Crown; they were nominated by the Crown; the supposed choice by a dean and chapter was a hypocritical fiction, and should exist no longer, and like institutions and processes in the spiritual courts, their appointments were to run for the future in the name of the King.⁶⁹

Lest the validity of these changes should be questioned on account of the King's minority, the Act giving him power of repealing them on coming of age was reviewed and altered. All laws passed during

'In all other countries,' he said, 'speeches are at liberty, for such are the people's natures, as when they have talked they have done. In our country it is otherwise, for their talking is preparatory to doing; and the worst act that ever was done in our time was the general abolishing of the Act of Words by the Duke of Somerset, whereof we have already had some experience.'—Mason to the Council: *MS. Germany*, Bundle 16, Mary, State Paper Office.

⁶⁶The popular party thought of Gardiner what the witty Duchess of Suffolk said to himself when she passed his prison and saw him at the window. 'Ah, Bishop,' she said, 'it is merry with the lambs when the wolves are shut up.'—*Narrative of the Sufferings of Catherine Duchess of Suffolk*: HOLINSHED.

⁶⁷1 Edward VI. cap. 1.

⁶⁸The Act was entitled as 'Against such as irreverently speak against the sacrament of the body and blood of Christ, commonly called the sacrament of the altar.' In the preamble of the Act the sacrament of the altar was again spoken of, but with the addition, 'called in Scripture the supper and table of the Lord.' The institution was carefully described; but the change in the elements was neither affirmed nor denied. It is curious to watch the slow steps by which the central mystery of Catholicism was invaded.

⁶⁹1 Edward VI. cap. 2.

a minority were declared good and valid for the time being; and although the King himself might reconsider, at a later period, the legislation which had been conducted in his name, the power was not to extend to his successor, should he die meanwhile.⁷⁰

While Parliament was thus employed, Convocation had assembled as usual. The clergy were disconcerted to find that, slight as had been the respect with which they had been treated in the late reign, they were treated with less in the present. Questions, not only of Church policy, but of doctrine, were discussed and disposed of by the laity without so much as the form of consulting those to whom, until these late times, they had exclusively belonged; while the submission of the clergy to Henry VIII. precluded them from holding discussions in their own houses without license from the Crown. Discontented, not unnaturally, with the shadowy vitality which remained to them, they petitioned Cranmer, first briefly, then at elaborate length, that statutes concerning matters of religion and ecclesiastical ordinances might not pass without their consent; and finding their complaints treated with indifference, or anticipating the neglect of them, they repeated the attempts which had been made unsuccessfully by the Irish clergy a few years before. In the writs of summons addressed to Bishops at the opening of Parliament, the clause 'Præmonentes'⁷¹ implied that deans, archdeacons, and the proctors of the clergy were an integral part of the legislature. They petitioned that they might now be 'associated with the Commons in the nether House of Parliament.'

The letter of the writs was on their side, but precedent was against their claim, and that precedent had been set by themselves. In the days of their power the clergy had divided themselves from Parliament, claiming a right to assemble at their own time and by their own authority, and to legislate separately at their own pleasure. Their ambition recoiled upon themselves. As they had constituted themselves a separate body, a separate body they should continue—or, rather, a disembodied ghost. They were not permitted to fall back upon privi-

⁷⁰Ibid. cap. 11.

⁷¹Præmonentes Decanum et Capitulum ecclesiæ vestræ ac Archidiaconos totumque Clerum vestræ diœcesis quod iidem Decanus et Archidiaconi in propriis personis, ac dictum Capitulum per unum, idemque Clerum per duos Procuratores idoneos plenam et sufficientem potestatem ab ipsis Capitulo et Clero divisim habentes, prædictis die et loco personaliter intersint ad consentiendum his quæ tum ibidem de Communi Consilio dicti Regni nostri divinâ favente clementiâ contigerit ordinari.

leges which they had voluntarily abandoned;⁷² the Lords and Commons continued to do their work for them; and, amongst other things discussed, was a question in which, if in any, they might in reason expect to have been consulted. The Lower House, on the 20th of December, sent up a bill 'that lay and married men might be priests and have benefices.'⁷³ Consenting reluctantly to innovation where custom and prejudice had so strong a hold, it would seem that the first measure of relief which they contemplated was a compromise. Laymen having wives already might be ordained; those who were ordained while unmarried, would still remain single. The bill, however, was unsatisfactory. In the Lords it was read once, on the 21 st December: Parliament was prorogued a few days after, and it was dropped.

Two other measures which were passed in this session require attention. The vagrancy laws of the late reign were said to have failed from over-severity. Although whipping, branding, or even hanging were not considered penalties in themselves too heavy for the sturdy and valiant rascal who refused to be reformed; yet through 'foolish pity of them that should have seen the laws executed,' there had been no hanging and very little whipping, and vagrancy was more troublesome than ever. Granting that it was permissible to treat the vagabond as a criminal in an age when transportation did not exist, and when public works on which he could be employed at the cost of Government were undertaken but rarely, the question what to do with him in such a capacity was a hard one. The compulsory idleness of a life in gaol was at once expensive and useless; and practically the choice lay between no punishment at all, the cart's tail, and the gallows. The Protector, although his scheme proved a failure, may be excused, therefore, for having attempted a novel experiment, for having invented an arrangement, the worst feature of which was an offensive name; and which, in fact, resembled the system which, till lately, was in general use in our own penal colonies.

⁷²Petitions of the Lower House of Convocation to the Archbishop of Canterbury: BURNET's *Collectanea*, pp. 264, 265.

⁷³*Lords Journals*, December 20, 1547. One could wish that some draught of this bill had survived. It is difficult to make out the character of it from so brief a description. From the entries in the journals in the following session, however, it is plain that the question was much debated, that the measure of relief went through many forms before it was passed; and as the first form in which it was then brought up in the House of Commons—that laymen having wives may be priests, and have benefices—is open to no misconstruction, I conclude that the original bill was of the same kind.

The object was, if possible, to utilize the rascal part of the population, who were held to have forfeited, if not their lives, yet their liberties. A servant determinately idle, leaving his work, or an able-bodied vagrant, roaming the country without means of honest self-support and without seeking employment, was to be brought before the two nearest magistrates. 'On proof of the idle living of the said person,' he was to be branded on the breast, where the mark would be concealed by his clothes, with, the letter V, and adjudged to some honest neighbour, as 'a slave,' 'to have and to hold the said slave for the space of two years then next following;' 'and to order the said slave as follows:' that is to say, 'to take such person adjudged as slave with him, and only giving the said slave bread and water, or small drink, and such refuse of meat as he should think meet, to cause the said slave to work.' If mild measures failed, if the slave was still idle or ran away, he was to be marked on the cheek or forehead with an S, and be adjudged a slave for life. If finally refractory, then and then only he might be tried and sentenced as a felon. Twenty years before, when vagrancy was less excusable, and the honest man could honestly maintain himself in abundance, such a measure might have worked successfully—supposing only that the word slave had been exchanged for some other expression which grated less harshly in English ears. In the condition of things which was now commencing, as will presently be shown, neither this nor any other penal Act against idleness could be practically enforced. Penal laws were rather required at the other extremity of the social scale. The measure failed, and in two years was withdrawn.⁷⁴

Another measure however did not fail, unless indeed to accomplish unmixed evil be to fail. It has been mentioned that the year before the death of Henry, the remaining property of all ecclesiastical and semi-ecclesiastical foundations, the lands, the rentcharges, the miscellaneous donations for the support of universities, colleges, schools, hospitals, alms-houses, or parochial charities, for

⁷⁴The details of Somerset's bill are curious. The children of beggars were to be taken from them and brought up in some honest calling. If no householder could be found to accept the charge of a slave, he was to be adjudged to his town or parish to work in chains on the highways or bridges. Collections were to be made in the parish churches every Sunday for the relief of the deserving poor. The slaves of private persons were to wear rings of iron on their necks, arms, or legs. As their crime was the refusal to maintain themselves, so if they could earn or obtain any kind of property, they were entitled to their freedom.

chantries, trentals, obits, masses, for stipendiary priests in family or other chapels, for religious services of different kinds, for candles, offerings, ornaments of churches, and other useful or superstitious purposes, were placed by Parliament in the hands of the King, to receive such 'alterations' as the change of times required. The task of dealing with complicated property where the use and the abuse were elaborately interwoven, was at once a difficulty and a temptation. What was good ought to be maintained and extended; increased provision should be made for the poor, for the students at the Universities, for all general objects which the interests of the commonwealth required: endowments for purposes wholly effete or mischievous might be confiscated, and the funds applied to redeem the expenses of the late war. The Parliament had hesitated before they placed so large a trust in the hands of Henry VIII., who had specially thanked the two Houses for so signal an evidence of confidence. But the grant was to himself alone. He had power to appoint commissioners to take possession of the property and make the desired changes, but for the term 'of his natural life' only. The Protector's Government applied for a renewal of the same trust, and obtained it.

The preamble of the new Act, more explicit than that of the Act under Henry, stated that, in times of superstition, when the perfect method of salvation was not understood, when men held vain opinions of purgatory and masses satisfactory, they had established chantries and such other institutions, thinking to benefit their souls. The funds so misapplied might be converted to good and godly uses; additional alms-houses, grammar-schools, and hospitals might be founded, the number of clergy might be increased in populous parishes, and funds might be provided further for the repair of harbours, piers, embankments, and other public works. The details of the intended alterations, however, could not in the present Parliament be conveniently brought forward, and the council requested that the uncontrolled confidence which had been reposed in Henry should be extended to them.⁷⁵

Cranmer, who foresaw the consequences, opposed the grant to the extent of his power. He was supported by Tunstal and six other bishops, but he failed. The two Universities, Winchester, Eton, and St George's at Windsor were exempted from the operation of the Act.

⁷⁵Edward VI. cap. 14.

Cathedral chapters, too, were excepted, unless they maintained obits or chantries. But the whole of the rest of the property was made over to the council; and, as one of the immediate effects, the 'priory and convent of Norwich,' converted by Henry VIII. in 1538 to a chapter, were required, under pretence of some informality, to make a fresh surrender, and they were reincorporated only with a loss of manors and lands, worth 300 marks a year.⁷⁶ The shrines and the altar-plate at York Cathedral were sent to the Mint, to be issued in base coin; and the example being contagious, parish vestries began to appropriate the chalices, jewels, bells, and ornaments in the country churches, and offer them publicly for sale.⁷⁷ The carcase was cast out into the fields, and the vultures of all breeds and orders flocked to the banquet.

⁷⁶Petition of Dean and Chapter of Norwich: *Tanner MSS.* Bodleian Library, 90.

⁷⁷*Tanner MSS.* Ibid.

CHAPTER XXV

THE PROTECTORATE

ON the retreat of the English army a convention of the Estates assembled at Stirling; the young Queen was sent, under the care of Lord Erskine, to the impregnable fortress of Dumbarton, and while the Protector was expecting to hear of the arrival of commissioners at Berwick to ask for peace, couriers were hastening to France with an offer of Mary and the Scottish crown to the Dauphin. The Protector, when he learnt what they had done, made a fresh appeal to Scottish good feeling. He insisted that the marriage of Edward and Mary was obviously intended by Providence. England did not wish for conquest—it desired only union. It won battles and offered friendship, love, peace, equality, and amity. The Scots and English were shut up in one small island apart from the world; they were alike in blood, manners, form, and language—it was monstrous that they should continue to regard one another with mortal hatred. It would be better for the Scots to be conquered by England than succoured by France: conquered or unconquered, England only desired to force upon them a share of her own prosperity; while France would rule over them by a viceroy, and make them slaves. If they would accept instead the hand which was held out to them, 'The Scots and English being made one by amity, having the sea for a wall, mutual love for a garrison, and God for a defence, should make so noble and well-agreeing a monarchy, that neither in peace need they be ashamed, nor in war afraid of any worldly power.'⁷⁸

All this was most true, most just, most reasonable, but it agreed ill with the massacre at Musselburgh. The Protector concluded with a threat that, if the Scots would not accept his terms when offered freely, he would chastise them again by fire and sword. The Scots answered not in words, but in actions, 'You require us to unite with you; we prefer to remain as we are, and to keep our freedom; if we call evil what you call good, where is your right to compel us to a good which we do not desire? Our Parliament, you tell us, gave their consent to you; well, then, we are a free people, and we have changed our minds; you say you will chastise us—come, then, and do your worst.'

⁷⁸Address of the Duke of Somerset to the Scottish Nation: HOLINSHED.

The French Court, on the arrival of the message of the Estates, closed instantly with the offer. Either the Dauphin should have the Queen or some nobleman, either French or in the French service, should have her. The Scots might desire, on reflection, that the Queen's husband should be able to reside among them permanently, which a French sovereign could not do. But, at all events, France would make Scotland's quarrel her own quarrel. The terms of the alliance might be considered at leisure. For the moment another candidate was thought of for the disputed hand of Mary Stuart. Ireland began to stir: O'Donnell broke into rebellion in the north, and fifteen hundred Scots landed to support him. News reached the council that on the Thursday before Christmas-day, seven French vessels were at Dumbarton, and that on board one of them was 'young Gerald of Kildare';⁷⁹ and it was said 'that the said Kildare should marry with the Scottish Queen, and arrear all Ireland in their party against England, and further, that before Easter there should be such a battle fought that all England should rue it.'⁸⁰

Under such an aspect of affairs prudence might have again suggested to the Protector that, in the words of Henry VIII., 'he had a Milan in his hand for the French King;' that the present humour of France, if not created by the English occupation of Boulogne, was infinitely enhanced by it; that by a sacrifice on one side he might purchase noninterference on the other. The Prince, whose honour had been touched by the failure of his attempt, when Dauphin, to surprise the English garrison, had been heard to say that he would recover Boulogne or lose his realm for it.⁸¹ The French were already laying batteries across the river opposite to the English mole, from which shots were fired at the workmen; and the ambassador at Paris warned the Protector that 'Catherine de Medici hated England above

⁷⁹Son of Lord Thomas Fitzgerald and heir of the earldom.

⁸⁰*MS. Domestic*, Edward VI. vol. iii. State Paper Office. This marriage was doubtless talked of at Paris. To unite Scotland and Ireland against England was a constant object of French policy. But Kildare's presence at Dumbarton at Christmas, 1547, was probably a mistake. Among the *Privy Council Records*, under the date of Jan. 28, 1547, I find a note of a letter from a Mr Young, at Florence, who said that he had fallen in with Kildare at that place: that Kildare had told him that he was but a child when he was taken from Ireland; that he regretted his faults, and would make his submission if he could be allowed to return. A resolution of council was passed to admit him to favour, and a letter was written to that effect.

⁸¹*Calais MSS.* bundle 10, State Paper Office.

all other nations,' on account of the disgrace inflicted on French arms by the conquest and occupation of territory.

If war should break out, a garrison equal to an army would be required in the Boullonnaise. The fleet would have to be maintained on a war footing, and the finances were already deeply distressed. But the Protector was enthusiastic, and believed himself irresistible. In the spring ships were in preparation in the French harbours to transport an army into Scotland. He determined to anticipate their coming; and on the 18th of April, Lord Grey the Marshal of Berwick, and Sir Thomas Palmer, again crossed the Border, and advanced to Haddington, which they took and elaborately fortified. After spending six weeks there improving the defences, they left a garrison in charge, of two thousand five hundred men, and after wasting the THE PROTECTORATE.

country for six miles round Edinburgh, at their leisure, they fell back the first week in June upon Berwick.

In the same week Villegaignon, the French admiral, sailed from Brest with sixty transports, twenty-two galleys, and six thousand men. D'Essy, the successful defender of Landrecy in 1544, was in command of the army. He was accompanied by Pietro Strozzi, Catherine de Medici's cousin, by several companies of Italians, the Rhinegrave, de Biron, and other persons of note and name. War was not declared against England; Strozzi said, briefly, that for the time they were to be considered Scots, and they sailed out of harbour with the red lion at the admiral's masthead.⁸²

On the 16th of June they landed at Leith. The troops were allowed a few days rest at Edinburgh to recruit themselves after their seasickness,⁸³ and the work of driving out the English was commenced in the siege of Haddington.⁸⁴

⁸²CALDERWOOD; KNOX.

⁸³BUCHANAN.

⁸⁴Among the convict crews of the galleys employed on this expedition were the prisoners of St Andrews. They had been promised freedom on their surrender; but the gentlemen were confined in French fortresses; the insignificant, and among them (so singularly men judge of one another) John Knox, were sent to serve in the fleet. From Knox's account of their treatment, the discipline could not have been extremely cruel. 'When mass was said on board, or the *Salve Regina* was sung, the Scotsmen put on their bonnets.' An image of the Virgin, 'a glorious painted lady,' was brought on board to be kissed, and was offered 'to one of the Scotsmen there chained,' probably to Knox himself. He gently said, 'Trouble me not; such an idol is accursed; I will not touch it.' The officer violently thrust it in his face, and put it betwixt his hands, who,

The Regent joined d'Essy with eight thousand Scots; trenches were drawn, and siege guns brought up from the ships; the conditions of the French support were then discussed in detail, and agreed upon. Inside the lines of the camp were the ruins of an abbey which the English had destroyed. On this appropriate spot was held the convention of Haddington. That the Dauphin, and no inferior person, should marry the heiress of Scotland, was the natural desire of her uncles, the powerful and ambitious Guises. Their influence had prevailed. The Crowns of France and Scotland were to be formally and ever united. Scotland was to retain her own laws and liberties. The French would defend her then and ever from her 'auld enemies.'⁸⁵ The formal records of the convention declare that the resolution was unanimous; but there were some persons who were able to see that their liberty would be as much in danger from a union with France as from a union with England. The Protector at the last moment had sent an offer with which he had better have commenced. He undertook to abstain from interference till Edward should be of age, if the Scots, on their part, would make no engagements with the French. Their Queen might remain among themselves, and at the end of ten years should be free to make her own choice. Good sense had not been wholly washed away by the bloodshed at Musselburgh, and voices were heard to say that this offer was a reasonable one.⁸⁶ But exasperation and the hope of revenge were overwhelmingly predominant. The queen-mother, Mary of Guise, bold, resolute, and skilful, appeared in person in the convention. The Duchy of Chatelherault was bestowed on the Regent Arran, with a pension of twelve thousand francs; and money was freely used in other quarters. The opposition was silenced, and the intended bride of the Dauphin, that there

seeing the extremity, took the idol, and advisedly looking about, he cast it in the river, and said, 'Let our Lady now save herself; she is light enough; let her learn to swim.' After this the Scots were troubled no further in such matters.

Here, again, is another fine scene.

On a grey summer dawn, 'lying between Dundee and St Andrews, John Knox being so extremely sick that few hoped his life, Master James Balfour willed him to look to the land, and asked him if he knew it, who answered, 'I know it well, for I see the steeple of that place where God first opened my mouth in public to his glory, and I am fully persuaded, how weak that ever I now appear, I shall not depart this life till my tongue shall glorify his holy name in the same place.'" KNOX's *History of the Reformation*

⁸⁵ Acts of the Scottish Parliament, 1548.

⁸⁶ BUCHANAN.

might be no room left for a second repentance, was to be placed at once beyond the reach of the English arms. Villegaignon weighed anchor on the instant, evaded the English cruisers who were watching for him at the mouth of the Forth, and running round the Orkneys, fell back upon the Clyde, took the young Queen on board at Dumbarton, with her brother Lord James Stuart (afterwards known to history as the Regent Murray), and bore her safely to Brest.⁸⁷ 'So,' says Knox, 'she was sold to go into France, to the end that in her youth she should drink of that liquor that should remain with her all her lifetime a plague to the realm, and for her own final destruction.'⁸⁸

The siege of Haddington was then pressed in form. The sallies of the garrison were incessant and destructive. The English commander, Sir James Wilford, won the admiration of the French themselves by his gallantry. But the trenches were pushed forward day after day. The batteries were armed with heavy cannon which would throw sixty shot each in twelve hours—in those times an enormous exploit. The walls were breached in many places, and the advanced works of the besiegers were at last so close to the town that the English could reach them with lead balls swung in the hand with cords. In this position the siege was turned into a blockade. The garrison were short of provisions and short of powder, and 'for matches' they were 'tearing their shirts into rags.'⁸⁹

When their extremity was known at Berwick, Lord Grey collected the Border force in haste, and was preparing to go to their assistance, when he was stopped by an order of Council. The Earl of Shrewsbury was to lead an army into Scotland as large as that which had won Pinkie Cleugh, and Grey was directed to confine himself to throwing in supplies. The instructions may have been more defensible than they appear. Sir Warham St Leger and Captain Wyndham set out from Berwick with two hundred foot, and powder and commissariat waggons. Sir Thomas Palmer and Sir Robert Bowes formed their escort with thirteen hundred light cavalry. The adventure was desperate, and was desperately accomplished. Covered by the charge of the horse, St Leger succeeded in bringing his convoy within the walls; but Palmer and Bowes were taken, and the entire detachment was anni-

⁸⁷CALDERWOOD; BUCHANAN.

⁸⁸KNOX's *History of the Reformation*.

⁸⁹HOLINSHED.

hilated.⁹⁰ Haddington, however, was saved. Shrewsbury advanced by forced marches with fifteen thousand men, supported as before by the fleet; and d'Essy, doubting whether the Scots could be trusted in a general action, raised the siege, and fell back on Edinburgh. The garrison was relieved and reinforced, and the superiority of the English in the field was again asserted.

After a display of power, however, Shrewsbury could only retire as the Protector had done. Twenty miles of Teviotdale were wasted, but this was not to conquer Scotland; and, unless the country could be occupied, as well as overrun, no progress was really made. Conducted on the present system, the war could produce no fruits except infinite misery, unavailing bloodshed, and feats of useless gallantry. The expulsion or withdrawal of the troops from Haddington and other forts which the English held, could be a question only of time. Accident, however, gave the Protector an unexpected opportunity, had he been able to avail himself of it.

The English cruisers had threatened the French supplies. D'Essy was obliged to forage as he could, and the army lying inactive about Edinburgh, became soon on indifferent terms with the people. One morning, at the beginning of October, a Scot was carrying a gun along a street, when a French soldier met him and claimed it. A scuffle began, parties formed, swords were drawn, and shots fired. The provost and the town-guard coming to the spot, took the side of their countrymen; they arrested the soldiers, and were carrying them to the Tolbooth, when a cry rose for a rescue. Their comrades hurried up; the provost and half a dozen gentlemen were presently killed, and the uproar spreading, an English prisoner in Edinburgh who witnessed the scene, said, 'that the French would no sooner espy a Scot, man, woman, or child, come out of doors, or put their heads out of window, but straightway was marked by an arquebus.'⁹¹ The Regent called on d'Essy for explanations, and d'Essy, unable to explain, an-

⁹⁰So say the Scottish historians, and Holinshed, who took pains to inform himself accurately on such points, confirms them. The Protector, however, on the 6th of August, wrote to his brother, Lord Seymour, referring to this business: 'The last evil chance in Scotland was nothing so evil as was first thought; not above three score slain, and the number which is taken, excepting Mr Bowes and Mr Palmer, containeth no man of name or opinion.'—*MS. Domestic*, Edward VI. vol. iv. State Paper Office.

⁹¹Thomas Fisher to the Duke of Somerset: *Original Letters*, edited by Sir H. Ellis, 3rd series, vol. iii. p. 292. Compare the account in BUCHANAN.

swered with high words. At last he withdrew the troops beyond the gates, summoned the Rhinegrave to a council, and determined, in order to obliterate the effects of so awkward a business, to go the same evening with the whole army to Haddington, and carry it by a surprise.

The city was no sooner cleared of the soldiers than the gates were shut behind them, 'and the townsmen, seeking for such French as were left, were he sick or whole, he was no sooner found but forthwith slain and cut in pieces;' 'whenever one or two French were found apart, they were killed and thrust into holes.'⁹² All night the murderous revenge continued; when, shortly before daybreak, a messenger came breathless to the gates, saying that d'Essy had taken Haddington, that a few English only survived, shut up in an isolated bulwark, who had offered to surrender if they might have their lives; but d'Essy had answered they should have no courtesy but death. The news put an end to the massacre; which, if the account was true, might produce unpleasant fruits. The Regent mounted his horse, and rode to the scene of the supposed triumph. At Musselburgh the truth met him in a long file of carts, laden with dead or wounded men.

D'Essy, reaching Haddington at midnight, had surprised the garrison in their beds. The sentinels had but time to give the alarm before they were killed; the watch was driven in, and some of the French entered with them, in the confusion, into the court of the castle. These, seizing the gates and keeping them open, the assailants behind were thronging after them in force, when a cannon, loaded with grapeshot, was fired by an unknown hand into the thick of the crowd, and destroyed a hundred men upon the spot. The check gave the English time to collect. While the attacking party were still reeling under the effect of the discharge, they poured down upon them through a postern. The gun was again charged and fired; the gates were closed, and all who remained inside were cut down or killed in jumping from the battlements. Furious at his failure, d'Essy again led up his troops to the assault; a kinsman of the Rhinegrave had been left in the castle-court, and a party of Germans fought their way in and carried him off; but the whole garrison were by this time under arms. Three times the French came up to be driven back with desperate loss; and at last, with bitter reluctance, the leader gave the signal to fall back. His enterprise had led to nothing

⁹²Fisher to the Protector: *Original Letters*, 3rd series, vol. iii. p. 292.

but discomfiture. With the morning he learnt, and was compelled to bear, the murders at Edinburgh, and to see the Scots as much pleased at his defeat as the English themselves. For some days it was expected that the French would be attacked and destroyed in their camp,⁹³ and they 'were in such desperation that they would rather adventure to be killed by Englishmen than by Scots.'⁹⁴

At such a moment either skilful diplomacy or prompt action might possibly have restored the influence of England; although, the Queen being in France, it was not easy to say for what object the Protector was now contending. The occasion, however, was allowed to pass; and the breach between the Scots and their allies was soon healed by the recall of d'Essy, the arrival of reinforcements, and a series of small successes, in which both Scots and French bore their share, and which restored confidence and good-humour. The English attempted a landing in Fife, where Lord James Stuart beat them to their ships, with a loss of six hundred men; the French, with the help of their galleys, took the islands in the Forth which Somerset had fortified, and destroyed several hundred more. A series of small fortresses in Teviotdale and the Marches—Roxburgh, Hume Castle, Fast Castle, and Broughty Craig, fell one after the other in the winter; and by the spring of 1549 Haddington remained the sole visible result to the Protector of all his costly efforts, while the object for which the war had been undertaken was utterly lost.

Meanwhile, the quarrel with France had extended. An irregular cannonade was kept up between the French forts and the new English works at Boulogne. The Boullonnaise had been invaded; there had been skirmishes and loss of life. Villegaignon's galleys, after landing Mary Stuart at Brest, had roamed about the Channel, preying upon English merchant-ships;⁹⁵ and while peace still continued in name, the French Court professed an insolent confidence that the Protector durst not resent their violation of it. He shrunk, it was true, from declaring war; but England as well as France could play at the game of marauding hostility. Convoys of provisions were passing continually between Brest and Leith, and a French fishing-fleet from Iceland

⁹³The Scots rejoiceth as much at the overthrow as we do, and it is spoken in Edinburgh that the Hamiltons will, for their bloodshedding, seek no other amends at the hands of the French but to be revenged with the sword.—Fisher to the Protector: *ELLIS; Original Letters*, 3rd series, vol. iii. p. 292.

⁹⁴*Ibid.*

⁹⁵The Protector to the Admiral: *MS. Domestic*, Edward VI. vol. iv. State Paper Office

and Newfoundland was looked for in the fall of the year. The 'Adventurers of the West,' the sea-going inhabitants of the ports of Devonshire and Cornwall, were informed that the Channel was much troubled with pirates, and that they would serve their country by clearing the seas of them. Private hints were added, that they might construe their instructions liberally; but that whatever French prizes were brought in should be kept for a time undisposed of, till it was ascertained whether the Court of Paris 'would redress the harms done on their side.'⁹⁶

The Admiralty order came out on the 11th of August. Sir Richard Greenfield, Sir William Denys, Sir Hugh Trevanion, and Sir William Godolphin were commissioned to superintend the Adventurers' proceedings; and on the 7th September, John Greenfield, Sir Richard's son or brother, reported progress from Foy. He had himself been upon a cruise, and had waylaid, taken, sunk, or driven on shore an indefinite number of French trading-vessels; he had brought ten prizes into Foy and Plymouth; he had obtained information of three hundred sail going to Bordeaux for wine for the army in Scotland; and 'the western men,' he said, 'were so expert' in their business, 'that he did not doubt they would give a good account of the whole of them.' About the same time sixteen transports returning from Scotland were attacked by two English ships at the mouth of a French harbour, and four were taken and carried off.⁹⁷

England had thus drifted into the realities of war with France. It would not be through the skill of her ruler if war did not follow with the Empire also, if the Pope did not succeed at last in launching against her the united force of the Catholic powers. Happily, the disintegrating elements were strong enough at that time, as before and after, to prevent a combination which, if accomplished, would have changed the fortunes of the Reformation.

After the fatal battle of Muhlberg, the Landgrave of Hesse had relinquished a contest which for the time was hopeless; and, trusting to the promises of the Emperor and the guarantees of Duke Maurice, that his personal liberty should not be taken from him, presented himself in the Imperial camp. Charles condescending, if the story was

⁹⁶Privy Council to the Admiral: *Ibid.*

⁹⁷Lord Russell to the Admiral: *MS. Domestic*, Edward VI. vol. iv. State Paper Office.

true, to an ignoble evasion,⁹⁸ commanded his arrest; the two princes who had so long defied him were in his power, and, triumphant at last, he summoned the Diet to meet at Augsburg. Carrying his prisoners with him, he arrived there himself in July, and the long-exiled priests followed in flights in the rear of his armies. The cathedral was forthwith purified of heresy by a second consecration, and bishops preached there day after day on the long-insulted mysteries of the faith. The Diet, densely attended, opened on the 1st of September. Charles briefly reminded the assembly of his long efforts to compose the quarrels of Germany peaceably; he had been driven at last, he said, to another remedy, and God had given him success. Religion had been the cause of the turmoil. A council, as they had themselves told him again and again, was the only instrument by which it could be composed. The bishops of the Catholic States, therefore, would petition the Pope to send back the fugitives to Trent; and on the Pope's compliance, the Lutheran princes—Duke Maurice, the Elector Palatine, the Duke of Wurtemberg, and the rest, should promise obedience to the decisions of that council, whatever they might be. Meanwhile, he would reorganize the Imperial chamber; he would hear and determine questions of confiscated Church property in person; and while the Diet proceeded, he would permit no parties or separate conferences.

He was master of the situation, and for the time could insist on compliance; Duke Maurice, after an ineffectual attempt to make conditions, agreed to submit; and the petition to the Holy See was drawn, probably by the Emperor himself, and despatched. The bishops were made to say that they had long desired to see a general council meet in Germany; after years of delay a place had at last been selected, which virtually was more Italian than German. While the war continued they could not safely repair thither, and now, when peace was re-established, the council had been broken up. They entreated that it might assemble again. If his Holiness consented, he would give peace to Europe and to the Church; if he refused, they would not answer for the consequences.⁹⁹

⁹⁸The play upon the words *einig* and *ewig*. The Emperor said he had promised that the Landgrave should not be imprisoned for life not that he should not be imprisoned at all.

⁹⁹SLEIDAN.

The language was impatient and almost menacing. Never since his accession had Paul III. yielded to entreaty, and the council, the action of which at Trent might be uncertain, was in his own dominions safe, convenient, and manageable. It was a view of things which the French, during the summer, had studiously humoured, and a difficulty was evidently looked for. Moreover, Paul was not only the chief prelate of Catholic Christendom, but he had children in a more earthly sense for whom he had the affection of an earthly father. He had dismembered the States of the Church for a favourite child, whom he had invested with the Duchies of Parma and Piacenza. Louis Farnese had distinguished his administration by atrocities unusual even in an Italian despot, and had just been murdered by his subjects. The conspirators had placed themselves under the protection of the Emperor; and Gonzaga, governor of Milan, who was believed to have been in the secret of the assassination, sent troops to Piacenza, and prevented the indignant Pope from revenging his son's death.

The wound was but a few weeks old when the petition of the German bishops arrived at Rome. On the 9th of December it was presented in the Consistory; and Mendoza, Charles's ambassador, declared that he was instructed, if the demand was refused, to record his protest against the sessions at Bologna as illegal. The same day (it cannot be considered an accident) the Archbishop of Rheims arrived from Paris. Henry II., who had long seen in the Italian question the germs of a fresh war, resented the occupation of Piacenza as deeply as the Pope. He, too, dreaded the restoration of the Council of Trent. Charles, master of Germany, with the great council of Christendom sitting within his dominions, and under his virtual sovereignty, would become too strong for him to cope with.¹⁰⁰ The French prelate arrived opportunely to present the homage of France at the Papal throne. His sovereign, the Archbishop said, would have come in person to rest his eyes on the august countenance of the Holy Father, had not his presence been required at home; but he was sent to offer in his master's name the whole power of France against all who secretly or openly conspired against the independence of the Papacy.

Thus supported, Paul determined to defy the Emperor. He told Mendoza that he would submit the petition to the fathers at Bologna, who would be in no haste to condemn their own actions. Cardinal del

¹⁰⁰PALLAVICINO.

Monte, the legate and president, replied for them that the removal from Trent had been the act of a majority, and was therefore legal. If they were to return, their Spanish brethren, who had remained behind, must first submissively rejoin them; they must have a promise further that no secular power should interfere with their freedom of debate; that the Lutherans should submit without reserve; and, finally, that they should be at liberty to leave Trent again, should it seem at any time desirable to them.

The unpromising reply was transmitted to Charles, and once more he despatched a protest both to Bologna and to Rome. He had done his best for the Catholic religion, he said, and the prelates of the council had done their worst. The Germans had promised to acknowledge them if they sat anywhere but in Italy. In the Papal dominions their assembly was an illusion and a pretence. For the last time he insisted that they should return to Trent, or on them would rest the guilt of the misfortunes which they were dragging down upon Christendom. The fathers replied, like themselves, that they were met in the name of the Holy Ghost, that the Emperor was the son of the Church, not the master of it, and that secular magistrates must not dictate to the ministers of Christ. The Pope, equally determined, shielded himself behind equivocation, and affected to hold out hopes of arrangement; but his insincerity was transparent;¹⁰¹ and Charles, exasperated and desperate, determined to assume for a time the power which Henry VIII. had claimed for the sovereign authority in every State and country. A free council might ultimately meet. Meanwhile, and until that happy consummation, a scheme of doctrine, known as the Interim, was composed and submitted to representatives of the different parties, and was finally on the 15th of May, laid before the Diet.

The Catholic faith was asserted, but in 'ambiguous formularies,' which would leave the conscience free while they seemed to bind it.¹⁰² On points where evasion was impossible, such as the restitution of Church property, the marriage of the clergy, and communion in both kinds at the eucharist, the first of these critical questions was

¹⁰¹The wiser Catholics thought that Paul was playing a dangerous game. The Papacy had said one thing and meant another, at an earlier stage of the Reformation, not to their advantage. 'Hujusmodi lac,' says Pallavicino, 'a fallaci spe propinatum quandoque acrius acescit in stomacho magnorum vivorum ubi deludantur, perinde ac fortassis evenerat in divortio Regis Britannici.'—*Historia Concilii Tridentini*.

¹⁰²Formulis ambiguï quæ liceret utrique partium pro re sua interpretari.—PALLAVICINO

untouched; in the two other points the Protestant innovations were condemned in words and were tolerated in fact.

At Rome the intrusion of the secular power upon sacred ground appeared but as the confirmation of the dread which the extreme Catholics had long affected to feel—that Charles would at last imitate the usurpations of his uncle of England. A copy of the Interim was sent to the Pope for approval. The Pope replied by requiring the instant restitution of the abbey lands, the withholding of the cup from the laity, and the separation of the clergy from their concubines.¹⁰³ In Germany the scheme was scarcely received more favourably. Bucer, whose opinion was privately asked, gave his unequivocal disapproval, and accepted an invitation to England, whither Peter Martyr had gone before him. Duke Maurice, with the majority of the Protestant princes, acquiesced for themselves, but with tacit or avowed reluctance. When they called upon their subjects to follow their example, it was with hesitating lips and a dislike or contempt which they hardly cared to conceal.¹⁰⁴

The imprisoned Duke of Saxony possessed the influence which would enable Charles to carry his point, and freedom, favour, and

¹⁰³Dici vix potest quantum animorum motum excitaverit libelli Interim promulgatio. Etenim priori aspectu creditum plerumque est arrogatam sibi fuisse a Cæsare auctoritatem in rebus fidei.—PALLAVICINO.

¹⁰⁴The Bishop of Westminster and Sir Philip Hoby, who were at Augsburg during the Diet, reported the general feeling with much distinctness. In a letter dated the 22nd of May the Bishop wrote:—

‘As the Emperor is earnestly bent to have the Interim kept, so I hear divers places and cities be not content therewith. Duke Maurice says that, for his own person, he is content to keep it; but because he has so often promised his subjects to suffer them to observe their religion that they now be in, he cannot compel them to the observance of the Interim, so he remaineth perplexed.’ Albert of Brandenburg, he added, had refused.—*MS. Germany*, bundle 1, State Paper Office.

On the 9th of July Sir Philip Hoby wrote:—

‘The Duke of Wurtemberg, having received the Interim, with commandment to see it take place and be observed throughout his country, it is reported that he did not make any countenance to disobey the Emperor’s will herein, but received his commission very reverently. Shortly, after suffering the Interim to go about, and the Emperor’s Commissioners appointed for that purpose to set it forth as it liked them, suddenly, without any mention made of the Interim, or, as though he thought nothing thereof, as I hear say he is a man somewhat merry conceited when he list, he caused proclamation to be made in his country, that each person for every time they heard mass should pay unto him eight ducats of gold. He forbade not the mass to be said but would have the hearers pay him this tribute.’—Hoby to the Protector: *Cotton. MSS. Titus*, B. 2.

power were held out to him through Granvelle, as the reward of compliance. John Frederick answered, with a noble simplicity, that 'he was in the Emperor's power; his Majesty might do with him, and use his carcase as it liked him, he neither could nor would resist his pleasure therein; but he humbly besought his Majesty that he would not press him to grant this thing, which, he said, being against the word and law of God, he would not agree unto though he were to die for it.'¹⁰⁵

The Free Towns were less obedient than the princes. Magdeburg sent an open refusal; Constance refused almost as peremptorily; Strasburg sent a protest: and when Granvelle threatened, the Strasburg deputies said that a man's body might be burnt, but a burnt body was better than a damned soul.

In a worldly sense the Protestants would have been more prudent had they taken the Emperor at his word. The Interim was in theory as liberal as the scheme of belief as yet established in England. In practice it was even more liberal, for the marriage of the clergy, though censured, was not forbidden. In formulas of doctrine, as in all mechanical contrivances, looseness of construction becomes looser in the use; and a considerable liberty of opinion might have established itself under the shelter of the Interim. But the Germans, more spiritual than the English, were less tolerant of compromise. They had parted with the substance of Romanism, they would not be haunted with the shadow of it. In the midst of the agitation the Diet was dissolved. The army at least would be obedient; and if the people would not accept what was offered them in a lax spirit, they should be compelled to accept it in a harsh one.

Wherever Charles's hand could reach, diocesan synods were re-established. The ecclesiastical courts were revived, and the schools were placed exclusively under the priests. The Lutheran clergy were advised to send their wives from them, or they might suffer for it; and the supreme courts of the Empire were reorganized as the Catholics desired. John Frederick was punished for his refusal with petty persecution;¹⁰⁶ and as a reply to the insolence of Constance,

¹⁰⁵Ibid.

¹⁰⁶The Emperor was much moved with his answer. Three hundred Spaniards more than the accustomed band were commanded towards the Duke's lodging. They went to the Duke, and showed him the Emperor's pleasure was, seeing he so obstinately refused to grant his requests, that the order which was first prescribed at his taking should now be straitly observed, and no more gentleness and courtesy

three thousand Spanish troops sprang suddenly upon the town. They were driven back after a desperate conflict. But Constance was placed under the ban of the Empire, and compelled at last to yield, and Charles prepared to force his pleasure on Strasburg and Magdeburg. He believed himself irresistible, and those who wished best to the opposition had faint hopes that it would succeed. But for the present, at all events, his hands were full. With Germany to bend or to break, with Italy unsettled, the Pope impracticable, and France again threatening a European war, he had no leisure to interfere with England. On this side at least, the Protector had nothing to fear; and the quarrel with France and the war with Scotland being not enough to occupy him, he could proceed with the Reformation of religion.

An Act of Parliament had forbidden irreverent speaking of the sacrament. The sacrament, however, was the real point on which the minds of men were working most passionately; and as the Government had resolved upon permitting or introducing an innovation upon the Catholic doctrine, it was desirable to familiarize the country with the prospect of change. A general order had prohibited all preaching except under a license from the Government; and a set of noisy declaimers, *avant couriers*, as they called themselves, of the Crown, first to cry for reform while reform was in the ascendant, first to fly or apostatize in time of danger, made the circuit of the towns and parishes, exempted from the operation of the statute. The sacrament of the altar was called the sacrament of the halter. Hocus pocus, the modern conjuror's catchword, was the jesting corruption of the '*hoc est corpus*' in the canon of the mass. With pleasantry of this kind, acting as an additional stimulant on the visitation, the preachers provoked a rising in Cornwall in the summer of 1548, and a royal com-

shewed unto him, seeing it could so little prevail. And forthwith they caused all the daggs and other weapons that the Duke's servants had then in the house to be sought out and sent away; and whereas the Duke had then about him above seventy servants, they sent them all away saving twenty-seven. Granvelle also sent from him his preacher, whom he threatened with fire if he hasted not forth of the country. His cooks and other officers were also commanded, upon pain of burning, they should not prepare or dress for him any meat upon Fridays, Saturdays, or other fasting days commanded by the Roman Church. In this straitness remaineth the Duke now, wherewith he seemeth to be so little moved as there can be none alteration perceived in him, either by word or countenance; but is even now as merry and content to the outer show as he was at any time of his most prosperity.'—Hoby to the Protector: *Cotton. MSS. Titus, B. 2.*

missioner, named William Body, was murdered in a church. But a priest, who had been concerned in it, was hanged and quartered in Smithfield;¹⁰⁷ twenty-eight other persons were put to death in different parts of the country;¹⁰⁸ and the riot was appeased. The malcontents were chiefly among the people. Spoliation and reformation were going hand in hand; the nobles and gentlemen were well contented for the time to overthrow, bind, and strip the haughty Church which had trampled on them for centuries; and they let pass, not without remonstrance, but without determined opposition, the outrages upon the creed which in the recoil of feeling would provoke so fearful a retribution.¹⁰⁹ Among the leading Protestant theologians Lutheranism was melting gradually away. Cranmer, of whose backwardness the letters of the ultra party,¹¹⁰ during the first year of Edward's reign, contain abundant complaints, was yielding to the arguments of Ridley. Latimer, who cared comparatively little for doctrinal questions, whose conception of the Reformation was not so much an improvement of speculative theory, as a practical return to obedience and the fear of God, was more difficult to move than Cranmer; but he, too, was giving way. An attempt was to be made in the next Parliament for an effective and authoritative change.

Somerset himself meanwhile found an adviser in Calvin. The great Genevan, knowing much of religion and little of the English disposition, laid his views before the Protector in a noticeable letter, written in 1548.

'As I understand, my Lord,' wrote Calvin, 'you have two kinds of mutineers against the King and the estates of the realm; the one are

¹⁰⁷STOW.

¹⁰⁸Stow says, 'other of the priests' society.' I conclude twenty-nine to have suffered in all, as I find a note among the *Cotton MSS.* of a pardon sent by the council into Cornwall for all persons concerned in the death of Body excepting that number.—*Cotton MSS. Titus, B. 2.*

¹⁰⁹Sir Philip Hoby put into the mouth of the German Protestants the opinions of himself and of his order. 'Of our proceedings in England,' he says, 'are sundry discourses made here. The Protestants have good hope, and pray earnestly that the King's Majesty, being warned by the late ruin of Germany, [which] happened by the bishops' continuance in their princely and lordly estates, will take order for the redress thereof in his dominions, and appoint unto the good bishops an honest and competent living sufficient for their maintenance, taking from them the rest of their worldly possessions and dignities, thereby to avoid the vain glory that letteth them sincerely to do their office.'—*MS. Harleian, 523.*

¹¹⁰*Epistolæ Tigurinæ, Anno 1547.*

fantastical people, who under colour of the gospel would set all to confusion; the others are stubborn people in the superstition of the Antichrist of Rome. These all together do deserve to be well punished by the sword, seeing they do conspire against the King and against God, who had set him in the royal seat.'

For the general organization of the Church, Calvin recommended that a body of doctrines should be drawn up, which all prelates and curates should be sworn to follow—a catechism or common form of instruction to be taught to children; and to prevent eccentricities, 'a certain form written' to which the clergy should be 'restrained' in public prayer and in the administration of the sacraments.

But these things would be ineffective without measures for 'the reformation of the bastard Christendom of the Pope.' And here the especial rock to be avoided was moderation. Of all things, entreated Calvin, let there be no moderation—it is the bane of genuine improvement. 'We see,' he continued (and here spoke the teacher of John Knox), 'we see how the seed of lies is fertile, and there needeth but one grain to fill the world.' 'It will be said that we must tolerate our neighbour's weakness, that great changes are not easily to be borne. That were to be suffered in worldly affairs where it is lawful for the one to give place to the other, and to give over his right, thereby to redeem peace; but it is not like in the spiritual rule of Christ—there we have nothing to do but to obey God. We must hold by the maxim that the Reformation of his Church is a work of his hands; wherefore in this matter men must let themselves be governed by Him. In reforming his Church or in keeping it, He will proceed in a wonderful fashion unknown to men; wherefore to restrain to the measure of our understandings the Reformation which ought to be godly, and to subdue to the earth and the world that that is heavenly, is to no purpose.'

Lastly, the discipline of the law must be extended from crimes against society to sin against God. 'Thefts, fightings, extortions, are sharply punished,' he said, 'because that men thereby are offended, and the mean time whoredoms, adulteries, and drunkenness are suffered as things lawful or of very little importance. That the honour of God be mindful unto you, punish the crime whereof men are not wont to make any great matter.'¹¹¹

¹¹¹ Calvin to the Protector: *MS. Domestic*, Edward VI. vol. v. 1548. The translation is, I think, in the handwriting of Craumcr,

The concluding exhortation was not likely to receive much attention from an English statesman, least of all from one who had little austerity about him, as the Duke of Somerset; but the rest of the letter indicated the course into which he had been already persuaded. It was essential to his success that, either by argument or intimidation, he should bring over to his side a majority of the bishops, and Gardiner was the first to be taken in hand. By a general pardon extended to all crimes except treason and felony, with which the last session of Parliament had concluded, the Bishop of Winchester had been released from the Fleet, and had returned to his diocese. Here he had been chiefly occupied in opposing the itinerant preachers; 'he did occupy the pulpit himself, not fearing to warn the people to beware of those godly persons whom the King did send.'¹¹² Their fanatical appeals were endangering the public peace, and in self-protection he had been obliged to arm his household.¹¹³ The Government themselves were compelled, in the course of the summer, to silence 'the godly persons' as a nuisance too intolerable to be borne.¹¹⁴ But the Bishop's interference made an opportunity for again calling him to question. He was sent for to London in May, where being too unwell to ride, he was carried in a horse-litter. The Protector told him that his attitude was unsatisfactory; and when he protested that he had done nothing but what as a loyal subject he was entitled to do, he was required to state his opinions publicly in a sermon before the Court, on the royal supremacy, on the suppression of the religious houses, the removal of chantries, candles, ashes, palms, holy bread, and beads, on auricular confession, processions, the use of common

¹¹²*Privy Council Records*, Edward VI. MS.

¹¹³The Privy Council Record says: 'He had caused all his servants to be secretly armed and harnessed.' The Protector, in a circular to the foreign ambassadors, inflames the charge against him into treason. 'To *withstand such as he thought to have been sent from us*, he had caused his servants to be armed and harnessed.' But it is incredible that he contemplated an armed resistance to the Government. He denied it himself emphatically.

¹¹⁴His Highness is advertised that certain of the said preachers so licensed, not regarding such good admonitions as hath been given unto them, hath abused the said authority of preaching, and behaved themselves irreverently and without good order in the said preachings, whereby much contention and disorder might arise and ensue in his Majesty's realm.' 'All manner of persons,' therefore, whoever they might be, were forbidden 'to preach in open audience in the pulpit or otherwise,' till further orders.—Proclamation for the Inhibition of Preachers, September 23, 1548. FULLER'S *Church History*.

prayer in English, and the validity of changes made in the King's minority. He promised obedience in general terms. A few days after, William Cecil, the Protector's secretary,¹¹⁵ waited on him with more specific instructions, and with a schedule of detailed opinions, which he was required to maintain.

To this Gardiner answered promptly, that he would not 'maintain another man's device.' 'It was a marvellous unreasonable matter, touching his honour and conscience.' The Duke then sent for him, and produced a lawyer's opinion, showing 'what a king might lawfully command a bishop to do,' and he was himself, he said, in the place of a king. Gardiner answered that he knew the law of England: 'no law could enjoin him to say as his opinion what was not his opinion;' and, although the Duke told him 'he should do that or worse,' he refused distinctly to bind himself to the schedule,

¹¹⁵This being the first occasion on which I have had to mention Cecil, some account may be useful as to who and what he was. David Cecil, his grandfather, alderman of Stamford, had a son Richard, who went to London, and found service at the Court, becoming yeoman of the wardrobe to Henry VIII. Being a good servant, he grew in favour; he was made at last constable of Warwick Castle, and on the dissolution of the monasteries received a grant from the King of Stamford Priory and other property in Northamptonshire. The wife of this Richard was daughter and heiress of William Heckington, of Bourne, by whom he had three daughters Margaret, married to Robert Carr, of Stamford; Elizabeth, married to Sir Thomas Wingfield, of Upton; Anne, married to Thomas White, of Nottingham; and one son, William, the statesman known to history, born on the 13th of September, 1520. William Cecil was at school first at Grantham, afterwards at Stamford; from whence, at the age of fifteen, he went to St John's at Cambridge, where his academic course—Greek lectures, sophistry lectures, &c.—was successfully accomplished, and where he made the acquaintance of Sir John Cheke, whose sister Mary he married. At Cambridge he was present at the terrible and never-to-be-forgotten battle between Cheke and Gardiner on the pronunciation of the Greek epsilon, which convulsed the academic world; and thence, in 1541, he removed to Gray's Inn, and became a law student. Mary Cheke dying, he married a second time, in 1545, Mildred, daughter of Sir Anthony Cooke, of Gyddes Hall, eldest of five sisters; Anne, the second of whom, became the wife of Nicholas Bacon, and mother of Francis; Katherine, the third, married Sir Henry Killebrew. Elizabeth married, first, Sir Thomas Hoby, and afterwards Lord Russell. The youngest, less distinguished in her posterity, married a Sir Ralph Rowlet.

William Cecil, introduced at Court by his father, was patronized by Henry, who gave him the reversion of a place in the Common Pleas; and at Henry's death, at the age of twenty-seven, he became secretary of the Duke of Somerset, whom he attended to Musselburgh, where the name of Cecil was nearly brought to an abrupt conclusion by a Scotch cannon-ball. In this capacity of private secretary to the Protector we see him now, being twenty-eight years old.

and retired, saying merely that he trusted his sermon would be satisfactory. It was to be delivered on the 29th of June, the feast of St Peter and St Paul. On the 27th Cecil came to him again, with the Duke's 'advice,' that he should not speak of the sacrament. He asked for something more definite. Cecil said he was not to speak of transubstantiation. 'You do not know what transubstantiation is,' he answered; 'the mass, as I understand it, is the foundation of religion. The ancient faith in this matter is still the law of the land, and I shall speak what I think, if I am to be hanged when I leave the pulpit. I wish the Protector would leave religion to the clergy, and cease to meddle with it.'

The reply to this was a letter the next day from Somerset, interdicting Gardiner positively from touching the subject. It was his duty, the Protector considered, 'to bring the people from ignorance to knowledge; and where there was a consent among the bishops and learned men in a truth,' he declared that 'he would not suffer the Bishop of Winchester, or a few others, to dissuade the rest.'¹¹⁶

¹¹⁶The authorities for the treatment of Gardiner are a long series of letters and papers, printed in the latest edition of FOXE's *Martyrs*, vol. vi. The Protector's concluding letter of the 28th of June is printed also in BURNET's *Collectanea*, I must allow myself to add one more extract from Gardiner's general letters of protest. The real feeling among the laity, he saw plainly, was not against the doctrines of the Church, but against the prelates and against ecclesiastical domination. Changes in doctrine, though nominally by the King's authority, would assuredly, when the King came of age, be called in question again, and if the bishops were weak enough to encourage such changes, it would only be made fresh matter of accusation against them.

'When our Sovereign Lord, cometh to his perfect age,' said Gardiner, 'God will reveal what shall be necessary for the governing of his people in religion; and if anything be done in the mean time, having so just a cause, he might use a marvellous speech.'

'The bishops, it may then be said, when they had our Sovereign Lord in minority, fashioned the matter as they listed; and then some young man that would have a piece of the bishops' lands shall say—The beastly bishops have always done so, and when they can no longer maintain their pleasures of rule and superiority, then they take another way and let that go, and for the time they be here, spend that they have, eat you and drink you what they list, with *edamus et bibamus eras moriemur*. If we allege for our defence 'the strength of God's truth' and 'the plainness of Scripture' with 'the word of the Lord,' and many gay terms, the King's Majesty will not be abused with such a vain answer, and this is a politic consideration. The doings in this realm hitherto have never done the Bishop of Rome so much displeasure as the alteration in religion during the King's Majesty's minority shall serve for his purpose.'—Gardiner to the Protector: FOXE, vol. vi.

So the question stood between them when the sermon was delivered. It is extant; and unless by tone and gesture the preacher contrived to throw a meaning into it beyond the seeming intention of the words, it is hard to imagine a composition less calculated to give offence. It was such a sermon as a moderate High Church English divine might preach at the present day, with applause even from evangelicals. The suppression of the chanting, communion in both kinds, the abolition of images, the royal supremacy, were severally touched and approved. The sacrament was spoken of, but only as the late Act of Parliament spoke of it, as a mystery, not to be spoken of with open irreverence. As a matter of opinion, the preacher said, that he 'misliked that priests, who had vowed chastity should marry and openly avow it,' but in this he said nothing more than a subsequent Act of Parliament said, by which the marriages of priests were legalized.

It required some ingenuity to construe such a sermon into sedition; but Gardiner was inconveniently able; it was desirable to get rid of him; and having been himself a persecutor, he was held fair game. The day following, Sir Ralph Sadler and Sir Anthony Wingfield waited upon him by Somerset's order at his house in Southwark. 'My Lord,' said Sadler, 'ye preached yesterday obedience, but ye did not obey yourself;' Wingfield touched him on the shoulder, and told him that he must come to the Tower; and thither he was at once taken, to remain a prisoner till Edward was in his grave.¹¹⁷

Thus delivered from Gardiner, the Reformers could proceed with the preparation of their measures for the meeting of Parliament. The Protector meanwhile, as the counterpart of his zeal for the truth, took occasion in another direction to insult what he considered superstition. His Scotch victory had been rewarded with fresh grants of lands. The extent of Church property, estates, prebends, promotions, which

¹¹⁷It was not exclusively Somerset's work. He had made himself Protector, and as first person in the State, he played the first part in the transaction; but others were pressing him on, among whom it is not easy to distribute the responsibility.

On the 14th of June Lord Warwick (Dudley, afterwards Duke of Northumberland), in a letter to Cecil, says—

'Being desirous to hear whether my Lord hath proceeded with the arrogant Bishop according to his deservings or not, is the chief occasion of my writing to you at this time. I did hear that his day to be before my Lord's Grace and the Council was appointed at Easter-day; but if it had been so, I suppose it would have been more spoken of; but I rather fear that his accustomed wiliness, with the persuasions of some of his dear friends and assured brethren, shall be the cause that the fox shall yet again deceive the lion.'—*MS. Domestic*, Edward VI. State Paper Office, vol. iv.

he had annexed, in one form or other, cannot safely be conjectured;¹¹⁸ but his fortune being princely, he began to build a palace for himself where the modern Somerset House now stands, and retains his name. He pulled down a parish church to make room for it; and to provide materials he blew up with gunpowder a new and exceedingly beautiful chapel, lately built by the last Prior of the Knights of St John. Part of St Paul's churchyard was desecrated at the same time. 'The charnelhouse and the chapel' were turned into dwelling-houses and shops, and the tombs and monuments were pulled down, and the bones buried in the fields.¹¹⁹

The work, however, which Parliament would have to undertake, on its assembling, would not be exclusively religious. It has been mentioned that parallel to the religious Reformation, social changes of vast importance were silently keeping pace with it. In the breakup of feudal ideas, the relations of landowners to their property and their tenants were passing through a revolution; and between the gentlemen and the small farmers and yeomen and labourers were large differences of opinion as to their respective rights. The high price of wool, and the comparative cheapness of sheep farming, continued to tempt the landlords to throw their plough lands into grass, to amalgamate farms, and turn the people who were thrown out of employment adrift to shift for themselves. The commons at the same time were being largely enclosed, forests turned into parks, and public pastures hedged round and appropriated. Under the late reign these tendencies had with great difficulty been held partially in check; but on the death of Henry they acquired new force and activity. The enclosing, especially, was carried forward with a disregard of all rights and interests, except those of the proprietors.

Periods of revolution bring out and develope extraordinary characters; they produce saints and heroes, and they produce also fanatics, and fools, and villains; but they are unfavourable to the action of average conscientious men, and to the application of the plain principles of right and wrong to every-day life. Common men at such times see all things changing round them—institutions falling to ruin, reli-

¹¹⁸I have seen it stated in some loose schedule among the *State Papers*, to which I have no reference, at ten thousand pounds a year; but no official account, so far as I can make out, was ever completed. Part the Duke was obliged to surrender in the following year. But his remaining fortune enabled him to keep a retinue of two hundred servants.

¹¹⁹Stow's *Annals*; Stow's *Survey of London*; *Chronicle of the Grey Friars*.

gious truth no longer an awful and undisputed reality, but an opinion shifting from hour to hour; and they are apt to think that, after all, interest is the best object for which to live, and that in the general scramble those are the wisest who best take care of themselves. Thus, from arbitrary selfishness on one side, and discontent rapidly growing on the other, the condition of the country districts in England was becoming critical. The yeomen, driven from their holdings, were unable to find employment elsewhere. The loss of the common lands took from many of the poor their best means of subsistence; while corn was rising to famine prices from the diminished breadth of land under the plough, and with corn, all other articles of daily consumption. Unhappily, two causes were operating to produce the rise of prices, and the people and many educated persons believed that the landlords were responsible, not only for half the blame, but for the whole of it.

Instead of restoring the silver currency, the Protector, as has been seen, had yielded to the temptation to raise supplies from the same source for the Scottish wars; and from the mints at York, South wark, Canterbury, and the Tower, fresh and fresh streams of base money had been poured into circulation. The sums for which the Government were responsible formed but a fraction of the mischief. Sir William Sharington first of all, controller of the mint at Bristol, who had been directed, when the other mints were busy, to keep his own inactive, made an opportunity of the prohibition. The inhabitants of the Somersetshire villages made away surreptitiously with their church plate. Sharington became the general purchaser, and threw it upon the country in testons, or bad shillings, in which four ounces of pure metal were mixed with eight of alloy. The profit he kept to himself, and his accounts he falsified. How much bad money he had coined he could not tell, but he admitted to have gained at least four thousand pounds.¹²⁰ The possession of a mint made Sharington the first in the field, but naturally in a little while the entire currency was infected. The pure coin was bought up, and coining establishments were set at work in France and Flanders and in remote corners of Europe. Bad and good money could not co-exist together, and the good disappeared. The Protector was conscious at last of the nature of what was going forward. In the spring of 1548, a proclamation

¹²⁰Sharington's Examinations and Confessions: printed in the first volume of the *Burleigh Papers*.

was issued that the teston should be current only till the following December, and that up to that time it would be received at the mints and paid for at its nominal value. But this only increased the speed of the coiners, and the magnitude of the evil was already too much for a treasury exhausted by war. Meantime the money theorists, three centuries before their time, distracted him with their tempting speculations. 'Why should money cause the dearth?' men said. 'Why should it not be taken as it is proclaimed?' 'What if it were copper? what if it were lead? what if it were leather? Is it not all one, seeing it is for none other use but exchange?'¹²¹ 'If money was plenty, all things would be plenty; the greater abundance of money, the greater the abundance of everything. Three parts of the realm out of four were the better for the multiplication.'¹²²

Among the causes of the general distress, the facility with which Somerset allowed himself to be persuaded against his better judgment by arguments such as these, must hold a considerable place; yet, after all deductions, it remains certain that the absorption of the small farms, the enclosure system, and the increase of grazing farms had assumed proportions mischievous and dangerous. Leases as they fell in could not obtain renewal; the copyholder whose farm had been held by his forefathers so long that custom seemed to have made it his own, found his fines or his rent quadrupled, or himself without alternative expelled. The Act against the pulling down farm-houses had been evaded by the repair of a room which might be occupied

¹²¹Sir James Crofts to the Privy Council: *Irish MSS.* Edward VI. vol. iii. State Paper Office. Crofts felt the fallacy, and laboured with such light as he possessed to see through it. 'Experience,' he said, 'teacheth the contrary. Though it be alleged that moneys be but as we esteem them, it followeth not therefore that we should esteem anything otherwise than reason would we did esteem it; for if we would use lead to make armour or edge tools, our labour was in vain. If we should use iron to make our money, it would not serve for that purpose, but would rust, canker, break, and be filthy, where silver and gold metals, more precious and of more sovereign virtues, are clean in handling, fair in sight, not noisome in savour, most durable against fire, water, air, and earth, and therefore most meetest to make treasure thereof.'

¹²²See a remarkable series of papers by William Thomas, clerk of the council to Edward VI. *Cotton MSS. Vespasian*, D. 18, some of which have been printed in the fourth volume of STRYPE's *Memorials*. Thomas, who had defended the first depreciation of Henry VIII. as long as the coin was not alloyed below the Continental level, was now urgent for a reformation. He disdained the 'frivole reasons' of the theorists, and declared that, in spite of the present apparent gain, the revenue and the rents of the Crown estate must be received in the recognized currency, and the Crown itself would be among the heaviest sufferers, 'unless his Majesty purchase land withal.'

by a shepherd; a single furrow would be driven across a meadow of a hundred acres, to prove that it was still under the plough. The great cattle owners, to escape the sheep statutes, held their stock in the names of their sons or servants; the highways and the villages were covered in consequence with forlorn and outcast families, now reduced to beggary, who had been the occupiers of comfortable holdings; and thousands of dispossessed tenants made their way to London, clamouring in the midst of their starving children at the doors of the courts of law for redress which they could not obtain.¹²³

Between the popular preachers and the upper classes, who were indulging in these oppressions, there may have been for the most part a tolerable understanding. The Catholic priests in the better days which were past, as the Protestant clergy in the better days which were coming, had said alike to rich and poor, By your actions you shall be judged. Keep the commandments, do justice and love mercy, or God will damn you. The unfortunate persons, who for the sins of England were its present teachers, said, You cannot keep the commandments—that has been done for you; believe a certain speculative theory, and avoid the errors of Popery. It was a view of things convenient to men who were indulging in avarice and tyranny. The world at all times has liked nothing better than a religion which provides it with a substitute for obedience. But, as there would have been no Reformation at all, had Reformation meant no more than a change from a superstition of ceremonies to a superstition of words and opinions, so those who were sincere and upright among the Reformers—men like Cranmer, Latimer, Becon, Bradford, or Lever, to whom God and duty were of more importance than 'schemes of

¹²³For authorities, see BECON's *Jewel of Joy*; Discourse of Bernard Gilpin, printed in STRYPE's *Memorials*; Instructions to the Commissioners of Enclosures, *Ibid.*; Address of Mr Hales, *Ibid.*; and a Draft of an Act of Parliament presented to the House of Commons in 1548, *MS. Domestic*, Edward VI. State Paper Office. The suffering of the innocent was a shield for the vagabond. Lever, the preacher, exclaims, 'Oh, merciful Lord, what a number of poor, feeble, blind, halt, lame, sickly,—yea, with idle vagabonds and dissembling caitiffs mixed with them—lie and creep begging in the miry streets of London and Westminster. It is the common custom with covetous landlords to let their housing so decay, that the farmers shall be fain for small regard or coin to give up their leases, that they, taking the ground into their own hands, may turn all into pasture. So now old fathers, poor widows, and young children lie begging in the streets.'—Sermon of Lever, printed in STRYPE's *Memorials*.

salvation,'¹²⁴ whose opinions, indeed, followed with the stream, but who looked to life and practice for the fruit of opinions;—such men, I say, saw with sorrow and perplexity 'that increase of light had not brought with it increase of probity, that, as truth spread, charity and justice languished. 'In times past,' said Latimer, speaking from his own recollection, 'men were full of pity and compassion; but now there is no pity; for in London their brother shall die in the streets for cold, he shall lie sick at the door between stock and stock—I cannot tell what to call it and then perish for hunger. In times past, when any rich man died in London, they were wont to help the scholars at the Universities with exhibitions. When any man died, they would bequeath great sums of money towards the relief of the poor. When I was a scholar at Cambridge myself, I knew many that had relief of the rich men in London; but now I can hear no such good report, and yet I inquire of it and hearken for it. Charity is waxen cold; none helpeth the scholar nor yet the poor; now that the knowledge of God's Word is brought to light, and many earnestly study and labour to set it forth, now almost no man helpeth to maintain them.'¹²⁵ While the country was in the darkness of superstition, landowners and merchants were generous, the people prosperous, the necessities of life abundant and cheap. The light of the gospel had come in, and with it selfishness, oppression, and misery. That was the appearance which England presented to the eyes of Latimer, and it was not for him to sit still and -bear it.

For eight years silent, he was now again about to enter on the fiery course which earned him the name of the Apostle of Britain. He would meddle no more with bishoprics; his mission was to speak and to teach: and in the spring of 1548 he commenced a course of sermons, on the crying evils of the age, at Paul's Cross.

'God,' he said, 'in this world had two swords—the temporal sword was in the hands of kings, the spiritual sword in the hands of ministers and preachers, who spoke as sitting in Moses' chair;' therefore, if kings, statesmen, councillors, magistrates, or any others did amiss, it

¹²⁴For which they were despised or lamented over by the advanced Liberals. 'Cantuariensis,' writes Traheron to Bullinger, 'nescio quomodo ita se gerit ut vulgus nostrum non multum illi tribuat. Latimerus, tametsi non liquide perspiciat, æquior est Luthero vel etiam Bucero; altius enim quam cæteri introspicit, ut est ingenio plane divino: sed est cunctabundus et ægre renunciat opinioni semel imbibitæ.'—*Epistolæ Tigurinæ*, p. 211.

¹²⁵Sermon of the Plough, pp. 64, 65: LATIMER'S *Sermons*.

was the preacher's business to correct them. Sketching first the duty of a king, how, sitting in that high place, he was bound to be an example of piety, chastity, justice, and self-restraint, the preacher then went on to 'the monstrous and portentous dearth made by man.'

'You landlords,' he said, 'you rent-raisers, I may say you step-lords, you have for your possessions too much. That that heretofore went for 20 or 40 pounds by the year, which is an honest portion to be had gratis in one lordship of another man's sweat and labour, now is let for 50 or 100 pounds by the year; and thus is caused such dearth that poor men which live of their labour cannot with the sweat of their faces have a living. I tell you, my lords and masters, this is not for the King's honour. It is to the King's honour that his subjects be led in true religion. It is to the King's honour that the commonwealth be advanced, that the dearth be provided for, and the commodities of this realm so employed, as it may be to the setting of his subjects at work and keeping them from idleness. If the King's honour, as some men say, standeth in the multitude of people, then these graziers, enclosers, rent-raisers, are hinderers of the King's honour; for whereas have been a great many householders and inhabitants, there is now but a shepherd and his dog. My lords and masters, such proceedings do intend plainly to make of the yeomanry slavery.¹²⁶ The enhancing and rearing goes all to your private commodity and wealth. Ye had a single too much, and now ye have double too much; but let the preacher preach till his tongue be worn to the stump, nothing

¹²⁶According to Scory, Bishop of Rochester, the extent of land thrown out of cultivation was two acres in three. 'To trust,' he says, 'to have as much upon one acre as was wont to grow upon three—for I think that the tillage is not now above that rate, if it be so much—is but a vain expectation. A great number of the people are so pined and famished by reason of the great scarcity and dearth that the great sheep masters have brought into this noble realm, that they are become more like the slavery and peasantry of France than the ancient and godly yeomanry of England.'—Scory to the King; STRYPE, vol. iv. p. 483.

The difficulty was not merely that the prices of food rose, and that wages remained stationary, for wages as little obeyed Acts of Parliament as food obeyed it. 'Merchants have enhanced their ware,' says King Edward, in a remarkable State Paper as written by so young a boy; 'farmers have enhanced their corn and cattle, labourers their wages, artificers the price of their workmanship, &c.' The genuine English nobleman and gentleman, he said, were the only persons in the commonwealth who 'had not exercised the gain of living,' but were contented with their old rents. The mischief had been done by 'the farming gentlemen and clerking knights,' the middle classes, the capitalists who had bought land and were making a trade of it.—King Edward's Remains: *Discourse on the Reformation of Abuses*.

is amended. This one thing I will tell you; from whom it cometh I know, even from the devil. I know his intent in it. If he bring it to pass that the yeomanry be not able to put their sons to school—as, indeed, the Universities do wondrously decay already—and that they be not able to marry their daughters, to the avoiding of whoredom, I say ye pluck salvation from the people, and utterly destroy the realm; for by the yeomen's sons the faith of Christ is and hath been maintained chiefly.¹²⁷

Bernard Gilpin,¹²⁸ of whom Fuller says, half plaintively, that 'he hated vice more than error,'¹²⁹ followed before the Court in the same strain.

'Look,' Gilpin said, 'how Lady Avarice has set on work altogether. Mighty men, gentlemen, and all rich men do rob and spoil the poor, to turn them from their livings and from their rights; and ever the weakest go to the wall; and being thus tormented and put from their rights at home, they come to London as to a place where justice should be had, and this they can have no more. They are suitors to great men, and cannot come to their speech. Their servants must have bribes, and they no small ones; all love bribes. But such as be dainty to hear the poor, let them take heed lest God make it strange to them when they shall pray. Whoso stoppeth his ear at the crying of the poor, he shall cry and not be heard. With what glad hearts and clear consciences might noblemen go to rest, when they had bestowed the day in hearing Christ complain in his members, and in redressing their wrongs. But, alas, what lack thereof! Poor people are driven to seek their rights among the lawyers, and, as the Prophet Joel saith, what the caterpillars left, the greedy locusts the lawyers devour; they laugh with the money which maketh others to weep. The poor are robbed on every side, and that of such as have authority; the robberies, extortions, and open oppressions of these covetous cormorants the gentlemen, have no end nor limits, no banks to keep in their vileness. For turning poor men out of their holds they take it for no offence, but say the land is their own, and they turn them out of their shrouds like mice. Thousands in England, through such, beg now from door to door, who have kept honest houses. Lord, what oppressors, worse than Ahab, are in England,

¹²⁷Sermon of the Plough: LATIMER's *Sermons*.

¹²⁸A nephew of Tunstall, Bishop of Durham.

¹²⁹FULLER's *Worthies*, vol. iii. p 307.

which sell the poor for a pair of shoes! If God should serve but three or four as He did Ahab, to make the dogs lap the blood of them, their wives, and posterity, I think it would cause a great number to beware of extortion.'

Could Gilpin and Latimer have looked three centuries onward, they would have seen the slow action of the spirit which they execrated, replacing the ancient agricultural system of England by another which extracted fourfold produce from the soil; scattering colonies over the wide earth, which were expanding into new empires; covering the ocean with vessels thick as the sea-fowl; converting hamlets into huge towns, and into workshops of industry peopled with unimagined millions of men! Being but human, however, like others round them, they could see only what was passing under their eyes. They beheld the organization of centuries collapse, the tillers of the earth adrift without employment, villages and towns running to waste, landlords careless of all but themselves, turning their tenants out upon the world when there were no colonies for them to fly to, no expanding manufactures offering other openings to labour. A change in the relations between the peasantry and the owners of the soil, which three hundred years have but just effected, with the assistance of an unlimited field for emigration, was attempted harshly and unmercifully with no such assistance in a single generation. Luxury increased on one side, with squalor and wretchedness on the other, as its hideous shadow. The value of the produce of the land was greater than before, but it was no longer distributed. It fell into the hands of the few, and was spent in the purchase of luxuries from abroad; the Spartan severity of the old manners was exchanged for a fantastic and mischievous extravagance.¹³⁰

¹³⁰'To behold the vain and foolish light fashions of apparel used among us,' says Becon, 'is too much wonderful; I think no realm in the world—no, not among the Turks and Saracens—doth so much in the vanity of their apparel as the Englishmen do at this present. Their coat must be made after the Italian fashion, their cloak after the use of Spaniards, their gown after the manner of the Turks, their cap must be French, their dagger must be Scottish, with a Venetian tassell of silk. I speak nothing of their doublets and hoses, which for the most part are so minced, cut, and jagged, that shortly after they become torn and ragged. I leave off also to speak of the vanity of certain light-brains, which because nothing should want to the setting forth of their fondness, will rather wear a marten chain the price of eightpence than they would be unchained. What a monster and a beast of many heads is the Englishman now become! To whom may he be compared worthily but to Æsop's crow, for as the

The strictest canons of political economy do not give unrestricted scope to the rights of property. The State claims an interest in the condition of the people which overrides personal privileges. In our own time, even with the whole world open for destitution to escape into comfort, a poor rate to the extent, if necessary, even of temporary confiscation,¹³¹ is levied upon the land, if those who are born upon it cannot otherwise be saved from starvation. At a time when there was no organized system of relief, it was absolutely necessary to do something, though what should be done was more difficult to say. Sir William Paget touched the very heart of the matter when he said that there was no religion in England. 'Society in a realm,' he wrote to the Protector, 'doth consist and is maintained by means of religion and law, and these two or one wanting, farewell all just so-

crow decked herself with the feathers of all kinds of birds to make herself beautiful, even so doth the vain Englishman for the fond apparelling of himself borrow of every nation to set himself forth gallant in the eyes of the world. He is not much unlike a monster called chimæra, which hath three heads, one like a lion, the other like a goat, the third like a dragon.'—BECON'S *Jewel of Joy*.

Under Mary, to make the English more like human beings, a 'device' was drawn for an Act of apparel, which, however, could not be carried. It set forth 'that the ladies and their maids at Court did so exceed in apparel, that many of them went so richly arrayed on working days as the Queen's Majesty's mother did on holydays; so that it would be wished that no lady, knight, nor knight's wife, nor gentlewoman, nor gentleman under the degree of a lord, should have but one velvet gown, one damask gown, one satin gown for winter, and the like single gown for summer. Providing always that they should have for every one silk gown a gown of felt, or russet, or camlet, or worsted, and if they list, garded or welted, so that there be not above a yard and a half of velvet, and that they shall use no embroidery upon any garde, and that they shall wear some of their gowns of cloth, russet, camlet, or worsted three days every week upon pain of ten shillings a day.'

A surveyor was to examine ladies' wardrobes from time to time, and report upon them, while for gentlemen there was another not less important direction.

Provided also for these monstrous breeches commonly used, none under the degree of a lord or a baron shall wear any under pain of three pounds a day; none to have any stuffing of haire, wool flocks, towe, or other ways; and no man of little stature to bare a bowe more than a yard and a half in the outer side, and the bigger men and the guards two yards, upon pain of twenty shillings a day the wearer, and forty shillings the maker of the hose.'—*MS. Domestic*, Mary, State Paper Office.

In a variety of inventories of furniture in gentlemen's country houses in the reign of Mary, I find the hangings of beds—not of state beds, but beds for common use—to have been of blue or crimson velvet; the window-curtains of satin, and, in fact, everything except the washing apparatus, of which there is little or no mention, to have been similarly gorgeous.—*MS. Ibid.*

¹³¹In many parts of Ireland, during the great famine, the poor-rate was twenty shillings in the pound.

ciety, government, justice. I fear at home is neither. The use of the old religion is forbidden, the use of the new is not yet printed in the stomachs of eleven of twelve parts of the realm.¹³² When religion revived, the country righted of itself. The ancient healthy tone of English custom returned. The people and the Crown united to replace the old ways, so far as it was good that they should be replaced. The grazing farms were disintegrated. The cottages of the peasants had again their own grounds attached to them. In twenty years a greater breadth of land was under the plough than had been broken for a century; and though prices still rose, and the altered spirit of property survived, yet the new order of things progressed slowly and moderately, and all classes were again prosperous and contented. But meanwhile the problem was one which would have tried a clearer intellect than belonged to Somerset. The ancient loyalty which had attached the yeoman to his feudal superior had given place to a deep and vindictive hatred. The lords, if less guilty personally than others of the landowners, did not care to compromise themselves by dangerous interference. The interests of the higher classes were combined against the lower, and the courts of law were themselves infected. What was to be done?

Principle and prudence would perhaps have united to recommend the Protector to set himself an example of abstinence from the pursuit of personal aggrandizement before he meddled with others. As Church and chantry lands fell in, he would have done wisely if he had neither kept them for himself, nor distributed them among his adherents; if he had disposed of them as national property and applied the proceeds to the restoration of the currency. Perhaps he was not wholly responsible for having missed seeing what his own and others' interests combined to conceal from him. Unhappily for himself, for his fortune and reputation, he entered upon a course, generous in intention, yet rash and dangerous, and deliberately against the opinion of the rest of the council. He was constitutionally haughty, and he was conscious of a noble and honourable purpose. He determined to enforce the statutes; and as the courts of law were tedious and corrupt, to follow the perilous counsel of Latimer, who recommended him to follow Solomon's example, and hear the causes of the poor himself.¹³³ Paget, to whom he owed the Protectorate, and

¹³²Paget to Somerset: *MS. Domestic*, Edward VI. State Paper Office.

¹³³*Sermons*, p. 127.

to whose advice he had promised to listen, warned him to be cautious. Let him strengthen the hands of the magistrates, keep order, and prevent breaches of the peace. Let him ascertain privately who were the greatest offenders against the tillage statutes, send for them separately, reason with them, and, if necessary, punish them. But, if he valued either his own welfare, or the quiet of the kingdom, let him not attempt to interfere by force; above all, let him not meddle with the courts of law. Somerset, rash, confident, and enthusiastic, told Paget that he was a Cassandra. He established a Court of Requests in his own house, to receive the complaints of those who failed to find justice at Westminster; and on the 1st of June he sent out a commission to inquire in all counties into the actual condition of all estates, towns, villages, and hamlets, with power to imprison any one who should attempt opposition, and to send up to himself the names of those who had broken the law.

The commissioners were Fulke Greville, Sir Francis Russell, Lord Bedford's eldest son, John Hales, clerk of the Hanaper, and three others. After dwelling in their instructions upon the causes of their appointment, and the unworthy shifts by which the Acts of Parliament were evaded, 'No good man,' the Protector said, 'will use such subtleties; he will rather abhor them; he will say, I know the laws were intended for the good of the State; men are not gods, and cannot make things perfect, therefore I will rather do that they meant, although without danger of the law I might do otherwise, and I will with all my heart do good to my country.' 'Let the commissioners do their duty bravely, and the world would be honest again; the great fines for lands would abate, all things would wax cheap; twenty and thirty eggs would again be sold for a penny, as in times past; the poor craftsmen could live and sell their wares at reasonable prices; and the noblemen and gentlemen who had not enhanced their rents would be able once more to maintain hospitality.' 'Thus,' he concluded, 'ye will serve God, the King, and the commonwealth. Put away all fear of any person—landlord, master, or other. If you serve God, the King, and the commonwealth truly and faithfully—as they be able to defend you against the devil, the world, and private profit, so you may be sure they will suffer no person to do you injury.'¹³⁴

¹³⁴Instructions of the Protector to the Commissioners of Enclosures: STRYPE'S *Memoirs*, vol. iv.

The enthusiasm of private individuals urges them to enterprises to which their natural strength is unequal; they prove at last the sincerity of their own convictions by the sacrifices which they make for their success; if they are mistaken, and their expectations deceive them, they injure only themselves. The enthusiasm of statesmen is less innocent in itself or in its consequences. The leaders of a suffering nation cannot with impunity excite hopes of relief which they have no means of realizing; least of all when the fulfilment of such hopes depends on the exercise of virtues which in themselves they are careless of practising.

The commissioners were received by the people as angel messengers. 'The Iron world,' the country villagers exclaimed, 'is now at an end, and the Golden world is returning.' 'If the thing go forward,' Hales wrote to the Protector, 'never king had so assured subjects as his Grace shall have, nor ever governor under a king that had so many men's hearts and good wills as your Grace shall have.' 'If there be any way or policy of man to make the people receive God's word, it is only this, when they see it bringeth forth so good fruit that men seek not their own wealth, nor their private commodity. I do certainly believe in your Grace's sayings, that maugre the devil, private profit, self-love, money and such like the devil's instruments, it shall go forward, and set such a stay in the body of the commonwealth, that all the members shall live in due temperament and harmony, without one having too much, and a great many nothing.'¹³⁵

The report of the commission was sent in, and the result of it was a petition, to be presented in the coming Parliament. The population, the petition stated, was diminished, the farmer and labourer were impoverished, villages were destroyed, towns decayed, and the industrious classes throughout England in a condition of unexampled suffering. The occasion was the conduct of the upper classes. 'Divers of the King's subjects, called to the degree of nobles, knights, or gentlemen, not considering that God had given them their high rank and place that they might be as shepherds to the people, surveyors and overseers to the King's Grace's subjects, and had given them sufficient provision that without bodily labour they might live and attend thereto,' had forgotten their obligations in their pleasures, and supposed that they might live for nothing else but to enjoy themselves, or make money for themselves. The petition requested, therefore, that

¹³⁵ Hales to the Protector: STRYPE's *Memorials*, vol. iv.

no person of any degree, in possession of land, with more than a hundred marks a year, should farm any part of it beyond what his household required; that the great farms should be broken up; and that the Act should be enforced which required persons to whom abbey lands had fallen by gift or purchase, to 'keep an honest continual house and household on the same.' Fines were demanded in cases of disobedience; but on the whole the tone of the petition was moderate. The Acts of Henry, which were afterwards put in force by Elizabeth, extended the penalty in such cases to forfeiture. The present petitioners desired a fine only of ten marks a month for such time as the law should be uncomplied with; half to go to the Crown, half to be divided between the informer and the poor of the parish which was injured.¹³⁶

Thus on three sides the Protector had provided himself with occupation. He had war with France and Scotland; he had undertaken a metamorphosis of religion; and he was going to extirpate avarice, selfishness, and cruelty out of the heart of mankind and bring back the Golden age. A domestic misfortune, of no inconsiderable magnitude, added to the burden of his position.

Lord Seymour of Sudleye, High Admiral of England, resembled his brother in an ambition which was disproportioned to his ability, in an outward magnificence of carriage, in personal courage, address, and general accomplishments. There the resemblance ended. The Protector was ambitious, that he might do great things for the country; his brother's was the ambition of selfishness: the Protector was religious; 'the Admiral/ said Latimer, 'was a man furthest from the fear of God that ever he knew or heard of in England.'¹³⁷ The Protector's moral life was blameless; the Admiral had seduced and deserted at least one innocent woman, who fell into crime and was executed.¹³⁸ The Protector, when uninfluenced by theological antipathies, desired to be just; the Admiral was a hard landlord, a tyrannical neighbour, an oppressor of the poor, a man of whom Latimer had heard so much wickedness that he ever wondered what would be the end of him.

Being the King's uncle, having committed no political offence, and having done good service at sea during the French war, Lord Sey-

¹³⁶MS. *Domestic*, Edward VI. vol. v. State Paper Office.

¹³⁷LATIMER's *Sermons before King Edward*.

¹³⁸*Ibid.*

mour had nevertheless those claims to public employment which, with men of high birth and rank, have, at all periods in English history, been found sufficient to outweigh moral disqualifications. Henry VIII., though he had not named him among the executors, had given him a place on the privy council, and he was made High Admiral on the accession of his nephew. The precedents of English minorities were, however, in some degree departed from in his disfavour. When Henry VI. was a child, the Protectorate was separated from the office of guardian to the King. Somerset was at once Protector of the realm and governor of Edward's person.

Thus the Admiral, though raised to the peerage, presented with large estates, and with a lucrative and honourable office, was dissatisfied with his position; and, betraying at once the measure of his expectations, he required the consent of the council to his marriage with the Princess Elizabeth, who was then not quite fifteen.¹³⁹ The council knew his disposition too well to listen to such a demand; but, although directly refused, he would not relinquish hope at once. He bribed to his interest a gentleman of the household named Fowler, and desired him to introduce the subject to the King. Fowler made an opportunity, and asked Edward whom the Admiral should marry. Edward graciously offered Anne of Cleves; and then, after thinking a little, said, 'Nay, nay; wot you what? I would he married my sister Mary, to change her opinions.'¹⁴⁰ Anne of Cleves could in no sense be acceptable. A marriage with Mary would have satisfied Seymour's ambition, but her own consent would have been unobtainable, and the council would have been less willing to give him the elder sister than the younger.

He turned his thoughts elsewhere. Between himself and Catherine Parr, last queen of Henry, there had been some incipient love passages while she was the widow of Lord Latimer. Not choosing to risk a second refusal from the council, and undesirous probably that Queen Catherine should know that he had looked elsewhere,

¹³⁹I told my Lord Admiral in the Park at St James's, that I heard one say that he should have married my Lady Elizabeth. 'Nay,' says he, 'I love not to lose my life for a wife. It has been spoken of, but it cannot be.'—Deposition of Katherine Ashley: MS. Domestic, Edward VI. vol. vi. State Paper Office.

The Act of Seymour's attainder says that he attempted to marry Elizabeth immediately after the death of Henry, but that 'he was stayed by the Lord Protector and other of the council.'—2 and 3 Edward VI. cap. 17.

¹⁴⁰Deposition of John Fowler: MS. Ibid.

he made his own immediate advances in this quarter in private. The Queen promised to marry him in two years after her late husband's death; he successfully pressed her to abridge his probation to two months. Her sister, Lady Herbert, was the confidant;¹⁴¹ and within four months of her widowhood certainly, perhaps within three, she became privately his wife. Seymour was admitted occasionally at night into the palace at Chelsea, where the Queen resided,¹⁴² and the indecorous haste might, possibly, have added a fresh difficulty in the succession to the crown.¹⁴³ The Queen's person being secured, the difficult question arose next how the affair should be made public. The Queen advised that her husband should tell the council that he was anxious to marry her, and should ask them to use their intercession with her. She would not have him apply particularly to his brother. It would be enough to ask the Duke once, and his refusal, if he refused, 'would but make his folly manifest to the world.' The King and council would, no doubt, write to her. If the Duke and Duchess did not like it, it would be of no consequence.

The Admiral approved the advice, his only anxiety being that if the Protector and the Duchess consented, 'they should not afterwards be able to cast in his teeth that by their suit he had obtained his wife.' The King's letter was managed through Fowler. Edward, for the interests of the realm, desired the Queen to look favourably on the suit of the uncle to whom she was already married. Seymour himself asked Mary to write; to whom, however, the suit appeared 'too strange to meddle with.' While the manœuvre was in progress the truth was discovered, and it is scarcely matter of wonder that 'my Lord Protector was much displeased.'¹⁴⁴

¹⁴¹Wife of Sir William Herbert, afterwards Lord Pembroke.

¹⁴²When it shall be your pleasure to repair hither, ye must take some pains to come early in the morning, that ye may be gone again by seven o'clock, and so I suppose you may come without suspect. I pray you let me have knowledge over-night at what hour ye will come, that your porters may wait at the gate to the fields for you. By her that is and shall be your humble, true, and loving wife.—Catherine Parr to Lord Seymour: ELLIS, 1st Series, vol. ii.

¹⁴³You married the late Queen so soon after the late King's death, that if she had conceived straight after, it should have been accounted a great doubt whether the child born should have been accounted the late King's or yours, whereby a marvellous danger might have ensued to the quiet of the realm.—Articles against Lord Seymour: *Privy Council Records*, MS. Edward VI.

¹⁴⁴KING EDWARD'S *Journal*.

Being done, however, the thing was passed over, and on the breaking out of the Scotch war, to cover unpleasant feelings, the Admiral was desired to take command of the fleet. But he was sullen, or he had schemes of his own. He gave his place to Clinton, reserving to himself the management of the Admiralty, and he stayed at home, pursuing his ambition or his amusements. Elizabeth, who had resided with Queen Catherine, and was ignorant, like the Queen, of the intentions that he had entertained towards her, was permitted unaccountably to remain at Chelsea Palace after the marriage was discovered. The Admiral abused his opportunities to inflict upon the princess an impertinent familiarity, and her attendants were scandalized at seeing him morning after morning, sometimes alone, sometimes accompanied by his wife, lounge into her room in his dressing-gown before she had risen.

Nor was Elizabeth the only lady of rank whose custody he took upon himself. Next in succession to his own daughters, Henry VIII. had named the daughters of his niece, Frances, Marchioness of Dorset. Lady Jane Grey, the eldest of three children, was made over by her father to Seymour, who promised him that she should marry the King;¹⁴⁵ while over Edward himself he gained influence by bribing his attendants, by secretly providing him with money, and suggesting insinuations against the parsimony of the Protector in his allowance. He made a party at the same time among the Lords and Commons. The Marquis of Dorset was 'so seduced and aveugled by the lord admiral, that he promised him that, except the King's Majesty's person, he would spend his life and blood on the lord admiral's part against all men.'¹⁴⁶

So passed the time when Somerset was in Scotland. The invasion, Seymour told Edward, 'had been madly undertaken, and was money wasted in vain.' When the Protector returned in triumph, he whispered in Edward's ear, 'that he was too bashful in his own affairs; why did he not speak to bear rule as other kings did?'¹⁴⁷ As the meeting of the first Parliament approached, he complained to various persons, 'that the late King had not intended that there should be a Protector; that there ought not to be a Protector, or, at least, that if one uncle

¹⁴⁵Deposition of Dorset: Deposition of Sir William Sharrington: printed by HAYNES, *Burleigh Papers*, vol. i. Further Depositions of Sir William Sharrington: MS. *Domestic*, Edward VI. vol. vi. State Paper Office.

¹⁴⁶Sharrington's Confession.

¹⁴⁷Deposition of Edward VI.

was regent of the realm, the other should have the custody of the King's person.' A bill was secretly drawn to separate the offices; to give effect to which he wrote a letter, purporting to be from the King to the Houses of Parliament, desiring them to favour his uncle the Admiral in a suit which he was about to bring forward; and this letter he begged Sir John Cheke, who was the King's tutor, to persuade Edward to copy out and sign.¹⁴⁸

Cheke cautiously declined to meddle, and the Admiral then attempted Edward himself. But the boy was shrewd enough to see that it was no place of his to interfere in such a matter. 'If the thing was right,' he said, 'the Lords would allow it; if it was ill, he would not write in it.'¹⁴⁹ Seymour therefore determined to depend upon himself. His unprincipled selfishness was aggravated into hatred by some foolish jealousy between his wife and the Duchess of Somerset. He had a claim, or supposed that he had a claim, on certain jewels, detained by Somerset as Crown property, which Queen Catherine asserted to have been a gift from Henry to herself. 'If I be thus used,' he said to Dorset and Clinton on their way to Westminster, at the opening of the session, 'by God's precious soul I will make this the blackest Parliament that ever was in England.' He swore that 'he could live better without the Protector than the Protector without him.' He would 'take his fist to the ear' of the proudest that should oppose him, with other wild unpromising words.

Such a man was not likely to effect much in Parliament; his bill came to nothing; it was not so much as debated: and failing thus, he believed that he might secure the person of the King as he had secured his wife, by taking possession of it. Lounging one morning into St James's Palace, and seeing the gates opened and unguarded, he observed to Fowler, 'A man might steal away the King now, for there came more with me than is in all the house besides.' For the moment the enterprise was practicable enough, but he was perhaps suspected, and the palace was better defended for the future.

His wild language, his conversation with the King, his general insolent bearing, coupled with his refusal to take service with the fleet when called upon, at last induced the council to require him to appear before the board and explain himself. He defied their summons, dared them to imprison him, and disobeyed. The Protector could be

¹⁴⁸Deposition of Sir John Cheke: TYTLER, vol. i.

¹⁴⁹Deposition of Edward VI.

severe to injustice with Gardiner, with his brother he was unjustly gentle. He permitted him to insult with impunity the authority of the Government, he 'laboured,' through 'persuasion of friends,' 'to frame him to amendment of his evil.' 'Considering the age of the King,' 'his subjects not altogether in the best concord for religion,' and the possibility of 'tumult and danger,' he thought to bridle him with liberality; 'and therefore allowed him to retain the office which he abused, and gave him further 'lands to the yearly value of 800*l*.'¹⁵⁰

It was 'hire and salary' to persevere in misconduct. But the Admiral wanted discretion to be a successful conspirator. He could not wait for opportunities; his unquiet nature preferred unquiet means. His business at the Admiralty courts had made him acquainted with a class of men who, under various aspects, would play a great part in the coming half-century. The improvements in navigation which followed the Spanish and Portuguese discoveries, the extension of trade, and the increased value in the freighting of merchant vessels, had spread over the seas an abundance of easy booty. The privateers, Spanish, French, English, Scotch, and Flemish, who in time of war learnt the habits of plunder under a show of legality, glided by an easy transition into buccaneers whenever peace withdrew from them their licenses. The richness of the possible spoils, the dash and adventure in the mode of obtaining it, and the doubtful relations of the Courts of Europe to each other, which made the services of such men continually valuable, and secured them the partial connivance of their respective Governments, combined to disguise the infamy of a marauding profession. The pirate of to-day was the patriot of to-morrow, and fleets of adventurers recruited largely from the harbours of Devonshire and Cornwall, twenty and thirty sail together, haunted the mouth of the Channel, pillaging Spanish gold-ships from Panama, French wine-ships from Bordeaux, the rich traders from Antwerp or from their own Thames, with great impartiality, and retired, if pursued, among the dangerous shoals of Scilly, or the distant creeks and coves on the south coast of Ireland.

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¹⁵⁰ Act of Attainder of Lord Seymour of Sudleye.

¹⁵¹ Accounts of these buccaneers are frequent in the Irish State Correspondence. At the beginning of the reign of Edward VI., proclamations were out for the arrest of two famous rovers, named Thomson and Stevenson. The Mayor of Cork wrote to Dublin that they were lying in the harbour there, the country people openly resorting to their ships, and he himself, the Mayor, for fear they should burn the town,

Complaints came frequently before the Admiralty. Occasionally one of the vessels was taken, the crews were handed over to Seymour for justice, and the recovered cargoes were set apart to be restored to their owners. But the merchants, foreign and English, were exasperated to find that neither their goods were given back to them nor the offenders punished. Ornaments known to have been plundered were seen on the persons of the Admiral's followers. Notorious pirates brought in by the King's cruisers were set at liberty by his order; and suspicions went abroad that Lord Seymour was attaching them to himself for services on which he might eventually require their assistance. He was found to have made a purchase of the Scilly Isles, that they might be undisturbed in their favourite haunt; or that, if he failed in his larger schemes, he might open a new career to himself of revenge and pillage as a pirate chieftain.¹⁵²

allowing them to buy what they wanted in the market. Another letter from the same place described Captain Strangways, another pirate, with thirteen of his men, lounging about Cork, the mayor afraid to meddle with them, and some of the party busy casting cannon.—*Irish MSS.* Edward VI. State Paper Office.

The following letter from Kinsale is an exact transcript; 'TO SIR EDWARD BELLINGHAM, LORD DEPUTY.

'Right Honourable,—After our humble dutyes premyssyd unto your good Lordship, pleasyd the same to be advertysyd that we resheweth your letter the 13th day of July, and as we persew the tenore, we wyll fulfyll your Lordship is comandiment both nyght and day to the uthermost of our puere, which is lyttel Gode knowis, for all our men dyed with pestelent, and we have a wyde empty thowne and few men, and naghty and unstruly negboris which we rest not nyght nor day buth waget our thowne for ferd of the Irysmen abuthe us be lande and be see allsoo. The centre abuthe us is in wast, and all the socure that we were worth to have is be our hawen; buth naw ys stoppyth from us be Eglis pyraturis, which wolde not suffure no wyt-tell no socure comys to us, buth tak it within our hawen. And now of lathe cam on Richard Colle with a Spinache and 18 or 20 men, and maryde with Barry Oghe is aunt, and dwellyth in his castell within our hawen and our lyberty, and there he remanyd and wold not suffure non to cum to the thowne, buthe tak them and spoyle them, whiche is grett henderanche to us Gode knowys, and if it lyeth in our puere to mett with hem, we knowe not what ys your wyll therein; desyryng your honourable Lordship to wrytt us what ys best to do. Wrytten at Kynshall the 15th day of July, 1548.

'Your Lordshyps most asuryd,

'THE SOFFREAYN AND CONSSEILL OF KYNSHALL.'

Sympathizing readers will be glad to know that these pirates came duly to a becoming end. On the 25th of the same month of July, a large French vessel with a hundred hands came into Kinsale harbour. Colle attempted to take her, but failed; his crew, if not himself, were taken instead, and were disposed of on the yard-arm.

¹⁵²You had gotten into your hands the strong and dangerous Isles of Scilly, where being aided with ships and conspiring at all evil events with pirates, you might have

Money, as usual, in such cases, was the great necessity. The Protector's liberality had been excessive; but the income from landed property, however large, was insufficient for the exigencies of a conspiracy; and Seymour found means of replenishing his exchequer in a more questionable quarter. He had come to an understanding with Sharington, the master of the Bristol mint. The Admiral agreed to support Sharington before the council if Sharington were called to answer for his frauds. Sharington would coin money for the Admiral to any extent which the latter might require.

Knowing something of these doings, and suspecting more, the Protector from time to time remonstrated, but in language in which the supreme magistrate was lost in the brother;¹⁵³ while the Admiral considered the lightest admonition as a fresh provocation,¹⁵⁴ and thought only of supplanting him.

In the midst of his schemes Queen Catherine was confined of a daughter, and a few days after August, died. The Admiral's conduct immediately caused a belief that 'he had holpen her to her end;'¹⁵⁵ and had Queen Catherine been in any way an obstacle to his ambition, he would no doubt have rid himself of her with entire unscrupulousness. Men do not murder their wives gratuitously, however; her husband was losing a splendid connection, with no security that he would exchange it for a better; and his friends, and he himself, if his word could be trusted, held his position to be weakened by his loss. Catherine, probably, died from her confinement, but Seymour lost no time in attempting to improve his misfortune. Elizabeth had been removed from his house; she was now living at Hatfield with an establishment of her own, and Seymour reverted to his original intention of marrying her. First, however, it was necessary for him to keep his hold on Lady Jane Grey. Somerset wanted to marry this lady to his own son Lord Hertford (or so the Admiral affected to fear). On the Queen's death, Lady Dorset naturally considered his house no

a sure and safe refuge if anything for your demerits should be attempted against you.'—Articles against Lord Seymour: *MS. Domestic*, Edward VI. State Paper Office.

¹⁵³See especially a letter of the 1st of September, 1548, printed by TYTLER, vol. i. p. 120.

¹⁵⁴'He told me that my Lord his brother was fallen out with him concerning the Admiralty, and how his Grace took their part before his. My Lord would have my head under his girdle, he said, but I trust we shall do well enough for all this.'—Fowler's Deposition: *MS. Ibid.*

¹⁵⁵Act of Attainder of Lord Seymour.

longer a proper residence for her daughter; and if she once left his roof, the Protector, he believed, would take possession of her. The father's authority was brought in, therefore, to overbear the mother's. The Admiral had lent Dorset money, and promised to lend him more. Lady Jane was allowed to remain.

This difficulty being disposed of, he turned to Elizabeth. By free use of money, Seymour gained to his interests her governess Mrs Ashley, and the steward of her household, Sir Thomas Parry. His name was kept incessantly in the ears of the young princess. His merits and his feelings towards herself were the perpetual theme of conversation; and as a first step she was pressed to declare that she would take the Admiral for a husband, if the council would consent. A girl of sixteen might be excused if she had erred when her protectors were betraying her. But she refused to say anything. She would not admit a question of her own feelings till the council had expressed theirs; least of all would she admit Seymour to an interview, though he pressed for it with ingenious excuses.¹⁵⁶ Yet it is uncertain how his suit might have eventually ended. His object was to anticipate objections by the same expedient of a secret marriage, which had answered before, and Elizabeth's resolution might have possibly yielded before the persuasion of her friends,¹⁵⁷ had not the many-sided schemes of the Admiral revealed themselves in time.

While intriguing with the household at Hatfield, he was preparing for the movement for which the next session of Parliament was to give the occasion. The failures in Scotland, and the religious discontent which was commencing, had already shaken the Protector's authority. Lord Seymour intended to take his brother's place. He had arranged with Sharrington for money sufficient to keep ten thousand men in the field for a month. Dorset was devoted to him, and Catherine Parr's brother, Lord Northampton, was well inclined.¹⁵⁸ He had fortified and provisioned Holt Castle. He had a cannon foundry in

¹⁵⁶Those who are curious in such stories may study the details of Seymour's courtship of Elizabeth, in the examinations of witnesses, printed by HAYNES in the first volume of the *Burleigh Papers*, and in the supplementary collection, in the sixth volume of the *Domestic MSS.* of the reign of Edward VI., in the State Paper Office.

¹⁵⁷In the tone in which she spoke of him to Mrs Ashley, a kind of regard seemed to be struggling with contempt 'In love with him,' to use the language of some historians on the matter, she certainly never was, but it might have come to that with time and opportunity.

¹⁵⁸See the depositions in HAYNES.

the country, and another at Southwark, where he had thirty workmen in constant employ, and twenty-four cannon, with thirteen tons of shot, ready prepared for immediate service.

Such was the aspect of England when the first Parliament of Edward VI. assembled for its second session on the 24th of November, to sanction the changes of creed and ritual which Cranmer was now ready to bring forward. The Latin services were to be completely and finally superseded by an English Prayer-book, a draft of which was at last in a condition to receive the consent of the Lords and Commons. The Archbishop, 'to build up,' as he said, 'a body of doctrine which should be agreeable to Scripture,' had collected opinions from all parts of Europe. He had brought over Peter Martyr and Bernard Ochin, and many other Continental Reformers, Zuinglians and Lutherans, to assist him; he had entreated the help, either in person or by letter, of Melancthon. Extreme views on either side had neutralized each other; and the result of his labours was the first imperfect draught of the *Book of Common Prayer* of the present Church of England. The magnitude of the innovation can now be with difficulty appreciated, when the novelty of the sixteenth century has in its turn been consecrated by time. Of the strange features of the change the strangest was, perhaps, that the official opinion of Convocation was scarcely asked even in form. Parliament now discussed the faith of England, and laymen decided on the doctrines which the clergy were compelled to teach.

The minor business of the session has first to be related. The petition presented by the Commissioners of Enclosures was made the foundation of an Enclosure Bill, which was rejected summarily by the House of Lords. Mr Hales persevered, and produced a second, which the Lords passed; but on going to the House of Commons, the lamb, he said, was in the wolf's custody. It was pulled in pieces in committee, and came to nothing. A third found a similar fate; and the Protector had succeeded only in raising hopes which he was obliged to disappoint.¹⁵⁹ The Clergy Marriage Act of the last year was brought up again, and discussed in many forms. First, it was proposed that laymen having wives might be made priests; then, more vaguely, that married men might be priests. At last it was determined simply to repeal all positive laws enforcing celibacy, as having given occasion to vice. But, in abolishing the prohibition to marry, the Par-

¹⁵⁹ STRYPE's *Memorials of the Reformation*, pp. 210, 211.

liament continued to signify their moral disapproval. 'It were better for the estimation of priests,' they said, 'and therefore much to be wished, that they would willingly endeavour themselves to a perpetual chastity.'¹⁶⁰

'Fasting' was next dealt with in a similar spirit of compromise. In the light of the new doctrine the distinctions between days and meats no longer existed. There was, and could be, nothing definitely pleasing to God in eating meat or abstaining from it on one day more than another; yet, 'due and godly abstinence from flesh was a means to virtue, to subdue men's bodies to the soul and spirit.' 'By eating of fish much flesh was saved to the country,' and the fishing-trade was the nursery of English seamen. For these causes, true each in itself, however grotesque they appear in combination, Fridays, Saturdays, the eves of saints' days, Ember days, and Lent, were ordered to be observed in the usual manner, under penalties for each offence of a fine of ten shillings and ten days' imprisonment.¹⁶¹ It was undesirable to allow the fishermen to be thrown suddenly out of employment till a natural demand had taken the place of an artificial one; it would have been better if, in other respects as well as here, ancient customs had been allowed to wear themselves out, and to die of disuse.

But the question of the session was the Prayer-book and the Act of Uniformity; and in the Prayer-book the service for the communion. The change of substance in the elements at the eucharist, the material incorporation of the believers in the body of Christ by the reception of those elements, was and is the essential and central doctrine of the Catholic Church. That body when it left the grave was subject no longer to the ordinary conditions of matter. It ascended to heaven, that it might fill all things. In the sacrament it became flesh of man's flesh, and not in metaphor, but in literal truth, was the mechanical instrument of man's salvation. So the Catholic believed; so more vaguely, yet not less positively, the Lutheran believed. The mystic words spoken by the priest in the consecration formed the keystone of the arch which joined the visible and the invisible worlds; and round these words and their accessories the controversy between Catholic, Lutheran, and Zuinglian was now revolving. On the passing of the Act, in the session of 1547, for communion in both kinds, a service had been put out in which the Catholic doctrine was maintained sub-

¹⁶⁰2 and 3 Edward VI. cap. 21.

¹⁶¹2 and 3 Edward VI. cap. 19.

stantially intact; but heresy and orthodoxy changed places rapidly, and among the reforming clergy Lutheranism was fast disappearing. On the opinions of Cranmer himself there was still uncertainty.

Though the Act of Uniformity was not brought forward till the 7th of January, the book of which the Act was the sanction must have been laid before the Houses at the beginning of the session. 'On the 14th of December,' Bartholomew Traheron wrote to Bullinger, 'a disputation was held on the eucharist in the presence of almost the whole nobility; the battle was sharply fought by the bishops; Canterbury, contrary to expectation, maintained your opinion (the Swiss); truth never obtained a brighter victory; it is all over with the Lutherans.'¹⁶² On the 22nd of December John Isham, writing to Sir Edward Bellingham, in Ireland, said:—'Blessed be God, all things go well forward here in the Parliament House, for they go directly and clearly to extinguish all Popish traditions, and do set forth the true word of God; and goodly orders be already devised to establish the King's Majesty's realm, in divine service to be used in his churches. But there is great sticking touching the blessed body and blood of Jesus Christ. I trust they will conclude well in it, by the help of the Holy Ghost, without whom such matters cannot well be tried. Part of our bishops¹⁶³ that have been most stiff in opinion of the reality of his body, that as He was here on earth, so He should be in the bread, now confess and say that they were not of that opinion. But yet there is hard hold with some to the contrary, who shall relent when it pleaseth God.'¹⁶⁴

The victory, notwithstanding Traheron's auguries, was still doubtful on the 26th of December, and Peter Martyr was in alarm at the vigour and determination of the Catholics; if the body of Gardiner were in the Tower, his spirit was abroad and powerful. 'There is so much contention about the eucharist,' Martyr said, 'that every corner is full of it; every day the question is discussed among the Lords, with such disputing of bishops as was never heard; the Commons thronging the Lords' galleries to hear the arguments.'¹⁶⁵

The nature of the debates can be conjectured only from the result, which, as on the other questions, was a compromise. On the 7th of

¹⁶²Traheron to Bullinger: *Epistolæ TIGURINÆ*.

¹⁶³He means Cranmer.

¹⁶⁴Isham to Bellingham: *Irish MSS.* vol. v. Edward VI. State Paper Office.

¹⁶⁵Peter Martyr to Bucer: *Epistolæ TIGURINÆ*.

January the Act of Uniformity was brought into the House of Lords; on the 15th it was passed; eight Bishops—London, Durham, Norwich, Carlisle, Hereford, Worcester, Westminster, and Chichester—the Earl of Derby, Lord Windsor, and Lord Dacres, remaining to the last dissentient. These would have had no change; they would have retained the breviary and the missal: but neither were the Genevans any more successful on the other side. The first communion service was retained, with scarcely an alteration; and the mystery of the eucharist was left untouched;¹⁶⁶ the minister was still uniformly called 'a priest;' the communion-table uniformly an altar; and prayers for the dead were retained in the burial service, and in the prayer for the Church militant. The English people were tenacious of their old opinions. The ultra-Protestant changes in the Prayer-book of 1552 were followed by a recoil under Mary to the mass, and the ultimate compromise under Elizabeth indicated the stationary point at which the oscillations of the controversy tended at last to rest.

In the midst of these grave questions, the attention of the Government and of Parliament was called away to the wild doings of Lord Seymour. Misconceiving his position, his strength, and his popularity, the Admiral had scarcely cared any longer to throw a veil over his intentions. The fortunes and prospects of Elizabeth and Mary were left by Henry contingent on their marrying with the consent of the council. Seymour's views upon the former were widely suspected, and Lord Russell warned him that he for one would support in such a matter the will of the late King. But Seymour supposed that he could overbear minor difficulties; he had Dorset and Northampton with him; to the Earl of Rutland he talked openly of putting an end to the Protectorate; he had told him that he looked for his support in the House of Lords and elsewhere, and advised him to make a party in the country, among the yeomen and the franklins. Trusting that Wriothesley still resented the loss of the chancellorship, he tried to gain him too by a promise that it should be restored. In Wriothesley, however, he found himself at once mistaken. 'For God's sake, my Lord,' the ex-chancellor replied to his advances, 'take heed what you do; I

¹⁶⁶ Among the directions at the end of the communion service in the Prayer-book of 1549, the bread was ordered 'to be such as had been heretofore accustomed, each of the consecrated breads to be broken into two pieces or more, at discretion;' 'and men,' it was said, 'must not think less to be received in part than in the whole, but in each of them the whole body of Our Saviour Jesus Christ.' It was ruled also that 'the people should receive the sacrament in their mouths at the priest's hands.'

hear abroad that you make a party.' 'Marry, I would have things better ordered,' the Admiral said. 'My Lord,' said Wriothesley, 'beware how you attempt any violence. It were better that you had never been born, yea, that you had been burned quick alive, than that you should attempt it.'¹⁶⁷ So much as Wriothesley knew of his proceedings was carried at once to the Protector, who replied that the Tower, if nothing else, should keep his brother from Elizabeth. Lady Jane Grey, it was insisted, should return at once to her family. In the middle of January further communications were made by Rutland, and Seymour once more was called on to appear before the council, and answer for himself. But he believed that he might continue to resist with impunity. He did not choose to admit the Protector's authority, and while he hated him, he presumed upon his forbearance. He wrote a letter of excuse, which he showed before he sent it to the Earl of Warwick.

The ambitious Warwick had but little love for the Duke of Somerset; but, if there was to be a change in the Government, he did not mean it to be for the advantage of another Seymour. The Protector, Warwick said, would arrest him; at least, if he were himself the Protector, he would arrest him. 'By God's precious soul,' Seymour answered, 'whosoever lays hands on me to fetch me to prison, I shall thrust my dagger in him.'¹⁶⁸ Such a state of things could not continue. On the 17th of January an order of council was taken for his seizure, and he was committed to the Tower. The imprisonment of the Admiral was an intimation of his weakness to his accomplices, who made haste to save themselves at his expense. Sharington threw himself on the mercy of the Government, and made a full confession. The extent of his frauds at the mint appeared now to be something like 40,000*l.* —that is, he had put into circulation a hundred thousand pounds in base silver coin. The feeble Dorset told of the promise to marry Edward to Lady Jane Grey. Katherine Ashley was arrested and questioned. Sir Thomas Tyrwhit went down to Hatfield to examine Elizabeth. The cannon foundries were discovered; the secret dealings with the pirates; all the features of a conspiracy, in which personal ambition was unredeemed by the affectation of a public object, or by a reasonable prospect of success.

¹⁶⁷Deposition of the Earl of Northampton.

¹⁶⁸Deposition of the Earl of Warwick: *MS. Domestic*, Edward VI. vol. vi. State Paper Office.

Evidence of various kinds flowed in through the close of January and the greater part of the month following; Parliament meanwhile passing a subsidy bill for the defence of the country. Whatever differences of opinion might exist on his policy, Somerset found Parliament so far ready to support him. The clergy granted an income-tax of ten per cent, for three years. The laity gave a shilling in the pound on their personal property, with a poll-tax of eightpence on male subjects above twelve years old, and a further duty on sheep and wool; 'considering,' as they said, 'the condition of the world,' the intrigues of France in Scotland and Ireland, the probability of a combination of the Catholic powers under the Pope to put down the Reformation; and 'content to leave father, mother, brethren, sisters, wives, children, lands, and goods, yea, and this mortal life also, rather than deny Christ and forsake his word.'¹⁶⁹

The conspiracy being finally unravelled, Sir William Sharington was then, after a full confession, attainted; and on the 23rd of February the privy council in a body waited on the Admiral in the Tower. The charges against him, thirty-three in number, were read over in his presence, and he was asked whether he, on his part, had any defence to urge. He replied that he would say nothing, except in open trial. The chancellor ordered him to speak on his allegiance. 'His resolute answer was, that for a reply they should not look for it from him.'¹⁷⁰ Possibly he trusted to his friends, possibly to the divisions in the council, possibly to his brother; at all events, he would not answer.

To make him worthy whose offence subdues him,
And curse that justice did it.

The Admiral, refusing to answer or explain 'when peradventure there might have been hopes for him either to be found guiltless, or to receive pardon,'¹⁷¹ the question arose next, 'whether he should be proceeded against by order of justice and custom of the realm; or, specially, since Parliament was sitting, whether Parliament should have the ordering of the matter.' The chancellor and the rest of the counsel gave their opinions one by one for an Act of Attainder; 'lastly, the Protector, declaring how sorrowful a case this was to him, said that he

¹⁶⁹2 and 3 Edward VI. capp. 35, 36.

¹⁷⁰*Privy Council Records*, Edward VI. MS.

¹⁷¹*Privy Council Records*, MS.

did yet rather regard his bounden duty to the King's Majesty and the Crown of England, than his own son or brother, and did weigh more his allegiance than his blood, and therefore he would not resist the Lords' request.' Edward himself was present on the debate; 'we do perceive,' the King said, when the Protector had spoken, 'that there is great things which be objected and laid to my Lord Admiral mine uncle, and they tend to treason; we perceive that you require but justice to be done; we (Link it reasonable, and we will that you proceed according to your request.'¹⁷²

'Unjust,' exclaimed some among the English public. 'He should have been allowed to come to his answer.' 'Charity,' replied Latimer, assuredly no sycophant of Government, to such coinplainers, 'worketh to say the best of magistrates, and not to stand to the defending of a wicked matter. It is a good law for a man to answer for himself, reasonable, allowable, and good; and yet such urgent cause there may be, that a man may rightly be condemned in his absence. I am provoked of some to condemn this law, but I am not able, so that it be used rarely, for avoiding disturbances in a commonwealth. Surely I would have it done rarely, upon some great respect for avoiding tumults and peril. St Paul was allowed to answer for himself. If Lysias the tribune had not plucked him away from showing of his matter, it had cost him his life. When St Paul was saved by the magistrate, being but a private man, will ye not allow that something may be done for saving of the magistrate's life? I, for my part, think not but they of the Parliament did well. I advise thee, my fellow-subject, use thy tongue better, and expound well the doings of the magistrate.'¹⁷³

Thanks were given to the King for his permission. A bill was drawn, and a committee of both Houses had the Admiral brought before them, 'that neither excuse for him, nor information to the Parliament, should want, if he could or would make any defence.' Finding that he was not to be tried, he then agreed to plead. The accusations were again read over, and he began his replies. The first charge was, that he had endeavoured to gain possession of the King's person: he admitted it; he had looked at precedents, he said, and had intended to bring a motion before the House of Lords; but Sir William Paget 'had made him ashamed of his doings, and he had left his labour.' He admitted next, that he had given money

¹⁷²*Privy Council Records, MS.*

¹⁷³*LATIMER'S Sermons.*

to the King's attendants, and to Edward himself; and that he had endeavoured to persuade Edward to write a letter to the Parliament to change the Government. But as the more serious charges followed, he gave up his defence; he had confessed enough, he said, and he would answer no more.

The next day, the 25th, the bill was brought before the Lords. The witnesses repeated their evidence in person, and 'the judges declared the case to be manifest treason.' It was read a first time on the spot, and a second and third time on the two days following, without a dissenting voice; 'the Lord Protector only, for natural pity's sake, desiring license at the passing of the bill to be away.'¹⁷⁴ Among the Commons Seymour had a party, and there the matter 'was much debated and argued.'¹⁷⁵ 'His friends,' Latimer said, 'though he were not there himself, had liberty to answer for him; and there were in the Parliament a great many learned men, conscionable men, wise men.' On the 5th of March the House of Commons desired to hear the evidence again, and Southampton, Rutland, Dorset, and Russell appeared to make their depositions. 'The minds of the lawyers being axed and declared,' they stated, 'that the offences of the Lord Admiral came within the compass of high treason; and when no man was able to say the contrary, being divers times provoked thereunto by the Speaker, the nether house being marvellous full, almost to the number of four hundred, not more than ten or twelve giving their nays thereunto,' the bill passed, and five days after was sent to the Crown, with a request that 'justice might have place.'

'And forasmuch as the council did perceive that the case was so heavy and lamentable to the Lord Protector, if the King's Highness was so pleased, they said that they would proceed without further troubling or molesting either his Highness or the Lord Protector.'¹⁷⁶

Somerset would still have interfered; and it was found necessary to prevent an interview between the brothers if the sentence was to be executed.¹⁷⁷ From the first he had endeavoured to overcome the Admiral's jealousy by kindness. He maintained the same tenderness to the end, while the Admiral's last action showed that he too was

¹⁷⁴*Privy Council Records*, Edward VI. MS.

¹⁷⁵*Ibid.*

¹⁷⁶*Privy Council Records*, MS.

¹⁷⁷I heard my Lord of Somerset say, that if his brother had been suffered to speak with him, he had never suffered, but great persuasion was made to him.—Elizabeth to Queen Mary: ELLIS, second series, vol. ii. p. 256.

equally unchanged. On the 17th of March, the Bishop of Ely brought notice to Seymour to prepare for death. He employed his last days in writing to Elizabeth and Mary, urging them to conspire against his brother; that the letters might not miss their destination, he concealed them in the sole of a shoe; and when before the block, and about to kneel for the stroke of the axe, his last words were a charge to his servant to remember to deliver them.¹⁷⁸ For the rest, cowardice was not among his faults: he died without flinching; not, it would seem, at the first blow.

'As touching the kind of his death, whether he be saved or no,' said Latimer, 'I refer that to God. In the twinkling of an eye He may save a man, and turn his heart. What He did I cannot tell. And when a man hath two strokes with an axe, who can tell but between two strokes he doth repent? It is hard to judge. But this I will say, if they will ask me what I think of his death, that he died very dangerously, irksomely, and horribly. He was a wicked man, and the realm is well rid of him.'¹⁷⁹

Sharrington was pardoned. If there was injustice, it was in the mercy to the accomplice, not in the punishment of the principal offender. Latimer is likely to have been a better judge of Seymour's character and Seymour's crimes than those who would now impugn the sentence upon him.

¹⁷⁸The words were overheard. The servant was examined, and the letters were found. They had been written with great ingenuity. 'He made his ink so craftily and with such workmanship as the like has not been seen. He made his pen of the aglet of a point that he plucked from his hose.'—LATIMER'S *Sermons*, p. 162.

¹⁷⁹LATIMER'S *Sermons*, p. 162.

CHAPTER XXVI

FALL OF THE PROTECTOR

NOTWITHSTANDING the new service-book, Somerset could scarcely have been satisfied with the condition of the country or with the results of his own administration. Parliament had granted a subsidy; but a subsidy threefold greater would not have extricated the treasury from its difficulties. The expenses of the war could be measured and allowed for; but the expenses of universal speculation were infinite, and from the royal palace to the police stations on the Tweed all classes of persons in public employment were contending with each other in the race of plunder and extravagance. The chantry lands, which, if alienated from religious purposes, should have been sold for the public debts, were disappearing into private hands, with small advantage to the public exchequer. The expenses of the household, which in 1532 were nineteen thousand pounds, in 1549 were more than a hundred thousand. Something was due to the rise of prices, and much to the currency; but the first preponderating cause was in the waste and luxury of the courtiers, and all but universal fraud.¹⁸⁰ The captain of infantry on the Northern Border took pay and rations for the full number of his troop, and hired countrymen on muster-days to fill his empty ranks; his soldiers connived at his dishonesty, while he in turn indulged them in plunder. The 'labourers, gun-makers, powder-makers, bow-makers,' artificers of all kinds employed by the Government, called in vain for their wages.¹⁸¹ The garrisons in the forts, on the coast, at Calais, and at Boulogne, were in the same case. Provisions were supplied them on credit, and the Government at times paid, or professed to pay, the contractors; but the troops were discontented, mutinous, and disorderly; their officers had lost control over them; sometimes, for the means of subsistence, they were driven to plunder beyond the borders of the Calais pale, on the French or Flemish frontier; and

¹⁸⁰The memoranda of the expenses of the household in the reign of Edward VI. were in a manuscript in the possession of Strype, who has printed extracts from it in the *Memorials of the Reformation*. Where the manuscript is now I do not know.

¹⁸¹LATIMER'S *Sermons*, p. 261.

the council had to excuse themselves as they could to the Emperor.
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Undeterred by his embarrassments, the Protector was meditating another invasion of Scotland in the coming summer, and had sent to Germany for fresh levies of mercenaries. The Lanzknechts refused to serve, unless in numbers large enough to enable them to compel good treatment. 'If they should go less in number than three or four thousand men, they affirmed they should be brought to the butcher's stall.' 'It was said by the evil report of soldiers that had come out of England, that men there were more ordered like beasts than Christians, both in the scarcity of victual and payment.'¹⁸³

The restoration of the currency, which had been twice feebly intended, was again postponed. When the time came for the bad coin to be called in, a proclamation was put out instead, ordering that bad coin and good should be received at a uniform price; and coiners and multipliers were threatened with forfeiture of life, lands, and goods; while Sir William Sharington, who had added treason and breach of trust to forgery, was pardoned and again employed. The daily supplies for the common necessities of the Government were provided by loans from the Antwerp Jews. The borrowing system commenced by Henry in the war had never ceased. The Government, since Henry's death, had run the usual course of spendthrifts—making promises of payment, and when they could not keep them, renewing their bills with increasing interest, and progressing from the open money-dealer to the usurious Jew. A Lazarus Tucker and an Erasmus Schertz were now the principal feeders of the English treasury. When Lazarus would lend no more, books were opened with Schertz; and then Lazarus, 'for malice of the other, and for his own profit,' would untie his purse, and lend again at thirteen per cent., deducting, however, thirteen per cent. additional on the exchange, from the condition of the English currency; while the Protector, on his side, would pay interest in 'kerseys, lead, and bell-metal.' The lead and bells he would take from the churches and chantries; the kerseys, it is to be hoped in charity, he did not purchase of the manufacturers in the base coin which they were compelled to accept as genuine. Never before, and

¹⁸²The Council to Sir Philip Hoby: *MS. Germany*, Edward VI. bundle 1, State Paper Office.

¹⁸³Dymock to the Council. *MS. Germany*, Edward VI., bundle 1 State Paper Office.

never since, has an English Government been reduced to shifts so scandalous.¹⁸⁴

The relations with France were more dangerous than if war had been declared. From many quarters the Protector was warned that an attack would be made on Boulogne in the summer. The council entreated him to reinforce the garrison, but he was busy with his own projects, and shut his eyes to the peril. The pirate fleet with which Seymour had been connected, amounted now to twenty well-armed vessels. The French Government gave them the use of their harbours, and the English traders were pillaged in revenge for the exploits of the privateers. When Flemish ships suffered also, the Emperor held the council in London responsible for the misconduct of its subjects, and the council were obliged to appeal to his forbearance and plead inability to put the pirates down.¹⁸⁵ Seymour's conspiracy at the same time opened a prospect of creating confusion, by which the French might profit. The Paris Government believed that such an enterprise, if it was real, would not have been ventured, unless there had been some secret disaffection more considerable than had come

¹⁸⁴See the Letters of the Council to Mr Damosell at Antwerp: *Flanders MSS.* Edward VI. State Paper Office. The character of the correspondence may be judged from such specimens as these:—'Forsomuch as the exchange falleth daily so sore, if you can devise to bargain with some of them to take kerseys or cloths for the money, and devise by what means the King might after that sort save the loss of the interest, and such exchange as he doth now sustain, ye should do right well in it, and deserve thanks.'

'When ye write that ye may have money to a 100,000*l.* upon interest, we would gladly know whether you could bargain with them, considering the fall of the exchange, that they would take payment in cloths and kerseys,' &c. &c.

It ought to be said that the Continental Governments were taking up money at the same careless rate; but the Continental Governments were also careless of tyranny to an extent beyond what the English council could venture on.

'When ye write,' they say. with a sigh of envy, 'of the Emperor taking on interest 14, 15, or 16 upon the 100, we understand that by Jasper Douchy's policy and other means he doth so order the matter that of what interest soever he taketh money, he maketh merchants and others there to bear the burden, and so be to him all one. The which we do not see can be like to the King's Majesty.'—Same to Same: *MS.* Ibid.

¹⁸⁵If the Emperor shall demand satisfaction for the injuries of his subjects, you must thereunto reply that these pirates be at the least twenty sail now in company together, and among them a great many good soldiers and as expert mariners as any be, which being left in despair, will no doubt continue their former ill lives, robbing and spoiling as they have done, and also of like give ear to the present practices of the French.'—Council to Sir P. Hoby: *MS. Germany*, Edward VI. bundle 1, State Paper Office.

to light; and agents were sent both to England and to Ireland, if possible, to excite a civil war.¹⁸⁶

The Emperor was struggling with the Interim and the Bologna council. Yet his hostility was sustained uniformly to the extreme of his ability; to save his interests, in Italy, it was his object to keep France occupied, and to exasperate, therefore, the English quarrel; and Cardinal Pole took the trouble to write a letter to Somerset, warning him that, when opportunity offered, Charles also would not fail to use it to revenge his own wrongs and the wrongs of the Church;—adding, at the same time, that the Catholic powers had not recognized the legitimacy of a prince who had been born when the kingdom was under an interdict.¹⁸⁷ The money loans at Antwerp were contracted in the face of an edict prohibiting the exportation of bullion from Flanders. The dealings with the Jews were contraband; and a large sum, as much, it was said, as 40,000*l.*, was intercepted and seized on its way to England by the officers of the customs. No provident English statesman could calculate safely on the maintenance of the treaty with the Emperor until England was at peace with France and Charles was again at war with it.

If England was insecure towards the Continent, at home things were on the edge of convulsion. The Enclosures Commission had excited hopes among the people, which Parliament had destroyed by refusing to consider their petition; and the fencing and hedging, sanctioned by the determination of the House of Commons, went on more actively than ever. The Catholics were irritated and disturbed by the religious discussions in Parliament, and by the change in the services; while even the Protestants were frightened by the wild opinions which were spreading under the shelter of the repeal of the heresy laws. 'How dangerously,' Hooper wrote to Bullinger, 'England is afflicted by heresies, God only knows. There are some who say the soul of a man is no better than the soul of a beast, and is mortal

¹⁸⁶They considered, qu'une telle entreprise, sy elle est veritable, n'a peu avoir este conjurer sans l'intelligence de beaucoup de plus grandes, les quelles ne peuvent avoir esté tous descouverts. Henry sent agents, therefore, afin de mettre de dans le dit Royaulme d'Angleterre s'il estoit possible une guerre civile, et lei aviser à se venger les uns des autres pour d'aultan rendre ses affaires plus faciles, tant du costé d'Escosse que de celuy de dechà.—Documents communicated to Sir Thomas Gresham by the Regent of the Low Countries: printed by HAYNES.

¹⁸⁷Correspondence between the Duke of Somerset and Cardinal Pole: *MS. Domestic*, State Paper Office.

and perishable. There are wretches who dare, in their conventicles, not only to deny that Christ is our Saviour, but to call that blessed Child a mischief-maker and a deceiver. A great part of the country is Popish, and sets at nought God and the magistrates. The people are oppressed by the tyranny of the nobles; England is full of misery.¹⁸⁸

The Protector could not blind himself to symptoms so broad as these, but he was bent on going his own way, and the obstacles which he encountered made him impatient of advice, imperious, and head-strong. Sir William Paget, by far the ablest man upon the council, and a true friend to Somerset, implored him to be cautious; but he was so violent, that others durst not speak to him at all; and though Paget persevered, it was only to be 'whipped with sharp words.' 'How it cometh to pass I cannot tell,' Paget wrote at last, 'but of late your Grace is grown into great cholerick fashions, whensoever you are contraried in that which you have conceived in your head. A King which shall give men occasion of discourage to say their opinions frankly, receiveth thereby great hurt and peril to his realm. But a subject in great authority as your Grace, in using such fashions, is like to fall into great danger and peril of his own person, besides that to the commonwealth. For the love I bear to your Grace, I beseech you to consider and weigh it well.'¹⁸⁹

With precarious authority and noble intentions, with moderate ability and immoderate ambition to do good, ready to think those only wise who flattered his hopes, and in his eagerness to accomplish great things, neglecting the immediate duties of the day and hour, Somerset was better qualified than most men to wreck his own fortunes and the cause which he attempted to guide. Forsaking those to whose counsel he had bound himself to attend, he had placed himself in the hands of obscure and venal satellites; and, corrupt as were the law courts of the day, the court which he had established in his own house, managed by such men as these, was probably, but more speciously unjust, while it had the further disadvantage of illegality.¹⁹⁰

¹⁸⁸*Epistolæ TIGURINÆ*, p. 41.

¹⁸⁹Paget to the Protector, May 18, 1549: *MS. Domestic*, Edward VI. vol. vii. State Paper Office.

¹⁹⁰Sir John Thynne was said by Paget to have been among the worst of the Protector's friends. The following story introduces both Thynne and his patron in strange company.

'William Wycherly examined, saith,—

The scheme of policy which he had sketched for himself was sufficiently magnificent. A grand army was to invade Scotland in the summer. The Italian question thickening, Paget was sent to the Emperor to attempt to persuade him to repeat the policy of 1544; the Protector and Charles were each to enter France at the head of thirty

'That about ten years past he used a rule called Circula Salamonis at a place called Pembersbam, in Sussex, to call up Baro, whom he taketh as Oriental or Septentrional spirit; where was also one Robert Bayly, the scryer of the chrystal stone, Sir John Anderson, the magister operator, Sir John Hychcly, and Thomas Gosling, in the which practice they had swords, rings, and holy water, when they were frustrated, for Baro did not appear nor other vision of spirit, but there was a terrible wind and tempest all the time of the circulation. And since that time he used no consecrate circule, but hath used the crystal to invoke the sprat called Scariot, which he called divers times into the crystal to have knowledge of things stolen; which sprat hath given him knowledge an hundred time, and thereby men have been restored to their goods. And this practice by the crystal he hath at the command of my Lord Protector executed in the presence of Mr Thynne, Mr Whalley, Mr George Blage, Mr Chaloner, and Mr Weldon; and by this means my Lord Protector's plate was found where deponent told his Grace it was hid. He sayth that he can invoke the sprat into the crystal glass as soon as any man, but he cannot bind the sprat so soon from lying lies.

'As concerning the sword and the use thereof, he saith that he hath not used the same, save only about two mouths past he used holy water and a sword unconsecrated, and therefore ineffectuous, at Hale oak beside Fulham, where they digged for treasure and found none. But as they were working in the feat there came by them amongst the high way a black blind horse, and made deponent and others with him to run their ways.

'He saith that within this se'nnight Humfrey Locke, about Windsor Forest, and one Potter, of St Clement's parish, without Temple Bar, came to this deponent for a sword and a sceptre going upon joints, which hath been consecrated, and now are polluted, and a ring with the great name of God written thrice tetragramraaton, which this deponent delivered them, and they two with a priest intend at this or next lunation to conjure for treasure hid between Newbury and Reading.

'He saith that about nine years past he did conjure at Yarmouth in the great circule with the sword and the ring consecrated; but nothing appeared unto him, because that an old priest being there, was so sore afraid that he ran away before the spirit called Ambrose Waterduke could appear.

'Sir Robert Bryan, of Highgate, priest, some time an armyt, conjureth with a sieve and a pair of shears, invoking St Paul and St Peter, and he also useth the Psalter and key. One Croxton's wife, in Golding-lane, occupyeth the sieve and sheers, and she only speaketh with the fayrayes.

'John Davy, a Welshman, late dwelling at my Lord Protector's place, is a prophesyer and a great teller of things lost.

'And this deponent sayth that there be within England above 500 conjurors as he thinketh, specially Norfolk, Hertfordshire, Worcestershire, and Gloucestershire.'—*Lansdowne, MSS.* British Museum.

thousand men 'galyardly,' and dictate moderation at Paris. The new Prayer-book was to come into use at Whitsuntide, and the mass—the Jacob's ladder by which for thirty generations the souls of men were supposed to have climbed to heaven—was to be put down and prohibited by law. Simultaneously the two Universities were made an arena for a disputation on the real presence, where foreign Protestants were to confound superstition. Heresy becoming so troublesome, a commission was appointed to hunt out and try Anabaptists; to examine them, to report on their opinions, and if mild measures of conversion failed, to deliver over the obstinate in the old fashion to the secular arm. Since Parliament would not listen to the wrongs of the people, another commission was directed to enforce redress by the Acts of Henry, and to accomplish by immediate constraint the restoration of the appropriated lands.

'To alter the state of a realm,' Paget wrote to Sir William Petre, when he heard of all this; 'to alter the state of a realm would ask ten years' deliberation. War abroad and war among ourselves, what prince that understands things would not gladly see one of them at an end ere he enter with us?'¹⁹¹ 'Commissions out for in that matter,' he wrote again to Somerset, 'new laws for this, proclamations for another, one in another's neck, so thick that they be not set by among the people! Alas! sir, take pity of the King, of your wife, and of your children, and of the conservation and state of the realm, and put no more so many irons in the fire at once.'¹⁹² But remonstrances were vain as ever. The Oxford and Cambridge schools rang with their unprofitable jargon, and the victory, of course, was ruled to the innovators. The commissioners of religion called up suspected Anabaptists. Processions of abjured heretics carried faggots at St Paul's, and Joan Bocher, a Kentish woman, who had views on the incarnation which she refused to abjure, was left in prison waiting further sentence.

Commissions, arguments which ought to convince, and a prison for those who remained unsatisfied; these, without further trouble, were to establish religion and restore the suffering people to prosperity. The Protector had early notice that success would be less easy than he desired. In reply to his Heresy Commission, a man at St Ives took a dead cat which had been lying in the street for a week, 'and did hang it up upon a post in the open market, the hinder legs cross

¹⁹¹ Paget to Petre: TYTLER, vol. i.

¹⁹² Paget to the Protector: *MS. Domestic*, Edward VI. vol. viii. State Paper Office.

nailed, the fore legs spread abroad and nailed, the head hanging on the one side, and a paper over it.¹⁹³ The Princess Mary, when invited to receive the Prayer-book, replied that, 'although, the council had forgotten the King her father, and their oaths to observe his will, yet for herself she would observe his laws as he left them' till her brother was of years of discretion.¹⁹⁴ The peasants, when the commission of enclosures was announced in May, took the redress of their injuries upon themselves; filled the ditches, levelled the hedges, tore down the palings of parks, and drove the deer and killed them.

On this last point the Protector came at once into open collision with the council. Somerset said openly that he 'liked well the doings of the people;' 'the covetousness of the gentlemen gave occasion to them to rise; it was better they should die than perish for lack of living.' Against the entreaties of all who were entitled to advise him, he replied to the commotion by a proclamation that illegal enclosures should be levelled on a day which he specified; and by a second, immediately following, that no one should be vexed or sued for any part which he had taken in the riots.¹⁹⁵ The more energetic among the lords resolved, in consequence, to act for themselves: they dispersed about the country; sheriffs and magistrates were directed by them to prosecute all disturbers of the peace by the sword; and if any of the people 'should be departed from their houses to any assembly for unlawful purposes, to spoil and rifle their houses, to their utter ruin and destruction, and the terrible example of others.'¹⁹⁶ Sir William Herbert, whose own parks had been invaded, attacked the rioters in person, and cut some of them in pieces.

At this crisis news came from the western counties which exposed the weakness of the hopes with which Somerset was cheating himself. A religious insurrection he had believed to be impossible. He had been persuaded that the masses of the people sympathized with the changes which he was introducing. He had confounded a contented acquiescence in the separation from the Pope with an approval of innovations upon the creed.

¹⁹³Simon Kent to the Bishop of Lincoln: *MS. Domestic*, Edward VI. vol. vi. State Paper Office.

¹⁹⁴The Lady Mary to —: *ELLIS*, first series, vol. ii.

¹⁹⁵Articles against the Protector: printed by *HOLINSHED*.

¹⁹⁶Proclamation of the Council on the Outbreak of the Rebellion: *MS. Domestic*, Edward VI. vol. vi. State Paper Office.

It has been mentioned that a Government commissioner was murdered in the summer of 1548 in Cornwall. The Cornishmen had been neither conciliated nor terrified by the executions with which the crime was avenged; an organized spirit of disaffection silently spread, and Sir Humfrey Arundel, of St Michael's Mount, and Boyer, the mayor of Bodmin, were the intended leaders of a meditated rebellion. A second Pilgrimage of Grace was about to be enacted in England; the reader will observe, in the altered features assumed by the insurrection, the changes which had passed over the country.

The flame first kindled in the adjoining county.

The English liturgy was read in all churches for the first time on Whit-Sunday, the 9th of June, 1549. On Whit-Monday the priest of Sampford Courtenay, a village on the slopes of Dartmoor, in Devonshire, was going into church for morning prayers, when a group of his parishioners gathered about him, asking what service he would use. The priest said that he must go by the law. The men answered they would have none of the new fashions; they would have the old religion of their fathers, as King Henry VIII. by his last will and testament had ordained.¹⁹⁷ The priest yielded willingly to compulsion. He put on his cope and vestments, and said mass in Latin, 'the common people all the country round clapping their hands for joy.'¹⁹⁸

The neighbouring magistrates came the day after to make inquiries. The villagers collected with bows and pikes; and, after an armed conference, the magistrates, 'afraid of their shadows,' or in their hearts agreeing with the popular feeling, withdrew without further interference. The successful example was not long unimitated. In the same week, or within a few days, the wave of resistance swept over the country west of Exeter, meeting on the Tamar a similar movement swelling upwards from Cornwall. Of all the council Lord Russell was most closely connected with Devonshire. To Russell had fallen the domains of the abbey of Tavistock; St Mary's Clyst and part of Exeter itself belonged to him. Russell had commanded the musters of the county in the French war; and when the news of the commotion reached London, Russell was chosen to

¹⁹⁷ It is singular that a belief prevailed in all classes that Henry had forbidden by his will that any change should be made during the minority in Religion. Even Mary, as we have seen, shared it. The Protector was punished for his want of openness. He had made the will a mystery because it was inconvenient that the world should know that he had altered the disposition of the Government.

¹⁹⁸ HOLINSHED.

put an end to it. Being prevented from setting out on the instant, Sir Peter and Sir Gawen Carew,¹⁹⁹ who were at the Court, went down before him, carrying private orders from the council, unknown to the Protector, to put the disturbance down promptly and sternly. On reaching Exeter they learnt that the rebels, now openly in arms, were assembled in force, seven miles off, at Crediton. The Carews collected a party of horse, set out for the place without delay, and on approaching the town found the streets barricaded and trenches cut across the roads. They dismounted and went forward on foot. On arriving at the first barricade, they were challenged, stopped, and told that they should not pass unless unarmed and alone. Sir Peter, accustomed to cross swords with the French chivalry, was not to be daunted by village churls; he charged the barricade, and was met with a shower of arrows and balls. The annoyance came chiefly from a row of barns at the end of the street, which were occupied by matchlock men. It was a difficulty which a wisp of straw would best remove; the thatch was lighted, and when the smoke and the blaze had cleared away, the assailants found the road open, but the town deserted, and the rebels scattered in the open country, where they could not reach them. At once the cry spread everywhere that the gentlemen were destroying the commons. 'The barns of Crediton' became a gathering word, and a flaming beacon of insurrection; and the Carews returned to Exeter only to learn that the commotion had broken out close at hand, almost within sight of the walls.

The day happened to be a holyday. Walter Raleigh, of Budleigh Salterton,²⁰⁰ was riding home from the city; his road lay through St Mary's Clyst, a village two miles from Exeter, towards Topsham; and on the way he passed an old woman going to church, who was

¹⁹⁹The Carews of Mohuns Ottery were among the oldest of the Devonshire families. Sir Peter, after a wild boyhood, ran away to France, and took service as page with a nobleman at the Court of Francis the First. Being recognized by one of his father's friends, who was at Paris on an embassy, he was brought to London, where his gallant bearing recommended him to Henry VIII. He rose in favour; he served in the war under Sir John Wallop with high distinction, and afterwards inherited the family property between Exeter and Honiton. His brother, Sir Gawen, had Tiverton Castle. Minute descriptions of both Tiverton and Mohuns Ottery are in the State Paper Office. The latter was described as impregnable, except by cannon, and the furniture of the rooms would even now be considered magnificent.

²⁰⁰Father of Sir Walter, who was not yet born.

telling her beads. Raleigh, a sea-going man,²⁰¹ and like most men of his calling, inclined to novelties, told her she must leave her follies alone now; times were changed and the law was changed; she must live like a Christian woman, or it would be the worse for her. The old woman tottered on to the parish church, where service had begun when she entered; and 'she, being impatient and in an agony with the speeches past between her and the gentleman, began to upbraid in the open church very hard and unseemly speeches concerning religion.'²⁰² 'Ye must leave beads now,' she screamed; 'no more holy bread for ye, nor holy water. It is all gone from us or to go, or the gentlemen will burn your houses over your heads.' About the same hour the Crediton barns were blazing. The villagers dashed out of the church; some cut down trees, and barricaded the bridge towards Exeter; others ran down to Topsham, and fetched cannon from the vessels at the quay. They overtook Raleigh on the road, seized him, and roughly handled him. The Walter of English fame might never have existed, had not 'certain mariners' come to the rescue.

Carew, after a night's consultation with the city magistrates, was on his horse at daybreak, with his brother. They galloped with their followers to Clyst, and were forcing their way over the bridge, when a gunner, 'in malice at Sir Peter for religion, and for the barns at Crediton,' blew the match of a cannon that swept the road. He was prevented from firing by a comrade; but a parley followed—an Exeter alderman was allowed to enter the village alone, to hear the people's complaints; while the Carews rode fretfully up and down the river banks, probing the mud with their lances to find footing for their horses. All day long the alderman remained among the rioters. Sir Peter would at last have dashed through at all hazards, had not his own people mutinied at his back. Chafing with indignation, he was obliged to return to the city; and at night his companions, with others of the corporation, appeared to tell him that there would be no quiet in Devonshire unless the council would leave religion as it had been ordered by Henry.

Sir Peter, in a rage, called the citizens traitors and poltroons. He would raise the force of the county, he said. He would call every loyal

²⁰¹He was the owner of one or more armed ships, popular among sailors, and probably, therefore, not unacquainted with privateering.

²⁰²Narrative of Mr Hooker of Exeter—*oculatus testis*, as he calls himself: printed by HOLINSHEAD.

gentleman to his standard, and slash the rebel dogs into their senses. When the morning came he learnt that it was easier to say this than do it. Ten thousand Cornish were in full march from the Tamar. The roads round Exeter were beset; Walter Raleigh was again a prisoner; and the gentlemen were everywhere hiding for their lives in 'woods and caves.' There was nothing left but for him to escape and warn Russell. The mayor and aldermen, although they hated the religious changes as heartily as the rebels, promised to hold the city for the King as long as they had provisions to keep them alive. Carew made his way through by-lanes and paths into Somersetshire.

Unsettled as the country was everywhere becoming, the dimensions which the insurrection might assume were now altogether uncertain. Russell had reached Taunton, but he had no force with him adequate to the emergency. He directed Carew to hasten with his best speed to the Court, and make his report to the council. He himself went on to Honiton, intending to wait there for his reinforcements. Should Exeter fall meanwhile, and the rebels advance, he would retire on Sherborne and Salisbury.

Exasperated at his own mistake, disappointed at the interference with his plans which he foresaw must flow from the confusion, Somerset, when Sir Peter arrived, overwhelmed him with reproaches. Carew's violence, the Protector chose to think, had changed a riot into a rebellion, and Carew only was to blame. Sir Peter produced his orders, which it appears had been signed by Edward. The chancellor said a royal command was valueless without the great seal; the rest of the council stood by their own act, and high language was used on all sides. The Protector had considered himself a king all but in name;²⁰³ but his royalty was a child of sunshine, and shade was fatal to it. It soon enough became clear that the causes of the rebellion lay deeper than the mistake of a single person. Posts came in one after the other with news that all England was stirring. Yorkshire was up; Northamptonshire was up; Norfolk and Suffolk were up. Peter Martyr and the Oxford controversy had set on fire Oxfordshire and Buckinghamshire. The enclosures, the high prices, the change in religion, worked one upon the other, and the Protector found

²⁰³Page to the Protector: *MS. Domestic*, vol. viii. Edward VI. It is noticeable that in the preamble of a private Act passed in the late session, referring to the demise of certain of his lands, the Protector styles himself 'The Right Excellent Prince Edward, Duke of Somers.'—2 and 3 Edward VI. cap. 12.

that he either must relinquish the Reformation, or lose the title of the people's friend. The many grievances were massed together inseparably; and the army of foreign mercenaries, which he had collected for the invasion of Scotland, he must either permit to be used to crush the commons in a quarrel, to which, so far as the land was concerned, he had himself encouraged them; or he must take their side against the gentlemen, put himself at their head in a servile war, and give them back their mass.

The demands of the western insurgents, in a special form, followed close on Carew's arrival. The English service had been either studiously made ridiculous in the manner in which it was performed by the unwilling clergy, or the people had been taught to believe that it was something half profane, half devilish. The new communion, strangely, was thought, like the love-feasts of the Gnostics, to be intended as an instigation to profligacy.²⁰⁴ In fifteen articles the Commons of Devonshire and Cornwall required the restoration of the Catholic faith and the extinction of Protestantism with fire and sword.

1. 'We will have,' thus imperiously their petition was worded, all the general councils and holy decrees of our forefathers observed, kept, and performed, and whosoever shall gainsay them, we hold them as heretics.

2. We will have the laws of our sovereign lord King Henry VIII. concerning the six articles to be used again, as in his time they were.

3. We will have the mass in Latin, as it was before, and celebrated by the priest without any man or woman communicating with him.

4. We will have the sacrament hung over the high altar, and thus be worshipped as it was wont to be, and they which will not thereunto consent, we will have them die like heretics against the holy Catholic faith.

5. We will have the sacrament of the altar but at Easter delivered to the people, and then but in one kind.

²⁰⁴Doth receiving the communion either make matrimony or give authority and license to whoredom? Did not men and women always heretofore go to God's board, and receive together and all at one time as they do now; and did ever men think that they that did so should be in common?'—Answer of the Protector to the Rebels in the West: *MS. Domestic*, Edward VI. vol. viii. State Paper Office. Mr Tytler has printed the greater part of the paper from which the above passage is an extract. The passage itself, strange to say, he has omitted.

6. We will that our curate shall minister the sacrament of baptism at all times, as well on the week days as on the holydays.

7. We will have holy bread and holy water every Sunday, palms and ashes at the time accustomed, images to be set up again in every church, and all other ancient ceremonies held heretofore by our Mother Holy Church.

8. We will not receive the new service, because it is but like a Christmas game. We will have our old service of matins, mass, even-song, and procession as it was before; and we the Cornishmen, whereof certain of us understand no English, utterly refuse the new English.

9. We will have every preacher in his sermon, and every priest at the mass, pray, especially by name, for the souls in purgatory, as our forefathers did.

10. We will have the Bible, and all books of Scripture in English, to be called in again, for we be informed that otherwise the clergy shall not of long time confound the heretics.

11. We will have Doctor Moreman and Doctor Crispin,²⁰⁵ which hold our opinions, to be safely sent unto us, and to them we require the King's Majesty to give some certain livings to preach among us our Catholic faith.

12. We think it meet, because the Lord Cardinal Pole is of the King's blood, that he should not only have his pardon, but also be sent for from Rome, and promoted to be of the King's council.

13. We will that no gentleman shall have any more servants than one to wait upon him, except he may dispense a hundred mark land, and for every hundred marks we think it reasonable that he should have a man.

14. We will that the half part of the abbey lands and chantry lands in every man's possession, howsoever he came by them, be given again to the places where two of the chief abbeys were within every county where such half part shall be taken out; and there to be established a place for devout persons, which shall pray for the King and the Commonwealth. And to the same we will have all the alms of the church box given for seven years.

15. For the particular griefs of our country, we will have them so ordered as Humfrey Arundel and Henry Boyer, the King's Mayor of Bodmin, shall inform the King's Majesty, if they may have safecon-

²⁰⁵Priests described by Cranmer as men of 'notable craft, wilfulness, and dissimulation.' They had, perhaps, been concerned in the disturbance of 1548.

duct in the King's great seal to pass and repass with an herald-of-arms.²⁰⁶

While the western rebels were demanding a return to Catholicism, those in the eastern counties were inclining to Anabaptism; but in the one and the other, and in fact all over England, were the two elements of discontent, which the Protector would so gladly have separated. If he maintained the Act of Uniformity, he must put down the demonstration against the gentle men. If he hesitated, he must encourage heresy or reaction, or both.

A ruler strong enough to cope with embarrassments so complicated would not have allowed them to occur. Beset on all sides, and not knowing what to do, he wrote letters, issued proclamations, and appointed commissions. For the relief of the poor, he set out a tariff of prices for the necessaries of life, as if the condition of the country would permit the enforcement of it. One only feature was wanting in the confusion. It was announced that the Princess Mary had sanctioned the rebellion, and that her chaplains were among the insurgents at Exeter.²⁰⁷ Had she yielded to the temptation, she would perhaps have overturned her brother's throne. The Protector wrote to her: he told her what was generally said; and though he did not doubt her loyalty, 'her proceedings in matters of religion,' he said, 'being openly known, had given no small courage to the rebels.' Mary answered with haughty brevity that, if the realm was in disorder, the fault was not with her. Neither she nor any of her household had been in communication with the insurgents directly or indirectly.²⁰⁸

Mary had refused conformity, and Somerset did not dare to insist upon it. Prudent for once, he gave her license to use her own services at her pleasure. But, to quiet the country, he could expect neither countenance nor assistance from her, and resources in himself he had none. The council demanded that circulars should be directed to all noblemen and gentlemen, calling on them to arm their servants and

²⁰⁶Demands of the Rebels, printed in STRYPE's *Cranmer*. Another set, differently worded, but to the same purpose, is given by Holinshed. There is an additional demand among the latter that the clergy should be prohibited from marrying. From other quarters there must have been more, which are lost, and to some of which the Protector's defence of the communion service must have been directed.

²⁰⁷*Illud de Mario vel Marianis me valde angit immo prope exanimat. Faxit Deus optimus maximus pro suâ clementiâ malum id avertat.*—Sir Thomas Smith to Cecil: TYTLER, vol. i. The meaning is scarcely disguised under the masculine termination.

²⁰⁸*MS. Domestic*, Edward VI. vol. viii.

tenants; to apprehend as they could all disturbers, and unite to enforce order. A circular was issued, but so vague in its terms that no one dared to act upon it.²⁰⁹

Sir William Paget, who was still abroad, in a clear and powerful letter, sketched a course for the Protector to follow. 'In Germany,' he said, referring to the peasant wars, 'when the very like tumult to this began first, it might have been appeased with the loss of twenty men; and after that with the loss of a hundred or two hundred; but it was thought nothing. And also some spiced consciences, taking pity of the poor—who, indeed, knew not what pity was, nor who were the poor—thought it a sore matter to lose so many of their even Christians, saying they were simple folks, and wist not what the matter meant, and were of a godly knowledge: and after this sort, and by such womanly pity and fond persuasion, suffered the matter to go so far, as it cost, ere it was appeased, they say, a hundred thousand, but I know by credible report of some that were at it, at least threescore thousand men's lives. Likewise our business may, peradventure, at the worst, if resistance should be made, cost a thousand or two thousand men's lives. By St Mary, better so than mo. And therefore, sir, go to it betimes. Send for all the council that be remaining unsent abroad; and for because there are a good many of the best absent, call to your Grace to council for this matter six of the gravest and most experimented men of the realm, and consider what is best to be done, and follow their advice. Send for your Almayn horsemen; send for Lord Ferris, and Sir Wm. Herbert, to bring you as many horsemen of such as they dare trust out of Wales. Let the Earl of Shrewsbury bring the like out of Shropshire, Derbyshire, Nottinghamshire, Staffordshire, of his servants and keepers of forests and parks. Go yourself, accompanied with the said noblemen and their companies; and appoint the Chief Justices of England, three or four of them to resort, with commission of oyer and terminer, to that good town which shall be next to the place where your Grace shall remain. Attach to the number of twenty or thirty of the rankest knaves of the shire. Let six be hanged of the ripest of them, the rest remain in prison. And thus, sir, make a progress this hot weather, till you have perused all those shires that have offended. Your Grace may say you shall lose the hearts of the

²⁰⁹On my life, if my Lord's Grace would give authority to any one man to execute the proclamations, this whole shire shall be quiet. When the proclamations be directed so generally, every man looketh upon another.—Sir Thomas Smith to Cecil.

people; of the good people you shall not—of the ill it maketh no matter.²¹⁰

When the Protector received this letter, the danger was so imminent that he was obliged to send orders to Staines to break the bridge over the Thames, for fear of an attack on London.²¹¹ Yet in the crisis of the peril, he sent out another of his unlucky enclosure commissions, with circulars, insisting that every gentleman on his own estate should 'reform himself before proceeding to the redress of others;' and throw down his hedges and embankments. 'Put the rebellion down first,' was the advice of Paget, and let the enclosers smart for it afterwards. But the Protector could not draw his sword against men whose cause he considered partially just. The Commons were driven to madness by the tyranny of the gentlemen and the Lords—was he to arm the oppressors with authority to destroy men for crimes they were themselves responsible?

At length, however, the religious element in the insurrection became, in the counties west of London, more and more preponderating. Somerset's indecision so far came to an end that he allowed the council to take their own course. As the treasury was unfurnished, the lords²¹² emptied their own plate chests, sold their jewels, raised money by every possible shift. Northampton set off with fifteen hundred men to Norfolk. Lord Grey de Wilton with the Lanzknechts went westward, taking Oxfordshire and Buckinghamshire in his route, to join Russell. Sir William Herbert made for Wales, to raise the force of the Borders, and march to Exeter across the Somersetshire flats. The Protector remained at the Court to use severity where his conscience permitted him. The Bishop of London had resisted to the last in the House of Lords the alteration of the services. He had not ventured to interfere with the introduction of the Prayer-book into his diocese, but it was observed that he had never officiated in English—that 'in London and elsewhere he was reported to frequent foreign rites and masses such as were not allowed by the order of the

²¹⁰Paget to the Protector: *MS. Domestic*, Edward VI. State Paper Office. Printed in STRYPE'S *Memorials*, vol. iv.

²¹¹*MS. Ibid.* vol. vi.

²¹²Before the rebellion was finally over, Herbert, Warwick, Russell, Arundel, Southampton, "Dorset, Paget, Lord Wentworth, Sir Thomas Wentworth, Sir Thomas Darcy, Huntingdon, Clinton, Cobham, and the Duchess of Richmond, subscribed among themselves something about a hundred thousand pounds. The account is drawn out in the hand of Sir Thomas Smith.—*MS. Harleian*, 660.

realm, contemning and forbearing to praise and pray to God after such rite and ceremony as was appointed.' He was commanded, therefore, to reside permanently in his house in London, under the eye of the authorities to discharge in person all duties belonging to his office, and especially, under pain of being deprived and of incurring such other punishment as the law should direct, to preach a sermon which should be a satisfactory account of his opinions on the following points. He was to prove—

1. That all persons rebelling against their sovereign thereby incurred damnation.

2. Therefore, that the English rebels, specially those of Cornwall and Devonshire, 'were incurring damnation ever to be in the burning fire of hell with Lucifer, the father and first author of disobedience—what masses or holy water soever they went about to pretend.'

3. That 'Korah, Dathan, and Abiram pretended religion, and were swallowed up quick in hell'—that Saul was rejected for saving the sheep from sacrifice—that disobedience and rebellion, under any plea whatsoever, were hateful to God.

4. That vital religion consisted only in prayer to God—that rites, forms, and ceremonies were but the dress, or outward costume, which the magistrate might change at his pleasure that if any man, therefore, persisted any longer in using the Latin service, his devotion was made valueless by the disobedience involved in the practice.²¹³

The outward and silent submission of the subject to usages of which he disapproves may, under certain circumstances, be legitimately demanded; his allegiance to his sovereign and country is the only question on which he may be required to declare his private opinion. The Bishop of London was invited to teach what he was known not to believe. If he complied, his character was forfeited. If he refused, his person was at the mercy of the Government. It was a repetition of the treatment of Gardiner, and the result was the same. He was held not to have given satisfaction; he was insolent on his examination; and he was imprisoned for the remainder of the reign. The story will now follow Lord Grey.

Round Oxford the parish priests had been excited by the theological controversies on the Eucharist. They had communicated their ir-

²¹³Orders of the Crown to Bonner, Bishop of London: *MS. Domestic*, Edward VI. vol. viii.

ritation to the yeomen and labourers, and the county was in disorder. But the people had. no organization which would resist regular troops, and punishment was reserved chiefly for their instigators. The rope was introduced to give force to the arguments of Peter Martyr, and far and wide among the villages the bodies of the rectors and vicars were dangled from their church towers.²¹⁴ The bells,²¹⁵ which had been used to rouse the peasants, were taken down and sold for the benefit of the Government, 'leaving one only of the smallest size' to tinkle feebly for the English prayers.

Having restored order in Oxfordshire, Grey hastened on to Honiton, where his coming was anxiously looked for.

Lord Russell had waited, unable to move, till the few gentlemen who had collected about him dropped away, as day passed after day and brought no help. On the 2nd of July the insurgent army, for so it might now be called, appeared in force before Exeter. Elsewhere the rising was exclusively among the small farmers and the peasantry. In the west, where the religious grounds of discontent were stronger than the social, it had affected a higher grade, and Sir Thomas Pomeroy, and Sir Humfrey Arundel, Coffin of the north of Devon, and other men of weight and property, were among the leaders of an organized force twenty thousand strong, which, armed, disciplined, and provided with cannon, were collected under the banner of the cross. After taking possession of Exeter, they intended to march on towards London, raising the country as they went; and when they summoned the inhabitants to surrender, they expected immediate compliance and co-operation. In the city two violent factions, a Catholic and a Protestant, were divided by a large middle party, who, though conservative in religion, were loyal to law and order—who had no love for religious changes, but had less for treason and insurrection. In their names, and with their support, in spite of a demonstration from the Catholics, Blackball the mayor kept his promise to Carew. The gates were barred and barricaded; the tradesmen were turned into a garrison. If the rebels desired to enter Exeter, they were told that they must find their own road into it.

²¹⁴MS. *Domestic*, Edward VI. vol. viii.

²¹⁵I have found no especial directions for the Oxfordshire bells, but there was a general order of council, applying to all the disturbed districts, and there was no reason why Oxfordshire should be spared.

Insurrections, to be successful, must be rapid. Had Arundel left Exeter to its fate, and gone forward, there was no force between him and London which he could not have overwhelmed; but a few days, he supposed, would be the utmost that an unfortified city could resist, and he waited to besiege it. The approaches were occupied—the pipes which carried water into the city were cut—cannon, small, probably, and ill-served, were fired incessantly upon the houses—the gates were undermined, and a continual correspondence was maintained between the rebels and the disaffected party among the citizens, which gained strength as the provisions began to run low. So daring and so violent became the Catholics at last, that they met in arms at the Guildhall to insist on a capitulation; 'Richard Tailor, a clothier, drew his bow and shot an arrow' at some reforming zealot; and they paraded the streets in procession crying out, 'Come out, you heretics; where be these twopenny bookmen; by God's wounds and blood, we will not be penned in to serve their turn; we will go out and have in our neighbours; they be honest and good men.' Nevertheless, the mayor persevered. A hundred of the principal householders agreed to stand by him to the last, and by skill and steadiness he kept the peace. The conduits were well supplied, and the summer was happily wet. A rate was levied for the support of the poor, which rose as prices rose; and so long as there was food within the walls, even the prisoners in the gaol received their fair share with the rest. Skirmishing parties occasionally swept in droves of cattle from the adjoining meadows by sudden sallies. As the rebels mined, the citizens countermined. Where the assailants were suspected to be at work, an adroit engineer detected their presence under-ground by the vibration of a pan of water above their heads, and they were blown up or drowned in their holes.

A blockaded town, however, could not resist for ever. The mayor held on for six weeks; he then felt that he had done his utmost, and he had made up his mind with his friends to cut his way through the besiegers and escape, when news came that relief was at hand.

Russell had been stationary at Honiton from the middle of June to the middle of July. In the last fortnight rumours came from day to day that the city was taken, that Arundel was advancing, that Wiltshire had risen in his rear. Being at last almost alone, he was retiring in despair, and had reached Sherborne, when Carew, returning from London, brought the welcome information of the advance of Lord Grey.

With revived spirits, Russell now raised money among the merchants at Bristol and Taunton. The Carews collected their tenants, stirred the gentlemen of Dorsetshire, and brought together a few companies of horse. The promise of action of some kind put an end to the paralysis which had been caused by the apathy of the Protector, and the waverers and the timid came forward with their services.

Honiton was made again the rallying point; and a tolerable force was soon in arms there. As soon as Grey should come, the intention was to go forward immediately and fight a battle under the walls of Exeter. The rebels, however, were by this time conscious that they were losing their opportunity. Hearing of Russell's return and of his expected reinforcements, they determined to anticipate his attack. On the 27th of July scouts brought in information that a body of Cornishmen were three miles off at Fenington Bridge. Their numbers were increasing, and they might be hourly looked for at Honiton. A council of war was held; when Sir Peter, as usual, was for an instant fight. His advice was taken: with as many men as he could bring together, Russell went in search of the enemy, whom he found to the number of a few hundred encamped in a meadow across the water below the bridge, waiting for a fresh detachment which had not yet arrived.

A few trees formed a barricade at the bridge, which was defended by a party of archers and matchlock men. The Carews, ever foremost, leapt their horses over the fence, and, after some hard fighting, in which Sir Gawen was shot through the arm, the road was cleared. Lord Russell passed over, and the skirmish became general. The Cornish at last giving way, discipline, as might be expected among such troops as Russell had with him, came to an end. They scattered, looking for spoil; and in this condition were caught by the second body of insurgents, who came up at the moment. They suffered severely; many were cut to pieces, the rest extricated themselves after a fierce struggle, rallied again, and finally drove the Cornish off the field, leaving three hundred of their number dead; but Russell's loss was perhaps as great as that of the rebels, and he returned to Honiton in haste, not without fear of being intercepted.

It was perhaps the report of this business which decided Blackhall on surrendering. But two or three days after, Grey finally arrived, bringing with him the Lanzknechts, three hundred Italian musketeers, and some tolerable artillery. Grey's whole force was not more

than a thousand, but it was formed of professional soldiers who understood their business, and with them the advance must at all hazards be ventured. Herbert with the Welsh was reported to be at no great distance, but Exeter was in extremity, and to lose it might be to lose everything.

On Saturday the 3rd of August, therefore, the little army marched out of Honiton. To avoid a battle where they could not choose their ground, they left the road, crossed the open hills behind Ottery St Mary, and in the evening of the same day were on the heath—or what was a heath in those days—above St Mary's Clyst, two miles from Topsham. Among the peasantry the irritation was justly turned to madness when they knew that foreign mercenaries were brought in to crush them. Never before had English rulers used the arms of strangers against English subjects; and no sooner were their columns in sight, than the villagers of Clyst rushed up in rage to fall upon them. One could wish that the better cause had found the better defenders. The half-armed Devonshire peasants were poorly matched against trained and disciplined troops. Few who went up the hill came back again; they fell in the summer gloaming, like stout-hearted, valiant men, for their hearths and altars; and Miles Coverdale, translator of the Bible, and future Bishop of Exeter, preached a thanksgiving sermon among the bodies as they lay with stiffening limbs with their faces to the sky.

So far, however, Russell had encountered but straggling detachments or handfuls of exasperated labourers. He had keener work before him. As the preacher's last words died away, the shouts and cries of the gathering insurgents swayed through the night air. Too late for the skirmish, the force which had been watching the roads to intercept his advance was now swarming thick into Clyst, and before day broke six thousand resolute men were in the village under the hill. The odds of numbers were heavy, but at all risks a battle must be ventured.

Sunday morning at sunrise the trumpet sounded, and the King's troops were on the move. The advance was slow. Felled trees lay across the lanes, with trenches behind and between them. It was nine o'clock before the road was open into the village; when the English horse, led by Sir William Francis, pushed on, followed close by Russell and Grey. The main body of the rebels were drawn up on the village green. As they came in sight, the horse went at them at a gal-

lop, to break their ranks in the first rush; but the houses and walls on each side were lined with archers, whose arrows told fatally at close quarters. At the back of the village there was a thick furze brake, from which Sir Thomas Pomeroy started out unlocked for, and fell upon the Lanzknechts; and, believing themselves surrounded, Germans, Italians, English, all in confusion together, fell back, and were driven in panic up the hill to their camp. Every foreigner who fell out of rank was instantly killed. 'Abhorred of our party,' says Hooker, who was present, 'they were nothing favoured of the other;' and the chase was so hot, that Russell's cannon, ammunition-waggons, shot, powder, were taken and carried off into Clyst.

For the moment all seemed lost, but the troops rallied on the heath, and again charged, and the insurgents in turn recoiled. The fight rolled down once more into the village, and this time the houses were set on fire, and the archers driven from their covers. The horse a second time attempted to ride down the people. Francis was killed, and the struggle was long and obstinate; but the fire and the smoke, and the Italian muskets, gave the victory to Russell, and, once broken, the rebels scattered in all directions. The river towards Exeter, which runs up from Topsham, was by this time filled with the tide. Some were cut down on the waterside, some were drowned in attempting to cross, some were burnt in the village; altogether a thousand were killed, besides an unknown number who surrendered.

The bridge was still in the insurgents' hands. They had cannon upon it, and it could not be taken in front without loss; but a party of Grey's horse found a ford where they could cross, and, dashing through the water, came on the gunners from behind and sabred them. The road was then cleared, and Grey himself went forward to a rising ground which commanded the scene through which they had fought their way. Seeing, or believing that he saw, parties of the enemy again collecting in force in the rear, he sent word to Russell to be on his guard; and as a precaution which the peril of so small an army might have seemed to justify, the prisoners were put to the sword.²¹⁶ But so long as daylight continued, there was no further attack. The foot followed the horse over the water and encamped.

²¹⁶Hooker, an eye-witness, is the unexceptionable authority for this savage incident. The revenge of the Italians and Germans was perhaps in some way connected with it.

In the night they were fired on from the hills. The next day, Monday, there was again a battle, and Grey, who had led the charge on the Scotch infantry at Musselburgh, said that 'such was the valour and the stoutness of the men, that he never, in all the wars he had been in, did know the like.' But the disproportion of numbers seems to have been less than before. Russell on this occasion was able to surround the enemy and prevent their retreat, and the fight ended in a general massacre.

The danger was now over. Monday night the army rested at Topsham; on Tuesday morning, August the 6th, the red dragon was floating on the walls of Exeter, the city was open, and the lean faces of the inhabitants were lighted with hopes of food. The rebels were gone. The same day Sir William Herbert came up with a thousand Welsh mountaineers, 'too late for the work, but soon enough for the play,' 'for the whole country was put to the spoil, and every soldier fought for his best profit.' The services of the mountain cattle-lifters were made valuable to Exeter; for the city, 'being destitute of victuals,' was, 'by their special industry, provided in two days.' An order of council had fixed the wages of the horse employed on this service at tenpence a day, and those of the foot at the usual sixpence, sufficient for their necessities without granting them license of pillage; but it was desired to impress on the country the consequences of insurrection: spoil kept the foreign troops in good humour; and the promise of wages was not always the payment of them.

The ill-treatment of the people, however, served to keep alive bad feeling; and the Cornish falling back towards Dartmoor, made a stand when beyond the risk of immediate attack. Arundel, Pomeroy, Underhill, and others of the leaders held together, and in a few days news came that some thousand of the insurgents were still in arms at Sampford Courtenay. The fire was extinguished at the scene where it was first kindled. The battle which finally gave peace and reformation to the western counties, may be described in the despatch of Lord Russell himself:—

'On Friday, August 15,' he reported, 'we marched from Exeter to Crediton, seven miles off. The way was very cumbrous, and therefore that day we went no further. On Saturday we marched towards the camp at Sampford Courtenay, and by the way our scouts and the rebel scouts encountered upon the Sunday on the sudden; and in a skirmish between them was one Maunders taken, who was one

of their chief captains. Order was given to my Lord Grey and to Mr Herbert, for the winning of time, to take a good part of the army, and with the same to make with all diligence possible towards the said camp, to view and see what service might be done for the invasion thereof. They found the rebels strongly encamped, as well by the seat of the ground as by the entrenching of the same. They kept them in play with great ordnance till more convenient way was made by the pioneers; which done, they were assaulted with good courage—on the one side with our footmen, on the other with the Italian harquebutters, in such sort as it was not long before they turned their backs and recovered the town which they before had fortified for all events. While this was doing, and I was yet behind with the residue of the army conducting the carriage, Humfrey Arundel with his whole power came on the backs of our forewards, being thus busied with the assault of the camp. The sudden show of whom wrought such fear in the hearts of our men, as we wished our powers a great deal more, not without cause; in remedy whereof the Lord Grey was forced to leave Mr Herbert at the enterprise against the camp, and to retire to our last horsemen and footmen, whom he caused to turn their faces to the enemies in the show of battle.

'Against Arundel was nothing for one hour but shooting of ordnance to and fro. Mr Herbert in the mean time followed the first attempt, who, pressing still upon them, never breathed till he had driven them to a plain fight. To the chase came fresh horsemen and footmen; in the which were slain five or six hundred of the rebels, and among them was slain Underhill who had charge of that camp. At the retire of our men I arrived, and because it waxed late I thought good to lose no time, but appointed Sir Wm. Herbert and Mr Kingston with their footmen and horsemen to set on the one side, and my Lord Grey to set on their faces, and I with my company to come on the other side. Upon the sight whereof the rebels' stomachs so fell from them, as without any blow they fled. The horsemen followed the chase, and slew the number of 700, and took a far greater number. Great execution had followed, had not the night come on so fast.

'All this night we sat on horseback, and in morning we had word that Arundel was fled to Launceston, who immediately began to practise with the townsmen and the keepers of Greenfield²¹⁷ and other

²¹⁷Probably Greenfield of Stowe and Bideford, brother or uncle of John the Triva-
teer, and father of the famous Sir Richard

gentlemen for the murder of them that night. The keepers so much abhorred this cruelty as they immediately set the gentlemen at large, and gave them their aid with the help of the town for the apprehension of Arundel, whom, with four or five ringleaders, they have imprisoned. I have sent incontinently both Mr Carews with a good band to keep the town in a stay; and this morning I haste thither with the rest. We have taken 16 pieces of ordnance, some brass and some iron. Of our part there were many hurt, but not passing ten or twelve slain. The Lord Grey and Mr Herbert have served notably. Every gentleman and captain did their work so well as I wot not whom first to commend.²¹⁸

In the break up at Sampford Courtenay, a party of the insurgents with Coffin made towards Somersetshire. These were cut to pieces at Kingsweston, and Coffin was taken. In all, since the beginning of the month, four thousand of the western men, rather more than less, Hooker says, had been killed in action. It remained to punish more formally those who had been peculiarly guilty. Pressed as the council found themselves on all sides, severity was natural and pardonable. Those who excite rebellion against established governments, be their cause good or be it ill, go to their work with the certainty that they must succeed or die; and on the whole it is good for society that the rule should be recognized and observed. Arundel and three others were hanged at Tyburn. Martial law was proclaimed through Cornwall and Devonshire, and the gibbet did its business freely, although in the latter county, according to Hooker, care was taken to distinguish the really guilty. In Cornwall, if we may believe the legends of the next generation, Sir Anthony Kingston, who went as provost marshal, was not so scrupulous. A story was told of a miller who had been out with Arundel, and expecting inquiry, had persuaded a servant to take his place and name. 'Are you the miller?' said Kingston, riding one day to his door. 'If you please, yes,' was the unsuspecting answer. 'Up with him,' said the provost marshal. 'He is a busy knave, hang him up.' In vain the poor man called out then that he was no miller, but an innocent servant. 'Thou art a false knave, then,' said Sir Anthony, 'to be in two tales, therefore hang him;' 'and he was hanged incontinently.' The Mayor of Bodmin had been among the first to move; his name was joined to Arundel's in the rebels' articles, but his friends had interceded for him, and he had hoped for pardon.

²¹⁸Russell to the Council: *MS. Harleian*, 523.

Kingston visited Bodmin in his progress, and sent the mayor notice that he would dine with him. He had a man to hang, too, he said, and a stout gallows must be ready. The dinner was duly eaten, and the gallows prepared. 'Think you,' said Kingston, as they stood looking at it; 'think you it is strong enough?' 'Yea, sir,' quoth the mayor, 'it is.' 'Well, then,' said Sir Anthony, 'get you up, for it is for you.' The mayor, 'greatly abashed,' exclaimed and protested. 'Sir,' said Kingston, 'there is no remedy, ye have been a busy rebel, and this is appointed for your reward;' and so, 'without respite or stay, the mayor was hanged.'²¹⁹

These were stories told by the children of the sufferers to their grandchildren. Had Kingston's reports survived, the account would perhaps have been different. He was a young, high-spirited, and, in some respects, noble sort of person, a friend of Hooper the martyr.

An execution at Exeter is more authentic and more characteristic of this time. Prominent in the rebel army was Welsh, the Vicar of St Thomas's; a parish through which the railroad passes by the river-side in front of the town. A worthy parish priest of the old type, Welsh was at once a good believing Catholic, a stout wrestler and cudgel-player, a famous shot with bow, crossbow, and handgun—'a good woodman and a hardy,' who had brought down in his day many a noble buck in the glens of Haldon, and levelled, it is likely, many a ranger from Powderham with his quarter-staff; 'such a one as would not give his head for the polling, nor his beard for the washing;' and withal 'very courteous and gentle of demeanour, and of honest parentage.'

This man for his sins had been a great hater of the Prayer-book, and a special doer in the siege. He had saved life more than once, but he had also taken life. 'One Kingsmill, a tanner of Chagford,' was taken by the rebels with a letter from the mayor to Lord Russell, and brought before him for judgment. The vicar laboured in his priestly calling to make his prisoner a rebel, and not succeeding, had hanged him on an elm-tree outside the west gate of the city. And now his own time was come. 'It was pity of him,' men thought, for he had fine gifts and a fine nature; but there was no help for it; Kingsmill's death lay at his door; a court-martial found it there; and he accepted his fate like a gentleman. A beam was run out from St Thomas's church tower, from which they swung him off into the air; and there Hooker saw him hanging in chains in 'his Popish apparel,' 'a holy-water bucket

²¹⁹HOLINSHEAD.

and sprinklers, a sacring bell, and a pair of beads' dangling about his body; and there he hung till the clothes rotted away,, and the carrion crows had pecked him into a skeleton; and down below in St Thomas's church order reigned, and a new vicar read the English liturgy.

The eastern counties had been the scene meanwhile of another insurrection scarcely less formidable.

On the 6th of July, four days after the commencement of the siege of Exeter, there was a gathering of the people for an annual festival at Wymondham, a few miles from Norwich. The crowd was large, and the men who were brought together found themselves possessed with one general feeling—a feeling of burning indignation at the un-English conduct of the gentlemen. The peasant, whose pigs, and cow, and poultry had been sold or had died, because the commons were gone where they had fed—the yeoman dispossessed of his farm—the farm servant out of employ, because where ten ploughs had turned the soil one shepherd now watched the grazing of the flocks—the artisan smarting under the famine prices which the change of culture had brought with it:—all these were united in suffering; while the gentlemen were doubling, trebling, quadrupling their incomes with their sheep-farms, and adorning their persons and their houses with splendour hitherto unknown.

The English commons were not a patient race. To them it was plain that the commonwealth was betrayed for the benefit of the few. The Protector, they knew, wished them well, but he could not right them for want of power. They must redress their own wrongs with their own hands. The word went out for a rising; Robert Ket, a Wymondham tanner, took the lead; and far and wide round Norwich, out in the country, and over the border in Suffolk, the peasants spread in busy swarms cutting down park palings, driving deer, filling ditches, and levelling banks and hedges. A central camp was formed on Mousehold Hill, on the north of Norwich, where Ket established his head-quarters; and gradually as many as sixteen thousand men collected about him in a camp of turf huts roofed with boughs. In the middle of the common stood a large oak-tree, where Ket sat daily to administer justice; and there, day after day, the offending country gentlemen were brought up for trial, charged with robbing the poor. The tribunal was not a bloody one. Those who were found guilty were imprisoned in the camp. Occasionally

some gentleman would be particularly obnoxious, and there would be a cry to hang him; but Ket allowed no murdering. About property he was not so scrupulous. Property acquired by enclosing the people's lands, in the code of these early communists, was theft, and ought to be confiscated. 'We,' their leaders proclaimed, 'the King's friends and deputies, do grant license to all men to provide and bring into the camp at Mousehold all manner of cattle and provision of victuals, in what place soever they may find the same, so that no violence or injury be done to any poor man, commanding all persons, as they tender the King's honour and Royal Majesty and the relief of the commonwealth, to be obedient to us the governors whose names ensue.' To this order Ket's signature and fifty others were attached; and in virtue of a warrant which was liberally construed, the country houses over the whole neighbourhood were entered. Not only were sheep, cows, and poultry driven off, but guns, swords, pikes, lances, bows, were taken possession of in the name of the people. A common stock was formed at Mousehold, where the spoil was distributed; and to make up for past wants, they provided themselves, in the way of diet, so abundantly that, in the time which the camp lasted, twenty thousand sheep were consumed there, with 'infinite beefs,' swans, hinds, ducks, capons, pigs, and venison.

Considering the wild character of the assemblage, the order observed was remarkable. Chaplains were appointed, and morning and evening services—here not objected to—were regularly read. On the oak-tree, which was called the Oak of Reformation, there was placed a pulpit, where the clergy of the neighbourhood came from time to time, and were permitted without obstruction to lecture the people upon submission. Among others, came Matthew Parker, afterwards Archbishop of Canterbury, who, 'mounting into the oak, advised them to leave off their enterprise,' or, if they refused, at all events not 'to waste their victuals,' nor 'to make the public good a pretext for private revenge.' The magistrates and other local authorities were powerless. In London, as we have seen, the Protector could not resolve on any distinct course of action. Of the Norfolk insurgents he was believed distinctly to approve, and even to have been in private communication with their leaders.²²⁰ For several weeks they were

²²⁰Before censuring Somerset for what he did not do, one ought to be able to judge what he was able to do; and before blaming his communications, one ought to know what they were. It is certain, however, that, when the insurrection was put down, he

unmolested. The city of Norwich was free to them to come and go. The mayor himself, partly by compulsion, had sat with Ket as joint assessor under the oak, and had been obeyed when he advised moderation. The ultimate intention, so far as the people had formed an intention, was to give a lesson to the gentlemen and to reform the local abuses. They had no thought, like the western rebels, of moving on London, or moving anywhere. They were in permanent session on Mousehold Hill, and there they seemed likely to remain as long as there were sheep left to be eaten and landowners to be punished.

At last, on the 31st of July, a herald appeared at the oak, bidding all the people, in the King's name, depart to their houses, and for all that they had done promising, without exception, a free and entire pardon. The people shouted, God save the King. They had lived a month at free quarters, they had given a lesson to the gentlemen, who had seen that the Government could not protect them; the pardon was a sanction to their enterprise, which might now fitly end. Undoubtedly, had the rising terminated thus, the Commons would have gained what they desired. Ket, however, stood upon the word. 'Pardon,' he said, was for offenders, and they were no offenders, but good servants of the commonwealth.

The herald replied that he was a traitor, and offered to arrest him. The people thought they were betrayed, and in the midst of wild cries and uproar the mayor drew off into the town, taking the herald with him, and the gates were closed. This was taken at once as a declaration of war. A single night served for the preparations, and the next morning Norwich was assaulted. So fierce and resolute the people

pardoned and dismissed many prisoners who were sent to London for trial. Ket himself was not punished till after the Duke's deposition from the Protectorate, and his leniency was approved and perhaps advised by Latimer. The following letter of Sir Anthony Aucher to Cecil, written on the 10th of September, shows the feeling with which the aristocratic party regarded both Latimer and Somerset:—

'Under pretence of simplicity there may rest much mischief, and so I fear there doth in these men called Commonwealths, and their adherents. To declare unto you the state of the gentlemen—I mean as well the greatest as the lowest—I assure you they are in such doubts that almost they dare touch none of them, not for that they are afraid of them, but for that some of them have been sent up and come away without punishment. And that Commonwealth, called Latimer, hath gotten the pardon of others, and so they speak manifestly, that I may well gather some of them to be in jealousy of my Lord's friendship; and, to be plain, think my Lord's Grace rather to will the decay of the gentlemen than otherwise. There was never none that ever spake as vilely as these called Commonwealths does.'—*MS. Domestic*, Edward VI. vol. viii. State Paper Office.

were, that boys and young lads pulled the arrows out of their flesh when wounded, and gave them to their own archers to return upon the citizens. After being repulsed again and again, a storming party at last made their way through the river over a weak spot in the wall, and the town was taken.

Regular armies under the circumstances of the now victorious rebels are not always to be restrained—an English mob was still able to be moderate. The Norwich citizens had not been oppressors of the poor, and plunder was neither permitted nor attempted. The guns and ammunition only were carried off to the camp. The herald attempted to address the people in the market-place, but they bade him begone. Such of the inhabitants as they suspected they detained as prisoners, and withdrew to their quarters.

By this time the council were moving. The Protector proposed at first to go himself into Norfolk;²²¹ but either he was distrusted by the others, or preferred to leave the odium of severe measures to them. Northampton was selected to lead; and it is to be noticed that no reliance could be placed on levies of troops raised in the ordinary way; Lord Sheffield, Lord Wentworth, Sir Anthony Denny, Sir Ralph Sadler, Sir Thomas Cornwallis, and other members of the privy council, went with him; and their force was composed of the personal retinues of the lords and gentlemen, with a company of Italians.

The Norwich citizens, by this time alarmed at the humour of their neighbours, received them eagerly. Northampton took the command of the town, and the gates were again closed. The next morning the fighting recommenced, the Italians being first engaged; and an Italian officer being taken prisoner, with the same national hatred of foreigners which appeared in Devonshire, he was carried up to Mousehold, stripped naked, and hung. The insurgents having the advantage, brought their cannon close to the walls. In the night, under cover of a heavy fire, they attempted an assault; and though they failed, and lost three hundred men, they fought so resolutely and desperately, that Northampton renewed the offer which had been sent by the herald of a free pardon.

But the blood of the Commons was now up for battle. They had formed larger views in the weakness of the Government. They replied that they had not taken up arms against the King, but they would save the commonwealth and the King from bad advisers,

²²¹*Cotton. MS. Vespasian, F. 3.*

and they would do it or die in the quarrel. Again the next day they stormed up to the walls. Struck down on all sides, they pressed dauntlessly on; a hundred and forty fell dead on the ramparts, and then Ket forced his way into Norwich, a second time victorious. Sheffield was killed, Cornwallis was taken, Northampton and his other companions fled for their lives. In the confusion some buildings were set on fire, and as a punishment to the inhabitants for having taken part against them, the rebels this time plundered the houses of some of the more wealthy citizens. But they repented of having discredited their cause. The property which had been taken was made up afterwards in bundles and flung contemptuously into the shops of the owners.

Parallel to this misfortune came the news that Henry of France in person had at last entered the Boullonnaise, and that there was a fresh rising in Yorkshire, to which Russell's success in Devonshire was the only counterpoise. It was characteristic of the administration of Somerset that, with half England in flames, and the other half disaffected, and now openly at war with the most powerful nation on the Continent, he was still meditating an invasion of Scotland. Of the Lanzknechts who had been brought over, some were in the west with Russell. The rest had been marched northwards under the command of the Earl of Warwick. But the defeat of Northampton made further perseverance in this direction impossible. Scotland was at last relinquished, left to itself or to France. Orders were sent to Rutland, who was at Berwick, to cross the Tweed with such force as he had with him, to level the works at Haddington, and, leaving there the bodies of thousands of men, and the hundreds of thousands of pounds which had been spent upon the fortifications, to bring off the garrison. Warwick's destination was changed to Norwich, where he was ordered to proceed without delay. The German troops were to follow him by forced marches.

Dudley, Earl of Warwick, was now passing into prominence; he was the son of Edward Dudley, who had been the instrument of the oppressions of Henry VII., who, on the accession of Henry VIII., had taken part in a treasonable attempt to secure the person of the young King, and had died on the scaffold. The faults of the father had not been visited on the son. John Dudley was employed early in the public service. He had distinguished himself as a soldier, a diplomatist, and as an admiral. As Lord Lisle, a title given to him by Henry, he had

commanded the English fleet at Spithead at the time of the French invasion of 1545, and he was second in command under Somerset at Musselburgh. Perfectly free from vague enthusiasm, in his faults and in his virtues he was alike distinguished from the Protector. Shrewd, silent, cunning, and plausible, he had avoided open collision with the uncle of the King; he had been employed on the northern Border, where he had done his own work skilfully; and if he had opposed Somerset's imprudent schemes, he had submitted, like the rest, as long as submission was possible. He had the art of gaining influence by affecting to disclaim a desire for it; and in his letters, of which many remain in the State Paper Office, there is a tone of studied moderation, a seeming disinterestedness, a thoughtful anxiety for others. With something of the reality, something of the affectation of high qualities, with great personal courage, and a coolness which never allowed him to be off his guard, he had a character well fitted to impose on others, because, first of all, it is likely that he had imposed upon himself.

The news of the change in his destination, and of the causes of it, reached him about the 10th of August at Warwick. He wrote immediately to Cecil to entreat that Northampton might remain in the chief command. 'Lord Northampton,' he said, 'by misfortune hath received discomfort enough, and haply this might give him occasion to think himself utterly discredited, and so for ever discourage him. I shall be as glad, for my part, to join with him, yea, and with all my heart to serve under him, as I would be to have the whole authority myself. I would wish that no man, for one mischance or evil hap, to which all be subject, should be utterly abject.'²²² Without waiting for an answer, and leaving the Germans' to follow, he hastened to Cambridge, whither Northampton had retired, taking with him his sons Lord Ambrose and Lord Robert, Sir Thomas Palmer, Sir Marmaduke Constable, and a few other gentlemen. Rallying the remains of Northampton's force, he made at once for Norfolk. He reached Wymondham on the 22nd of August; on the 23rd he was before the gates of Norwich; and for the third time Norroy Herald carried in the offer of a free pardon, with an intimation that it was made for the last time.

Ket had at length learnt some degree of prudence, and was inclined to be satisfied with his success. He allowed the herald to read

²²²Warwick to Cecil: TYTLER, vol. i. p. 193.

the proclamation in all parts of the town and camp, he himself standing at his side; and he had made up his mind to return with him and have an interview with Warwick, when an unlucky urchin who was present flung himself into an English attitude of impertinence, 'with words as unseemly as his gesture was filthy.'²²³ Some one, perhaps a servant of the herald, levelled his harquebuse, and shot 'that ungracious boy through the body.' A cut with a whip might have been endured or approved; at the needless murder shouts arose on all sides of treachery. In vain Ket attempted to appease the exasperation. He could not pacify the people, and he would not leave them. The herald retired from the city alone, and the chance of a bloodless termination of the rising was at an end.

The rebels, after the second capture of Norwich, had retained possession of it. Warwick instantly advanced. The gates were blown open, and he forced his way into the market-place, where sixty men, who were taken prisoners, were hanged on the spot. The insurgents, however, on their side, were not idle. A number of them, making the circuit of the walls, intercepted the ammunition waggons in the rear, and carried them off to Mousehold. The cannon were in front, and were placed at the north gate; but, with little or no powder, they were almost useless; and another party of the insurgents, with picked marksmen among them, charged up to the batteries, swept them clear of men by a wellaimed shot from a culverin, and carried off the guns in triumph.

Another storm of the city now seemed imminent. The force that Warwick had with him was the same which had been already defeated; a panic spread among them, and Warwick was urged to abandon the town—to retreat, and wait for reinforcements. But he knew that two days, at the furthest, would now bring them, and he would take the chances of the interval. Death, he said, was better than dishonour. He would not leave Norwich till he had either put down the rebellion or lost his life. But so imminent appeared the peril at that moment, that he and the other knights and gentlemen drew their swords and kissed each other's blades, 'according to ancient custom used among men of war in times of great danger.'²²⁴

Happily for Warwick, the rebels did not instantly follow up their success, and in losing the moment they lost all. On the 25th the Ger-

²²³HOLINSHED.

²²⁴Holinshed, writing from the report of eye-witnesses.

mans came up, and he was safe. The next morning, by a side movement, he cut off the camp from their provisions. They were left 'with but water to drink, and fain to eat their meat without bread;'²²⁵ and on the 27th the whole body, perhaps 15,000 strong, broke up from Mousehold, set fire to their cabins, and, covered by the smoke, came down from their high ground into Duffindale.²²⁶ They had made up their minds to fight a decisive action, and they chose a ground where all advantages of irregular levies against regular troops were lost.

On the morning of the 27th they were drawn up in open fields where Warwick could attack at his pleasure. Before the first shot was fired he sent Sir Thomas Palmer forward, not now to offer a general pardon, for he saw that success was in his hand, but excepting only one or two persons. The message was received with a shout of refusal. The rebels opened the action with a round from their cannon which struck down the royal standard; but never for a moment had they a chance of victory; the sustained fire of the Lanzknechts threw their dense and unorganized masses into rapid confusion. As they wavered, Warwick's horse were in the midst of them, and the fields were covered instantly with a scattered and flying crowd. Ket rode for his life, and for the time escaped; the rest fulfilled the misleading prophecy, and for three miles strewn Duffindale with their bodies: 3500 were cut down; one rarely hears of 'wounded,' on these occasions, except among the victors.²²⁷ A few only stood their ground; and, seeing that flight was death, and that death was the worst they had to fear, determined to sell their lives dearly. They made a barricade of carts and waggons, and with some heavy guns in the midst of them, prepared to fight to the last. Warwick respected their courage, and offered them a pardon. They had an impression he had brought

²²⁵Council to Wotton: *MS. French*, Edward VI. bundle 8.

²²⁶Relying, it was said, on a fantastic prophecy—

The country gruffs, Hob, Dick, and Hick, With clubs and clouted shoon, Shall fill up Duffindale with blood Of slaughtered bodies soon.

The extent to which wild 'skimble skamble' prophecies had extended through England, and really affected men's conduct, forms at once one of the most peculiar features of the time, and one of the greatest difficulties in understanding it. In Wycherley's *Confession*, given above, it was said that Norfolk was rich in prophets, and several were known to be in Ket's camp.

²²⁷The council, in a letter to Doctor Wotton, at Paris, gives the number of killed at 'about a thousand.'—*French MSS.* bundle 8, State Paper Office. Holinshed, however, professed to have taken pains to inform himself exactly, and the council would, perhaps, make the least of an unfortunate business.

down a barrel full of ropes and halters, and that they were to be made over to the mercies of the gentlemen. They said they would submit if their lives were really to be spared; but they would 'rather die like men than be strangled at the pleasure of their enemies.' Warwick declined to parley. He brought up the Germans with levelled matchlocks, and they threw down their arms and surrendered. In this last party were some of the ringleaders of the movement. He was urged to make an example of them; but he insisted that he must keep his promise. Either from policy or from good feeling he was disinclined to severity. 'Pitying their case,' he said, 'that measure must be used in all things;' and when the fighting was over, the executions, considering the times and the provocation, were not numerous. Ket and his brother William were soon after taken and sent to London to be examined by the council. A gunner, two of the prophets, and six more were hanged on the Oak of Reformation; and from Sir Anthony Aucher's letter,²²⁸ it appears that there were other prisoners whom the Protector released. In the autumn (but not till the change, which I shall presently describe, had taken place in the Government) the Kets were returned to their own county for punishment. Robert was hung in chains on Norwich Castle; William on the church tower at Wymondham. So ended the Norfolk rebellion, remarkable among other things for the order which was observed among the people during the seven weeks of lawlessness.

The rising in Yorkshire was at an end also, having from the first been of a less serious kind. There, too, a prophecy had gone abroad 'That there should no king reign in England; that the noblemen and gentlemen should be destroyed; the realm to be ruled by four governors, to be elected by the commons holding a Parliament; the commotion to begin at the south and the north seas.'²²⁹

The south having risen, the north followed. At one time as many as three thousand men were in arms, and three or four gentlemen were murdered. But the force of the county was able and willing to keep the peace. The rioters were put down, and the leaders disposed of.

Thus with cost and difficulty internal peace was restored. But a success which involved the destruction of ten thousand brave Englishmen by the arms of foreigners, added little either to the credit or the popularity of the Government, while it had consumed the whole sum

²²⁸Supra.

²²⁹HOLINSHED.

which had been voted by Parliament beyond the private advances of the council, and an unknown sum which was extracted in the course of the summer from the mint.²³⁰ Abroad it was even more difficult to repair the consequences of Somerset's mistakes.

It has been mentioned that, at the beginning of the summer, Paget was sent to Flanders to make proposals to the Emperor for an alliance against France. Had the Protector been content to do one thing at a time—had he forbore from throwing England into confusion by precipitate changes in religion, it was probable that he might have succeeded, and France might have been forced to leave Boulogne, and restore the Queen of FALL OF THE PROTECTOR.

Scots. In Germany the Interim was not making progress. Duke Maurice, on whom Charles most depended, was encouraging his subjects in resistance;²³¹ while the Catholics were equally unmanageable, threatening excommunication, tyrannizing wherever they were strong enough, and clamouring to Charles to withdraw the few concessions which he had made.²³² In Italy the Pope, supported by France, still maintained the seceders to Bologna. Cardinal del Monte declared, and the French ambassadors echoed, that two-thirds of a council, with the consent of the Papal legate, might assuredly alter their place of session. If the Emperor was to dictate on a point of form, he would dictate next on a point of doctrine. The Pope took the same view. The Spanish bishops were remaining patiently at Trent. Paul imperiously commanded them to relinquish their schismatic and disobedient attitude, and rejoin their brethren.

But the Spanish bishops obeyed a stronger master. They received the message with becoming reverence. They regretted that they were obliged to entreat his Holiness to accept their excuses. His Holiness's

²³⁰Notices remain in the *Privy Council Register* of a thousand pounds to be spent in one place, eight thousand in another, and so on, of 'moneys growing of the mint.'

²³¹Litteræ Wittenbergæ allatæ sunt significantes conventum habitura omnium subditorum Mauriti et Augusti Ducum, in quo conventu post habitam deliberationem ipsum Mauritium concionatoribus accitis, ordinibus omnibus præsentibus denunciasset ut porro pergerent in suis ministeriis, populo veritatem ut hactenus prædicare, et sacramenta rite administrare; nec quicquam intermitterent quod ad veram pietatem facere et ad suum officium pertinere existiment. Sibi curæ futurum ut ab omni violentiâ tuti sint.—Metu populi a se defecturi ad religionem se componit et adsimulat, cum experiatur omnes abhorre ab Interim recipiendo.—Mont to the Protector, June 15: *MS. Germany*, Edward VI. bundle 1.

²³²Episcopi ubique locorum ubi potentiâ superant omnem pietatem exterminant. Multas turbas concitant et dira interminantur.—*Ibid.*

summons to the council had invited them not to Bologna, but to Trent, as the spot the most opportune, on many grounds, for the settlement of religion. They were waiting, and would wait with meekness, till their brethren should return to them.²³³ The Pope was obstinate. The bishops were obstinate. Paul now desired to have the council at Rome, and the sittings at Bologna came to an end; 'but the evil-omened phantom at Trent continued to draw to it the timid and anxious eyes of Christendom, like a fiery portent in the sky.'²³⁴ Political complications, at the same time, combined more and more to unite the French and Papal interests against the Imperial. Gonzaga continued to hold Piacenza. Octavio Farnese, Duke of Parma, and son-in-law of the Emperor, in the hope, perhaps, of recovering his patrimony, was falling off from the Pope, who was his grandfather, and attaching his fortunes to Charles. The Pope, indignant at his disobedience, himself sent troops into Parma, and took possession of it. Farnese failing in an attempt to drive them out, applied to Gonzaga. Gonzaga told him that Parma should be his if he would hold it as a fief of the Empire, and Farnese inclined to consent.

The occupation of the duchy by an Imperial force would be accepted by France, it was well known, as a declaration of war. The Emperor had made up his mind, therefore, to accept the quarrel, and the advances of England were likely to be heard with favour. Paget was instructed to 'decypher the Emperour,' make out his intentions, and do his best to help the war forward. The almost forgotten proposal to give him Mary for a wife might be renewed; or else Mary, if he preferred it, might marry the Prince of Portugal, and in either case Boulogne might be made over with her as a marriage portion. At any rate, Boulogne might be comprehended as part of the English dominions in the treaty already existing, which bound England and the Emperor mutually to assist each other in case of invasion.²³⁵

At the outset of his embassy, Paget reported favourable progress. The Emperor, he said, must very soon be driven to war, and, for a corresponding advantage, might consent to take charge of Boulogne. In fact, he was sanguine of obtaining Charles's support on favourable terms when the insurrection in England began. Then at once all was changed. The Emperor, who, under no circumstances, would have

²³³PALLAVICINO.

²³⁴Ibid.

²³⁵Paget to the Protector, June 30: *MS. Germany*, bundle 1, State Paper Office.

connected himself with the English Government except for immediate convenience, saw at once that he would gain no strength by the alliance, and would only embarrass himself. In vain Paget was directed to make the least of the disturbances.²³⁶ In vain he was told to affect indifference about Boulogne, and to hint that it might be convenient to relinquish it August. to France. So accomplished a diplomatist as Paget could only despise the tricks which he was ordered to practice;²³⁷ and the Emperor, too well informed of the state of England to be the dupe of a shallow artifice, broke off the negotiations abruptly.²³⁸

After so grave a failure, the step which prudence would have dictated would have been to do, in fact, what Paget had been told insincerely to suggest; that is, to come to terms with France, and give up Boulogne. Three years were already gone of the eight for which England was to keep it, and France would have acquiesced in some moderately favourable arrangement with respect to the debts for which it was held as security. If the Protector could not bring himself to part with it before the time, then, at least, he was bound to take care that it was adequately garrisoned. But he had allowed France to see that he considered himself as little bound to the letter of the treaty as themselves. Contrary to express stipulations, he had raised new forts outside the town, as well as at the mouth of the harbour. The neglect of engagements by the Court of Paris may reasonably have exempted the English from the strict observance of them; but when the Protector had built his forts, he left them half-garrisoned and half-supplied, and to the repeated entreaties of the commanders he had returned only petulant and angry refusals.²³⁹ Although warned of the intentions of the French Government, he left events to their nat-

²³⁶Council to Paget, July 4: MS. Ibid.

²³⁷Paget to Petre, July 8: MS. Ibid.

²³⁸Alas, Mr Secretary, we must not think that heaven is here, but that we live in a world. It is a wonderful matter to hear what brutes run abroad here of your things at home, which killeth my heart to hear. And I wot not what to say to them, because I know them to be true. And they be so well known here in every man's mouth, as you know them at the Court, and I fear me better.'—Paget to Petre: MS. *Germany*, bundle 1, State Paper Office.

²³⁹Also, after the report and declarations of the defaults and lacks reported to you by such as did survey Boulogne and the pieces there, you would never amend the same defaults. You would not suffer Newhaven and Blackness (two castles behind Boulogne) to be furnished with men and victuals, although you were advertised of the defaults therein by the captains of the same pieces and others, and were thereto advertised by the King's council.'—Articles against the Protector, printed by HOLIN-

ural course of disaster, and he had now to face the consequences of his complicated errors.

On the 20th of July the English ambassador had an interview with Henry to suggest the appointment of commissioners to settle disputes. 'The French King at that time did not only assent to the naming of the said commissioners, but further said he would continue his amity and friendship with the King's Majesty;' and as for war, he said, '*par la foye de gentilhomme* [on the honour of a gentleman], I will make none, but I will first give my good brother warning by word of mouth.'²⁴⁰ Within a day or two of that interview, the resolution was taken to use the opportunity of the English rebellions. French troops at the very time were driving cattle on the Boulogne frontier, and on threat of reprisals, answered scornfully that 'for every bullock or sheep taken, wheresoever it was, they would take again of Englishmen twenty; and that for every man slain they would slay forty'—'an answer,' the English council exclaimed, 'of a tyrant or Turk, and not of a Christian prince.'²⁴¹ A fleet suddenly left the Seine at the beginning of August, and made a dash at Guernsey and Jersey. According to the French accounts, they were merely in pursuit of English privateers, which they encountered and half destroyed;²⁴² according to the English, they intended to surprise the islands, and met a serious defeat there.²⁴³ Following up his first blow, Henry informed the ambassadors that he intended to be his own commissioner. He went down to Mottreul, where troops had been silently collected, and passed in person into the Boulonnaise. Besides Boulogne proper, the English had now five detached works in the adjoining district; one at Bullenberg, on the hill at the back of the town; another at Ambletue, where there was a tidal harbour; a third called Newhaven, at the mouth of the Boulogne river; a fourth, Blackness, a little inland; and the fifth and most important, on the high ground

SHED. And compare a letter of Paget to the Protector, dated July 7: *MS. Domestic*, Edward VI. vol. viii. State Paper Office.

²⁴⁰The Council to Sir Philip Hoby; *MS. Germany*, bundle 1, State Paper Office.

²⁴¹The Council to Wotton: *MS. France*, bundle 8, State Paper Office.

²⁴²DE THOU, lib. vi.

²⁴³The French King, to take the King's Majesty unprovided, suddenly set forth an army to the sea, and with the same attempted to surprise the isles of Guernsey and Jersey, and such of his Majesty's ships as were there, and were beaten from them with small honour and no small loss of his men.'—Council to Wotton: *MS. France*, bundle 8, State Paper Office.

between Boulogne and Ambletue, called the Almain camp. This last was the key to the other four. The governor and the captain of the artillery had been bribed, and on Henry's summons, surrendered on the spot. Ambletue, Newhaven, and Blackness fell one after the other in rapid succession. Bullenberg was thought by its commander, Sir Henry Palmer, ²⁴⁴ to be untenable when the rest were gone. He applied to the Governor of Boulogne, Lord Clinton, for leave to abandon it, and with Clinton's consent levelled the walls, blew up the castle, and withdrew with his men and guns into the town; ²⁴⁵ while Henry approached at leisure to Boulogne itself, to revenge, as was supposed, by an immediate assault, his night defeat when Dauphin, by Lord Poynings. By this time, however, the season was growing late; the garrison was strengthened by the troops brought in from Bullenberg, and the vast batteries raised by Henry VIII. would perhaps enable Clinton to protract his defence into the winter. The capture of the forts gave the French the command of the country. No supplies of any kind could be introduced from England unless escorted by ships of war; and contenting himself with leaving galleys in Ambletue, and garrisons on all sides, which made the blockade complete, the French King withdrew for a few months, well assured that, with the approaching spring, Boulogne must inevitably be his. Bullenberg cut the garrison off from the Boulonnaise. Their cattle were gone. They had neither wood nor turf for fuel, nor means of obtaining it. The entire population of the town depended on England for its daily supplies, which the Ambletue galleys were ever on the watch to seize. The English council could not disguise from themselves the nature of the situation. ²⁴⁶ On their part they could only reply with a formal declaration of war. Their spirit had not sunk to a tacit endurance of invasion under the name of peace; they recalled their ambassadors; and, for 'their late manifold injuries, and also for that, contrary to hon-

²⁴⁴*Calais MSS.* State Paper Office.

²⁴⁵For which Sir Henry Palmer was degraded and Clinton received a reprimand. The home Government 'could not but marvel that they would assent, by their common agreement in council, to the abandoning and raising of the King's Majesty's fort of Bullenberg, upon the vague fear and faint-hearted hearsay of the captains and others of that fort, and without any apparent or imminent peril. They could not but be sorry to understand that Englishmen such as have had some experience of the wars, should be so faint-hearted that they durst not look their enemies in the face, but would, after such dishonourable sort, both forget their duties and give over his Majesty's pieces.'—The Council to Clinton: *Calais MSS.* State Paper Office.

²⁴⁶The Council to Sir Philip Hoby: *MS. Germany*, bundle 1, State Paper Office.

our, faith, and godliness, the French King had taken away the young Scottish Queen, the King's Majesty's spouse, by which marriage the realms of England and Scotland should have been united in perpetual peace,' 'they did intimate and declare him and all his subjects to be enemies of the King's Majesty of England.'

Such was the result of an administration of something less than three years by the Duke of Somerset. He had found the country at peace, recruiting itself after a long and exhausting war. The struggle which he had reopened had cost, with the commotions of the summer, almost a million and a half, when the regular revenue was but 300,000*l.*, and of that sum a third was wasted on the expenses of the household. The confiscated church lands, intended to have been sold for public purposes, had been made away with, and the exchequer had been supplied by loans at interest of thirteen and fourteen per cent., and by a steadily maintained drain upon the currency. In return for the outlay, the Protector had to show Scotland utterly lost, the Imperial alliance trifled away, the people at home mutinous, a rebellion extinguished by foreign mercenaries in which ten thousand lives had been lost, the French conquests held by Henry VIII. as a guarantee for a repudiated debt on the point of being wrested from his hands, and of the two million crowns due for them, but a small fraction likely now to be forthcoming; finally, formal war, with its coming obligations and uncertainties.

The blame was not wholly his. The Protector's power was probably less than it seemed to be, and the ill-will and perhaps the rival schemes of others may have thwarted projects in themselves feasible. Yet it may be doubted whether, if he had been wholly free to pursue his own way, his blunders would not have been even more considerable; and by contemporary statesmen delicate allowances were not likely to be made for a ruler who had grasped at an authority which had not been intended for him, and had obtained it under conditions which he had violated. His intentions had been good, but there were so many of them, that he was betrayed by their very number. He was popular with the multitude, for he was the defender of the poor against the rich; but the magnificent weakness of his character had aimed at achievements beyond his ability. He had attempted the work of a giant with the strength of a woman, and in his failures he was passionate and unmanageable; while the princely name and the princely splendour which he affected, the vast fortune which he

had amassed amidst the ruin of the national finances, and the palace which was rising before the eyes of the world amidst the national defeats and misfortunes, combined to embitter the irritation with which the council regarded him.

In the presence, therefore, of the fruits of Somerset's bad management, it is idle to look for the causes of his deposition from power in private intrigue or personal ambition. Both intrigue and ambition there may have been; but, assuredly, the remaining executors of the will of Henry VIII. would have been as negligent as Somerset was incapable, if they had allowed the interests of the nation to remain any longer in his hands. He had been sworn to act in no matter of importance without their advice and consent; he had acted alone—he had not sought their advice, and he would not listen to their remonstrances, and the consequences were before them. Warwick, Southampton, Russell, Herbert, St John, Arundel, Paget, might possibly govern no better, but they had not failed as yet, and Somerset had failed. Their advice, if taken in time, would have saved Boulogne and perhaps prevented the rebellion; and whether others were fit or unfit, the existing state of England was a fatal testimony of the incapacity of the Protector. The council therefore resolved to interfere. The motives which determined them they expressed for themselves in a memorandum which they thought well to lay before the Emperor.

'The late King,' they said, 'did constitute and appoint sixteen of his Highness's councillors, whom he especially trusted, his executors, and willed that those sixteen, using the advice of certain others appointed to assist them, should not only have the government of the King's Majesty's person during his tender years, but also the rule of the whole realm and the managing of all his Majesty's weighty affairs during the same time; which will, after the death of our said late master, was accepted and sworn unto by all the executors. The Duke of Somerset nevertheless, then Earl of Hertford, not contented with the place of Councillor whereunto he was called, sought by all the ways and means he could devise to rule, and in the end, for that he was one of the executors, uncle also to the King's Majesty by the mother's side, by much labour and such other means as he used, obtained to have the highest place in council,²⁴⁷ and to have the title

²⁴⁷ In a rough draft of this memorandum among the council records, Somerset's election to the Protectorate is ascribed less absolutely to his own exertions. 'The

and name of Governor of his Majesty's most royal person and Protector of his Highness's realm and dominions—with this condition notwithstanding, that he should do nothing touching the state of the affairs of his Highness without the advice of the rest of the council or the more part of them, which to perform he faithfully promised and swore in open council. And yet nevertheless he had been never so little while in that room, but, contrary to his said promise, he began to do things of most weight and importance, yea, all things in effect, by himself, without calling any of the council thereunto. And if for manners' sake he called any man, all was one, for he would order the matter as pleased himself, refusing to hear any man's reason but his own; and in short time became so haught and arrogant, that he stuck not in open council to taunt such of us as frankly spake their opinions in matters, so far beyond the limits of reason as is not to be declared. Which thing perceived, we did both all together openly, and every one of us or the more part of us apart, oftentimes gently exhort him to remember his promise; but all hath not prevailed. The success of his government hath been such as there is no true-hearted Englishmen that lamenteth not in his heart that ever he bare rule in the realm. As we have devised with him for the preservation of his Majesty's person and honour, so hath he, by continuing in his wilfulness and insolency, wrought the contrary, setting forth such proclamations and devices as whereby the commons of the realm have grown to such a liberty and boldness that they stuck not to rebel and rise in sundry places of the realm in great numbers, with such uproars and tumults, as not only the King's Majesty was in great danger, but also the realm brought to great trouble and hindrance: of which tumults, as the said Duke was indeed the very original and beginning, so did he mind to use the like again, entertaining the most notablest captains and chiefest ringleaders of the said commotions with great gifts and rewards, and some also with annual livings,²⁴⁸—leaving in the mean time the King's Majesty's poor soldiers unpaid, and his Highness's

Lords considering that it should be expedient to have one, as it were, a mouth for the rest, to whom all such as had to do with the whole body of the council might resort, after some consultation, chose by their common agreement the Duke of Somerset.'—*MS. Domestic*, Edward VI. vol. ix. State Paper Office.

²⁴⁸I have not been able to obtain any clear details justifying these charges, but in the State correspondence of the month following the insurrection, there are repeated complaints of Somerset's supposed favour for the insurgents; and an accusation so specific I consider most likely to be true.

pieces so unfurnished of men, munition, and money, as thereby hath not only ensued the loss of some of them already, but also Boulogne by that means, and the members about, remaineth at this present in very great danger.

'As for his government at home in other affairs, it hath been too ill to rehearse, for there fell no office of the King's Majesty's, but either he sold it for money, or else he bestowed the same upon one of his own servants, or else upon some other such as were of his faction, displacing sundry honest and grave ministers and officers of his Majesty's, putting in others such as he liked in their rooms; and, finally, so perverted the whole state of the realm as the laws and justice could have no place, being all matters ordered and ended by letters and commissions from himself contrary to our laws and against all order. And albeit by his occasion these troubles among us have been great, yet ceased he not in the midst of trouble and misery to build for himself in four or five places most sumptuously without any respect or regard in the world, in such sort that, at length, when we saw that counsel could not prevail, and that his pride grew so fast, we thought we could suffer no longer, unless we would in effect consent with him in his naughty doings.'²⁴⁹

If allowance be made for passionate colouring and the tendency inevitable at such a time to visit on the leaders of a party the misdoings of dependents, this statement must be accepted as a not unfair account of the truth. Too honourable himself to stoop to corruption, the Duke of Somerset was profuse in his habits, and not too curious, probably, as to the conduct of the profligate adventurers who surrounded and flattered him, and in supplying his necessities took tenfold advantage to themselves.

At first the council had no intention of using violence. They intended to remonstrate in resolute language, 'and if they could by any means have brought him to reason, to avoid trouble and slander.'²⁵⁰ It was the first week in October—Somerset was at Hampton Court with the King, having with him Cranmer, Paget, Cecil, Petre, Sir Thomas Smith, and Sir John Thynne. Lord Russell and Sir William Herbert were still in the west with the army. In London, of the original executors, were Warwick, St John, Southampton, Sir Edward North, and the two Wottons; with them were Rich, Lord Chancellor, Sir Richard

²⁴⁹ *MS. Germany*, Edward VI. bundle 1, State Paper Office.

²⁵⁰ *Ibid.*

Southwell, Sir Edward Peckham, and Lord Arundel: members all of them of the council, which had been also appointed by the will of the late King.

The lords in London, as Warwick and the rest were called, had dined twice together for a private conference,²⁵¹ when the Protector learnt from some quarter that there was a design of interfering with him, and, with injudicious irritation, he resolved to treat them as traitors. The young King was persuaded that there was a conspiracy, nominally against the Protector, but really against himself.²⁵² A paper was written,²⁵³ printed, and scattered about the streets of London, in which the privy council was described as 'but late from the dunghill,' 'a sort of them more meet to keep swine than to occupy the offices which they do occupy,' conspiring to the impoverishing and undoing of all the commons in the realm; 'they had murdered the King's subjects,' and fearing that the Protector would compel a redress of the injuries under which the people suffered, had conspired to kill him first and then the King, and 'to plant again the doctrine of the devil and Antichrist of Home.'²⁵⁴ Somerset himself sent his son Lord Edward Seymour with letters in the King's name to Russell and Herbert, entreating them to come to the rescue of the Crown from a conspiracy of villains with all the force which they could raise.²⁵⁵ Inflammatory handbills were dispersed through the adjoining towns and villages calling on the peasantry to take arms for the Protector—the people's friend;²⁵⁶ a commission was issued under the King's seal requiring all liege subjects to rise, 'and repair with harness and

²⁵¹Draft of the Memorandum: *MS. Domestic*, vol. ix. State Paper Office.

²⁵²Directions to the King for a Letter to be addressed to the Lords: TYTLER, vol. i. p. 207.

²⁵³By some unknown hand. The signature is Henry A.: *Ibid.* p. 208.

²⁵⁴The writer seemed to fear that the authorities of the city would join with the lords. 'As for London, called Troy untrue,' the paper concludes, 'Merlin saith that 23 aldermen of hers shall lose their heads in one day, which God grant to be shortly.'

²⁵⁵*MS. Domestic*, Edward VI. vol. ix.

²⁵⁶'Good people, in the name of God and King Edward, let us rise with all our power to defend him and the Lord Protector against certain lords and gentlemen and chief masters, who would depose the Lord Protector, and so endanger the King's royal person, because we, the poor commons, being injured by the extortions of gentlemen, had our pardon this year by the mercy of the King and the goodness of the Lord Protector, for whom let us fight, for he loveth all just and true gentlemen which do no extortion, and also the poor commonwealth of England.'—TYTLER, vol. i. p. 210.

weapons to Hampton Court to defend the Crown.²⁵⁷ The corporation of London were commanded to arm and despatch a thousand men, and in a private letter Somerset ordered the lieutenant of the Tower to admit no member of the council within the gates.

These extraordinary measures were all taken in the first few days in October, before the lords had proceeded to any open act even of remonstrance. On the morning of the 6th, when the handbills, letters, and commissions were already sent out, the council, knowing nothing of any of them, met at Ely-place in Holborn, and after a final reconsideration of the state of the country, were mounting their horses to go to Hampton Court 'in a friendly manner, with their ordinary servants' only,²⁵⁸ when Petre and some other gentlemen rode up to the gates to inquire, in the Protector's name, for what purpose they were breaking the peace of the country, and to warn them that, if they went to the Court, they would be arrested as traitors.²⁵⁹ The same morning five hundred of the Duke's men had been furnished with harness from the royal armoury, besides the usual guard, and the palace gates were barricaded.

Petre, soon satisfied that the Protector was wrong and the lords were right, did not return, but remained and joined them. The rupture was made known to the world the same day by the issue of the Duke's commission; and Shrewsbury, Sussex, Wentworth, Mr Justice Montague, and Sir Ralph Sadler, who were in London, took their

²⁵⁷MS. *Domestic*, vol. ix. State Paper Office. At the bottom of the page is written, 'This is the true copy of the King's Majesty's commission, signed with his Majesty's seal and hand, and with the Lord Protector's Grace's sign.' The date is October 5. Mr Tytler has printed the Commission from another copy, dated October 1, which is a mistake.

²⁵⁸*Privy Council Register*, Edward VI. MS. The Protector's party said that they were going armed to seize his person.

²⁵⁹There is some difficulty about the terms of Petre's message. Part, perhaps, was his own information; part the message he was entrusted to give. Edward, in his *Journal*, says that Sir William Petre 'was sent to know for what cause the lords had gathered their powers together, and if they meant to talk with the Protector, they should come in a peaceable manner.' The Protector, in a letter written the following day, said that he had 'sent Mr Petre with such a message, as whereby might have ensued the surety of his Majesty's person, the preservation of his realm and subjects.' The *Privy Council Register* says: 'As they were ready to have mounted upon their horses they were certainly advertised, as well by credible reports of divers gentlemen as by letters subscribed by the hand of the said Lord Protector, that he, having some intelligence of their lordships' intents, had suddenly raised a power of the commons to the intent, if their lordships had come, to have destroyed them.'

places by the side of the council in support of the remonstrance. The Lord Mayor was summoned, and charged on his allegiance to send no men to Hampton Court. Circulars were despatched into the neighbouring counties, explaining the real circumstances, and charging the magistrates to keep the peace. The lieutenant of the Tower was required to surrender his charge, and complied without resistance. So passed the day in London.

At Hampton Court the Protector waited anxiously for his messenger. His proclamation had brought together a vast crowd of people, but as much, it seemed, from curiosity, as from any warmer feeling towards himself. The outer quadrangle was thronged with armed men, and as evening fell, by the glare of torchlight, Edward was brought down across the court and made to say to them—'Good people, I pray you be good to us and to our uncle.' The Protector himself then addressed them wildly, passionately, hysterically. 'He would not fall alone,' he said. 'If he was destroyed, the King would be destroyed kingdom, commonwealth, all would perish together.'²⁶⁰ The people listened, but he failed to rouse them to enthusiasm chiefly, perhaps, because he was saying what was not true. His words fell dead; men might feel for him, but they would not rise into insurrection for him. Petre, meanwhile, did not come back, and friends brought in disheartening news from London. After measures so rash as those which he had ventured, Hampton Court seemed dangerous; and at once, in the darkness, he called to horse, to be off in the dead of the night to Windsor. Edward was suffering from a cough, but there was no remedy, he must follow his uncle; and there was haste and scurry, armour clanking, servants rushing to and fro, the flashing of lights, and the tramp of horses; in the midst of the confusion, the Duchess of Somerset, fearing how matters might go, gathered up her jewels, and with some few clothes violently crammed together, escaped across the garden to a barge, and dropped down the stream to Kew.

The Court reached Windsor before dawn in the autumn morning. The castle was unprovided with ordinary necessities, and the King's weak chest suffered heavily from the wild careless ride.²⁶¹ The Archbishop, who would not leave Edward, was with the party; and Paget, the truest friend that Somerset had, who had so often warned him

²⁶⁰Papers relating to the Protector: *MS. Domestic*, Edward VI. vol. ix. State Paper Office.

²⁶¹Paget to the Council: *MS. Domestic*, vol. ix. State Paper Office.

in vain, remained now at his side, to watch over him and prevent his rashness from compromising him fatally.

The council, hearing in the morning of this last unadvised movement, despatched waggons to the castle with supplies of food and furniture,²⁶² and at the same time wrote to the King to say that they had received Sir William Petre's message, that they were sorry he should doubt their fidelity, and that their only desire was for an improvement in the administration. They had endeavoured again and again by gentle means to check the extravagances of the Duke of Somerset; and their supposed conspiracy was no more than a resolution to discharge the duty which his father's will had laid upon them, and to remonstrate more effectually. By the same messenger they sent a letter to Paget and Cranmer, protesting against the attitude which the Protector had assumed towards them, as likely to lead to dangerous consequences. They had intended nothing but to give advice, and, if necessary, to press their advice; and if he would now dismiss the force which he had called out, they were prepared to settle their differences with him quietly. Both Sir William Paget and the Archbishop, however, must be aware of the danger of the course on which the Protector seemed to have entered, and they desired them as they valued their duties, to use their influence for the safety of the commonwealth.²⁶³ At the same time they sent a courier to Herbert and Russell with explanations, and took fresh steps to prevent Somerset's proclamation for raising the country from taking effect.

The yeomen of the guard were marched to Windsor, 'the lords fearing the rage of the people, so little quieted;'²⁶⁴ and the Protector had nothing to fear, could he bring himself to relinquish the power which he had misused. The distracted state of mind into which he had fallen is curiously indicated in the letters and manifestoes which he continued to issue, and which are full of erasures, corrections, and after-thoughts.²⁶⁵ Possibly he might have acted more wisely, could he but have shaken off the ill-omened crew whose fortunes would change with his own. Letters between himself and the lords crossed and re-crossed on the road. On the same 7th of October, before the letter of the council to the King was brought in, the Duke had written to them

²⁶²*Council Register MS.*

²⁶³The Council to the Lords at Windsor: ELLIS, 1st series, vol. ii.

²⁶⁴KING EDWARD'S *Journal*.

²⁶⁵In the handwriting of Sir Thomas Smith, who was acting as his secretary.—*MS. Domestic*, vol. ix.

a second time, apparently wavering. If they chose to press matters against him to extremity, he said he was prepared to encounter them. If they could agree to reasonable conditions, and intended no injury to the King, he would make no more difficulties. In the evening the messenger came in from London; and the next morning, October 8, Sir Philip Hoby, who had come to Windsor, returned with the King's answer, dictated probably by Somerset, a private letter of Somerset himself to Warwick, and another to the council from Paget and Cranmer.

The first was moderate, apologetic, and intercessory. It admitted that the Protector had been indiscreet, but all men had faults, and faults could be forgiven. Sir Philip Hoby would explain what could not be so readily written; but in mean time a list of articles was enclosed, which Somerset had signed, containing a declaration that he had not intended, and did not intend, any hurt to the lords; that if any two of them would come to Windsor, and state their wishes to two other noblemen to be named by the King, he would submit to any terms which, after discussion, should be resolved upon, whatever those might be.²⁶⁶ In the letter to Warwick the Duke declared before God that he had meant no harm to him; nor could he believe that Warwick had desired to injure himself. They had been old friends, and he appealed to his heart to remember it.²⁶⁷ Paget and the Archbishop wrote in the same tone. They evidently felt that the Protector had added seriously to the danger of his position by his appeal to the commons. He was willing, they said, to resign his office, but he could not place himself in the councils' hands unconditionally. Life was sweet, and they must not press him too hard.²⁶⁸ Finally, Sir Thomas Smith added another letter to Petre. The Protector had yielded to the persuasion of his friends, and would refuse no reasonable terms. He would relinquish office, dignity, everything they might require. He only begged for his life. Such an offer ought not to be rejected, 'nor the realm be made in one year a double tragedy and a lamentable spoil, and a scorning stock of the world.'²⁶⁹

When the Protector was one day inviting the nation to take arms for him, and the next was begging for his life, the causes of his alter-

²⁶⁶The King to the Lords, October 8: TYTLER, vol. i. p. 220. Articles signed by the Protector: BURNET's *Collectanea*.

²⁶⁷The Protector to Warwick, October 8: STOW.

²⁶⁸TYTLER, vol. i. p. 223.

²⁶⁹Ibid. p. 228.

nate moods cannot be accurately traced. On the 8th of October, before Hoby's arrival, a meeting had been held at the Guildhall, where the lords a second time explained their conduct. They assured the City that they had no thought of undoing the Reformation, or of altering the order of religion as now established. The next point of importance was the answer from Herbert and Russell, who had command of the army.

On learning from Lord Edward Seymour that the King's person was in danger, the generals had pushed forward by forced marches to Andover. There, however, letters reached them from the council; and the real danger to be feared was not, as they found, from a conspiracy of the lords, but from a fresh insurrection of the commons on the invitation of Somerset. They halted, sent back to Bristol for cannon, called about them the gentlemen of Hampshire and Wiltshire, and charged them on their lives to put down all assemblies of the people. The proclamations were telling in all directions. 'The country was in such a roar that no man wist what to do.' Barely in time to prevent a general rising, they fell back on Wilton, where the peril was most threatening, and sent Lord Edward again to his father with the following answer:—

PLEASE IT YOUR GRACE,

We have received your letter not without great lamentation and sorrow, to perceive the civil dissension which has happened between your Grace and the nobility. A greater plague could not be sent into this realm from God, being the next way to make us of conquerors slaves, and to induce upon us an universal calamity and thralldom, which we pray God so to hold his holy hand over us as we may never see it. And for answer this is to signify that so long as we thought that the nobility presently assembled had conspired against the King's Majesty's person, so long we came forward with such company as we have for the surety of his Highness as appertaineth. And now having this day received advertisement from the lords, whereby it is given us to understand that no hurt or displeasure is meant towards the King's Majesty, and as it doth plainly appear unto us that they are his Highness's most true and loving subjects, meaning no otherwise than as to their duties of allegiance may appertain; so in conclusion it doth also appear unto us that this great extremity proceedeth only upon private causes between your Grace and them. We have, therefore, thought most convenient, in the heat of this broil, to levy as great

a power as we may, as well for the surety of the King's Majesty's person, as also for the preservation of the state of the realm; which, whilst this contention endureth by faction between your Grace and them, may be in much peril and danger.

We are out of doubt, the devil hath not so enchanted nor abused their wits as they would consent to anything prejudicial and hurtful to the King's most noble person, upon whose surety and preservation, as they well know, the state of the realm doth only depend;²⁷⁰ and having consideration of their honour, discretions, and continued truth unto the Crown, we believe the same so assuredly as no other argument may dissuade us from the contrary. And for our own parts we trust your Grace doubteth not but that as we have, and will, and must have a special regard and consideration of our duties of allegiance unto the King's Majesty, so shall we not be negligent to do our parts like faithful subjects, for the surety of his Highness accordingly, beseeching your Grace that his Majesty in anywise be put in no fear; and that your Grace would so conform yourself as these private causes redound not to an universal displeasure of the whole realm.

Would God all means were used rather than any blood be shed; which, if it be once attempted, and the case brought to that misery that the hands of the nobility be once polluted with each other's blood, the quarrel once begun will never have an end till the realm be descended to that woeful calamity that all our posterity shall lament the chance. Your Grace's proclamations and billets sent abroad for the raising of the commons we mislike very much. The wicked and evil-disposed persons shall stir as well as the faithful subjects; and we and those other gentlemen who have served, and others of worship in these counties where the same have been published, do incur by these means much infamy, slander, and discredit. Thus we end, beseeching Almighty God the matter be so used as no effusion of blood may follow, and therewithal may be a surety of the King's Majesty and of the state of the realm.²⁷¹

Somerset had shown ability as a general, and his courage in the field was unimpeachable; but in social and political life his tendency

²⁷⁰ An expression with more meaning than shows on the surface. Among the divisions in England, loyalty to the reigning sovereign was the one sentiment on which all parties were agreed. With the glare of the wars of the Roses still visible which so plainly, no question was permitted to be pressed to a point which touched the throne.

²⁷¹ TYTLER, vol. i. p. 216.

was ever to confound the imaginary and the real; to be extreme alike in his hopes and fears, and to govern himself rather by momentary emotion than by serious thought. He was like a woman in noble enthusiasms—like a woman in passionate sensibility: but he had the infirmity both of men and women whom fortune has spoilt; he could endure no disappointment, and a molehill in his path became a mountain. Thus an amicable intention of remonstrance he had construed into a conspiracy against the King—thus he believed that the council desired to murder him—thus, when his appeal to the country was likely to fail, he sunk into the extreme of despondency and submission; and now, when his son returned with the letter from the army, which, after his resolution to resign, need not have affected him, he fell again into a hysterical panic. Nothing so keenly irritates nervous excitement as the cold language of truth, and in the emphatic condemnation of his conduct, which he must have known to be just, he saw again gleaming before him the axe of the executioner. On the Wednesday morning the council heard from Windsor that the yeomen of the guard had been, removed or disarmed; that the castle was held only by the Protector's servants in the royal uniform; that in 'a great presence' Somerset had declared that, 'if the lords intended his death, the King's Majesty should die before him, and if they intended to famish him, they should also famish his Majesty.'²⁷² The belief at the Court was that he meditated a second flight, and intended to carry the King to Wales, to Jersey, or to the Continent.

If, in his present humour, he attempted any such enterprise, his flight through the country with the King in his company would rekindle a universal conflagration. Sir Philip Hoby was sent back with an answer from the council to Edward. They repeated their assurances that they were acting only for the public good. They protested that they were not under the influence of personal jealousies. The Duke of Somerset, with the worst possible consequences to the country, had broken the engagement to which he had bound himself. They could not make conditions with him or appoint commissioners to treat with commissioners. He must disarm his followers, and consent to share

²⁷²*Privy Council Records, MS.*

with them the common position of a subject, as the late King had intended.²⁷³

To Cranmer and Paget the council wrote more imperiously. They were surprised, they said, and in the highest degree displeased, at the removal of the royal guard. They charged the Archbishop, as he valued his duty to God and the country, to keep the King at Windsor, or he should answer for it at his uttermost peril. They had themselves stated to his Majesty the conditions to which the Protector must submit. There was no reason to fear that there would be any cruelty or needless severity. 'They minded to do none otherwise than they would be done unto, and that with as much moderation and favour as they honourably might.' Finally, they desired every one at Windsor to attend to the message which would be delivered by Sir Philip Hoby,²⁷⁴ and which Hoby read aloud to the Duke, to whom with the rest it was addressed, in the presence of the Court.

²⁷³The Council to the King: *MS. Domestic*, vol. ix. State Paper Office. Printed by BURNET.

²⁷⁴Mr Tytler, who, in his tenderness for Somerset, represents him as the victim of an unprincipled intrigue, and scatters freely such epithets over his story as 'base,' 'villanous,' and 'treacherous,' says that Hoby had brought a secret message to Paget and Cranmer, which was 'none other than they must either forsake the Duke, lend themselves to the deceit about to be practised on him, and concur in measures for securing his person, or continue true to him and share his fate.' The unconditional submission which the council required, he considers was basely kept a secret; the object was to put the Protector off his guard, and then take him prisoner. Considering that, in the existing circumstances, setting aside the interests of the State, the truest kindness to Somerset was to prevent him from attempting the wild plans which he was meditating, there would have been nothing to deserve the epithets of false and treacherous, had the council sent such instructions, and had Paget and Cranmer acted on them. But the eagerness of Mr Tytler's sympathies has misled him. The message was delivered in open audience, and was addressed to Somerset as much as to them. 'The unconditional submission' was required in the letter to the King, and this letter was, by the especial order of the council, presented to the King in open Court, and read aloud. 'Sir Philip Hoby,' wrote Cranmer, Paget, and Sir Thomas Smith, on the 10th of October, to the council, 'hath, according to the charge given him by your lordships, presented your letter to the King's Majesty, in the presence of us and all the rest of his Majesty's good servants here, which was then read openly.' Sir Thomas Smith was Somerset's friend.

Had the Duke been put to death after the promise of kind treatment, there would have been ground for the charge of perfidy. But, inasmuch as the promise was observed, and in three months he was again a member of the council, it is hard to see what the crime was on which Mr Tytler lavishes his eloquence. It would be well if historians could bring themselves to believe that statesmen may be influenced, and at times have been influenced, by other feelings than personal ambition or rivalry.

'My lord, and my lords and masters of the council,' the message ran, 'my lords of the council have perused your letters, and perceived the King's Majesty's requests and yours, and have willed me to declare unto you again, that they do marvel much why you do so write unto them, as though they were the most cruel men in the world, and as though they sought nothing but blood and extremity. They say of their honour they do mean nothing less; and they bade me declare unto you from them, that, of their faith and honour, they do not intend, nor will hurt in any case the person of my lord the Duke, nor none of you all, nor take away any of his lands or goods, whom they do esteem and tender, as well as any of you, as they ought. They are not ignorant, no more than you, that he is the King's uncle. They do intend to preserve his honour as much as any of you would, nor mean not, nor purpose not, no manner hurt to him; but only to give order for the Protectorship, which hath not been so well ordered as they think it should have been; and to see that the King be better answered of his things, and the realm better governed for the King's Majesty. And for you, my lords and masters of the council, they will have you to keep your rooms and places as you did before, and they will counsel with you for the better government of things.'

Then, turning to the Duke, Hoby went on, 'My lord, be not you afraid; I will lose this,' and he pointed to his neck, 'if you have any hurt; there is no such thing meant; and so they would have me tell you, and mark you well what I say.'

He then desired that the letter to the King and the other letters might be read, that there might be no room for suspicion; and when this was done, 'all thanked God and prayed for the lords';²⁷⁵ Paget fell on his knees at the Duke's feet; 'Oh, my lord,' he said, in tears, 'you see now what my lords be.'

The Protector seems to have still hesitated. The same day the council sat at the house of Lord St John, when it was intimated that Paget and the Archbishop had succeeded in restoring the yeomen of the guard. A hint had been sent by the former that it would be well if the Duke was placed under restraint,²⁷⁶ the kindest thing which could be done for him. Sir Anthony Wingfield and Sir Anthony St Leger were charged with the council's thanks, to act on the hint if possible, and, at all events, to see that the Duke did not leave the castle

²⁷⁵TYTLER, vol. i. p. 239.

²⁷⁶ELLIS, 1st series, vol. ii. p. 175.

before their own arrival.²⁷⁷ Sir Thomas Smith, Sir Michael Stanhope, Sir John Thynne, Edward Wolf, and Cecil were to be confined to their rooms.

On Saturday, the lords went down in person. The King made no difficulty in receiving them. His objections, had he made objections, would have gone for little; but he seems at no time to have felt strong personal attachment to his uncle. Sir Thomas Smith was expelled from the council, and with Stanhope, Thynne, and Wolf, 'the principal instruments that the Duke did use in the affairs of his ill government,' was sent to the Tower, where the Duke followed them on the ensuing Monday.

So ended the Protectorate. The November session of Parliament was approaching. The interval was spent in examining the public accounts, and remedying the more immediate and pressing disorders of the administration. On the 18th of October, 'the lords receiving daily advertisements, as well from the Borders against Scotland, as from Boulogne, Calais, Ireland, Scilly, Guernsey, Jersey, Alderney, and the Wight, of the misery that the poor soldiers were in for lack of payment of their wages; and besides, of an universal want, grown in the time of the late Protector—who, being continually called upon by the council for redress thereof, would not give place thereunto—of victual, armour, ordnance, and of all kinds of munition and furniture, did immediately give order for the supply thereof to all those places aforesaid.'²⁷⁸

The debts due to the Crown, and the more considerable debts due by the Crown, were inspected, with the disposition of the chantry lands, and of the other properties of all kinds which had passed through Somerset's hands: it seemed as if at once a new leaf was to be turned over, and there was to be again an honest and economical Government.²⁷⁹ In one direction only there was to be no present

²⁷⁷*Privy Council Records, MS.*

²⁷⁸*Privy Council Records, MS.*

²⁷⁹A loose paper of memoranda made by some one engaged in the inquiry shows how complicated the accounts must have been, and how inadequate are the existing data to decide on the character of Somerset's conduct.

'Touching the Duke of Somerset—

'1. The plate belonging to the late college of St Stephen's at Westminster, delivered into his hands.

'2. The rich copes, vestments, altar cloths, and hangings belonging to the same college, whereof the Duke had the best and Sir Ralph Vane the next.

'3. The Duke of Norfolk's stuff and jewels, delivered by Sir John Gates.

reform, and unfortunately in the worst and most especial plague of the commonwealth.

It has been mentioned that the Lords of the Council themselves provided funds for the suppression of the rebellion. They held themselves entitled to repayment, and there are no longer means of testing the justice of their claims; but it is easier to give an opinion of the means by which those claims were satisfied. On the 28th of October a warrant was addressed to the Master of the Mint, setting forth that whereas the well-beloved Councillor Sir William Herbert, in suppression of the rebels, had not only spent the great part of his plate and substance, but also had borrowed for the same purpose great sums of money, for which he remained indebted—the officers of the mint might receive at his hands two thousand pounds weight in bullion in fine silver—the said bullion to be coined and printed into money current according to the established standard—the money so made to be delivered to the said Sir William Herbert, with all such profits as would otherwise have gone to the Crown after deducting the expenses of the coining.²⁸⁰ The profit to Sir William Herbert, beyond the sum which he would have received as a bullion merchant for the 2000 lb. of silver, was 6709*l.* 19*s.* ; and immediately afterwards the same privilege was extended to Warwick, Arundel, Southampton,

'4. The best of Sharington's stuffs and goods.

'5. The lead, stone, and stuff of Sion, Reading, and Glastonbury, of great value.

'6. The stallment of the King's alum, sold to certain merchants of London for fourteen or fifteen years, for which the Duke, Smith, and Thynne had among them 1400*l.*

'7. The thousand marks given by the city of London to the King's Majesty at his coronation.

'8. The customers' officers within England, for the which he had by Thynne's practice notable sums.

'9. The King's secret houses in Westminster, and other places wherein no man was privy but himself, half a year after the King's death.

10. The gifts and exchanges past in his name since the King's death.

'11. It is thought that much land was conveyed by the Duke in trust, in the names of Thynne, Kellaway, Seymour, Berwick, Colthurst, and other his men, and that they have made assurances again of all to the Duke and his heirs, and it is thought that the said persons know best where all the evidences of his lands and his specialties do remain.

'12. The Duke's diet of eight hundred marks by the year, proceeded from the Augmentation Court.'—*MS. Domestic*, Edward VI. vol. ix. State Paper Office.

²⁸⁰*Harleian MSS.* 660. According to RUDING'S *Tables*, vol. i. p. 183, a pound of silver was coined, in the year 1549, into 7*l.* 4*s.* ; of which, the Crown, for seignorage and cost of minting, took 4*l.* , paying the merchant 3*l.* 4*s.* ; but the seignorage varied from month, to month, and so apparently did the cost and the materials of the alloys.

Paget, Dorset, Russell, Northampton, for an equal sum to be raised by similar means. Sir Thomas Wentworth, Lord Wentworth, Sir Thomas Darcy were allowed to coin 2000 lb. between them; Huntingdon, Clinton, and Cobham, 1000 lb. each; and the Duchess of Richmond 500 lb.²⁸¹ By this proceeding more than 150,000*l.* worth of base silver coin was thrown at once into circulation, deranging prices worse than ever, shaking the exchange, driving the gold out of the country, and producing its varied complications of disastrous consequences none the less certainly, because the council could excuse themselves from the straits to which the Protector's extravagances had reduced the public revenues, and because the theories of the financiers concealed from them the mischief which they were creating.

It is one of the first duties of a historian to enable the reader to distinguish between the general faults of an age and the special faults of individuals, for which they may be legitimately held responsible.

As an account of the extraordinary confusion to which the currency was reduced, by a long course of changes at home and abroad, I give the following address to the Council of Edward VI., from the *Harleian MSS.* 660. The date is probably 1551.

'Your humble suppliant, Humfrey Holt, pondering the great enormities growing of late unto this realm, by the greediness of a number of merchants, with others, that have sought to call out for their private gainings the best of our moneys here made, and so hath transported the same into foreign realms, to the great decay and abasing of the same, by reason they be of so many divers and sundry standards in fineness, as well of the coins of gold as also of the silver moneys,—in consideration thereof, and to bring the said coins to one perfect and uniform standard, that all such culling might cease, and all men by the same be like benefitted,—I, your humble servant, have thought good to signify unto your honours, not only the rates and valuations of the same, but also which losses the King's Majesty hath and daily doth sustain, if remedy be not provided in that behalf.

'1. The old sovereigns, half-sovereigns, royalls, half-royalls and quarter-royalls, angels and half-angels, being 24 carats fine gold, are better than their current value after the moneys in

²⁸¹The memoranda of this transaction form part of a long paper on the coinage in the handwriting of Sir Thomas Smith.—*Harleian MSS.* 660

Flanders, in every pound twenty pence, and in every hundred pounds 8*l.* 6*s.* 8*d.* , and in every thousand pounds 83*l.* 6*s.* 8*d.*

'2. The sovereigns, half-sovereigns, angels, half-angels, and quarter-angels, being 23 carats fine gold, are better than the Flanders money, in every pound ten pence, in every hundred pounds 4*l.* 4*s.* 6*d.* , in every thousand 42*l.* 3*s.* 4*d.*

'3. The old crowns and half-crowns of the first stamp or coin are better, both in weight and value, than the Flanders moneys, in every pound 6*s.* 3*d.* , in every hundred pounds 31*l.* 5*s.* , in every thousand 313*l.* 10*s.*

'4. The fourth coin of gold, being sovereigns, half-sovereigns, crowns, half-crowns, being 22 carats fine gold, are better than the current value after the moneys in Flanders, in every pound 3*s.* , in every hundred pounds 15*l.* , in every thousand 150*l.*

'5. The fifth coins of gold called sovereigns and half-sovereigns, crowns and half-crowns, being 20 carats fine, are better than their current value, in every pound sixteen pence, in every hundred pounds 6*l.* 13*s.* 4*d.* , in every thousand 56*l.* 13*s.*

'6. The sixth coins or moneys of gold, being sovereigns, half-sovereigns, crowns, half-crowns, called the polled heads, are better than the current value, in every pound four pence, in every hundred pounds 33*s.* 4*d.* , in every thousand 16*l.* 13*s.* 4*d.*

'7. The seventh, or last moneys of gold, being sovereigns, half-sovereigns, crowns and half-crowns, are better than their current value, in every pound two pence, in every hundred 16*s.* 8*d.* , in every thousand 8*l.* 6*s.* 8*d.*

'Item. Our new sterling money of silver, holding eleven oz. of fine silver, is better than their sterling money in Flanders, in every pound nineteen pence, in every hundred 7*l.* 18*s.* 4*d.* , in every thousand 79*l.* 3*s.* 4*d.*

'Item. The half-groat, called the old sterling, being current two pence the piece, makes the oz. two shillings, and the 12 oz. 24 shillings; and holding fine silver 10 oz. 18 dwts., at 5*s.* 5½*d.* the oz., makes 59*s.* 5*d.* , and are better than their current value, in every pound 28*s.* 4*d.* , and in every hundred pounds 141*l.* 13*s.* 4*d.* , and in every thousand 1410*l.*

'Item. The half-groats with the gunholes, holding fine silver 9 oz. and 3 oz. of alloy, at 2 shillings the oz., makes the 12 oz. 24 shillings, the fine silver at 5*s.* 5½*d.* the oz., makes 49*s.* 1½*d.* , and so this coin is better than his current value in every pound

21 shillings, in every hundred pounds 105*l.* , and in every thousand 1050*l.*

'Item. The half-groats, called gunstone groats, holding fine silver 6 oz., and 6 oz. of alloy, at 2*s.* the oz., makes the 12 oz. 24 shillings, the fine silver at 5*s.* 5½*d.* the oz., makes 32*s.* 9*d.* , and so this coin is better than his current value, in every pound 7*s.* 3*d.* , in every hundred 36*l.* 5*s.* , in every thousand 362*l.* 10*s.*

'Item. There is one coin of half-groat, holding fine silver 4 oz. and 8 oz. of alloy, at 2*s.* the oz., makes the 12 oz. 24 shillings, and the fine silver 5*s.* 5½. the oz., makes 21*s.* 10*d.* , and so is lost in every pound of his value two shillings, in every hundred pounds 10*l.* , in every thousand 100*l.*

'There is one coin of 6*d.* holding fine silver 8 oz. and 4 oz. of alloy, at 4*s.* the oz., makes the 12 oz. 48 shillings. The fine silver 5*s.* 5½*d.* the oz., makes 43*s.* 8*d.* , and so is lost of the current value of this coin in every pound two shillings, in every hundred pounds 10*l.*

'Item. There is one coin of 6*d.* holding fine silver 6 oz. and 6 oz. of alloy, at 3*s.* the oz., makes the 12 oz. 36*s.* , the fine silver at 5*s.* 5½*d.* the oz., makes 32*s.* 9*d.* , and so is lost in every pound in this coin two shillings, in every hundred pounds 10*l.* , and in every thousand 100*l.*

'Item. There is one coin of 6*d.* holding fine silver 3 oz. and 9 oz. of alloy, at 3*s.* the oz., makes the 12 oz. 36*s.* , the fine silver at 5*s.* 5½*d.* , makes 16*s.* 4½*d.* , and so is lost in every pound eleven shillings, in every hundred 55*l.* , and in every thousand 550*l.*

'Item. Our moneys or pence called the Rose pence, holding fine silver 4 oz. and 8 oz. of alloy, at 40*d.* the oz., makes the 12 oz. 40*s.* , the fine silver 5*s.* 5½*d.* , makes 21*s.* 10*d.* , and is lost of every pound of his current value 9*s.* 1*d.* , in every hundred pounds 46*l.* 5*s.* , in every thousand 462*l.* 10*s.*

'And so the worst of the said moneys doth buy and sell the best, and will, till all come to one uniform, and the prices of everything to run upon the worst of our moneys to the great decay of all things, which coins may be converted to one uniform after the moneys in Flanders to the King's Majesty's great advantage, and no loss to the commons in the converting of the same, and all things by the same to come to a clear price, and the true value of the coins to be perfectly known; which, if it be your honour's pleasure to license me to make thereof, I doubt not but it shall appear unto your honours worthy the exercise.'

CHAPTER XXVII

THE REFORMED ADMINISTRATION

THE fall of the Protector was a signal for revived hope among the Catholics. Bonner, at the close of a process in which the forms of law were little observed, and the substance of justice not at all, was not only imprisoned, but had been in September deprived of his bishopric by a sentence of Cranmer. In times of religious and political convulsion, to be opposed to the party for the moment in power is itself a crime; and Bonner, sensual, insolent, and brutal, retained, nevertheless, the virtue of honesty. The See of London, therefore, had been required for more useful hands. But there was a general impression that the recovery of authority by the executors would now lead to a change of policy. In Oxford mass was again celebrated in the college chapels.²⁸² Both Bonner and Gardiner appealed against the oppression to which they had been subjected. The Bishop of Winchester, congratulating the council on their success and courage, entreated that his conduct might be again inquired into, and that he should not be confined any longer on the unauthorized warrant of a subject like himself. Those who had been active in Bonner's persecution anticipated unpleasant consequences to themselves. Hooper,²⁸³ one of the most prominent among them, writing to Bullinger, said that, 'Should the Bishop be restored to his office, for himself he doubted not he would be restored to his Father in heaven.'²⁸⁴ The Emperor shared the expectation, or so far considered the reaction possible, as to make it a condition of the alliance which the English council so much desired. He received the message sent him through Sir Thomas Cheyne graciously. He would make no promises without conditions, but he intimated that a return to orthodoxy would be rewarded by a return of his friendship.²⁸⁵

²⁸² Stumphius to Bullinger: *Epistolæ Tigurinæ*

²⁸³ John Hooper, whose father, a yeoman perhaps, was still living in Somersetshire, had been brought up at Oxford. He had left England on the passing of the Six Articles' Bill, and had resided in Switzerland, where, as the friend of Bullinger, he had become a strong Genevan. On Edward's accession he came back to London, and was now rising rapidly into notoriety as a preacher.

²⁸⁴ Hooper to Bullinger: *Epistolæ Tigurinæ*.

²⁸⁵ I shall pray you, after my hearty commendation to the King and council, to desire both him and them to have matters of religion first recommended, to the end

There was a time, perhaps, when the direction which things would assume was uncertain. Southampton, Shrewsbury, and Arundel had taken part in the deposition of Somerset, the first and last being distinctly, the second moderately, Catholic; the Earl of Warwick himself was untroubled with religious convictions of any kind, and might take either side with equal unconscientiousness; and the executors, acting as a body, would have relapsed into the groove which Henry VIII. had marked for them. But equality of influence could not co-exist with inequality of power. The part which Warwick had taken in putting down the insurrection had given him for the moment the control of the position; and Warwick, whose single and peculiar study was the advancement of himself and his family, determined, it may be after some hesitation, to adhere to the party of which he could be the undisputed chief. Had he brought the conservatives into power, he must have released the Duke of Norfolk from the Tower, and Gardiner with him. Shrewsbury, Oxford, Rutland, Derby, the lords of the old blood, would have reappeared in public life; and in such a circle Lord Warwick must soon have sunk to the level of his birth. It was more tempting for him to lead those who had made their way into rank through the revolution, or had still their fortunes to make, than to sink into a satellite of the Howards, the Stanleys, and the Talbots.

Southampton, therefore, retired again into obscurity, and soon died. A charge of peculation was brought against Arundel, who was removed from his office of Lord Chamberlain, and fined 12,000*l.*,²⁸⁶ and the petitions of the imprisoned bishops remained unnoticed. Gardiner wrote a second time more formally, 'which the Lords took in good part, and laughed very merrily at, saying he had a pleasant head;'²⁸⁷ but they preferred to leave him where he was. A third letter met the same neglect, written in a tone of dignified and large moderation, which would have earned some respect for Gardiner, had not he too, in his turn of authority, violated the principles to

we may be at length all of one opinion; till when, to speak plain unto you, I think I can neither so earnestly nor so thoroughly assist my good brother as my desire is.'—Cheyne to the Council: STYVE'S *Memorials*, vol. iii.

²⁸⁶*Privy Council Records*, MS. 'Plucking down bolts and bars at Westminster, and giving away the King's stuff,' is the vague account which Edward gives in his journal of the charges against Arundel, which, however, he says that Arundel confessed.

²⁸⁷STOW

which he appealed.²⁸⁸ Finally, he prepared a petition to Parliament, on its assembling in November, which the council would not permit to be presented.²⁸⁹

The measures brought forward by the Government in the session which followed close upon the change, left no doubt indeed that, with respect to religion, the policy of the past three years would be continued and carried further.

A violent Act was passed against images and paintings in the face of the conservative opposition in the House of Lords.²⁹⁰ No statues or figures of any kind were to remain in the parish churches except, as the statute scornfully said, 'the monumental figures of kings or nobles who had never been taken for saints;' and the Prayer-book being the only religious service necessary or tolerable—'antiphones, missals, scrayles, processions, manuals, legends, portuyses, primers, in Latin or English, cowchers, journals, ordinals,' and similar books, were to be taken away, burnt, or otherwise destroyed.²⁹¹

The other business of the session was not of particular consequence. A riot Act, not unnecessarily harsh, was a natural consequence of a summer of rebellion. The peculiar feature of it was that the privy council were placed under the protection of the

²⁸⁸I renew my suit unto your lordships, instantly requiring you that I may he heard according to justice, and that with such speed as the delay of your audience give not occasion to such as be ignorant abroad of my matter, to think that your lordships allowed and approved the detaining of me here; which, without hearing my declaration, I trust ye will not, but will have such consideration of me as mine estate in the commonwealth, the passing of my former life among you, and other respects, do require; wherein you shall bind me, and do agreeably to your honour and justice, the free course whereof you have honourably taken upon you to make open to the realm without respect, which is the only establishment of all commonwealths. And therefore the zeal of him was allowed, that said, *fiat justitia ruat mundus*, signifying, that by it the world is kept from falling indeed, although it might seem otherwise in some respects, and some trouble to arise in doing it. And this I write because in the late Lord Protector's time there was an insinuation made unto me, as though I was kept here by policy, which, with the violation of justice, never took good effect, as I doubt not of your wisdom you can and will consider and do accordingly.'—Gardiner to the Council: Srow.

²⁸⁹Report of the Proceedings against Gardiner: FOXE, vol. vi.

²⁹⁰Dissentients the Earl of Derby, Lords Morley, Stourton, Windsor, and Whar-ton; the Bishops of Durham, Lichfield, Carlisle, Worcester, Westminster, and Chichester.—*Lords Journals*, 3 and 4 Edward VI.

²⁹¹3 and 4 Edward VI. cap. 10.

high treason laws.²⁹² From experience of failure, the Slave Statute of the preceding session was repealed; the vagrancy Acts of Henry were restored, and labourers refusing to work were to be punished as vagabonds. The sick and aged were to be relieved in convenient cottages at the expense of their town or parish; children carried about begging were to be allotted as apprentices to any one who would bring them up in an honest calling, and the magistrates were to protect them from ill-usage.

Public morality was reported to be disordered. The sudden emancipation from the control of the Church courts had led to license, and both the religious parties desired alike a restoration of discipline. On the 14th of November the bishops presented a complaint in the House of Lords that their jurisdiction was despised and disobeyed, that they could cite no one and punish no one—they could not even compel those who were disinclined to appear in their places in church. The peers listened with regret,²⁹³ and the prelates were invited to prepare a measure which would meet the necessity. After four days they produced something which to them was satisfactory, but it was found to savour too strongly of their ancient pretensions.²⁹⁴ The motion led only to the reappointment of the commission of thirty-two, who were long before to have reformed the canon law; and the fruit of their exertions, when at last it seemed to have acquired vitality, dropped to the ground unripe. The time was passed when the English laity would submit their private conduct to ecclesiastical discipline, whether it was Catholic or whether it was Genevan.

In the beginning of January an account was tendered to Parliament of the proceedings against the Duke of Somerset. The offences, the substance of which was contained in the letter to the Emperor, were drawn out into twenty-nine articles,²⁹⁵ in which, after allowing for legal harshness of form, his errors were not exaggerated. A committee of council carried the articles to the Tower, where they were submitted to the Duke for signature. He made no difficulty, but threw himself on the mercy of the Crown; and the accusations, with his signature attached to them, were laid before the House of Lords on the

²⁹²Ibid. cap. 5.

²⁹³Non sine mærore.—*Lords Journals*, 3 and 4 Edward VI.

²⁹⁴Proceribus eo quod episcopi nimis sibi arrogare videbantur non placuit.—Ibid.

²⁹⁵Printed by Srow and by Foxe.

2nd of January. The Lords did not affect to doubt that the subscription was authentic, and had been freely given; but in a matter which might be used as a precedent, too great caution could not be observed, and the Earls of Bath and Northumberland, Lord Cobham and Lord Morley, with four bishops, went to the Tower to examine him in the name of the House. He pleaded guilty to each separate article. On the 14th of January he was deposed by Act of Parliament from the Protectorate, and sentenced to be deprived of estates which he had appropriated to the value of 2000*l.* a year. On the 6th of February he was released from confinement, giving a bond for his good behaviour, and being forbidden to approach the Court without permission.

Had the full penalty been enforced, it would scarcely have been severe. In three months, however, such of his lands as had not in the mean time been disposed of, were restored; Somerset himself returned to the privy council; and the fortune which he still possessed enabled him to maintain a princely establishment. No English minister had ever descended against his will from so high a station with a fall so easy. Sir Thomas Smith and Sir Michael Stanhope were made to refund 3000*l.* each of public money which they had embezzled; Sir John Thynne as much as 6000*l.*

Before Parliament rose, Sir William Paget was called to the Upper House as Lord Paget of Beaudesert, Lord Russell was made Earl of Bedford, and Lord St John of Basing Earl of Wiltshire.

Meanwhile affairs at Boulogne approached a crisis. The Rhinegrave in January brought five thousand men between Boulogne and Calais. Huntingdon, Sir James Crofts, Sir Edward Hastings, and Sir Leonard Chamberlain carried reinforcements to the garrison almost as large. But on the part of England this display of force was continued only to avoid a dishonourable close to the now fast approaching siege. The drain of Boulogne on the exchequer was incessant and exhausting; and if reasonable terms could be obtained from France, the council had made up their minds to purchase them with a surrender. The first active move towards an arrangement came through an Italian resident at Paris. Antonio Guidotti, a Florentine merchant, offered himself as an instrument of communication, and was permitted to suggest, as a fitting close to the long quarrel, that, Mary Stuart being no longer accessible, an alliance might be effected for Edward with the Princess Elizabeth of France.

The Boulogne question, however, had first to be set at rest. Guidotti having passed and repassed between London and Paris, Lord Bedford, Paget, Petre, and Sir John Mason crossed in February, to treat with the French commissioners who would be sent to meet them. Time pressed for England. 'The misery, wants, and exclamations' of Lord Huntingdon were 'very great.'²⁹⁶ Sixteen hundred pounds of arrears were due to the crews of the ships in Calais harbour, and thirteen hundred to the English infantry. Six thousand pounds a month was 'all too little' for the Lanzknechts in the English pay at Calais and Boulogne, and 800*l.* was the whole sum which was to be found in the Calais treasury. At Boulogne the beer was gone, there was bread for but six days, and the troops were on short allowance, Lord Clinton faring like his men. It was only by constant and expensive exertions that supplies of any kind could be thrown in.

The conference was held beyond the river opposite Boulogne. The French were entirely aware of the difficulties of the English, and intended to take advantage of them. The English, flattering themselves with the presence of their troops, intended to ask for the pension which Francis had agreed to pay to Henry VIII., for the arrears of their debts, and for the Queen of Scots, and to accept as much or as little as they could get.

On the 20th of February a truce of fifteen days was concluded. The commissioners met, and the French came at once to the point. The English asked for the pension. The French, 'precise and imperious,' asked in return if they thought 'France would be tributary to England.' For the debts, they had been made to spend more in the wars than the debts amounted to, and they held themselves acquitted. 'Pensions they will pay none,' the English commissioners reported, 'nor debts none, nor reason will they have none. They have prescribed, as it were, laws, which they call overtures, that we should make white and relinquish old matters, as well pensions, debts, arrearages, and other quarrels, for which and for Boulogne they say they will give a reasonable recompense in money.'²⁹⁷

Paget, in a private letter to Warwick, explained distinctly that the tone which the French had assumed arose from no desire to protract the war: they knew merely that Boulogne was in their power, and

²⁹⁶*Cotton. MSS. Caligula, E. iv.*

²⁹⁷Commissioners to the Council: *Cotton. MS. Caligula, E. iv.*

they intended to exact the conditions which their strength enabled them to impose.

'These Frenchmen,' he wrote, 'ye see how lofty they be, and haultaine in all their proceedings with us. And no marvel, for so they be of nature; and our estate, which cannot be hidden from them, encreaseth their courage not a little. They will have Boulogne, they say, by fair means or by foul. They will no longer be tributaries, as they term it. They set forth the power of their King, and make of ours as little as they list, with such bragging and braving terms and countenances, as, if your lordship had seen Rochpot,²⁹⁸ ye would have judged him a man more meet to make of peace a war than of war a peace. Debt they will recognize none, for they say, though they say untruly, that you have made them spend, and have taken upon the seas of theirs, ten times as much as the debt cometh to. Nevertheless, say they, let us have Boulogne, and wipe away all pretences that you make to us, and ask a reasonable sum, and we will make you a reasonable answer; or, if you will not, in respect of your master's young age, acquit his pretences, let us have Boulogne: we will agree with you for it upon a reasonable sum. Reserve you to your master the droicts that he pretendeth, and we to ours his defence for the same and so to make a peace; and if you afterwards demand nothing of us, we demand nothing of you. Keep you within your limits, which God hath given you, enclosed with the seas—saving your Calais, whereunto ye have been married these two or three hundred years, and therefore God send you joy with it—and we our limits upon the land, and we shall live together in peace. Other bargains than this we will not make.'

Paget expostulated, entreated, threatened. They ought to have been persuaded, but they were dense and resolute. They stood to their demands, and required an immediate answer.

Paget did not hesitate to say that England must yield.

'Lo, sir,' he went on to Warwick, 'thus standeth the case. Their orgueil is intolerable, their disputations be unreasonable, their conditions to us dishonourable, and, which is worst of all, our estate at home is miserable. What, then! of many evils let us choose the least. First, we must acknowledge what he cannot deny—the evil condition of our estate at home, which recognizance is the first degree to amendment. The next is to know the cause of the evil, and that is war,

²⁹⁸One of the French commissioners.

supposed to be, if not the only cause, at least one of the chiefest among many great. How many—how great occasions of mischief the war hath engendered to England? Ill money, whereby outward things be dearer, idleness among the people, great courages, dispositions to imagine and invent novelties, devices to amend this and this, and a hundred mischiefs which make my heart sorry to mark—these be the fruits of war. Then, if the disease will not be taken away, let the cause be taken away; and war, which is one chief cause, must be taken away. But that shall not be taken away, say the French, save upon this condition—they will have Boulogne for a sum of money, and make peace. Well, what moveth us to stick? Consider if we be able to keep it maulgre the French. Rochpot saith and braggeth that their King is not a King John, but a French King such as conquered Rome, and been feared of the rest, and will have Boulogne again, whosoever saith nay; and telleth us how we are in poverty and mutinies at home—beset all about with enemies, having no friend to succour us, destitute of money to furnish us, and so far in debt as hardly we can find any creditors. It is good to consider whether it be better to let them have Boulogne again, and to have somewhat for it, and to live in peace.

‘The pension is a great matter. It is true, they say, the pension was granted; but the time is turned. Then was then and now is now. It was granted by the French King that dead is to the King of England that dead is, and we will use it as you did when the time served you, for we know your estate, and that you are not able to war with us.’²⁹⁹

‘Then was then and now is now’—that was the exact truth of the position; and there was nothing to do but to yield handsomely. Parliament had broken up hastily. The Lords and gentlemen had been dispersed in haste to their counties on a menace of fresh insurrection.³⁰⁰ It had been even found necessary to relinquish a portion of the subsidy granted in 1548.³⁰¹ ‘Then was then and now is now.’—The Government was in no condition to carry on a war with an empty treasury, forfeited credit, and a disaffected people; and considering the circumstances, the terms which Paget obtained were not unreasonable. On the 24th of March a treaty was concluded, by which the English, within six weeks of the day of signature, were to evacuate

²⁹⁹ Paget to Warwick: *Lansdowne MSS.* 2.

³⁰⁰ Correspondence of the Commissioners with the Earl of Warwick: *Cotton. MSS. Caligula*, E. iv.

³⁰¹ 3 Edward VI. cap. 23.

Boulogne, leaving the fortifications, new and old, intact, and all the cannon and ammunition which had been found in the town at its capture by Henry VIII. The French would pay down for it four hundred thousand crowns, half upon the spot and half in the ensuing August, leaving other claims to stand over. The Scots were included in the peace. The few small forts remaining to the English on the northern side of the Border were to be razed and occupied no more.³⁰² The war was over, and the excuse for English disorders was at an end.

The Government had now the ground open before them to show what they could do. While the negotiations at Boulogne were in progress, an appeal of Bonner was heard, and rejected by the privy council;³⁰³ he was left in the Marshalsea, and the Knight Marshal demanding a fee of him for some unnamed privilege, and being refused, revenged himself by depriving his prisoner of his bed, and leaving him to lie for a week upon the straw.³⁰⁴ Ridley, notorious as the opponent of the real presence, was translated from Rochester as his successor in the See of London; Heath, Bishop of Worcester, for his opposition to the Act against images, in Parliament, followed his friends to prison; while the person destined to take Gardiner's place at Winchester, as soon as he too should be deprived, was Ponet, canon of Canterbury, notorious as having married a woman who had a husband living.³⁰⁵ The See of Westminster, founded by Henry VIII., was dissolved and the jurisdiction reannexed to London; Thirlby, his conservative views being inconvenient so near the Court, was removed to Norwich; and under such auspices, the excellent Hooper and his Genevan friends, to whom, accurate doctrine was the alpha and omega, the one thing essential, began to see the Gospel more triumphant in England than in any corner of the world except Zurich. Warwick seemed to them a most brave and

³⁰²RYMER.

³⁰³*Privy Council Records, MS.* Edward VI.

³⁰⁴*Grey Friars' Chronicle*, p. 65.

³⁰⁵She was the wife of a butcher of Nottingham, to whom during his lifetime she was obliged to make an allowance. Ponet in 1551 was divorced from her, and married again. Under the date of July 27, 1551, Machyn says (*Diary*, p. 8), 'The new Bishop of Winchester was divorced from the butcher's wife with shame enough.' *The Grey Friars' Chronicle* (p. 70) more explicitly says, 'The 27th day of July, the Bishop of Winchester that then was, was divorced from his wife in Paul's, the which was a butcher's wife in Nottingham, and gave her husband a certain money a year during his life, as it was judged by the law.'

faithful soldier of Christ,³⁰⁶ 'a most holy and fearless instrument of the word of God.'³⁰⁷ John ab Ulmis, a refugee, assured Bullinger that the Earl of Warwick and Lord Dorset 'were the most shining lights of the Church of England;' 'they were, and were considered, the terrour and thunderbolt of the Roman bishops; and they alone had exerted themselves in the Reformation of the Church more than all the rest of the council.'³⁰⁸ To such men as these it was enough that a certain speculative system which they called the Gospel should be patronized and the opponents of it punished. They asked no more. But the Gospel, considered in its more homely aspect of a code of duty, was not so prosperous in England.

The effect upon the multitude of the sudden and violent change in religion, had been to remove the restraints of an established and recognized belief, to give them an excuse for laughing to scorn all holy things, for neglecting their ordinary duties, and for treating the Divine government of the world as a bugbear, once terrible, which every fool might now safely ridicule. Parliament might maintain the traditional view of the eucharist, but the administration had neutralized a respect which the Lords had maintained with difficulty. Since the passing of the Chantries and Colleges Act, the Government, under pretence of checking superstition, had appropriated all the irregular endowments at the Universities. They cancelled the exhibitions, which had been granted for the support of poor scholars. They suppressed the professorships and lectureships which had been founded by Henry VIII.³⁰⁹ The students fell off. 'Some were distracted, others pined away in grief, spent their time in melancholy, and wandered up and down discontentedly.'³¹⁰ Some, and those the wisest among them, 'took upon them mechanical and sordid professions.' Degrees were held antichristian. Learning was no necessary adjunct to a creed which 'lay in a nutshell.' Universities were called 'stables of asses,

³⁰⁶ Hooper to Bullinger, March 27. 1550: *Epistolæ TIGURINÆ*.

³⁰⁷ Same to the Same, June 29: *Ibid*.

³⁰⁸ John ab Ulmis to Bullinger, March 25, 1550: *Epistolæ TIGURINÆ*. Warwick is generally said to have been the originator and contriver of Somerset's deposition. John ab Ulmis says, on the other hand, 'These men'—Warwick and Dorset—'exerted their influence and good offices on behalf of the King's uncle who had been plotted against, and restored him from danger of life out of darkness to light.'

³⁰⁹ *Annals* of ANTHONY WOOD. Petition of St John's College to the Duke of Somerset, printed by Wood. Lever's sermon at Paul's Cross, 1550.

³¹⁰ WOOD.

stews, and schools of the devil.' While Peter Martyr was disputing on the real presence, and Lord Grey was hanging the clergy on their church towers, the wild boys left at Oxford took up the chorus of irreverence. The service of the mass was parodied in plays and farces, with 'mumblings,' 'like a conjuror's,' In the sermons at St Mary's, priests were described as 'imps of the whore of Babylon:'—an undergraduate of Magdalen snatched the bread from the altar after it had been consecrated, and trampled it under foot. Missals were chopped in pieces with hatchets; college libraries plundered and burnt. The divinity schools were planted with cabbages, and the Oxford laundresses dried clothes in the Schools of Arts. Anarchy was avenging superstition, again, in turn, to be more frightfully avenged.

In the country the patron of a benefice no longer made distinctions between a clergyman and a layman. If the Crown could appoint a bishop without the assistance of a *congé d'élire* the patron need as little trouble himself with consulting his diocesan. He presented himself. He presented his steward, his huntsman, or his gamekeeper.³¹¹ Clergy, even bishops, 'who called them Gospellers,' would hold three, four, or more livings, 'doing service in none';³¹² or if, as a condescension, they appointed curates, they looked out for starving monks who would do the duty at the lowest pay—men who would take service indifferently under God or the devil to keep life in their famished bodies. 'You maintain your chaplains,' said the brave and noble Lever, face to face with some of these high offenders; 'you maintain your chaplains to take pluralities, and your other servants more offices than they can discharge. Fie! fie! for shame! Ye imagine there is a parish priest curate which does the parson's duty. Yes, forsooth—he ministereth God's sacraments, he saith the service, he readeth the homilies. The rude lobs of the country, too simple to paint a lie, speak truly as they find it, and say 'he minisheth the sacraments, he slubbereth the service, he cannot read the humbles.'³¹³

There is no hope that these pictures are exaggerated; and from the unwilling lips of the privy council comes the evidence of the effect upon the people.³¹⁴ The cathedrals and the churches of London be-

³¹¹Bucer to Hooper: printed in STRYPE'S *Cranmer*.

³¹²Bucer to Calvin: *Epistolæ TIGURINÆ*.

³¹³Sermon of Lever: printed in STRYPE'S *Memorials*, vol. iii.

³¹⁴Proclamation for Reform of Quarrels and like Abuses in Churches: *Cotton. MSS. Titus, B. 2.*

came the chosen scenes of riot and profanity. St Paul's was the stock exchange of the day where the merchants of the city met for business, and the lounge where the young gallants gambled, fought, and killed each other.³¹⁵ They rode their horses through the aisles, and stabled them among the monuments. They practised pigeon-shooting with the newly introduced 'hand-guns,' in the churchyard and within the walls.

In the administration the investigations which followed Somerset's deposition revealed large fruits of carelessness. 'Whalley,' one of the late Protector's friends, Edward writes in his journal, 'being receiver-general of Yorkshire, confessed how he lent my money upon gain and lucre; how he had paid one year's revenue over with the arrearages of the last; how he bought my own land with my own money; how in his accounts he had made many false suggestions.'³¹⁶

'Beaumont, Master of the Rolls/ Edward records also, 'did confess his offences how in his Office of Wards he had bought land with my own money; had lent it and kept it from me, to the value of nine thousand pounds and above, more than this twelvemonth, and eleven thousand pounds in obligations; how he, being judge in the chancery between the Duke of Suffolk and the Lady Powis, took his title, and went about to get it into his hands, paying a sum of money, and letting her have a farm of a manor of his; and caused an indenture to be made falsely with the old Duke's counterfeit hand to it, by which he gave these lands to the Lady Powis.'³¹⁷

As to the mass of the people, hospitals were gone, schools broken up, almshouses swept away; every institution which Catholic piety had bequeathed for the support of the poor was either abolished or suspended till it could be organized anew; and the poor themselves, smarting with rage and suffering, and seeing piety, honesty, duty, trampled under foot by their superiors, were sinking into savages. From the coast of Sussex was reported the novel and yet unheard-of crime of wrecking. A corn-vessel was driven on shore in a gale; the crew escaped with their lives, and begged for help to save the cargo, but the famished peasants, without other care, plunged upon the corn-sacks.³¹⁸ The people, it was said, 'did increase and grow

³¹⁵*Grey Friars' Chronicle.*

³¹⁶King Edward's Journal: printed in BURNET'S *Collectanea*.

³¹⁷*Ibid.*

³¹⁸Lord Delaware to the Council: *MS. Domestic*, Edward VI. vol. xi. State Paper Office.

too much disobedient, robbing, killing, hunting, without any fear, for lack of execution of the laws.' The ancient yeomanry were perishing under the new land system;³¹⁹ the labourers, chafing on the edge of insurrection, starved, or lived by lawlessness.

The disorganization had penetrated among the traders and manufacturers. English cloth, like English coin, had, until these baneful years, borne the palm in the markets of the world. The Genoese and the Venetian shipowners took in cargoes of English woollens, in the Thames, for the East. English woollens were the staple with which the Portuguese sailed to Barbary and the Canaries, to the Indies, to Brazil and Peru. The German on the Rhine, the Magyar on the Danube, were clothed in English fustian.³²⁰ So it had been once—so it seemed it was to cease to be. The haste for riches, well-gotten or ill-gotten, was become stronger than honour, patriotism, or probity. The guilds were powerless when the officers of the guilds were corrupt. And now came from Antwerp the news that huge bales of English goods were lying unsold upon the wharves, 'through the naughtiness of the making;' and yet more shameful, that woollens, fraudulent in make, weight, and size, were exposed in the place of St Mark with the brand of the Senate upon them, as damning evidence of the decay of English honesty with the decay of English faith.³²¹

Such was the state of things which lay before the successors of Somerset. They were called upon to fight against a corruption which had infected the whole community, and among the rest, had infected themselves. It was easier and pleasanter to earn the title of ministers of God by patronizing teachers who insisted on the worthlessness of 'good works,' and could distinguish correctly between imputed and infused righteousness. Yet there were not wanting honest men who saw in what was round them not the triumph of the gospel, but the disgrace and dishonour of it. Latimer, not always practically wise, was consistent in his hatred of evil, and he was not afraid to speak the truth in the face of the world.

The preacher was closing the third course of sermons which he had delivered before the Court. The King was present, the privy council, and the household. He spoke of Nineveh and of Jonah.

³¹⁹Quod omnium miserrimum est nobile illud decus, et robur Angliæ, nomen inquam yomannorum Anglorum fractum et collisum est.—Petition of St John's College to the Duke of Somerset: Wood's *Annals*.

³²⁰Report and Suit of a Truehearted Englishman: printed in the *Camden Miscellany*.

³²¹Harvel to the Council: *Venice MSS*. State Paper Office.

He sketched the condition of England, where profligacy was no longer held a crime, but something to be laughed at; where the law was so weak, that neither the gentlemen could be compelled to do their duty as landowners, nor the people be kept from rebellion; where avarice seemed to be the only spirit to which men any longer acknowledged obedience, and the officers of the 'Government set the worst and most glaring examples.

'And now,' he said, 'I will play St Paul, and translate the thing on myself. I will become the King's officer for awhile. I have to lay out for the King twenty thousand pounds—a great sum, whatsoever it be. Well, when I have laid it out, and do bring in mine account, I must give 300 marks to have my bills warranted. If I have done truly and uprightly, what should need me to give a penny to have my bills warranted? If I have done my office truly, and do bring in a true account, wherefore should one groat be given? No man giveth bribes for warranting his bills except the bills be false.'

'I speak to you,' he continued, 'my masters, minters, augmentation-ers, receivers, surveyors, and auditors. I make a petition unto you. I beseech you all be good to the King. He hath been good to you, therefore be good to him; yea, be good to your own souls. Ye are known well enough what ye were before ye came to your offices, and what lands ye had then, and what ye have purchased since, and what buildings ye make daily. Well, I pray you, so build that the King's workmen may be paid. They make their moan that they can get no money. The poor labourers, smiths, gunmakers, carpenters, soldiers, cry out for their dues. They be unpaid some of them three or four months, yea, some of them half a year. Yea, some of them put up their bills this time twelvemonths for their money, and cannot be paid yet. They cry out for their money, and as the prophet saith, *Clamor operariorum ascendit ad aures meas*—the cry of the workmen is come up into mine ears. Oh, for God's love, let the workmen be paid if there be money enough, or else there will whole showers of God's vengeance rain down upon your heads. Therefore, ye minters, ye augmentationers, serve the King truly. So build and purchase, that the King may have money to pay his workmen. It seemeth ill-favouredly that you should have enough to build superfluously, and the King lack to pay his poor labourers. I have now preached two Lents. The first time I preached restitution. Restitution! quoth some; what should he preach of restitution? Let him preach of contrition, quoth they, and let restitution

alone; we can never make restitution. Then I say, if thou wilt not make restitution, thou shalt go to the devil for it. Choose thou either restitution or else damnation.'

He mentioned a story of some one who, consciencestricken at one of his sermons, admitted that he had robbed the King, and at different times brought him above 500*l.*, which he had paid over to the exchequer. He had said 'to a certain nobleman that was one of the council, if every man that had beguiled the King should make restitution after this sort, it would cough the King twenty thousand pounds.' 'Yea, that it would,' quoth the other, 'a hundred thousand pounds.' 'Alack, alack!' he concluded, 'make restitution. For God's sake make restitution. Ye will cough in hell else, that all the devils there will laugh at your coughing. There is no remedy but restitution, or else hell.'³²²

Before the same high audience Lever, at Paul's Cross, attributed the sufferings of the country to the misappropriation of the chantry lands, which had been taken to serve the King in his necessary charges; while 'the King was disappointed,' 'the poor were spoiled,' 'learning decayed,' and the hangers-on upon the council only 'enriched.'

'Because ye have no eyes,' he said, 'ye shall hear it with your ears. You have deceived the King and the Universities to enrich yourselves. Before you did begin to be disposers of the King's liberality towards learning and poverty, there were in Cambridge two hundred students of divinity, which be now all clean gone, not one of them left. A hundred others that had rich friends, and lived of themselves in ostles and inns, be gone, or be fain to creep into colleges, and put poor men from bare livings. In the country, grammar schools, founded of godly intent to bring up poor men's sons in learning and virtue, be now taken away by reason of greedy covetousness in you that were put in trust by God and the King, to erect and make grammar schools. The alms yearly bestowed in poor towns and parishes, to the great displeasure of God, yea and contrary to God's Word and the King's laws, ye have taken away.

'The people of the country say that their gentlemen and officers were never so full of fair words and ill deeds as now they be. A gentleman will say he loveth his tenant, but he keepeth not so good a house to make him cheer as his father did; and he taketh more fines and greater rents than his father had. Another saith he would have

³²²LATIMER'S *Sermons before the King*.

an office to do good in his country; but as soon as he hath authority to take the fee to himself, he setteth his servants to do his duty, and instead of wages, he giveth them authority to live by pillage, bribery, and extortion.

'My lords of the laity and clergy, in the name of God I advertise you to take heed. When the Lord of Hosts shall see the flock scattered, spilt, and lost, if he follow the trace of the blood, it will lead him straightway unto this Court.'³²³

There must have been good influence as well as bad in high places, or Latimer and Lever would not have been allowed to denounce to the world in such style the offences of Government officials. Perhaps the accusations were held to be retrospective, and reflected shame on the displaced Somerset. But this was not the whole.

A return of a nobler and also a wiser spirit began to show itself here and there among individuals. While the endowments of schools and hospitals were fraudulently made away with, and, in spite of the change of Government, continued to be pilfered, the Lord Mayor for the year 1549, Sir Rowland Hill, among other large charitable grants, founded and endowed a free school at Drayton, in Shropshire. Sir Andrew Judd, his successor in 1550, 'erected a notable free school at Tunbridge,' built a cluster of almshouses for poor men there, and left lands in trust to find a master and undermaster, and the necessary supplies for the pensioners; and the example was followed widely elsewhere.³²⁴

More remarkable, because implying a vigorous originating understanding, was an attempt, commenced in London by William Cholmley, to create work on a large scale for the men whom the grazing system had thrown out of employment. Accepting the new condition of things, and assuming that thenceforward sheepfarming and cloth-making would form the chief occupations of the country, he set himself to turn the change to advantage with the instinct of a political economist.

English cloth had hitherto been carried to Holland and Belgium to be dyed, and hundreds of thousands of Flemings found lucrative employment in completing the manufacture before it was shipped from Antwerp for other parts of the world. Cholmley having found by experiment that Thames water was as good for dyeing purposes as the

³²³Sermon of Thomas Lever, preached at Paul's Cross: STRYPE's *Memorials*, vol. iii.

³²⁴HOLINSHED.

water of the Low Countries, imported Flemish workmen to teach his own English servants. Having mastered their secret, he offered his discovery, through the Government, as a free gift to his countrymen; and, in urging the council to take advantage of his proposal, he added a remarkable prophecy that, if England would develop its manufactures, and rely only upon itself for the completion of them, the trade of Antwerp would droop, and London become the mart of Europe.

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The country in due time would reap the fruits of the intellect and enterprise of Cholmley and others like him. The Government of Edward VI. could afford but small attention to such things. The council, had but one all-absorbing occupation—to find means, without sacrificing their own share of the public plunder, for paying the debts which Somerset had bequeathed them. The bills of the Flanders Jews, renewed half-yearly with interest at fourteen or fifteen per cent., and twelve per cent, deducted also on the exchange, were a frightful incubus. They must pay, or they must give bonds to pay, in sterling silver, while the Crown rents and the subsidies were paid in a currency which was but half its nominal value; and the problem taxed to the uttermost their financial ingenuity. The four hundred thousand crowns were paid by the French for Boulogne, and perhaps cleared off some trifle of the score; but the possession of so large a sum of money tempted the treasury into speculations which would kill or cure. Of the second payment of the French,' says Edward, ³²⁶ 'ten thousand pounds were appointed to win money to pay the next year to outward countries, ³²⁷ and it was promised that the money should double every month.' The fate of the ten thousand pounds need not be inquired into. The *Flanders State Papers* contain little at this time but monotonous repetitions of the spendthrift's story—bills renewed as they fell due, and fresh loans to pay the interest of the old.

The currency was the great resource; and a notable scheme was invented by which it was hoped the debts in England could be all cleared off. 'It was agreed,' Edward wrote, 'that Yorke, Master of the Mint at the Tower, should make his bargain with me—viz., to take the profit of silver rising out of the bullion that he himself brought should pay all my debts to the sum of 120,000*l.* or above, and remain

³²⁵Request and Suit of a Truehearted Englishman: *Camden Miscellany*.

³²⁶Journal of Edward VI.: BURNET'S *Collectanea*.

³²⁷*i. e.*, to the Jews at Antwerp.

accountable for the overplus, paying no more but 6s. and 6d. the oz., till the exchange was equal in Flanders—also that he should declare all his bargains to any should be appointed to oversee him, and leave off when I would; for which I should give him 15,000*l.* in prest, and leave to carry 8000*l.* over sea to abase the exchange.³²⁸

From this scarcely intelligible entry it would be gathered only that some financial evolution was about to be practised which would make two shillings out of one, or something to that effect; and that the Crown was to commence with a sacrifice of 15,000*l.* The real nature of the project, however, with the probable effects to be expected from it, was explained a few weeks after, in a remarkable letter from a London merchant to Cecil; and it is well to see with contemporary eyes the extent and bearing of that deep evil which the Government, in despair perhaps of any better resource, persisted in inflicting upon the country—teaching the people to execrate, however unjustly, the very name of a Reformation which had brought so dark a curse upon them.

'Forasmuch,' wrote a certain William Lane to Cecil, 'as³²⁹ you be in place where matters concerning our commonwealth are many times talked of, and I in my heart wishing a redress of things that seemeth to me amiss, I am so bold as to utter to you my judgment in these cases following, without redress whereof our commonwealth shall run headlong into more misery; and for that I see a present mischief in hand or coming, I would it were prevented with speedy remedy.

'Of late not twelve days passed I talked with Mr Yorke of the mint, who showed me that he was in hand to make a new coin of fine silver that should be eleven oz. fine, and coined in pieces of two shillings the piece, whereof five pieces or a little more should make one oz.; whereof I made the reckoning that one oz. of silver fine being sold to the mint at 6s. 8d, being coined, should make eleven shillings to be paid out again, or little more or less. I said, although the silver were fine, yet was it too dear and the money naught. He answered, that it was richer than the other money late made, or now amaking, and much other communication we had not.

'Now, forasmuch as it is well known that the exchange between our realm and other foreign realms is the very rule that settleth

³²⁸Edward's Journal: BURNET's *Collectanea*.

³²⁹William Lane, Merchant of London, to Sir William Cecil: *MS. Domestic*, Edward VI. vol. xiii. State Paper Office.

the price (goods cheap or dear) of almost all things whereof is no scarcity, as well of the commodities and merchandise of this realm as of other foreign commodities brought hither, I will therefore declare what present mischief hath happened since my communication with Yorke, and in these six days hitherward. The exchange as well for Flanders as for France and Spain among the merchants has fallen about seven per cent, by reason of the news of the new coin coming forth, which the people will more better make the reckoning of, and understand the value of now in fine silver, than before in the mixture—which fall of the exchange cometh for fear of the littleness of our silver coin, and is the only cause that all we the merchants of England do rob England and carry away all the gold in the land to foreign realms, for that it is to a more profit than the exchange. And the like of this mischief happened here in England in the months of June, July, and August last, in the which three months were carried out of England not so little as 100,000*l.* of gold (and yet did silver come into England as fast and all for the private gain in coining the silver), for that the pound of gold is richer than the pound of white money; which mischief now present doth cause our gold to be bought up. And when of late the King did call the French crown from 7 shillings to 19 groats, they be now bought up for 7*s.* 3*d.* and 7*s.* 4*d.* , to be carried away as all other gold; so that shortly we shall be quit of all our rich money for a base coin; and then shall follow a greater fall of the exchange, which is the father of all dearth of almost all things that man occupieth.

‘If we in England should coin six years to come so much white money as we have done in six years past of the value that now goeth, the plentifulness of the money and the baseness thereof together should bring our commonwealth to that pass that, if you should give a poor man three shillings a day for his day’s labour, yet you should scarce pay him such a hire as he might live thereof, which God defend should come to pass; and the private gain in coining silver is the cause of long continuance in coining still; which excess of gain in coining, and continuance of the same, shall bring to pass as is aforesaid, if speedy redress be not had in that behalf. And yet to new fine our base coin cannot be done without more charge than maybe borne of the King or the commons.

‘Further, this said fall of the exchange within these four days hath caused, or will cause, cloth to be bought at 56*l.* the pack, which before

would not have been bought for 52*l.* the pack; so that you may perceive that the exchange doth engender dear cloths, and dear cloths doth engender dear wool, and dear wool doth engender many sheep, and many sheep doth engender much pasture and dear, and much pasture is the decay of tillage, and out of the decay of tillage springeth the scarcity of corn and the people unwrought, and constraineth the dearth of all things. I have, for these six or eight years passed, perceived our commonwealth to be grown into such a costliness and chargeableness of living and expense of foreign commodities, a great part not needful, that the trial being made by the King's customs, you shall find that we spend and consume within this realm such sums and quantities of foreign commodities that all the wool, cloth, tin, lead, leather, coal, and other merchandise to be carried out of this realm, is not able to countervail, pay, or recompense for the said merchandise brought into the realm by one quarter part at least. And so long as the bringing in of superfluous commodities shall exceed in value the richness of our commodities carried out, so long and so much must you needs grant me, that our realm is impoverished, either in money or otherwise. That man which spendeth in a year more than the stynte of his lands and travail of his body doth gain, must needs decay and grow into debt, as doth our whole realm in this point. And yet of late days I understand that there is a restraint of lead not to be carried out of England, which, whosoever did invent, studied as much the hurt of the commonwealth as he that invented that no coals should be conveyed from Newcastle into any foreign port but in a French ship, which, although it is but a coal matter, is such a hindrance to a part of our commonwealth as is worthy of redress.

'And, forasmuch as I have spoken of coals, I will say a little more. If it were well-considered what was to be done in the coals of England for the benefit of our land, and an order therein set to the most commodity of this realm, it should be found much more beneficial to the commonwealth than it is now taken for; for it might well maintain in England three of our decayed towns or cities, besides the setting on work of three hundred ships daily more than it doth, and the mariners thereof.

'But in the mean time, and out of hand, for God's sake, sir, set forward some remedy for the other matter, that we the merchants carry not away all our rich money, and leave the base money here still. Once

the excess of the private gain in coining to other men—*supposed as to the King*—may be taken away, and also our base coin of white money called down to fifteen shillings in the pound though it be not enough, yet will it do great service for the time, and keep many things at a stay which else will come to misery. And although this takes no place, for divers respects known to the rulers and not to me, yet I say there is many more reasons herein to be made which I omit. Sir, I most heartily desire you not to be offended with me for writing this my poor and simple judgment in matters of weight appertaining to counsellors or other wise men; for God I take to record, my heart bleedeth in my body to see and perceive the things that be out of frame, and the misery coming towards us, if it be not prevented.'

Free English thought would reform in time the economy of the State, as well as the religion of it; but Governments are deaf to remedies of slow growth. Cecil preserved the letter among his papers—perhaps he submitted it to his chiefs, but to no present purpose.

The immediate scheme of the Master of the Mint came to nothing. His purchase of bullion in Flanders was interrupted by the authorities at Brussels. But the plate which England could supply travelled along the same bad road, and all the mints, through the whole year of 1550, plied their abominable trade. Zeal against superstition was the universal pretext for the pillage of the churches. The shrines and crucifixes were already gone. This year, 'the King's Highness having need of a mass of money,' an order of council went out for all the plate remaining in all the churches in England to be brought to the treasury. ³³⁰ 'All the church plate in the Tower was to be melted into wedges' for the great cesspool; ³³¹ and so narrow was the gleanings, that 'the gold, silver, and jewels' were 'ordered to be stripped' from the mass books, legend books, and such like, in his Highness's library at Westminster. It is to be admitted that the public expenditure was slightly reduced, the debts partially paid off—but it was only by defrauding the public of the means—through the currency. ³³² To conceal the

³³⁰*Privy Council Records*, Edward VI. MS.

³³¹*Ibid.*

³³²Owing to the carelessness with which the public accounts were kept, it is difficult to ascertain to what the debts of the Crown really amounted at any given time. Bills were renewed as they fell due, and the calculation of money to be provided at any given time only touched what was immediately necessary. It will be seen, however, that, on the whole, Warwick would have accomplished something, had not the remedy which he employed been worse than the disorder to be cured.

trick which they were practising, or to prevent the consequences of it, Warwick and his friends endeavoured to enforce violently an arbitrary system of prices. The harvest of 1550 was a bad one. The existing scarcity was aggravated by a failure of the crops. The magistrates were ordered to give the farmers everywhere a scale on which they were to dispose of their produce. If they would not sell, the constables were to enter into possession, to survey their yards, their cattlesheds, and their dairies, and to sell for them, at the official prices, whatever should appear to have been raised for the market, and not for consumption at home: the proclamation having been received with an outcry, the magistrates were to raise the force of the shires if necessary, to arrest and send to London any wanton or disobedient person who ventured to resist.³³³

If it was so difficult, however, to enforce just prices against the opposition of self-interest, it was not to be supposed that English farmers would submit to have unjust prices forced upon them. The council quailed before the howl of indignation which rose over the country when force was threatened. In a few weeks they were compelled to confess their error, and 'from henceforth to suffer articles of food to be at liberty, and to be sold to no other than the buyers and sellers could reasonably agree upon.'³³⁴

But it was a bad business—not to be forgotten, when we would explain to ourselves why the English nation acquiesced so readily in the reaction under their coming sovereign.

To return to more interesting subjects.

The Duke of Somerset, on the 18th of February, received a formal pardon.³³⁵ In the beginning of April he resumed his duties as a privy councillor. On the 3rd of June his reconciliation with Warwick was cemented by the union of Lady Anne Seymour with Lord Ambrose Dudley. The summer pageant of the marriage ceremony was at Shene upon the Thames. The King was present, and the French ambassadors also, who had arrived in England on the conclusion of the peace, and had been entertained by the lords in a series of gor-

³³³MS. *Domestic*, Edward VI. vol. xi.

³³⁴MS. Ibid.—Sir John Mason, writing to Cecil, condemned the conduct of the Government as utterly wrong and useless. 'Nature will have her course,' he said, 'and never shall you drive her to consent that a pennyworth shall be sold for a farthing.'—TYTLER, vol. i. p. 341.

³³⁵RYMER.

geous entertainments.³³⁶ On the 4th, the day following, Lord Robert Dudley (Earl of Leicester afterwards) was also married at the same place—the fact being chiefly memorable through its consequences—to the daughter of Sir John Robsart.

These scenes of brilliancy had followed close upon another scene which was not so brilliant. In May, Joan Bocher, a Kentish woman, who had been left in prison by Somerset's heresy commission, had been sent to the stake. She was a pious worthy woman, it appears, a friend of Anne Askew, who had died the same death a few years previously. Her crime was an erroneous opinion on the nature of the incarnation; and, inasmuch as the statute for the punishment of heresy by death had been formally repealed, the authorities were obliged to fall back upon the traditions of the common law—much as if a judge in these days was to order a man to be hanged for sheep-stealing, notwithstanding the alteration of the law, because hanging was the ancient traditionary treatment to which sheep-stealers were liable.³³⁷ Ridley reasoned with Joan the day before her execution: 'it was not long ago,' she said, 'since you burnt Anne Askew for a piece of bread, yet came yourselves to believe the doctrine for which you burnt her; and now you will burn me for a piece of flesh, and in the end you will believe this also.'³³⁸ She would not recant, and so she died, being one of the very few victims of the ancient hatred of heresy with which the Reformed Church of England has to charge itself. Yet, although Protestants were instinctively more susceptible of the altered feelings which the progress of time and of the world brings with it—although earlier than Catholics they awoke to a wiser judgment of the nature of theological errors—the doctrine of persecution is nevertheless an essential part of all dogmatic systems, and the causes which first compelled the Reformed Churches to toleration, have acted more slowly, but with equal effect, upon their rival. The Court of Rome could as lit-

³³⁶ EDWARD'S JOURNAL.

³³⁷ The panegyrists of Edward VI. have described his pathetic agony at signing the death warrant. The entry in his Journal on the subject shows no particular emotion. It is a notice of the punishment of a criminal for an offence for which he certainly had no sympathy.

Joan Bocher, otherwise called Joan of Kent, was burnt for holding that Christ was not incarnate of the Virgin Mary, being condemned the year before, but kept in hope of conversion—the 30th April the Bishop of London and the Bishop of Ely were to persuade her. but she withstood them, and reviled the preacher that preached at her death.—Edward's Journal: BURNET'S *Collectanea*, p. 208.

³³⁸ STRYPE, *Memorials*, vol. iii.

the venture at the present day to send an unbeliever to the stake, as the Court of St James's; and the code of canon law for which the Reformers of the Church of England desired the sanction of Parliament, was no more tolerant of what the Church of England considers heresy, than the code of the Inquisition.³³⁹

The council could prosecute heretics. They were earnest, too, in the purification of the faith from superstition. The conscientious acceptance of the Prayer-book was possible as yet to believers in transubstantiation. The Prayer-book, with the help of the foreign refugees, was about to be revised, and Ridley was no sooner settled in the See of London, than he undertook in his own diocese to anticipate the alterations. On the 11th of June, at night, the altar at St Paul's was taken down, and a table erected in its place, signifying in the change that the body of the Saviour was no longer broken and offered in the sacrament, but that human beings merely partook together of innocent bread and wine.³⁴⁰ The council followed up the Bishop, and directed the same change to be introduced throughout England. The Bishop of Chichester, hesitating to obey, was summoned to London, and shut up with Gardiner, Bonner, and Heath. The Bishop of Durham, who was also one of the recusants, being one of Henry's trustees, was less easy to deal with. A charge of conspiracy was brought against him;³⁴¹ but it broke down for want of evidence, and for the present he was left

³³⁹ Cranmer and the other authors of the *Reformatio Legum*, include, in a list of heresies, 'The denial of the inspiration of the Bible,' or 'of the inspiration of the Old Testament,' or 'of the two natures in Christ.' For the way in which these opinions were to be dealt with, they say: 'Fideles omnes in nomine Dei et Domini nostri Jesu Christi obtestamur ut ab his opinionibus pestilentissimis se longissime abducant. Et ab illis etiam vehementer contendimus qui rempublicam et ecclesiam administrant ut istas hæreses ex regno nostro penitus evellendas et radicitus extirpandas quantum in se est curent.'

A heretic was to be tried by a bishop. From a bishop he might appeal to the Court of Arches, and from the Court of Arches to the King's Bench.

'Qui vero,' the proposed law continued, 'qui vero nec admonitionem nec doctrinam ullâ ratione admittunt sed in Hæresi prorsus induraverunt, primum hæretici pronuntientur. A judice deinde legitimæ feriantur excommunicationis supplicio. Quæ sententia cum lata fuerit, si infra spatium sexdecim dierum ab hæresi recesserint, primum exhibeant publice manifesta pœnitentiæ indicia. Deinde solenniter jurent in illâ se nunquam hæresi rursus versaturos. Tertio contrariæ doctrinæ publice satisfaciant, ac his omnibus impletis absolvantur—Cum vero penitus insederit error ... tum consumptis omnibus aliis remediis ad extremum ad civiles magistratus ablegetur puniendus, etc.'—*Reformatio Legum*.

³⁴⁰ STRYPE, BURNET, STOW. *Grey Friars' Chronicle*.

³⁴¹ *Records of Privy Council*, MS.

at liberty. Dr Chedsey was sent to the Fleet for seditious preaching, and White, the warden of Winchester, for having in his possession anti-Protestant books.³⁴²

The next movement—in the confidence that the Emperor was not in a situation to resent it—was against Mary; and the consequences were more serious than the council expected.

I must again review briefly the state of things on the Continent. On the 10th of November, 1549, the chair of St Peter fell vacant. Paul III. had ended his pontificate—broken-hearted, it was said, at the revolt of his grandson Octavio; but his age (he was 82), and the anxieties and labour of the fifteen years of his reign, would rather cause surprise at the strength which had endured so long. Men who have spent their lives in political battles, who have had some years' experience of the dispositions of their fellow-creatures, do not die of small disappointments, and the intellectual sinew of Paul would not have been broken by the disobedience of a boy. Yet, if by such a cause his last hours were embittered, he was punished in his solitary weakness of affection for his kindred. If consistency and dauntless bearing command respect wherever they are found, Paul III., as a ruler of men, may claim a place among the politically great. On the death of Clement VII. the Papacy was dying, the human life was gone from it. But the phantom had risen from the grave, and was again towering up over Europe in menacing grandeur. Scotland had been saved; France, which was trembling on the edge of revolt, had returned to partial allegiance; the Smalcaldic League was broken; and, in dying, Paul might feel that the Reformation had spent its force, that the worst was over.³⁴³ But who was to succeed? France had its nominee,

³⁴²MS. *Ibid.*: STRYPE's *Cranmer*.

³⁴³Clarissimæ memoriæ Princeps ... arma sæpius moverat adversus Christi hostes, Catholico sanguine a se nunquam respersa. Inchoaverat diuque promoverat concilium ex obstaculis perarduum, ex rebus in eo agitatis amplissimum, et ad reparandam disciplinam prævalidum, inter reliqua, quæ unquam in ecclesiâ coaluissent. Immoderato suam erga stirpem amore se honiinem prodidit. De reliquo herois nomen apud ecclesiam nactus est.—PALLAVICINO.

Of the personal character of Paul III. strange stories were afloat. Before his death a pamphlet appeared dedicated to one of the Colonnas, and ascribed to Bernard Ochín—(the account of it is given by Sleidan)—charging Paul with crimes which the annals of the Borgias would not parallel. The writer, with circumstantial minuteness, declares that the Pope in his youth had been imprisoned for two murders—that he had poisoned his mother and one of his nephews—that he had poisoned a sister whom he had first corrupted, &c.

and the Empire had its nominee. Reginald Pole offered himself in the interests of religion. An Italian faction, under the young Cardinal Farnese, Octavio's brother, held the balance among the rival parties, and Farnese was said to be Imperial. It was reported at Brussels that he had promised Charles twenty voices in favour of any one that he might name; and scandal added that, to settle all questions, Charles might perhaps nominate himself.³⁴⁴ Such a solution of European difficulties would have been as complete as it was, unfortunately, impossible. The cardinals went to work at the end of December, and the first favourite was Pole. Farnese was personally for him, the Imperialists were not against him, and Pole at one time was so confident of success, that he composed an oration to the conclave to be delivered on his election.³⁴⁵ But the Italians generally were lukewarm, and the French were hostile. Once, at a midnight meeting, if we may believe a theatrical story of Beccatelli, there was a moment when the feeling was so far in his favour that he might have been chosen on the spot by adoration. But the opportunity, if it existed, was allowed to pass. Morone, a decided Imperialist, was proposed next, and proposed by Pole himself; but the French were able to keep out Morone, though unable to carry their own candidate Salviati; and, in the end, Farnese brought forward the president of the council at Bologna, Cardinal del Monte; del Monte having privately promised that, if elected, he would forsake France, no longer oppose the Emperor, restore Parma to Octavio, and reunite the council at Trent.

Easy, timid, and self-indulgent, Cardinal del Monte was a neutral character on which opposing factions could agree. On him the choice fell at last; and under the name of Julius III. he occupied (his dwarfed dimensions could not fill) the vacant throne of Paul III. His first act showed the conduct which was to be looked for from him. A Pope, on his election, was allowed by custom to bestow the red hat which he vacated at his own private pleasure. Julius III. raised to the high dignity of a cardinal a favourite and beautiful page who had the care of his Holiness's monkey. The new Jupiter, the irreverent world exclaimed, had taken up into heaven a second Ganymede.

The probability is immeasurably great, that all charges produced long after date against persons who have excited the animosity of a theological or political faction are lies.

³⁴⁴Sir Thomas Cheyne to the Council: STYKE, vol. iii. p. 298.

³⁴⁵Gratiani: quoted in PYE's *Life of Pole*.

So much for the Papacy. The Emperor now supposed that his difficulties would be at an end. The council would collect again at Trent, and the Germans would be compelled to submit to it. The Diet was summoned to meet at Augsburg at midsummer; Prince Philip was sent for from Spain; and theological and political questions merging into one, the representatives would be invited, not only to give their allegiance to the council, but to make the Empire hereditary, and to nominate Philip as Charles's successor. Ferdinand, King of the Romans, and presumptive successor, had promised, it was said, to relinquish his pretensions in Philip's favour;³⁴⁶ and though Ferdinand disclaimed any such engagement, and his son Maximilian had no inclination to make way for his cousin, the Emperor believed that he could bear down opposition. The Pope was in his interests, and the Catholic States of Germany would act as the Pope wished; while they were secretly promised that the Lutheran divines should appear at the council, not as members upon equal terms, but as accused persons, upon their trials.³⁴⁷

Magdeburg continuing to hold out against the Interim, was declared under the ban of the Empire. The London council having followed in the ways of Somerset, there was no longer a question of a renewal of intimacy with England. After a quarter of a century of patience Charles imagined at last that he could declare himself openly as the enemy of heresy in all its forms.

On the 29th of April, before leaving Brussels for the Diet, he issued an edict for the government of the Netherlands, which bore in time its fatal fruit in the Alva persecutions. He had done his best, he said, by moderate measures to keep his subjects to the true faith. He had learnt, to his sorrow, that not only were they infected too deeply to be cured by moderate means, but that foreigners who traded amongst them (he alluded particularly to the English), were systematically spreading contagion in their towns. Be the consequences what they might, heresy should now come to an end; heretical books should circulate no longer in his dominions; he would have no conventicles, no re-baptizings, no conspiracies, no disputings on doubtful passages in Scripture. The saints should receive their honours; the municipal liberties of the towns should no longer protect evil deeds and evil doers; and he would trifle no longer in inflicting punishment.

³⁴⁶Sir John Mason to the Council: TYTLER, vol. i. p. 296.

³⁴⁷*Ibid.*

'Men and women,' said the Emperor, 'who disobey my command shall be punished as rebels and disturbers of public order. Women who have fallen into heresy shall be buried alive, and men shall lose their heads, even if they desist from their errors; if they continue obstinate, they shall be burnt; and whichever be their punishment, their goods shall be forfeited: ³⁴⁸ they shall be incapable of making a will: from the moment of their proved delinquency, their acts as citizens shall be null and void: if man or woman be suspected of heresy, no one shall aid, protect, or shelter him or her; they shall be denounced to the nearest inquisition. Those who have fallen into heresy, who of their own accord have repented and been received to grace, if they again reason or argue on the subject of their errors, shall be punished as relapsed: those who are suspected, although there be no proofs against them, shall abjure and do penance; no honour, public office, or dignity whatsoever, shall be conferred on any man who has once been tainted: no stranger shall be admitted to a lodging in any inn or private house unless he bring with him a testimonial of orthodoxy from the priest of the place where he has resided. The inquisitor-general shall have power to examine into the belief of every man, from the highest to the lowest, and all and any officers of all kinds shall assist the inquisitor, at their peril if they neglect or refuse; those who know where heretics are concealed, shall denounce them, or shall suffer as heretics themselves: those who give up heretics to justice shall not be liable to punishment, though they be themselves heretics, if they will for the future conform. And the penalties hereby threatened shall be inflicted, and shall not be relaxed; and judges who neglect their duty shall not escape unpunished. Those who are cited and do not appear shall be assumed to be guilty, and treated as guilty; those who intercede for offenders shall suffer as abettors of heresy.'

The circumstantial minuteness of the edict carried terror into every town in the Low Countries. Orthodoxy was no security, unless accompanied with the extinction of all human charity. From city and village streams of refugees poured out toward the ports, and on board vessels bound for England. England became the island of refuge to which the exiled Flemings brought, with them their

³⁴⁸J'ordonne que ceux qui agiront contre ces défenses soient punis comme séditieux et perturbateurs du repos public, et je condamne les femmes à être enterrées toutes vives, et les hommes à perdre la tête en cas qu'ils désistent de leurs erreurs, mais tous à être brûlés s'ils y demeurent obstinés, et à la confiscation de leurs biens quelque supplice qu'ils subissent.—SLEIDAN, vol. iii. p. 64.

arts and industry; and, as forlorn and naked they set foot upon the British shores, the honourable humanity with which they were received, sheltered, and sustained must be counted among the not too many virtues of Edward's ministers. Austin Friars was made over to those who remained in London, with lands and farms to support their clergy; and the clergy themselves were enrolled as a body corporate and exempt from the Bishop's jurisdiction.³⁴⁹ The Duke of Somerset at his own expense established a colony of Walloon weavers among the ruins of Glastonbury Abbey.³⁵⁰

The Emperor meanwhile went resolute to Augsburg, where he carried a vote in the Diet binding Germany to submit to the Council of Trent. The Duke of Mecklenburg entered the territory of the Magdeburgers. They made a sortie upon him, and were defeated utterly, with the loss of their artillery. The fate of Lutheranism appeared to be sealed; yet the Magdeburgers still would not surrender. Surrender, they said grandly, implied the mass, and the mass they would receive never. But they could die without difficulty; they made up their minds to the worst; and the news of the edict in the Low Countries did them service, bringing the old soldiers of the Landgrave and the Elector to their aid in thousands. In all reasonable probability, however, their resistance was hopeless. The Diet voted a force, the command of which they petitioned the Emperor should be given to Duke Maurice. The Emperor, who, notwithstanding the Duke's resistance to the Interim, and his suspicious absence from Augsburg (he had been represented there by deputy), either trusted him or did not choose to appear to distrust him, consented; and Maurice relieved the Duke of Mecklenburg, took the field in November, and laid formal siege to the city.

It was at this moment, when the Emperor was at the height of his confidence, and England was harassed, distracted, and impoverished, that the opportunity was taken to withdraw the privilege from the Princess Mary of using her own religion, and of compelling her to submit to the Act of Uniformity. When a hint of what was intended went abroad, the Imperial ambassador made a formal request that she should not be interfered with. He was met with a direct refusal; and although no immediate steps were taken, yet Mary had reason to know that before long constraint would be used towards her, and

³⁴⁹RYMER.

³⁵⁰MS. *Domestic*, Edward VI. State Paper Office.

arrangements were contrived between herself and the Regent of the Low Countries for her escape to Antwerp. The Flemish admiral, Skipperus, was on the coast of Essex, and had been inspecting the landing-places.³⁵¹ The princess was to ride down some night, under cover of the darkness, from her house at New Hall, and Skipperus would be in the way to carry her off. The project was not new. On her mother's death, fifteen years before, a similar escape had been contemplated, and had been relinquished, perhaps out of dread of Henry's resentment.³⁵² The difficulty was now less considerable. Mary was older and more experienced. Her escape, it was thought, would be easy, and when accomplished, would be followed by war and insurrection.³⁵³ The peers of the old blood, more than ever discontented at the aspect of public affairs, had withdrawn in displeasure to their estates; and as Warwick attached himself more and more to the ultra-Protestants, a second schism was making itself felt among the council.³⁵⁴ A State paper, unfortunately imperfect, reveals the opinion of Sir William Cecil on the seriousness of the situation.

'The Emperor,' says this paper, 'is aiming at the sovereignty of Europe, which he cannot obtain without the suppression of the Reformed religion; and unless he crushes the English nation, he cannot crush the Reformation. Besides religion, he has a further quarrel with England on account of the Lady Mary, and the Catholic party will leave no stone unturned to bring about our overthrow. We are not agreed among ourselves. The majority of our people will be with our adversaries;³⁵⁵ and it is reasonable to think that, although so

³⁵¹ Edward's Journal, July 13; BURNET's *Collectanea*, p. 21.

³⁵² The plan is detailed in a long letter from the French Ambassador to Charles V., dated Feb. 17, 1536, among the archives at Brussels. The ambassador's alarm for himself is expressed with much emphasis. 'S'il estoit question d'entendre et procéder a l'exemption de la dicte enterprise, il ne seroit Thonneur de votre Majesté que je restasse icy: car tout le raonde ne sauroit oster de crédulité à Roy par quelque couleur on couverture que l'on y sçait donner, qui ne tint que fusse l'inventeur et promoteur du tout: et par conséquent chose du monde ne me pouvoit eschapper qu'il ne me fit passer le pas. Car en ce comme autres choses voudroit il montrer sa grandeur et donne d'entendre qu'il n'a respect ne crainte de personne.

³⁵³ There came divers advertisements from Chamberlain, ambassador with the Queen of Hungary, that their very intent was to take away the Lady Mary and so to begin an outward war and an inward conspiracy.—EDWARD's *Journal*, August 14.

³⁵⁴ Argumenta periculi nisi curâ divertatur, imminetis.—In Cecil's handwriting: MS. *Germany*, bundle 15, State Paper Office.

³⁵⁵ Non consentimus inter nos ipsos, neque major multitudo defensare est hanc causam sed potius susceptare adversariorum causam. Major pars magnatum qui

long as all is quiet the Crown can maintain tranquillity, should war break out, they will listen rather to what they will consider the voice of God calling on them to restore the Papacy, than to the voice of the King calling on them to obey.³⁵⁶ The great body of the peers—some of the council—all the bishops except three or four—almost all the judges and lawyers—almost all the justices of the peace—the priests and vicars—will be on the same side; and the commons are in such a state of irritation, that they will rise at a word.'

To add to the peril, there seemed a danger of a fresh rupture with France. In the late peace all questions save that of Boulogne had been reserved for future settlement, and among these were many which could not be allowed to lie over. In the anomalous character of the war, during its earlier stages, merchant ships had been taken on both sides by privateers, and it was uncertain whether they were lawful prizes. The French desired that a joint commission should sit to settle all maritime claims. The English council said that they had no power by law to consent to such a commission; their own Admiralty Court had been constituted for the express purpose of dealing with maritime questions, and dealing with them by the civil law of Europe, not by the common law of England. The complaints of French merchants against English cruisers must be heard there or nowhere.³⁵⁷

absunt ab aulâ, et aliqui eorum qui hic etiam agunt, Episcopi omnes præter tres aut quatuor, iudices et legisperiti pæne omnes, justiciariorum pæne omnes, presbyteri et sacrificuli qui suam [agunt] plebem movere possunt in quâvis parte; quia universa plebs irritatur adeo ut facile velit sequi mutationes quascumque.' This paper has a date upon it of November, 1551. But the date on papers of loose notes cannot always be depended on, and internal evidence would refer it rather to November, 1550. By the next year there were more than three or four bishops on the Reforming side.

³⁵⁶Nam ut aliqua æstimatio habeatur cogitandum est quamdiu princeps quietum habeat regnum, tamdiu legibus possit suos regere. Sed si in arma ob defensionem causæ forte fuerint vocati, tum dubium est velintne audire principis vocem, an ut illi indicant Dei pro restaurando Papismo.

³⁵⁷As concerning the commissions, answer has been made that in all the Parliaments and generally in the courts of France where law is ministered, though some places have their particular customs, the law civil is observed, kept, and practised, and so it is likewise in the great courts of Brabant, Flanders, and Malines. So that it is easy enough, either for the French King or the Emperor, to appoint persons in any of the said courts or Parliaments to hear any cause that the princes shall think good to appoint and commit unto them. But throughout all this realm of England, in all the courts of justice, are observed the laws of the realm, and all causes and controversies judged by the same, so as no other laws have place—which laws of the realm are not the civil laws, nor are grounded upon them, nor have no conformity unto them, so as the knowledge of the civil law serveth nothing at all for the

Another cause of difference was the Calais frontier. On the edge of the Pale an abbey had stood called Sandingfeldt, which, in old times, with the estates attached to it, had, as Church property, been neutral ground. The abbey had been suppressed, and the land secularized, but the rights over it asserted by the English were denied by the French. They, too, on their side, entered into possession, built farms, and broke the ground, and a series of petty collisions had followed between the labourers.³⁵⁸

On the part of the English Government, a third grievance appeared, which seemed as if it was caused by a feeling of revenge for their bad success in Scotland. The natural route from Paris to Edinburgh lay through London. The Archbishop of Glasgow, returning out of France, neglected to apply for a passport; he was taken prisoner, and held to ransom; and Lord Maxwell, who did apply, was refused.³⁵⁹ The prisoners taken at St Andrew's, though

understanding or exercising of them. Wherefore the King's Highness can appoint none out of his ordinary courts of this realm to hear any kind of causes unless the said causes be judged and determined by the laws of the realm, and not the civil law. And we think the French King's subjects, being ignorant of the said laws of the realm, would not gladly have their causes and matters judged thereby.... Thus it is that forasmuch as strangers are not acquainted with our laws, to shew them favour, the King's Highness's progenitors have thought good to erect and set up a court of matters chanced upon the seas or out of this realm; in the which court process is made and justice is ministered according to the law civil, the which court is called the Admiralty Court; where the said strangers' causes are examined, whether the controversy be between themselves or against the King's subjects. And to the intent that strangers should have the better expedition of their causes, it is ordained that in the said court that process be made *summariè et de pleno*. And for because that the chief resort of all strangers in this realm is London, therefore the said admiral hath set up his court at London. These things considered, we cannot see nor devise how the French King's subjects' causes may be discussed more for their ease and commodity than in the said Admiral's Court.'—The Council to Sir John Mason, September, 1550: *MS. France*, bundle 9, State Paper Office.

³⁵⁸ *MS. France*, bundle 9, State Paper Office.

³⁵⁹ The council gave a curious reason for their refusal. 'The common passage of Scots and Frenchmen through the realm,' they said, 'is so cumbrous and hurtful to the King's Majesty's subjects, that therein is daily complaints made of the outrages and evil usages of the King's subjects by such Scots and French as daily pass through the realm by post. And yet because we would not seem ungrateful, we have licensed such Frenchmen as come expressly from the French King, or that be commanded by their ambassadors here. And certainly there is double more passage of the French King's servants through this realm than is of the King's Majesty's own—insomuch as for the ease of the people no Englishman here is suffered to ride by post, but upon his own horse.'—Council to Mason: *MS. France*, bundle 9, State Paper Office.

still detained in France, had been released from, the galleys and prisons at the peace, through English intercession. The French Court desired that the Archbishop and other Scotch prisoners in England should be set at liberty in return.³⁶⁰ Mason, instructed by the council, said that, if the Scots might go where they pleased, the Archbishop should go also. Henry answered good-humouredly, but nothing was concluded.

Two factions continued to divide the Paris Government. The Ultramontanes, the Guises, and Catherine de' Medici, were for peace and alliance with the Emperor. They hated England; they desired to follow up at Calais their success at Boulogne, and they made the most of these petty disagreements. Montmorency and the King inclined to the older anti-Austrian policy, and the tone of the Court changed from day to day.³⁶¹

The English council, on mature thought, released the Archbishop, and Henry released the Scots; but Mason wrote that he had no confidence, and knew not what would happen. 'Trust them,' he said, "as you will best trust to yourselves; and the best trusting of another is so to trust him as, if he would deceive, he shall not be able to bring his deceitful intent to pass."³⁶²

Owing to cross influences and want of will, the other differences could not be arranged. The Constable and the King declared privately their own desire that peace might be maintained, but with an evident doubt if it would be possible. 'Means might be found,' they hinted, that is to say, the English might, if they liked, relinquish formally their claims on the Queen, of Scots, and accept a French princess for

³⁶⁰'I have, at your request,' said the French King to Mason, 'set at liberty the Scots, which else, by yon sun, should have rotted in their prisons, so cruel was their murder. By my troth, I cannot tell how to answer the world for lack of justice—one good turn deserves another.'—Mason to the Council, July 20: *MS. Ibid.*

³⁶¹Doctor Wotton, writing to Cecil, said: 'The danger is lest our trusty and well-beloved, I dare not say right trusty and well-beloved, friends of France, will use the occasion when she serveth for their purpose; and knowing the great desire that they have to live at peace with us—that is to say, to have Calais again—(for the keeping thereof, they say, is the only cause of any war betwixt us, and they having recovered that once from us, would not fail ever after to live in peace with us), an orator of less eloquence than Tully might peradventure persuade me that our said friends, having such occasion, would have as much respect to their commodity as to their promises.'—Wotton to Sir William Cecil; *MS. France*, bundle 9, State Paper Office.

³⁶²Mason to the Council, November 3: *MS. Ibid.*

Edward in her place. That would be something, but without it the Guises' influence would probably prevail.

At length, Mason wrote, in the last week of December, 'in a great assembly at the Court, some one,' probably the Duke of Guise himself, 'in a studied oration persuaded the war against England, and to declare the likelihood of good success therein, he set forth the lack of government, of captains, of victuals, money, and munition; and the people,' he said, 'were so ill-contented, as never looked the lark so much for the day as they did for the entry of some foreign prince; so was it the easiest thing in the world not only to annoy England, but *de nous emporter de tout*, and now was the time to recover all the dishonour that France had in times past sustained by that peevish isle.'³⁶³

Indeed, the ambassador said, something must be done, and done quickly; 'were it nothing more than the stay of our own people at home; we are at this present so loose with all the world, that our surety hangeth as it were but in the wind; a strait league with a notable knot would restore unto us our reputation abroad, which undoubtedly is not undecayed.'³⁶⁴

³⁶³Mason to the Council: MS. *France*, bundle 9, State Paper Office.

³⁶⁴Among the *Cotton MSS. Vespasian*, D. 18, is a paper on the state of public affairs by William Thomas, clerk of the council, addressed to Edward, to whom at this time he was acting as a sort of political tutor. It is headed, 'My private opinion touching your Majesty's outward affairs at the present,' and has been printed by STRYPE: *Memorials*, vol. iv. p. 382. The following extract is the sketch of the position of England:—'Time was, in the days of your father of famous memory, that this estate, being dreaded of all neighbours, needed not to esteem any of them more than itself was esteemed; but now the case is so altered, that, because we are both hated and contemned of them all, we must either redeem our estimation or else perish. One of two things must be won—either friendship to help us, or time to make ourselves strong. As for friendship, I see not which way any is to be gotten without either an extreme disadvantage or the denying of our faith, neither of which is tolerable. And as I believe it is impossible we should have any perfect amity with any foreign prince that dissenteth from us in religion, so, because we have no neighbour of uniform religion, we can find no friend whose amity is to be trusted. Wherefore we must of force turn unto time, to see how much we may win thereof, and what we may win withal; and because neither is our force so ordered that we may trust thereby to win time, nor our treasure such as may purchase it, therefore our extremest shift is to work by policy. We have two puissant princes to deal withal—the French King, a doubtful friend; the Emperor, a dissembling foe. The one hath done us already displeasure; the other we are sure will do it if he can. For what quarrel hath he to the Germans but religion, wherein he hath sworn rather to spend his life than not to reduce it to his own manner? and when he shall have overcome those few that rest,

Never perhaps was England in a position which demanded greater skill, wisdom, and energy; and what were her statesmen doing? and what had they been doing? They had prevented Mary's escape; and they had not as yet forcibly altered the service in her chapel. They had taken precautions also for their own personal security; a hundred yeomen had sufficed to guard the Court in the stern times of Henry VIII.; in the era of liberty it was necessary to raise them to a thousand.³⁶⁵ For the rest, they were engaged on two matters of grave magnitude—the prosecution of Gardiner, and the great vestment controversy.

The Duke of Somerset was again powerful. In the signatures of the council to public Acts his name once more headed the list. On the 28th of May he carried the nomination of Hooper to the bishopric of Gloucester, against a vehement opposition;³⁶⁶ and he showed a disposition to re-assert his old pretensions, which alarmed either the jealousy or the regard of Warwick.³⁶⁷ In some directions, however, he was inclined to use his recovered influence wisely. Ashamed per-

which are of small account in respect of his power, where shall he end his fury but against us? I wot well that some are of opinion that Magdeburg with the confederate cities shall keep him occupied a while. Some others add that the Germans are not yet won to the Papistical sect; and some others reckon upon the Turks coming into Hungary. But I am persuaded the Emperor estimates this matter of Magdeburg very little, and much less the German Protestants, and least of all the Turks; and we have great cause to mistrust both his purposes and himself. On the other side, the French King is already in possession of Scotland, and practiseth in Ireland amongst a people that loveth liberty, and for every small hope of gain will be ready to revolt, wherein, if he should prevail, we might reckon ourselves besieged, and in manner environed of enemies.

'So, when time shall draw either of their swords, and we unprovided, as presently we are, then must we either perish or be a prey to the one of them, or, at the best, receive intolerable conditions. For, say what men will, our power without some friendship is of small substance—yea, though we were all as good subjects as Edward III. had, whereas now I fear me there be as well hollow as whole hearts to be found.'

³⁶⁵This day it was debated whether it was convenient that the King's Majesty should have a number of men at arms in ordinary, as well for the safety of his Majesty's person as for the stay of his unquiet subjects, and for other service at all events, which, after long disputation, was thought and concluded upon as a thing very necessary.—*Privy Council Records, MS.* February 25, 1550–51. From the accounts of subsequent musters and reviews, nine hundred or a thousand seems to have been the number of men maintained.

³⁶⁶John ab Ulmis to Bullinger: *Epistolæ TIGURINÆ*.

³⁶⁷Whalley to Cecil, June 26, 1550: *MS. Domestic*, vol. x. State Paper Office. This letter has been printed by Mr Tytler, and introduced by him into his defence of Somerset; but he has mistaken the date by a year, and on the date his argument turns.

haps of the part which he had himself borne in the treatment of the Bishop of Winchester, he moved in council, on the 8th of June, that, considering the Bishop's long imprisonment, if he would now conform himself and be obedient, he should be restored to his diocese.³⁶⁸ The Duke, Bedford, Northampton, Petre, and the Earl of Wiltshire, went to Gardiner to the Tower, taking with them a copy of the Prayer-book. If he would accept it without reserve, they told him he should be released. The Bishop said that he had been treated with injustice; but, for that matter, he was ready to let the past be the past: as to the Prayer-book, if he accepted it as a prisoner, it would seem as if he had accepted it under constraint; he desired them, however, to leave the book with him; he would examine it, and give them an answer. They complied, and after a few days they returned. The Bishop then told them that, if he had had the making of the book, he would not pretend that he would have made it as it was; but the doctrine of the real presence being recognized, his conscience was satisfied; he would obey the law, and do his best to make his clergy obey. This seemed to be enough. He was weary with his imprisonment, he said. They promised that it should not last any longer; in two days he should be free. The rumours of his approaching liberation spread over London; he himself gave his farewell dinner at the Tower; and the Duke of Somerset, had it rested with him, would have kept his word.

But it was the misfortune of Somerset that he could not do one thing at a time; or, perhaps, in making the promise, he had exceeded his powers. The connection of Warwick with the ultra-Protestants created on his part an extreme unwillingness to see Gardiner again at liberty. Somerset was exerting himself at the same time to obtain the pardon of two of the Arundels, who had been concerned in the Cornwall insurrection. He had taken the part of the Earl of Arundel, who was in disgrace and had been fined;³⁶⁹ and Warwick's faction sus-

³⁶⁸ *Council, Records, MS.*

³⁶⁹ 'My Lord of "Warwick is a most dear and faithful friend unto my Lord's Grace (of Somerset). His whole nature was vehemently troubled with his Grace's proceedings of late. Sundry times overcome with the full remembrance thereof, he showed the inward grief of his heart with not a few tears.

' The sum of all was, that my Lord's Grace hath so unadvisedly attempted the enlargement and delivery of the Bishop of Winchester and the Arundels, as also his Grace's late conference, as he taketh it, with my Lord of Arundel, it pleased him, I say, to be so plain with me as he letted not to say the whole council doth much dislike his late attempts.'—Whalley to Cecil: June 26, 1550; misdated by TYTLER, June 26, 1551. *MS. Domestic*, Edward VI. State Paper Office.

pected him of aiming at the recovery of the Protectorate. They determined to thwart him, therefore, in his attempt to undo his own early injustice; or if Gardiner was to be at large, he should be fettered with other conditions beyond a mere consent to the Prayerbook.

A month was allowed to pass. At the end of it, on the 8th of July, Warwick, Ridley, and Sir William Herbert carried to the Tower a set of articles for the Bishop's signature, in which he was required to admit the right of the council to exercise, during a minority, the powers of the head of the Church; in which he was to approve the repeal of the Six Articles Bill, with the disuse of fasting; and further, to confess that he had broken faith with the Government, had offended the law, and deserved his punishment.³⁷⁰ Gardiner signed the articles of faith; he would not degrade himself with signing a confession of fault. He had suffered wrong, but he had committed none, and he would rather, he said, 'tumble himself desperately in the Thames' than plead guilty when he knew that he was innocent. Even if he 'condemned himself,' he could feel no certainty that he would not be betrayed.³⁷¹ The privy councillors were resolute on their side. The Bishop might make his submission in other words, if he preferred it; but he should admit himself in fault, or in the Tower he should remain. He begged, 'for the passion of God,' that, if he was guilty, he might be put on his trial, and his guilt proved. He exclaimed against the iniquity of a con-

³⁷⁰Whereas I, Stephen Gardiner, have been suspected as one too much favouring the Bishop of Rome's decrees and ordinances, and as one that did not allow the King's Majesty's proceedings in alteration of certain rites in religion, and was convented before the King's Highness's council and admonished thereof: and having certain things appointed for me to do and preach, have not done as I ought to do, although I promised to do the same, whereby I have not only incurred the King's Majesty's indignation, but also divers of his Highness's subjects have by my example taken encouragement, as his Grace's council is certainly informed, to repine at his Majesty's most godly proceedings; I am right sorry, therefore, and acknowledge myself condignly to have been punished, and do most heartily thank his Majesty that of his great clemency it hath pleased his Highness to deal with me, not according to rigour, but mercy; and to the intent that it may appear to the world how little I repine at his Majesty's doings, which be in religion most godly, and to the commonwealth most prudent, I do affirm, and say freely, without any compulsion, as ensueth.—*Privy Council Records*, MS. Printed in the account of the proceedings against Gardiner in *FOXÉ*, vol. vi.

³⁷¹Although I did more esteem liberty of body than defamation of myself, yet, quoth I, when I had so done, yet was I not assured to come out; for when I was by mine own pen made a naughty man, I might only have locked myself more surely in.—Gardiner's Statement on his Trial: *FOXÉ*, vol. vi.

finement to which no law had condemned him, and which no justice sanctioned. Ridley told him calmly, 'that it was the hand of God. He was there because he had so troubled other men.'

His subscription to the articles had given the council an advantage over him, and they pursued it. On the 13th of July, besides the required admission of guilt, a fresh list was presented to him, containing propositions dogmatically Protestant, which he was not only required to sign, but to undertake to teach and preach.³⁷²

He was weary of the Tower. He had surrendered himself to the hope that he was to be free, and he could not part with it. He refused to sign, and again demanded a trial; but he threw himself on the King's mercy; he would accept a pardon, he said, and in accepting it confess that he had offended. The council saw his weakness, and determined to trample on him. He was sent for on the 19th to the presence chamber. The articles were read over to him, and his signature demanded on the spot. He once more insisted that he should be tried. They said he should not be tried—he should submit unequivocally without further words. He was allowed three months to consider his

³⁷²1. That King Henry, for good reason, suppressed the monasteries, and released monks and nuns from their vows.

2. That all persons might lawfully marry within the Levitical degrees.

3. That pilgrimages and image worship were justly put away.

4. That the counterfeiting St Nicholas, St Clement, St Catherine, and St Edmund, by children, heretofore brought into the church, was a mockery and foolishness.

5. That the Bible in English was good for every man to read, and whoever would hinder the reading did evil and damnably.

6. That the chantries were justly suppressed.

7. That the mass was a fiction of the Bishop of Rome.

8. That Communion in both kinds was to be approved.

9. That the priest should receive for the congregation was an invention of man.

10. That the elevation of the Host had been justly and wisely prohibited.

11. That the King had done well in removing the images from churches.

12. That the King and Parliament had done well in abolishing mass books, grayles, &c.

13. That bishops and priests may lawfully marry.

14. That the laws prohibiting their marriage had been justly repealed.

15. That the doctrine of the homilies was good and wholesome.

16. That the book of the consecration of bishops, priests, and deacons was godly and wholesome.

17. That the *Minores Ordines* were wisely disused.

18. That Holy Scripture contained all things necessary to salvation.

19. That it had been well done to set up the *Paraphrase* of Erasmus in the parish churches.

answer; his bishopric, meanwhile, was pronounced sequestered; if at the end of that time he was still obstinate, he was to be deprived.³⁷³

Remanding Gardiner to the Tower, they took the opportunity of inflicting a special wound on his supporter the Duke of Somerset.³⁷⁴ On the 18th of October, before Gardiner's answer was delivered, old Lady Seymour, Somerset's mother, died; and a State funeral would have been the natural and becoming privilege of the grandmother of the reigning sovereign. If she was buried privately, the Duke might have been accused of disrespect to the Crown. If he ordered a public solemnity on his own responsibility, it might provoke jealousy. If he appeared at Court in mourning, it would imply that the Court itself should be in mourning. He thought it prudent, therefore, to consult the council, and this was the result:—The Lords 'weighed with themselves that the wearing of doole and such outward demonstrations of mourning not only did not any ways profit the dead, but rather served to induce the living to have a diffidence of the better life to come to the departed in God by changing of this transitory life; yea, and divers other ways did move and cause scruple of coldness in faith unto the weak.' They reflected, 'besides, that many of the wiser sort, weighing the impertinent charges bestowed upon black cloth and other instruments of those funeral pomps, might worthily find fault with the expense thereupon bestowed.' 'Considering, therefore, how at this present the observation of the times of outward mourning and wearing of the doole was far shortened and omitted, even among mean persons, from that it was wonted to be; considering, further, how private men should reserve their private sorrows to their own houses, and not diminish the presence of their prince with doleful token,' the council, or 'the King,' for they used his name, 'did specially dispense with the said Duke for the wearing of doole either upon himself or upon any of his family, or the continuing of other

³⁷³The account of Gardiner's treatment is taken from the Register of the Privy Council and from his own narrative, printed by Foxe (vol. vi.), and from the story told by Foxe himself, who disguised and apologized for nothing, regarding the whole proceedings, in fact, as most exemplary and just.

³⁷⁴Doubtless there was reason to distrust Somerset's intentions, and he had not forgotten his overbearing ways. Being desirous of adding to his property in Somersetshire the episcopal palace at Wells, in this same July he required the Bishop (Barlow) to surrender it. Barlow hesitating to give away the property of the See, the Duke threatened, if he would not go, 'to push him out headlong.'—*MS. Domestic*, Edward VI. vol. x.

personal observances such as heretofore were had in solemn use, as serving rather to pomp than to any edifying.³⁷⁵

So singular a theory of the duties of the living to the dead, if sincere, had been hastily adopted, and with equal haste was forgotten. On the 4th of August Lord Southampton had been buried with the usual solemnities, and the funeral sermon had been preached by Hooper. On the 7th of the ensuing March, Wentworth, the Lord Chamberlain, was interred in Westminster Abbey, when 'there was a great doole,' says Machyn,³⁷⁶ and 'a great company,' and 'Miles Coverdale did preach.'

The three months allowed to Gardiner had now expired, and, after all, for the sake of decency, a trial, and a very tedious one, was conceded to him. A court was formed at Lambeth, where Cranmer presided Ridley, Sir William Petre, Sir James Hales, and two other bishops sat as assessors.

The case opened on the 15th of December, and the voluminous and weary proceedings were protracted through twenty-two sessions. The Lords of the Council, the officers of the Court, the clergy of Winchester, Gardiner's personal servants, in all more than eighty witnesses, were examined.

The Bishop was accused of having attempted to create a disturbance in his diocese. The charge broke down. He was accused of having armed his household. It was replied that, in common with other gentlemen, he had put his house in a state of defence, in consequence of the disorders of the country. He was convicted of having professed conservative opinions: he was proved to have been suspected by Henry VIII. of a tendency towards Rome, and his name had been therefore omitted from the list of executors. He had been concerned further, three years before Henry's death, in the prosecution of various members of the royal household, when his conduct had been especially displeasing to the King:³⁷⁷ and it was proved further that Henry believed he had held some secret communication with

³⁷⁵*Privy Council Records, MS.* Edward VI.

³⁷⁶MACHYN'S *Diary*, March, 1551.

³⁷⁷His past history was searched with the most zealous scrutiny. Every expression which Henry ever used in his disfavour had been treasured up, and was produced against him. It is quite certain, therefore, that, if there had been so much as a base-work of truth for the Protestant legend of his attempt to destroy Catherine Parr, it would have been made the most of on this occasion. I look on that story, not as exaggerated reality, but as pure unadulterated fable.

the Emperor, at the time of his last embassy, on the state of religion in England.

But for these offences he could not be plausibly punished. The prosecution, therefore, turned upon his sermon. He had complied inadequately with the royal injunctions. He had aggravated his offence by irreverent demeanour towards his judges. He was declared, therefore, to have been guilty of a misdemeanour against the commonwealth; and he was pronounced, on the 14th of February, by the president, to be deposed from his bishopric.³⁷⁸ When his sentence was read, he called his judges 'heretics and sacramentaries.' The council sat the day following to determine on his further punishment; and they decided not only that he should remain in the Tower, but, whereas up to this time he had resided in the King's gallery with some comfort, had been allowed the use of the Tower garden, and his friends had been permitted to visit him—he was now 'to be removed to a meaner lodging,' he was to hold no communication with any person out of doors, his books were to be taken from him, and 'henceforth he should have neither pen, ink, nor paper, to work his detestable purposes.'³⁷⁹

Having seen that their orders were executed, the council transmitted an account of the proceedings to the ambassadors at foreign Courts, as something, on the whole, creditable to the Government of a great country.

Seeing that the two great military powers of the Continent were both of them threatening England, and a war with either would probably scatter the whole Protestant party to the winds, the other great question with which they were agitating themselves seems at such a time even more singular.

In the last Parliament a service for the consecration of bishops and priests had been added to the formularies, and had given offence to the ultra parties on both sides. The Anglican was frightened at the omission of the oil, which might impede the transmission of the apostolic powers. The Protestant was outraged at the continued use of 'vestments,' which marked the priesthood as a peculiar body; 'at' the oath 'by God, the saints, and the holy Gospels,' which bishops were

³⁷⁸The whole account of the proceedings, with the depositions of the witnesses, is in the sixth volume of Foxe.

³⁷⁹*Privy Council Records*, MS. Edward VI.

to swear on admission to their sees, and at a use of the Bible, which savoured of magical incantation.³⁸⁰

When the service was published, Hooper, the most prominent, but at the same time by far the best and most high-minded of the fanatical faction, denounced it in a lecture before the Court, as treason to the gospel. Cranmer complained of his language to the council, and Hooper was invited to explain himself. The Archbishop spoke with unusual vehemence; but Hooper, who tells the story, says 'that the end was to the glory of God.'³⁸¹ His friends supported him, and he was dismissed unpunished.

After this it was no small triumph to his party that, on the death of Wakeman, Bishop of Gloucester, Hooper was nominated, by Somerset's influence, as his successor, in the teeth of the whole Episcopal bench. It was understood that in his own person the prelate elect intended to resist the idolatrous usages. 'Hooper,' wrote Christopher Hales to Gualter, 'was appointed Bishop of Gloucester two days since, but under godly conditions. He will not allow himself to be called my lord, as we are wont to say; he will not receive the tonsure; he will not be made a magpie of;³⁸² nor will he be consecrated or anointed.' 'At his nomination,' said John ab Ulmis, 'a great struggle was made about the ceremonies and vestments of the Popish priests—say, rather, stage actors and fools; but Hooper was victorious.'³⁸³ It must be said that Hooper had not himself courted elevation. He was an unselfish agitator, and when the bishopric was first proposed to him he refused it.³⁸⁴ But he was the representative of a principle, and his narrow but conscientious inflexibility fitted him to be the champion of an opinion. Edward who was now fourteen, and was steadily taking a part in public business, was one of his chief admirers, and Edward, with Warwick's help, carried his point so far as the powers of the council extended. The abolition

³⁸⁰The archbishop, after consecration by the imposition of hands, was to place the Bible on the neck of the new bishop. The agitation of the Protestants prevented them from being able to describe accurately what was required of them. Burcher, telling Bullinger of the ceremony, says: 'The Bishop create must carry the Bible on his shoulders, put on a white vestment, and thus habited, and bearing the book, he is to turn himself round three times.'—Burcher to Bullinger: *Epistolæ Tigurinæ*.

³⁸¹Hooper to Bullinger: *Ibid*.

³⁸²*Non vult pica esse*—to be dressed in black and white, and chatter by rule.—Hales to Gualter, May 24: *Epistolæ Tigurinæ*.

³⁸³John ab Ulmis to Bullinger, May 28: *Ibid*.

³⁸⁴Hooper to Bullinger, June 29: *Ibid*.

of the *cong   d'  lire* made the appointment a matter only of letters patent. The oath being to the Crown, the Crown could alter the form or dispense with it. When Hooper pointed out the objectionable name of 'the saints,' the young King flushed up indignantly zealous. 'What wickedness is this?' he said. He took a pen and scratched out the word.³⁸⁵ But the consecration service could not be so easily got over. It had been affirmed by Act of Parliament; and, although the bishops could have been forced to consecrate by a *premunire*, had the difficulty been on their side, a *premunire* could not compel a reluctant nominee to undergo a ceremony which he disapproved.

Cranmer, who had once maintained that the Crown alone could make a bishop, had modified his views. The bench was unanimous that the service must be maintained. As doggedly Hooper declared that he would wear no vestments, he would have no Bible on his neck, he would not change his coat for the best bishopric in England. Warwick interceded, and the boy King talked of putting out the power of the supremacy and dispensing. But Ridley would have no dispensation, and Hooper would have no surplice, and the public world of the Reformers was shaken to its base. The English divines in general took the side of the bishops; the foreign divines were expected to be on the side of the gospel; and Hooper turned first to Bucer, who was then lecturing at Cambridge. To the sad discouragement of the ultra party, Bucer believed that there were things in the world more important than vestments. He had expressed his opinion freely to the council on the condition to which they were reducing England. About the time when the Hooper controversy began, he had told Calvin that there was no religion at all in England. The bishops, he said, were snarling about their doctrines, the lords were appropriating the Church estates and plate, and in their hearts cared nothing for the Reformation at all; clergymen professing to be Evangelicals held four or five livings, and officiated in none; repentance, faith, and good works—the vital parts of religion—no one thought of at all; and unless God worked a miracle for the sake of the innocent King, some great catastrophe could not be far off.³⁸⁶ In such a disposition he could feel

³⁸⁵ John ab Ulmis to Bullinger, August 22: *Epistol   TIGURIN  *.

³⁸⁶ *Res Christi hic geritur ut nisi Dominus innocentissimum et religiosissimum regem atque alios aliquot pios homines singulari respiciat clementi  , valde verendum sit ne horrenda Dei ira brevi in hoc regnum exardescat. Inter Episcopos hactenus de Christi doctrin   convenire non potuit, multo minus de disciplin  —paucissim   parochi   idoneos habent pastores: pler  que venumdat   sunt no-*

small sympathy with a fever about a white dress and a few gestures. To Hooper's appeal he replied coldly, that for himself he preferred simplicity, when simplicity could be had; but while the great men in England were giving benefices to their grooms—when the services in churches were left to be performed by men who could not read, and might as well be Africans or Hindoos as English—while congregations employed their time in laughing and storytelling, other things, he thought, should be first attended to: if earnest men would set themselves to contend against perjury, and adultery, theft, lying, and cheating, 'the very bones and sinews of Antichrist, whereof he altogether consisted,' the wearing of apparel would in all likelihood admit of settlement afterwards.³⁸⁷

Finding no comfort from Bucer, the suffering Hooper turned to Oxford to Peter Martyr; to meet, however, with the same indifference.

bilibus: sunt etiam ecclesiastico ordine atque ex iis quoque qui Evangelici videri volunt qui tres aut quatuor atque plures parochias tenent nec uni ministrant, sed sufficiunt sibi eos qui minimo se conduci patiuntur, plerumque qui nec Anglice legere possunt quique corde puri Papistæ sunt. Primores regni multis parochiis præfecerunt eos qui in cænobiis fuerunt ut pensione eis persolvend((a)}, se liberarent qui sunt indoctissimi et ad sacrum ministerium ineptissimi. Hinc invenias parochias in quibus aliquot annis nulla sit habita concio.

Cum de hâc tam horrendâ ecclesiarum deformitate querelæ deferuntur a sanctis hominibus ad regni proceres dicunt his malis mederi esse episcoporum. Cum deferentur ad episcopos evangelium pridem professos respondent illi se ista emendare non posse, &c.—Bucer to Calvin, Whitsuntide, 1550: *Epistolæ TIGURINÆ*, p. 356.

³⁸⁷ Bucer to Hooper: printed in STRYPE's *Memorials*. In the same spirit Bucer wrote to Alasco the Pole, who was President of the foreign congregation at Austin Friars.

'The more diligently,' he said, 'I weigh and consider both what fruit we may gather by this controversy of vestures, and also what Satan goeth about thereby to work, I would have wished before the Lord that it had never once been spoken of; but rather that all men of our function had gone stoutly forward, teaching true repentance, the wholesome use of all things, and the putting on the apparel of salvation.

'I see in many, marvellous diligence in abolishing Amalek concerning stocks and stones, vestures, and things without us, when in their acts and lives they maintain the whole Amalek still. I know that some help forward this strife, so that in the mean time the chief essentials may be less regarded, the staying of sacrilege, and the providing decent ministers in the parishes.

'In all outward things the churches should be left free. If white dresses can be abused, they can also be used innocently. Let the white dress be taken to signify the purity of the Christian life. There can be no offence then; and officers of all kinds must wear something to distinguish them, that their office may be known and respected.'—Bucer to Alasco: *Epistolæ TIGURINÆ*.

Bucer died a few months after; his companion, Fagius, was already gone; good men both of them, Bucer especially, who at such a time could be ill spared.

Peter Martyr told him, like Bucer, that the thing was of no consequence at all—that it was foolish and wrong to quarrel about it. When changes were being introduced of vital moment, the retention of outward forms was not only tolerable, but of high importance and utility; the imaginations of the people were not disturbed, their habits were not shocked; they would listen the more quietly to new doctrines, and the form in due time would follow the matter.³⁸⁸

Strange it seemed to Hooper that such men could not see that the evils which they spoke of as of so much importance were the fruits of Antichrist, not the substance of him. It was the form which gave the soul to the matter. The surplice was, as it were, Satan's magic robe and enchanter's cloak of darkness—the secret of his strength and power. Alone he must fight the battle of the Lord, then. His pulpit rang, Sunday after Sunday, with invectives against disguised Popery. He became so violent at last, that he was inhibited from preaching, and commanded to confine himself to his house. His tongue being silenced, he wrote a pamphlet, in which he reflected upon the council; and on the 12th of January he was committed to the custody of the Archbishop of Canterbury, to be 'either reformed or further punished, as the obstinacy of his case required.'³⁸⁹ In the intervals of Gardiner's trial, Cranmer endeavoured to reason with him; but he found him 'coveting rather to prescribe order to others' than to obey; and to make an end of the matter, the council sent him to the Fleet.

Here, at last, he recovered his senses. The King excused him the oath. He himself agreed to wear the Nessus garment during the few hours of consecration, if he might tear it off before it had poisoned him, and in his own diocese might wear it or not wear it, as he pleased.

So closed this child's battle, leaving us at no loss to understand how before long England might weary of such men and such men's teaching.

The dispute with the Emperor was now threatening to precipitate itself. The council having forbidden Mary her mass, and having prevented her from escaping out of England, Chamberlain, the English resident at Brussels, wrote on the 12th of January to say that, contrary to the privilege of his office, he had been interdicted in return from

³⁸⁸Peter Martyr to Hooper: *STRYPE'S Cranmer*.

³⁸⁹*Privy Council Records, MS.*

using the English communion service.³⁹⁰ The Flemish ambassador was sent for, and was told that, if Chamberlain was interfered with at Brussels, the council would be obliged to withdraw his own license in England. He said he would report their message; meanwhile in his master's name he repeated the demand which he had presented in the last year, that the Princess Mary should be allowed to continue in the religion in which she had been educated. When the English Court desired the Emperor's alliance against France, they had given him to understand that the license which she then had should be continued. They had given a promise, in fact, and the promise must be fulfilled.

The council replied that there had been no promise; there had been a conditional toleration for a time, but circumstances had altered, and it was withdrawn. The ambassador answered peremptorily that there had been a promise; and that it had been made to the Emperor himself. The council said it was impossible; no one among them had authority to make any such engagement; and for the thing itself, 'the example was too perilous in any commonwealth to grant a subject license to violate the law;' 'it was too dangerous for a Christian prince to grant a liberty that one of his subjects should use a religion against the conscience of the prince.'³⁹¹

Chamberlain was ambassador in the Low Countries. Sir Richard Morryson was attached to the Court of Charles, and followed him wherever he moved. Through Morryson, therefore, the direct communications of the council were transmitted. They on their side sent their account to him of what had passed. The Flemish ambassador sent his. Morryson reported that the Emperor had received both versions with the greatest displeasure. As to Chamberlain or himself, no services, Charles swore, should be used in his dominions by any foreigners, ambassadors or otherwise, except the ancient services of Christendom. If his own ambassador was interfered with in England, he had orders to leave the country in an hour. Let the council meddle with him if they dared.

The council were too obstinate to yield, too cowardly to persevere: for the moment they did nothing; but they made use of the opportunity of an accidental change of residence, on the part of Mary, to excite suspicion against her, and call out a popular demonstration of patriotism which would strengthen their hands. They issued a circu-

³⁹⁰*Privy Council Records, MS.*

³⁹¹The Council to Sir Richard Morryson: *MS. Germany*, bundle 1, State Paper Office.

lar, expressing a fear that she was in correspondence with foreign powers who contemplated an invasion of England, and they called upon her to appear at the Court and explain herself.³⁹² Mary obeyed. In the midst of a demonstration indeed, but not such as the Lords had hoped and desired, she rode into London surrounded by a retinue of peers, knights, and gentlemen, every one ostentatiously wearing a chain of beads. After resting two days at a house at St John's, she went in the same state through Fleet-street and the Strand to Whitehall, amidst the benedictions of tens of thousands of people.³⁹³ To the fevered imaginations of the citizens, the earth appeared to shake. 'Men in harness' were seen sitting in the air, who 'came down to the ground and faded away.' 'Three suns appeared, so that men could not discern which was the true sun.' The Princess alighted at the palace gate. She was first introduced to the King, and afterwards she went at his side to the council chamber. 'It was then declared to her how long her mass had been suffered in hope of her reconciliation;' as that hope had ceased, it was to be suffered no longer. What was said of her supposed intrigues, or if anything was said, is not certain. The mass was the great question on which all else was turning.

³⁹²'This her doing' (her change of residence from Essex to Hertfordshire) 'we be sorry for, both for the evil opinion the King's Majesty our master may thereby conceive of her, and for that by the same doth appear manifestly the malicious rancour of such as provoke her thus to breed and stir up, as much as in her lyeth, occasions of disorder and unquiet in the realm, wherein we know there lacketh not both labour and means of those that be strangers to this realm, and would gladly have the realm so disordered in itself, that it might be a prey to the foreign nations; which thing, as God hath hitherto defended, so we nothing doubt but that, through his grace conserving us by obedience to our master in concord, we shall always, as true and mere Englishmen, keep our country to be England, without putting our heads under Spaniards' or Flemmings' girdles, as their slaves and vassals. It is not unknown to us, but some near about the Lady Mury have very lately, in the night season, had privy conference with the Emperor's ambassador here being, which counsels can in no wise tend to the weal of the King's Majesty our master in his realm, nor to the nobility of the realm. Wherefore, since these be the unseemly proceedings of the Lady Mary, and as it should appear, set forward by strangers to make some disorders of the people in the realm, knowing how of late years the base sort of people have been evil-inclined to rebellion, we do, in the King's Majesty's behalf, most earnestly desire you to see to the order of your counties, and prevent any disturbance arising among the people. The effect whereof, if her councillors should procure, as it must be to her Grace and to all other good Englishmen therein seduced, damnable, so shall it be most hurtful to the good subjects of the country.'—Circular of the Lords of the Council: *MS. State Paper Office*, March, 1551.

³⁹³Machyn's Diary: *Grey Friars' Chronicle*.

Mary, whose will had never yielded to man, except it was her father, replied that her soul was God's. She would not change her faith, nor would she 'dissemble her opinions with contrary doings.' The council told her that no constraint was laid upon her faith. She must conform her practice. She was not a king to rule, but a subject to obey the laws. Her example might breed inconvenience.³⁹⁴

Consistent, however, to her plea, that laws made in a minority were no laws, she would neither admit their argument, nor flinch in her own resolution. The interview led to no results. Mary left the presence, and returned to the house in Essex, from which her removal had been made the pretext of agitation.

The council took no further steps for the next two days. On the 19th the 'Emperor's ambassador'³⁹⁵ 'came with a short message from his master of war'—the liberty which he demanded for the Princess Mary or *war*—and Cecil's expectation seemed to be on the edge of fulfilment.

'The Earl of Warwick,' Sir Richard Morryson writes, in describing his conduct on this occasion,³⁹⁶ 'had such a head, that he seldom went about anything but he conceived first three or four purposes beforehand.' Warwick was meditating an alliance with France, could it be effected. But it might not be effected, and Edward's health was precarious, and he was unwilling therefore to come to an open breach with the Emperor, or to make an irreconcilable enemy of Mary. At the same time he had cast in his lot with the extreme Protestants, to whom Edward was more and more attaching himself. He must therefore keep friends with all, 'that he might, as time should teach him, allow whether of them he listed, and fall in with him that might best serve his practices.'

On the delivery of the Emperor's message, when the councillors were looking in one another's faces, he suggested they were inadequate judges in a case of conscience, and they should consult the bishops. Cranmer, Ridley, and Ponet were sent for. 'The realm, the bishops were told, was in great peril, and like to be utterly undone, if either the Emperor would take no nay or the King would give him no yea;' in such extremity, was it lawful to yield?

³⁹⁴EDWARD'S *Diary*.

³⁹⁵EDWARD'S *Journal*, March 19, 1551.

³⁹⁶Discourse of Sir Richard Morryson: *MS. Harleian*, 353.

The bishops asked if war was inevitable, should the King persist? Being told that there was no hope of escaping it, they begged for a night to consider their answer. The following morning they gave an opinion, as the result of their deliberation, that—

‘Although to give license to sin was sin, yet if all haste possible was observed, to suffer and wink at it for a time might be borne.’³⁹⁷

The King’s attendance was then requested. As Edward entered, the Lord Treasurer (Paulet, Earl of Wilts) fell on his knees, and told him that he and they and the realm were about to ‘come to naught.’ They must give way, pacify the Emperor, and let the Princess do as she desired; the bishops said that it might be done.

‘Are these things so, my Lords?’ said Edward, turning to them. ‘Is it lawful by Scripture to sanction idolatry?’

‘There were good kings in Scripture, your Majesty,’ they replied, ‘who allowed the hill altars, and yet were called good.’

‘We follow the example of good men,’ the boy answered, ‘when they have done well. We do not follow them in evil. David was good, but David seduced Bathshebah and murdered Uriah. We are not to imitate David in such deeds as those. Is there no better Scripture?’

The bishops could think of none.

‘I am sorry for the realm, then,’ the King said, ‘and sorry for the danger that will come of it; I shall hope and pray for something better, but the evil thing I will not allow.’

So Morryson tells the story, to set off the noble nature of Edward. If Edward, however, was as unreasonable, and the bishops were as absurd, as Morryson describes, wiser arguments proved more conclusive in favour of moderation.³⁹⁸ To gain time, the council delayed their answer to the ambassador. They determined, not, for the moment, to put a stop to the Princess’s mass, but to punish all who attended it except herself; and when the ambassador became pressing, they promised to send a special commissioner to the Emperor, who, it was hoped, would satisfy him. Forced into prudence at last by the peril of the situation to which they had brought themselves, they sent Sir William Pickering at the same time in haste to the Court of France, to ascertain if, on the terms which Henry had hinted to Mason, they could strengthen themselves with some kind of alliance.

³⁹⁷ Compare MORRYSON’S *Discourse* with EDWARD’S *Journal*, March 20, 1551.

³⁹⁸ EDWARD’S *Journal*, March 21.

If England, however, was still saved from the consequences of the incapacity of its rulers, it again owed its preservation to fortune. The events of Europe had turned the scale at Paris against the schemes of the Guises, and the recovery of Calais was postponed for a few more years. Octavio Farnese, with his duchy of Parma, had been driven backwards and forwards in the eddies of Italian politics. He had been Imperialist when Paul III. kept him from his possessions; he had been reinstated by Julius; but Julius, now on good terms with the Emperor, had attempted again to eject him; and, to save himself, he had thrown himself upon France. Gonzaga still held Piacenza. A French garrison was in Parma. The Pope, to settle the differences between the great Powers, proposed that the duchy should be reannexed to the States of the Church. To this, however, Octavio refused to agree. The French said they would evacuate Parma if Gonzaga would evacuate Piacenza; but neither would begin, and each considered the presence of the other a ground for war. The dispute would have come to nothing had there been no other provocation; but the promised return of the council to Trent, with the attempts of Charles to convert the Empire into a despotic sovereignty which he could transmit to his son, roused in Henry of France the spirit of his father; and the unexpected resistance of the Free Towns held out a prospect of reviving his father's policy in supporting the Germans.

Magdeburg would not fall. The siege had been formed in November, 1550. In January the Magdeburgers made a sortie happier than their first, cutting to pieces the Mecklenburg troops and taking the Duke prisoner. Maurice of Saxe, instead of reducing the city, was complaining to Charles of the continual captivity of the Landgrave of Hesse, and attempting some kind of compromise. But the Magdeburgers would hear of no compromise. They would have their freedom—either that or death. Their sacrilegious hands had melted their church bells into cannon, and torn up tombstones for fortifications; yet the cannon did their work, and the fortifications were none the weaker for the material of which they were made. The Elbe was open, and provisions were introduced in abundance. Hamburg and Bremen declared on their side, and the Lutherans in Maurice's army refused to serve against the champions of liberty. The siege made no progress; and if one city could resist successfully, all Protestant Germany would recover heart at the example. The old combination of Francis I. therefore threatened to revive. Henry sent

money to Magdeburg.³⁹⁹ He renewed his alliance with the Turks. The council of Trent was to meet in May; but a separate Gallican synod was again talked of, and letters were actually issued for the assembly of the French bishops. Henry protested, indeed, that he would merely consult his prelates on the repression of heresy;⁴⁰⁰ but his excuses were but half believed; it was much doubted whether France would be represented at Trent; and the French ambassadors at Rome were instructed to tell the Pope that the attendance of the Galilean bishops might depend on the admission of the Lutherans.⁴⁰¹

It was at this conjuncture that the English difficulty came to a point with the Emperor. Warwick had been already corresponding privately with the French Court, and the result of Sir William Pickering's mission was the immediate arrival in London of an agent of Henry.⁴⁰² The terms of alliance could not be settled on the spot, but an understanding was arrived at sufficiently clear for present purposes; and on the 10th of April the council were in a position to take up the gauntlet which Charles had flung before them. Doctor Wotton was despatched to Brussels with instructions to say that 'the form of prayer, or usage of the communion, was a thing established by law by consent of Parliament, by which the whole estate of the realm and the King's person were ruled, being such an universal and high court as there was none in all English policy to be compared to it, and therefore supreme over all persons in the realm:' that the Lady Mary was a subject of the realm, and must submit, like others, to the law. As to the ambassadors, if Sir Thomas Chamberlain was allowed to use the English communion in Flanders, the Flemish ambassador might use the mass in England, and if not, not. Friendship could not exist without equality, and the reciprocity which England demanded was no more than was conceded to Turks in Christendom and to Christians in Turkey.⁴⁰³ Immediately after, Doctor Mallet, one of Mary's chaplains, was arrested and sent to the Tower. Pickering was appointed resident ambassador at Paris, and the Garter was sent to Henry.

³⁹⁹Mason to the Council, April 18: *MS. France*, State Paper Office.

⁴⁰⁰PALLAVICINO

⁴⁰¹Morryson to the Council, April 2: *MS. Germany*, State Paper Office.

⁴⁰²Council to Morryson, April 6: *MS. Germany*, Edward VI. State Paper Office.

⁴⁰³Instructions to Doctor Wotton: *MS. Germany*, Edward VI. State Paper Office. Compare EDWARD'S *Journal*, April, 1551.

Irritated and baffled, Charles turned his first indignation upon the Pope, who, he affected to believe, had been dealing underhand with the French.⁴⁰⁴ But the suspicion, if sincere, was without ground. The Pope was innocent of fault, unless incapacity was a fault. He summoned Octavio to appear in Rome within thirty days, and answer for his disobedience; if he failed to present himself, he, his adherents, and abettors were declared excommunicate.

'How shall your King do now?' said Morryson to the French ambassador at Augsburg. 'The Bishop of Rome hath excommunicated all such as give aid to Octavio. Doth he not excommunicate your master, his council, his soldiers, yea, and his horses too?'

'Ma foye,' said the ambassador, 'his words are very large, and perhaps he may stir hornets so long, that the sting will stick, when he shall not be able to pull it out.'⁴⁰⁵ And Maurice once more attacked Magdeburg and failed, 'and waxed annoyed with his evil luck,' and began also to correspond with France; and the German Diet refused to nominate Philip as the heir of the Empire, and Gonzaga laid siege to Parma, and the Italian war began again.

Sadly and sullenly Charles rode through Augsburg on the afternoon of the 25th of May. He passed John Frederick, who, on the way-side with his guard, 'made low obeisance.' 'The Emperor cast up his eye, and put his hand towards his cap,' and went on silent, moody, and stern.⁴⁰⁶

⁴⁰⁴The Emperor snuffeth at the alteration of Parma, but he turneth all his outward displeasure towards the Pope, who he will not believe but hath been a worker therein, and in his choler he said lately—*Si je me demasque je le montreray que je ne suys personage a qui il se doit jouir.*—Mason to the Council: TYTLER, vol. i. p. 356.

⁴⁰⁵'I do know,' Morryson adds, 'the ambassador understandeth the chief points of religion well, and would, I think, be glad it were lawful in France for bishops to be honest men. Certain I am, he is not a little nettled that the Bishop should extend his excommunication so far.'—Morryson to the Council. May 5: *MS. Germany*, Edward VI. *Ibid.*

⁴⁰⁶Morryson to the Council, May 26: *MS. Ibid.*

CHAPTER XXVIII

THE EXECUTION OF THE DUKE OF SOMERSET

FRANCE and England having completed their private understanding, special embassies on both sides paraded the friendship before the world. The Marshal St André came to London in splendour, with a retinue of lords; Northampton, Goodrick,⁴⁰⁷ Sir Philip Hoby, and others, carried powers to Paris to arrange a marriage between Edward and the Princess Elizabeth. Though France had quarrelled with the Pope, though Henry was disclaiming an allegiance to the Council of Trent, it was remarked that the English ambassadors were received with processions, masses, and litanies in approved Catholic form. In England, such decorations of altars and churches as had escaped the mint or the hands of the grandees, were employed to decorate the royal tables on the reception of St André.⁴⁰⁸ The French faction in Italy interpreted the alliance to promise a return of England to the faith. The credulous among the English laboured to revive the old hope that France might unite with them in schism.⁴⁰⁹ At both Courts there was, as it were, an ostentatious declaration that, in matters of religion, the two countries had no intention of approximating; on neither side would the creed be sacrificed to the exigencies of policy.

Courtesy and mutual good offices might compensate, however, for differences of opinion, and the English had an opportunity for a display of integrity which passed for magnanimous. The death of Mary Stuart would have broken the chain by which the French held her subjects linked to them. A Scot sent in an offer to take her off by poi-

⁴⁰⁷ Bishop of Ely, afterwards Chancellor.

⁴⁰⁸ It was appointed that I should receive the Frenchmen that come hither at Westminster, when was made preparations for the purpose, and for garnish, of new vessels taken out of Church stuff, mitres, golden missals, primers, crosses, and reliques.'—EDWARD'S *Journal*, June 2, 1551.

⁴⁰⁹ There is much talk in Italy of this marriage between our master and France. They that would the French to seem big say the league is offensive and defensive. They also add, that one of the covenants is that we must return to the true faith of Holy Church, as they call it; that is, as we know it—to the blind Romish synagogue. "Would God the French King were as like to become a right Protestant as our master is unlike to become a blundering Popistant."—Morryson to the Council: *MS. Germany*, Edward VI. bundle 15, State Paper Office.

son.⁴¹⁰ But the council resisted the temptation amidst the applause of their friends; and the intended assassin was delivered in custody over the Calais frontier.⁴¹¹

St André's was a visit of ceremony; he brought with him the order of St Michael for the young King. The business of the connection was transacted on the Continent.

The differences with Scotland had been adjusted on the 10th of June in a treaty in which the engagements of 1543 for the marriage of Edward and Mary were passed over in silence. The French and English commissioners meeting to arrange a new connection, found it necessary to peruse and consider those engagements. The Scottish promises were produced, and Northampton first demanded that the contract should be fulfilled.

'To be frank and plain with you,' Montmorency replied, 'seeing you require us so to be, the matter hath cost us both much riches and much blood; and so much doth the honour of France hang thereupon, as we cannot talk with you therein, the marriage is already concluded between her and the Dauphin, and therefore we would be glad to hear no more thereof.'⁴¹² The answer was of course anticipated, and was perhaps preconcerted. The King of France said that, although he had been at war with England, 'he never enterprised anything with worse will, nor more against his stomach.' 'He thanked

⁴¹⁰One Stewart, a Scotchman, meaning to poison the young Queen of Scotland, thinking thereby to get favour here, was, after he had been awhile in the Tower, delivered over the frontiers at Calais to the French, to have him punished according to his deserts.—EDWARD'S *Journal*, May 9.

⁴¹¹Men talk in this Court that one made offer to your Lordships to poison the young Scottish Queen, and that you forthwith sent to the French King word thereof; whereupon the man is committed to prison, and the young lady out of danger. Your honours are much increased by this your noble fact. Your integrities so much the more commended, that they see many are glad largely to hire whom they may by any means corrupt, and find few complaints made against such as in this point offer service. It is to your Lordships' eternal praise that ye, by this your honourable example, do teach the King's Majesty, in these his young years, to abhor foul practices—a lesson better and more worthier than is the violent catching of the fairest kingdom that the sun sheweth light unto. In spite of spite here, even those are forced to like, to allow, yea, to wonder at things rightly done, that by no entreaty can mean to follow them.—Morryson to the Council from the Emperor's Court: *MS. Germany*, Edward VI. bundle 15, State Paper Office. I know no keener satire on the public morals of the age than this passage.

⁴¹²Northampton to the Council; TYTLER, vol. i. p. 385, &c.

God it was at an end, he trusted, for ever.⁴¹³ The English waived their claims on Mary, and made their proposals in exchange for the hand of a princess of France. Acquiescence in general terms was promptly conceded; but when the details of the arrangement came under consideration, it appeared that the French still intended to profit by the weakness and the necessities of Edward's Government. Northampton suggested that they should give with the princess, as a moderate dowry, 1,500,000 crowns. He lowered his terms on being refused, amidst shouts of laughter, to 1,400,000 crowns; then to a million, then to 800,000, and at last to 200,000; which only, 'after great reasonings and showings of precedents,' the French commissioners consented to allow. These terms, or any terms, England was obliged to accept. Dr Wotton was gone on his errand of defiance to Charles. The liberty demanded for Mary Tudor had not only been refused, and her chaplains imprisoned, but she had been informed that, if she continued obstinate, she might not herself be exempt from punishment.⁴¹⁴ Lord Warwick and his friends had cast in their fortune with extreme measures, and were in no condition to drive a bargain hard.

The Emperor, however, on his side, was unable immediately to fulfil his threat of declaring war; he was compelled to content himself with repeating it. Dr Wotton's report of his interview has been injured, and is in parts illegible.⁴¹⁵ Where the letter begins to be intelligible the conversation was turning upon the Protestant refugees in England.

'Here,' says Wotton, 'the Emperor, by signs and nods, willed those of his chamber to go from thence and leave him alone with me.' He then said that he had a great love for the King, and had every good will to his country; 'but the English were all now,' he said, 'so far out of the way,' that he did not know what to do about them; 'they did infect his own realm.' Wotton begged him to think better of the English; they were a people who feared God, and desired only to know how God delighted most to be served. 'You have well travailed,'

⁴¹³Ibid.

⁴¹⁴EDWARD'S *Journal*, June 24.

⁴¹⁵The surviving portions of this despatch contain so much which is characteristic of Charles, that the loss of the rest is especially to be regretted. The more so indeed because the destruction of the MS. is not due to legitimate decay, but to the use of ox-gall by some careless antiquary, who, to facilitate his own researches, wetted the ink with a material which imparts a momentary clearness, at the expense of making the writing illegible afterwards for evermore.

Charles answered scornfully; 'you say you have chosen a good way; the world takes it for a naughty way; and ought it not to suffice you that ye spill your own souls, but ye have a mind to force others to lose theirs too. My cousin the Princess is evil handled among you, her servants plucked from her; and she still cried upon to leave mass, to forsake her religion in which her mother, her grandmother, and all our family have lived and died.'

'Sacred Majesty,' Wotton answered, 'at my coming out of England she was honourably entertained in her own house, and had such about her as she liked: and I think she is so still. I do not hear to the contrary.'

'Yes, by St Mary,' said Charles, 'there is to the contrary, and therefore say you hardly to them, I will not suffer her to be evil handled by them—I will not suffer it. Is it not enough that my aunt, her mother, was evil entreated by the King that dead is, but my cousin must be worse ordered by councillors now. I had rather she died a thousand deaths than that she should forsake her faith. The King is too young to skill of such matters.'

When Wotton urged that Mary was a subject, and must submit to the law, Charles gave the usual answer that a law made in a minority was no law at all. The Church had been ruined, the bishoprics plundered, the religion of Christ set aside or altered by the violent will of a few men who had no authority to meddle with such things. Wotton said the changes had been discussed in Parliament: the Emperor replied that Parliament was no place for the discussion of any such questions.

Seeing his humour, Wotton passed unwillingly to the second part of his instructions, and required the license for Sir Thomas Chamberlain to use the communion service at Brussels. The Emperor said distinctly and at once, that he would have no service used in his dominions which was not allowed by the Church; and if his own ambassador was refused the mass, he should be recalled; 'the cases were not like; the English service was new and naught;' 'the mass was old and approved.'

'Again,' wrote Wotton, 'he went to the Lady Mary, willing me to require your Lordships that she might have her masses still; if not, he would provide for her remedy: and if his ambassador was restrained, he had already given him orders that if the restraint came to-day, he should to-morrow depart, and ours as well.' 'He fell to earnest talk;

'he spoke again of the danger of introducing changes in Edward's infancy, 'who, when he came to his years, would take sharp account of it, and make them know what it was to bring up a king in heresy.' Wotton answered that, 'the Lords of the Council did well understand with what fear and danger they made the alteration; and the greater the peril, the more were they to be praised that would rather venture land, life, and all than not do that that God required at their hands.'⁴¹⁶

The interview ended stormily. Whether war would follow, the ambassador said he could not tell. He was certain only that the Emperor meant him to believe that there would be war; and he recommended the council not to press matters to extremity about the Princess for a month or two; 'in that space it should appear whether the Emperor should need English amity, or whether England should have cause to be afraid of his displeasure.' The council took his advice, and meantime the French alliance was consolidated. The European difficulties of the Emperor thickened. The country, after drifting close upon a reef, escaped shipwreck, more by a change of wind than the skill of its pilots. The dominant factions were again at leisure to follow their career of misgovernment.

In contemplating the false steps of statesmen, it is difficult at all times to measure their personal responsibility, to determine how much of their errors has been due to party spirit, how much to pardonable mistake; how much again seems to have been faulty, because we see but effects, which we ascribe absolutely to the conduct of particular men, when such effects were the result, in fact, of influences spreading throughout the whole circle of society. The politicians who governed England in the minority of Edward VI., however, succeeded, at any rate, in making themselves individually execrated, and in bringing discredit upon the cause of which they were the professed defenders. All over the country discontent, social, political, and religious, was steadily on the increase. In the *Privy Council Records* are to be found entries perpetually recurring of persons conspiring here, or conspiring there, and being put to death occasionally on the spot by martial law.⁴¹⁷ The prisons were full to overflowing with Catholic recusants, who would not relinquish the

⁴¹⁶Wotton to the Council: *MS. Germany*, bundle 15, State Paper Office.

⁴¹⁷August 31. The Duke of Somerset, taking certain that began a new conspiracy for the destruction of the gentlemen at Okeham, two days past executed them with death for their offence.'—*EDWARD'S Journal*.

mass, or with persons guilty of 'lewd talk,' or 'seditious words;' this or that prisoner, as his place was required for another, being taken out to have his ears slit, or to be set upon the pillory.⁴¹⁸ The greatest of the offences of the Government, the issue of base money, was drawing to an end; but it was ending as hurricanes end, the worst gust being the last.

In the teeth of statutes, in defiance of proclamations, prices rose to the level of the metallic value of the current coin, and, at last, rose beyond it. The exchanges ceased to be intelligible. In the absence of accessible tests, and with coin circulating of all degrees of purity and impurity, the common processes of buying and selling could no longer be carried on, and the council were compelled at last to yield before the general outcry.

From the enormous quantity of base silver which was now in circulation, the honest redemption of it appeared, and at the time, perhaps, really was, impossible. It remained, therefore, to throw the burden upon the country, to accept the advice of the city merchants, and call it down to its actual value. By this desperate remedy every holder of a silver coin lost upon it the difference between its cost when it passed into his hands, and its worth as a commodity in the market. Taking an average of the whole coin in circulation, the proportion of alloy was fifty per cent., and in the end, the silver currency would have to descend to half its nominal value. But the entire descent, though inevitable, was not to be accomplished at once. To relieve the shock (so the Government pretended), the first fall was made a partial one. A resolution was taken in council on the 30th of April that the shilling in future should pass for ninepence, and the groat for threepence. But anxiety for the convenience of the public was not the only cause of the delay in the completion of the operation. The treasury was as usual exhausted. The economy which had been attempted in the household had been more than defeated by the cost of the gendarmerie, as the force was called, which the council had been obliged to raise for their protection. The wages, food, and clothing of nine hundred men were added to the ordinary expenditure, and the revenue, which had been unequal to the usual demands upon it, was now hopelessly deficient. 'Purveying,' by which the Court was accustomed to supply its necessities, by taking what it required from the farmers at statute prices, had

⁴¹⁸ Especially, it would seem, in the months of April, May, and June, 1551, when a crisis was so near.—*Privy Council Records, MS.*

been forbidden by Act of Parliament.⁴¹⁹ The prohibition had not been observed for the Court, it was said, must live, and the King had no money. The royal purveyors continued to take at their pleasure, paying exactly half the market prices for everything.⁴²⁰ But rapacity of this kind could supply but very poorly the hungry deficiency which was perpetually growing. In April a fresh issue of base money had been contemplated,⁴²¹ but was for the moment postponed. The Fuggers were the resource instead; and being increasingly bad debtors, the Government were made to pay for fresh accommodation by buying a hundred thousand crowns' worth of rubies and diamonds.⁴²² It was with no good humour, therefore, that they found themselves compelled to keep their hands for the future from the mint; and they determined to dip once more, and to dip deeply into the closing fountain. The fall of the coin, as I have said, was resolved upon on the 6th of May. The intention was made known to the public, and it was to take effect in the following July. The second fall could be at no great distance; it is impossible, therefore, that the council could have been any longer under a delusion on the nature of the course which they had pursued. With the consequence of it immediately before their eyes, they issued, on the 30th of May, 80,000*l.* worth of silver, in a coin of which two-thirds was alloy; on the 18th of June they issued a further 40,000*l.* worth in a coin of which three-quarters was alloy. Possibly, or rather probably, it was put out subject to the partial depreciation of the first fall; but every creditor of the Court, artisan, or labourer, servant, tradesman, farmer, or soldier was forced to receive

⁴¹⁹2 and 3 Edward VI.

⁴²⁰'To show what hurt cometh by provisions to the poor man it shall not need; experience doth make it too plain. But, for example, the purveyors alloweth for a lamb worth two shillings but twelve pence; for a capon worth twelve pence, sixpence; and so after that rate: so that, after that rate, there is not the poorest man that hath anything to sell but he loseth half in the price, besides tarrying for his money; which sometimes he hath, after long suit to the officers, and great costs suing for it; and many times he never hath it.'—*Causes of the dearth in England*: TYTLER, vol. i. p. 369.

⁴²¹For the amendment of the currency, so Edward was led to believe. 'It was appointed,' he writes, 'to make 20,000 pound weight for necessity somewhat baser, to get gain sixteen thousand clear, by which the debt of the realm might be paid, the country defended from any sudden attempt, and the coin amended.'—*EDWARD'S Journal*, April 10.

⁴²²*Ibid.* April 25.

that money at a fictitious value, although the council knew that a further depreciation was immediately and necessarily imminent.⁴²³

This was the last grasp at the departing prey, and perhaps it transpired to the world: for so profound and so wide was the public distrust, that when the first fall took effect on the 9th of July, prices everywhere rather rose than declined, even allowing for the difference of denomination. In vain the council admonished the Lord Mayor, and required the Lord Mayor to admonish the wardens of the trading companies.⁴²⁴ Confidence was steadily refused to the currency as long as the worth of the coined shilling was artificially greater than the worth of the bullion of which it was made. The falling process having once begun, had to be completed with as little delay as possible, and on the 17th of August the shilling was ordered by proclamation to pass for no more than sixpence, the groat for no more than twopence,⁴²⁵ and all other silver coins in proportion. To pacify the

⁴²³The numerous entries in EDWARD's *Journal* on this dry subject are curious. The King appears to have been keeping his eyes upon the council, and seeking information on the subject without their knowledge. William Thomas, Clerk of the Council, whose name has been more than once mentioned, was one of his secret advisers; and, I sometimes think, may have assisted him in the composition of his *Journal*. 'Upon Friday last,' Thomas writes, in an undated letter to the King, 'Mr Throgmorton declared your Majesty's pleasure unto me, and delivered me withal the notes of certain discourses, which, according to your Highness's commandment, I shall most gladly apply, to send you one every week, if it be possible for me in so little time to compass it—as indeed it were more than easy, if the daily service of mine office required not the great travail and diligence that it doth. And because he told me your Majesty would first hear mine opinion touching the reformation of the coin, albeit that I think myself both unmeet and unable to give any judgment in so great and Aveighty a matter without the advice of others; yet, since it is your Highness's pleasure to have it secret, which I do much commend, I therefore am the bolder to enterprise the declaration of my fantasy, trusting that, upon this ground, better devices and better effects may ensue than my head alone can contrive.'— to Edward VI.: Cotton. MSS. *Vespasian*, D. 18. Printed in STRYPE's *Memorials*, vol. iv. p. 389.

⁴²⁴*Privy Council Records*, MS.

⁴²⁵The second proclamation was drawn on the 1st of August, but was not put out till the 17th. The following is the text of it. In such a matter the Government must be heard for themselves:

'Whereas the King's Majesty, minding to reduce the coin of this his Highness's realm to a more fineness, hath of late, for sundry weighty considerations, partly mentioned in our proclamation of the last of April last past [It was drawn on the last of April, and issued on the 6th of May], ordained and established that the piece of silver called the teston, or shilling, should be current for nine pence, and no more; and the piece of silvered coin called the groat should likewise be current for three pence, and no more; minding, both at the time of the said proclamation and sithens also,

people, to prevent curious inquiries, and also perhaps to soften the blow to the holders of the money, the Government declared their intention of enforcing the Farm Statutes, and of prohibiting the exportation of coin. A scale of prices was again issued for articles of food, with a hope that it would now be maintained; and if the cost of living was 'not to be so good cheap as when the coin was at its perfectest,' it should be 'within a fifth part of it.'⁴²⁶

It was now possible to restore a pure silver currency—possible and also necessary; for although the depreciation was calculated fairly on the average value of the coin, the good and the bad were affected equally by the proclamation; and unless the whole existing circulation was called in and recoinied, to call it down was merely to offer a premium on the debasement of all the pure shillings and groats which remained in the realm. The council saw half the truth, but unhappily only half. They undertook to set the presses at work coining silver at a pure standard; an honest shilling was to be given at the mints for every two testons, and the alloy, it was thought, would pay

to have reduced the coin of this realm to a fineness by such degrees as should have been less burdensome to his Majesty, and most for the ease of his Highness's loving subjects: forasmuch as sithens which time his Majesty is sundry ways informed that the excessive prices of all victuals and all other things, which of reason should have grown less as the coin is amended, is rather, by the malice and insatiable greediness of sundry men, especially such as make their gain by buying and selling, increased and waxen more excessive, to the great hindrance of the commonwealth and intolerable burden of his Majesty's loving subjects, especially of those of the poorer sort: for the remedy whereof, nothing is thought more available than the speedy reduction of the said coin more nigher his just fineness. His Majesty, therefore, by the advice of the Lords and others of his Highness's privy council, more esteeming the honour and estimation of the realm, and the wealth and commodity of his Highness's most loving subjects, than the great profit which, by the baseness of the coin, did and should continually have grown to his Majesty, hath, and by the advice aforesaid doth, ordain that, from the 17th day of this present month of August, the piece of coin called the teston, or shilling, shall be current within the realm of England and the town and Marches of Calais only for six pence sterling, and not above; and the groat for two pence sterling, and not above; the piece of two pence for a penny, the piece of a penny for a halfpenny, and the piece of a halfpenny for a farthing; and therefore straightly chargeth and commandeth every person of what estate, degree, or condition he or they may be, to pay and receive, after the said day of the present month, the said coins for no higher nor no lower value or price within this realm, upon pain of forfeiture to his Majesty of all such money as shall be paid or received at other values than by this proclamation is put forth, and also upon pain of fine and imprisonment during his Majesty's pleasure.'—*MS. Domestic*, Edward VI. vol. xiii. State Paper Office.

⁴²⁶ EDWARD'S *Journal*.

the cost of the stamping.⁴²⁷ But from ignorance, carelessness, or some less worthy motive, men were left to their own discretion either to bring in their money or leave it circulating at its new rate; and those who held the old coin found more advantage in exporting it as bullion, or in melting it down to the level of the lowest recent issues, in which a third or a fourth part only was pure silver. Thus the people lost their money, and prices, nevertheless, would not subside. The council abstained from further speculation. That was the extent of the amendment.

To increase the misery of the summer, there reappeared, in July, the strange and peculiar plague of the English nation. The sweating sickness, the most mortal of all forms of pestilence which have ever appeared in this country, selected its victims exclusively from among the natives of Great Britain. If it broke out in a foreign town, it picked out the English residents with undeviating accuracy. The sufferers were in general men between thirty and forty, and the stoutest and the healthiest most readily caught the infection. The symptoms were a sudden perspiration, accompanied with faintness and drowsiness. Those who were taken with full stomachs died immediately. Those who caught cold shivered into dissolution in a few hours. Those who yielded to the intense temptation to sleep, though but for a quarter of an hour, awoke only to die; and so rapid was the operation of the disorder that, of seven householders who one night supped together in the city of London, six before morning were corpses. 'The only remedy was to be kept close with moderate air, and to drink posset ale or such like for thirty hours, and then the danger was passed.'⁴²⁸ 'It was a terrible time,' says Stow. 'Men lost their friends by the sweat, and their money by the proclamation.' In London alone eight hundred men died in one week in July.

Visitations of pestilence in Christian countries have ever operated as a call to repentance. The effect upon the English was heightened by the singularity which confined the attack to themselves. The council, in an address of profound solemnity, invited the nation to acknowledge humbly the merited chastisements of Heaven: it was not the first time, as it will not be the last, that men have been keen-eyed to detect in others their own faults, and to call upon the world to repent of them.

⁴²⁷ EDWARD'S *Journal*.

⁴²⁸ HOLINSHED.

The bishops were charged to invite all men to be more diligent in prayer, and less anxious for their personal interests; especially to refrain their greedy appetites from that insatiable serpent of covetousness, wherewith, most men were so infected that it seemed the one would devour another, without charity, or any godly respect 'to the poor, to their neighbours, or to the commonweal:' this it was, the council said, 'for which God had not only now poured out this plague on them, but had also prepared another plague that after this life should plague them everlastingly:' the bishops must 'use persuasions that might engender a terror to redeem men from their corrupt and naughty lives; but the clergy were chiefly to blame; 'the members of a dull head could not do well;' 'the flocks wandered because the ministers were dull and feeble.'⁴²⁹

The people, says Holinshed, for a time were affected and agitated. 'They began to repent, to give alms, and to remember God; but as the disease ceased, so devotion in a short time decayed.' The council perhaps confined their own penitence to the exhortation of others, seeing that at the time when the disease was at its worst, they were engaged upon their last great fraud with the currency. Lulled by the panegyrics of the Protestants, who saw in them all that was most excellent, most noble, most devout, the Lords, or rather the triumvirate of Warwick, Northampton, and Sir William Herbert, who now governed England, were contented to earn their praises by fine words, by persecuting and depriving bishops inclined to be conservative, and by confiscating and appropriating the estates of the vacated sees.

When Ponet was installed as the successor of Gardiner, the estates of the bishopric of Winchester were transferred to the Crown in exchange for a few impropriated rectories. The woods on the lands of the See of London were cut down and sold.⁴³⁰ Heath, Bishop of Worcester, was deposed, and his place was taken by Hooper, the See of Gloucester, which Henry had founded, being suppressed, and the

⁴²⁹TYTLER, vol. i. p. 404. Lord Warwick affected to Cecil a keen regret for the shortcomings of the clergy, which he attributed to their marriages. 'These men,' he said, 'that the King's Majesty hath of late preferred, be so sotted of their wives and children, that they forget both their poor neighbours and all other things which to their calling appertaineth.'—Ibid. vol. ii.

⁴³⁰STRYPE; TYTLER.

estates surrendered.⁴³¹ Westminster, another of Henry's Sees, had been suppressed before; while a further project was on foot to depose Tunstal from the bishopric of Durham. The diocese was to be divided, part to be given to the Dean of Durham, to be endowed out of the estates of the chapter, and part to Newcastle, with a trifling salary; while the princely domains of the bishopric itself were to be shared between Warwick and his friends.

But the Protestants looked on with admiration and applause. The Papists were put out of the way. The doctrinalists were promoted to honour. Miles Coverdale went to Exeter, in the place of Voysey, Scory went to Rochester, Taylor to Lincoln. When men like these were raised to dignity, what more could be desired?

'What a swarm of false Christians have we among us,' said the large-minded Becon; 'gross gospellers, which can prattle of the gospel very finely, talk much of justification by faith, crack very stoutly for the free remission of their sins by Christ's blood. As for their almsdeeds, their praying, their watching, their fasting, they are utterly banished from these gospellers. They are puffed up with pride, they swell with envy, they wallow in pleasures, they burn with concupiscence. Their covetous acts are insatiable, the increasing their substance, the scraping together of worldly possessions. Their religion consisteth in words and disputations; in Christian acts and godly deeds nothing at all.'⁴³²

Of this class of men the highest living representative was the Earl of Warwick, the ruling spirit of the English Reformation in the phase into which it now had drifted.

To return to the Princess Mary.

There being no longer, as it seemed, occasion to fear the resentment of the Emperor, the council, on the 9th of August, resolved to execute their resolution, and put an end to her resistance with a high hand. 'They considered how long and patiently the King had laboured in vain to bring her to conformity.' They 'considered how much her obstinacy and the toleration of it endangered the peace of the realm.' Her chaplains, therefore, should be compelled for the future to perform in her chapel the English service established by law, and none

⁴³¹ RYMER, vol. vi. part 3, p. 216. The intention was to suppress both Worcester and Gloucester, and to found a new see out of the combination.—See Strype's *Memorials*, vol. iv. p. 45.

⁴³² BECON'S *Jewel of Joy*.

other; while Edward undertook to write to his sister with his own hand. The Flemish ambassador was informed at the same time, that the terms of his own residence in England must be identical with those granted to Sir Thomas Chamberlain. He should use the mass on condition only that Chamberlain might use the communion.⁴³³ The Duke of Somerset only defended Mary's interests. His name was attached with the rest to the resolutions of the council;⁴³⁴ but as to him the Princess had been indebted for her first license 'to keep her sacrificing knaves about her,'⁴³⁵ so he endeavoured to prevent the withdrawal of it; and partly, perhaps, from good feeling, partly from opposition to Warwick, he had begun to advocate a general toleration.⁴³⁶ Somerset, in fact, was growing weary of Protestantism, seeing what Protestantism had become. He preferred the company of his architects and masons to attendance at chapel and sermons;⁴³⁷ and Burgoyne, writing to Calvin, said that he had become so lukewarm in the service of Christ, as scarcely to have anything less at heart than religion.⁴³⁸

No cause, however, at that time, could be benefited by the advocacy of Somerset; and Warwick was supported by the powerful phalanx of able and dangerous men whose interest committed them to the Reformation—those who had shared, or hoped to share, in the spoils of the Church or the State—those who had divided among them the forfeited estates of the Percies, the Howards, the Courtenays, and the Poles, and would support any men or any measures which would prevent reaction.

The Princess was at Copt Hall, in Essex. On the 14th of August three of the officers of her household, Sir Robert Rochester, Sir Francis Englefield, and Sir Robert Waldegrave, were sent for by the council: the King's letter was put in their hands, with a charge to deliver it to their mistress. They were instructed to inform the chaplains that

⁴³³*Council Records, MS.*

⁴³⁴*Ibid.*

⁴³⁵John ab Ulmis to Bullinger: *Zurich Letters*.

⁴³⁶Charges against the Duke of Somerset: *Infra*.

⁴³⁷Master Bradford spared not the proudest, and among many others, will't them to tak example be the lait Duck of Somerset, who became so cald in hering God's word, that the yeir before his last apprehension hee wald gae visit his masonis, and wald not dingye himself to gae from his gallerie to his hall for hearing of a sermon.—*Letter of John Knox to the Faithful in London.*

⁴³⁸Burgoyne to Calvin: *Zurich Letters*.

the mass must cease, and to take care, for their own part, that the order was obeyed. At the end of a week they returned to say that the Lady Mary was 'marvellously offended.' She had forbidden them to speak to her chaplains; if they persisted, she said she would discharge them from her service, and she herself would immediately leave the country. She was subject to a heart complaint, and her passion was so violent, that they were afraid to press her further for fear of the possible consequences. They had approached the subject only once afterwards, 'when they not only did not find her more conformable, but in further choler than she was before.' They could, therefore, go no further. She had written to her brother, and they had brought the letter with them.

A message, Mary said in this letter, had been brought to her by her servants on a matter which concerned the salvation of her soul; her servants were no fit messengers for the lords to have chosen. The meanest subjects in the realm would ill bear to receive such treatment through their own attendants. For the letter which Edward had written to her, it was signed indeed with his hand, but it was not his own composition, and he was too young to be a fit judge in such questions. Her father had brought her up in the Catholic faith, and she would not believe one thing and say another, nor would she submit to rule her mind by the opinions of the privy council. She entreated, therefore, that her want of conformity might be tolerated till the King was old enough to act for himself, and if this could not be, 'rather than offend God and my conscience,' she said, 'I offer my body at your will, and death shall be more welcome than life.'⁴³⁹

The appeal was naturally ineffectual. The council would not have ventured so far, had they not been determined to go farther; and with a reprimand for the neglect of their orders, Rochester and his companions were commanded to go back and execute them. They refused. They were commanded again on their allegiance to go, and again refused, and were committed to the Fleet for contumacy. 'Pinnaces' were sent to cruise between Harwich and the mouth of the Thames to prevent an attempt at flight on the part of the Princess; and Rich, the Lord Chancellor, Sir William Petre, and Sir Anthony Wingfield took the ungracious office on themselves. Her servants, they were directed to inform Mary, had not returned to her, and would not re-

⁴³⁹*Privy Council Records, MS.* The Lady Mary to King Edward: ELLIS, vol. ii. p. 176, 1st series; FOXE, vol. vi.

turn. They had disobeyed the King's orders, and if a privy councillor had so far misconducted himself, he would have been equally punished. Competent officers would be furnished for her household in their places. For the rest, his Majesty was grieved that her conscience was so settled in error, as he would himself express to her.⁴⁴⁰ She offered her body to be at the King's service, but no harm was meant to her body—the King desired only that she might have *mentem sanam in corpore sano*. If she had a conscience, so had the King a conscience, and the King must avoid giving offence to God by tolerating error.

The adventures of the new messengers, characteristic of Mary and of the times, shall be related in their own words.

'Having received commandment and instructions from the King's Majesty,⁴⁴¹ we repaired to the Lady Mary's house at Copt Hall, on the 28th instant in the morning, where, shortly after our coming, I, the Lord Chancellor, delivered his Majesty's letter to her, which she received upon her knees, saying that, for the honour of the King's Majesty's hand wherewith the said letter was signed, she would kiss the letters, and not for the matter contained in them; for the matter, said she, I take to proceed not from his Majesty, but from you his council.

'In the reading of the letter, which she did read secretly to herself, she said these words in our hearing—Ah! good Mr Cecil took much pains here. When she had read the letter, we began to open the matter of our instructions unto her; and as I, the Lord Chancellor, began, she

⁴⁴⁰Right dear and entirely beloved Sister, we greet you well, and let you know that it grieveth us much to perceive no amendment in you of that which we, for God's cause, your soul's health, our conscience, and the common tranquillity of the realm, have so long desired; assuring you that our sufferance hath much more demonstration of natural love than contentation of our conscience and foresight of our safety. Wherefore, although you give us occasion, as much almost as in you is, to diminish our natural love, yet we be loath to feel it decay, and mean not to be so careless of you as we be provoked. And therefore meaning your weal, and therewith joining a care not so be found guilty in our conscience to God, having cause to require forgiveness that we have so long, for respect of love towards you, omitted our bounden duty, we send at the present the Lord Rich, the Lord Chancellor of England, and our right trusty and right well-beloved Councillors, Sir Anthony Wingfield and Sir William Petre, in message to you touching the order of your house, willing you to give them firm credit in those things they shall say to you from us. Given under our signet. Windsor, August 24.—Letter of King Edward to the Lady Mary: Foxe, vol. vi.

⁴⁴¹Report of the Commissioners to the Lady Mary, August 29: *MS. Domestic*, Edward VI. vol. xiii. State Paper Office, printed by ELLIS, 1st series, vol. ii. p. 179.

prayed me to be short, for, said she, I am not well at ease, and I will make you a short answer.

'After this, we told her at good length how the King's Majesty having used all the gentle means and exhortations that he might, to have reduced her to the rites of religion and order of divine service set forth by the laws of the realm, and finding her nothing conformable, but still remaining in her former errors, had resolved, by the whole estate of his Majesty's privy council, and with the consent of divers others of the nobility, that she should no longer use the private mass, nor any other divine service than is set forth by the laws of the realm; and here we offered to show her the names of all those which were present at this consultation and resolution. But she said she cared not for any rehearsal of the names, for, said she, I know you to be all of one sort therein.

'We told her further that the King's Majesty's pleasure was we should also give strait charge to her chaplains that none of them should presume to say any mass, and the like charge to all her servants that none of them should presume to hear any mass.

'Hereunto her answer was thus—

'To the King's Majesty she was, is, and ever will be his Majesty's most humble and most obedient subject and poor sister, and would most willingly obey all his commandments in anything—her conscience saved—yea, and would willingly and gladly suffer death to do his Majesty good. But rather than she will agree to use any other service than was used at the death of the late King her father, she would lay her head on a block and suffer death. But, said she, I am unworthy to suffer death in so good a quarrel. When the King's Majesty, said she, shall come to such years that he may be able to judge these things himself, his Majesty shall find me ready to obey his orders in religion; but now in these years, although he, good, sweet King, have more knowledge than any other of his years, yet it is not possible that he can be a judge of these things. If ships were to be sent to the sea, or any other thing to be done touching the policy and government of the realm, I am sure you would not think his Highness yet able to consider what were to be done. And much less, said she, can he in these years discern what is fit in matters of divinity. If my chaplains do say no mass, I can hear none; no more can my poor servants. But as for my servants, I know it shall be against their will, as it should be against mine; for if they could come where it were said, they should hear it

with good will, and as for my priests, they know what they have to do. The pain of your law is but imprisonment for a short time, and if they will refuse to say mass for fear of that imprisonment, they may do therein as they will; but none of your new service, said she, shall be used in my house, and if any be said in it, I will not tarry in the house.

'After this, we declared to her Grace, for what causes the Lords of the Council had appointed Rochester, Englefield, and Waldegrave, being her servants, to open the premises unto her, and how ill and untruly they had used themselves in the charge committed unto them; and beside that, how they had manifestly disobeyed the King's Majesty's council. She said it was not the wisest counsel to appoint her servants to control her in her own house; and that her servants knew her mind therein well enough, for, of all men, she might worse endure any of them to move her in any such matters. And for their punishment, said she, my Lords may use them as they think good; and if they refused to do the message unto her and her chaplains, they be, said she, the honester men, for they should have spoken against their own conscience.

'After this, when we had at good length declared unto her our instructions, touching the promises which she claimed to have been made to the Emperor, and, besides, had opened unto her at good length all such things as we knew and had heard therein, her answer was, that she was well assured the promise was made to the Emperor; and that the same was once granted before the King's Majesty in her presence, there being there seven of the council, notwithstanding the denial thereof at her last being with his Majesty. And I have, quoth she, the Emperor's hand testifying that this promise was made, which I believe better than you all of the council; and though you esteem little the Emperor, yet should you show more favour to me for my father's sake, who made the more part of you all almost of nothing. But, as for the Emperor, said she, if he were dead, I would say as I do; and if he would give me now other advice, I would not follow it. Notwithstanding, quoth she, to be plain with you, his ambassador shall know how I am used at your hands.

'After this, we opened the King's Majesty's pleasure, for one to attend upon her Grace for the supply of Rochester's place during his absence.

'To this her answer was, that she would appoint her own officers, and that she had years sufficient for that purpose; and if we left any men there, she would go out of her gates, for they two would not dwell in one house. And, quoth she, I am sickly, and yet I will not die willingly, but will do the best I can to preserve my life. But if I shall chance to die, I will protest openly that you of the council be the causes of my death; you give me fair words, but your deeds be always ill to me.

'Having said this, she departed from us into her bed-chamber, and delivered to me, the Lord Chancellor, a ring upon her knees, with very humble recommendations to her brother, saying, that she would die his true subject and sister, and obey his commandment in all things, except in these matters of religion. But yet, said she, this shall never be told to the King's Majesty. After her departure, we called the chaplains and the rest of the household before us, and the chaplains, after some talk, promised all to obey the King's Majesty's commandment. We further commanded them, and every one of them, to give notice to some one of the council, at the least, if any mass, or other service than that set forth by the law, should hereafter be said in that house.

'Finally, when we had said and done as is aforesaid, and were gone out of the house, tarrying there for one of her chaplains, who was not with the rest when we gave the charge aforesaid unto them, the Lady Mary's Grace sent to us to speak with her one word at a window. When we were come into the court, notwithstanding that we offered to come up to her chamber, she would needs speak out of the window, and prayed us to speak to the Lords of the Council that her controller might shortly return; for, said she, since his departing, I take the accounts myself of my expenses, and learned how many loaves of bread be made of a bushel of wheat; and I wis my father and my mother never brought me up with baking and brewing; and, to be plain with you, I am weary of my office, and, therefore, if my Lords will send mine officer home, they shall do me pleasure; otherwise, if they send him to prison, I beshrew him if he go not to it merrily and with a good will. And I pray God to send you well to do in your souls and bodies too, for some of you have but weak bodies.'

As the moment draws near when Mary will step forward to the front of the historical stage, it is time to give some distinct account of her. She was born in February 1515–16, and was therefore, in her

thirty-sixth year. Her face was broad, but drawn and sallow; the forehead large, though projecting too much at the top, and indicating rather passion and determination than intellectual strength. Her eyes were dauntless, bright, steady, and apparently piercing; but she was short-sighted, and insight either into character or thing was not among her capabilities. She was short and ill-figured; above the waist, she was spare, from continued ill-health; below, it is enough to say that she had inherited her father's dropsical tendencies, which were beginning to show themselves. Her voice was deep like a man's, she had a man's appetite, especially for meat; and in times of danger, a man's promptness of action. But she was not without a lady's accomplishments. She embroidered well, played on the lute well; she could speak English, Latin, French, and Spanish, and she could read Italian; as we have seen, she could be her own housekeeper; and if she had masculine energy, she had with it a woman's power of braving and enduring suffering.

By instinct, by temperament, by hereditary affection, she was an earnest Catholic; and whatever Mary believed she believed thoroughly, without mental reservation, without allowing her personal interests either to tint her convictions or to tempt her to disguise them. As long as Queen Catherine lived, she had braved Henry's anger, and clung to her and to her cause. On her mother's death she had agreed to the separation from the Papacy as a question of policy touching no point of faith or conscience. She had accepted the alterations introduced by her father; and, had nothing else intervened, she might have maintained as a sovereign what she had honestly admitted as a subject. Her own persecution only, and the violent changes enforced by the doctrinal Reformers, taught her to believe that, apart from Rome, there was no security for orthodoxy.

In her interview with the messengers, she had shown herself determined, downright, and unaffected, cutting through official insincerities, and fearless of consequences, standing out for the right as she understood it. The moral relations of good and evil were inverted; and between Mary, the defender of a dying superstition, and the Lords of the Council, the patrons of liberty and right, the difference so far was as between the honest watch-dog and a crew of prowling wolves.

The dominant faction had dragged on for two years, through mean tyranny and paltry peculation. The time had come when, no longer

able to continue their ill ways unmolested, they were to venture into open crime.

The Duke of Somerset had neglected the debts of the realm, till they were past retrieval. He had rushed into expensive and unsuccessful wars, crippled the revenue, and continued the debasement of the currency. He had brought the country into discredit abroad; and by forcing forward changes in religion for which the people were unprepared, he had thrown half England into insurrection. He had justly been deprived of the power which he had usurped and abused. Yet, for the most part, he had failed in attempts which in themselves were noble; and the Duke of Somerset might flatter himself that his own government showed brightly by the side of the scarcely less rash and more utterly ungenerous administration which had followed on his fall. Could he have recovered the Protectorate, it is not likely he would have profited by his past experience; a large vanity and a languid intellect incapacitated him for sovereign power; yet, in the face of the existing state of things, he need only be moderately blamed if he endeavoured to regain his power from the hands by which it had been wrested from him. In the past year he had provoked the jealousy and the suspicion of Warwick, by interfering in favour of Gardiner; he had been exposed, as in the instance of his mother's funeral, to petty insults and mortifications; and early in the spring of 1551 he had begun to meditate the possibility of revenging himself. Whalley, the fraudulent receiver of Yorkshire, one of the least reputable of his friends, had felt the pulses of the peers with a view to his restoration;⁴⁴² he became privy to Catholic conspiracies without revealing them; and, after his arrest, the missing link in the evidence, the want of which had saved the Bishop of Durham from imprisonment a few months previously, was found in his desk. The council in their treatment of his friends provided him with unscrupulous partisans. Sir Ralph Vane, a distinguished soldier, had a right of pasturage by letters patent over lands which the Earl of Warwick claimed or coveted. Warwick sent his servants to drive Vane's cattle from the meadows; Vane defended his rights in arms, and was arrested and sent to the

⁴⁴²On the 16th of February Whalley was examined before the council 'for persuading divers nobles of the realm to make the Duke of Somerset Protector at the next Parliament, and stood to the denial, the Earl of Rutland affirming it manifestly.' EDWARD'S *Journal*.

Tower,⁴⁴³ as much, perhaps, because he was a follower of the Duke, as for any offence of his own.

The confinement was soon over; but the injury remained, and Vane became ready at any moment to rise in arms. Suspected before his intentions had assumed a definite form, Somerset, on the 23rd of April, had been on the point of flying, in a supposed fear of his life, with Lord Grey, to the northern counties, to call out the people and place himself at their head. He had been prevented only by Sir William Herbert, who assured him that he was in no danger,⁴⁴⁴ and he had remained to oppose Warwick in the treatment of Mary. Unable to effect anything by legitimate opposition, he had listened to suggestions for a general toleration in religion;⁴⁴⁵ he had consulted with Lord Arundel on calling a Parliament, and appealing to the country against Warwick by proclamation;⁴⁴⁶ and as the design of doing something assumed form, the Duchess of Somerset brought into it her brother Sir Michael Stanhope, and her half-brother Sir Thomas Arundel. Lord Strange was set to work upon the King to induce him to break his engagements with France, and marry Lady Jane Seymour instead. A scheme was formed to arrest and imprison Warwick, Northampton, and Herbert, into which the Earl of Arundel entered eagerly and warmly, and in which Lord Paget was, at least, a silent accomplice. Sir John Yorke, the Master of the Mint, was to be taken also, 'because he could tell many pretty things;' and as a violent arrest might perhaps be violently resisted, it was not impossible that lives might be taken in the scuffle. Somerset himself admitted that the deaths of Warwick and the other noblemen had been spoken of as a contingency which might occur: an intention that they should be killed, if he ever formed

⁴⁴³*Privy Council Records*, MS. March 27, 1551.

⁴⁴⁴The principal authorities for the story of Somerset's real or supposed conspiracy are the depositions and examinations in the 13th volume of the *Domestic MSS.* of the reign of Edward VI. State Paper Office; and the entries in *EDWARD'S Journal*.

⁴⁴⁵Whether did Sir Miles Partridge or any other give you advice to promise the people their mass, holy water, with such other, rather than to remain so unquieted?—Questions addressed to the Duke of Somerset: TYTLER, vol. ii. p. 48.

⁴⁴⁶Did it proceed first from yourself or from the Earl of Arundel to have a Parliament? With how many have you conferred for the setting forth of the proclamation to persuade the people to dislike the Government, and specially the doings of the Duke of Northumberland, the Earl of Pembroke, and the Marquis of Northampton, doing them to understand that they went about to destroy the commonwealth, and also had caused the King to be displeased with the Lady Mary's Grace, the King's sister?—TYTLER, vol. ii. p. 48.

such, he soon relinquished. His plan, so long as it was entertained, was to treat the Lords as he had been treated himself, and to call Parliament immediately, 'lest peradventure of one evil might happen another.' But his mind misgave him, and his purposes were vacillating. First, there was a doubt whether Herbert should be included in the arrest; afterwards, according to one witness, the Duke changed his mind, 'and would meddle no further with the apprehension of any of the council, and said he was sorry he had gone so far with the Earl of Arundel.'⁴⁴⁷

So the matter stood in the beginning of October. Among those who had been privy to the conspiracy was Sir Thomas Palmer, a soldier who had gained some credit by desperate service in the French wars, and had led the forlorn hope of cavalry who sacrificed themselves at Haddington to enable supplies to reach the blockaded garrison: a brave man, but, as it seemed, a most unscrupulous one, whose services in a dangerous enterprise might be as useful as his fidelity was uncertain.

Palmer, on the 7th of October, came to Lord Warwick's house, and 'in my Lord's garden,' writes Edward,⁴⁴⁸ 'he declared how St George's day last past, my Lord of Somerset, who was then going to the north, if the Master of the Horse, Sir Win. Herbert, had not assured him of his honour he should have no hurt, went to raise the people, and the Lord Grey went before to know who were his friends. Afterwards a device was made to call the Earl of Warwick to a banquet with the Marquis of Northampton and divers others, and to cut off their heads. Also, he formed a base company about them by the way to set upon them. He declared also, that Sir Ralph Vane had two thousand men in readiness; Sir Thomas Arundel had assured my Lord that the Tower was safe; Mr Partridge should raise London, and take the Great Seal with the apprentices; Seymour⁴⁴⁹ and Hammond should wait upon himself, and all the horses of the gensdarmes should be slain.'

Such was Palmer's story—truth and falsehood being mingled together; truth, because part of it was confirmed by other witnesses, and confessed by the Duke himself; falsehood, because Warwick (or

⁴⁴⁷Charges against the Duke of Somerset: *MS. Domestic*, Edward VI. vol. xiii. State Paper Office; printed imperfectly by TYTLER.

⁴⁴⁸EDWARD'S *Journal*, Oct. 8.

⁴⁴⁹David Seymour; some connection of Somerset's family.

Northumberland, as he was immediately to be) confessed before his own death that the Duke of Somerset had through his means been falsely accused; and Palmer, also, before his death, declared that the evidence to which he had sworn had been invented by Warwick, and had been maintained by himself at Warwick's request.⁴⁵⁰ Whether Palmer's treachery for the first time acquainted Warwick with Somerset's designs against him, or whether Warwick had watched their growth and sprang a countermine when the time was ripe, I am unable to determine. Certain only it is that Somerset, and Somerset's party, were become dangerous to him. He felt, perhaps with reason, that, if once in their power, he would find as little mercy at their hands as he intended that they should receive at his own; and inasmuch as the truth, if only the truth was known, might not ensure a conviction, inasmuch as the mere attempt at the overthrow of a faction might seem, in the eyes of the Lords who must try Somerset, rather a virtue than a crime—some additional atrocity had to be

⁴⁵⁰The Duke of Northumberland, before going to the scaffold, desired an interview with Somerset's sons:—Au quels il crya mercy de l'injustice qu'il avoit fait à leur Pere Protecteur de l'Angleterre, congnoissant avoir procuré sa mort à tort et faulcement. Palmer avant sa mort a confessé que l'escripture et l'accusation qu'il advouche et maintint contre la feu Protecteur estoit fausse, fabriquée par le dict duc (de Northumberland) et advoué par luy à la requeste du dict duc. Et y a d'estranges loix par de ça sur le fait d'accusation que ce peult faire par deux temoings, encores qu'ils deposent singulierement et diversement.—Simon Renard to Charles V.: *MS. Record Office*. Transcribed from the archives at Brussels. If Palmer and Northumberland really made these confessions, the question whether there was or was not foul play at the trial of the Duke of Somerset is set at rest; and by adopting Renard's story in the text, I show of course that I think it true; yet I have not adopted it without hesitation. Although there was a general belief, in which Cranmer and Ridley shared, that Somerset had been unfairly dealt with, it is strange that a foreign ambassador should be the only authority for so important a feature in the evidence about it. Palmer's story had nothing in it which in itself was incredible or even improbable; and unless Edward was imposed upon (which it is hard to suppose), as to the acknowledgments which were made by Somerset in open court at that time of his trial, those acknowledgments confirm in substance all that Palmer stated. Renard's letter, too, was written when Northumberland had just failed in his attempt to alter the succession; and any charge against him, however monstrous, found ready hearing among the Queen's friends. On the other hand, a distinct circumstantial statement of a competent witness is not to be lightly set aside, merely from circumstantial objections. No English minister was better informed than Renard of everything which passed in London at the time of Mary's accession. He was writing from the spot, and he was not a person to report on hearsay the flying rumours of the hour.

I give the result of my own reflections upon the subject. Readers who take an interest in the question will judge for themselves.

invented—something on which the law spoke too plainly for evasion, and which might diminish a sympathy otherwise likely to be troublesome.

Palmer's revelations were kept profoundly secret, except, it may be, from Herbert and Northampton, and from Edward, who, duped by the plausible zeal of Warwick for the Protestant gospel, hearing only from the fanatic enthusiasts who surrounded him adulation of the Earl as a champion of the Lord, and suspicious of his uncle as a backslider and apostate, listened and believed with the simplicity of a boy.⁴⁵¹ Though nothing definite transpired, however, there were movements in the State which created in Somerset a vague feeling of uneasiness: a report reached him that Palmer had been closeted with Warwick. Parliament, which was to have met on the 13th of October, was prorogued till January.⁴⁵² A muster of the gendarmerie was ordered for the 8th of November; and on the 11th of October there were significant and important changes in the peerage. Lord Dorset, Lady Jane Grey's father, was made Duke of Suffolk; Warwick became Duke of Northumberland; Paulet, Earl of Wiltshire, Marquis of Winchester; and Sir William Herbert Earl of Pembroke.

The elevation of the men against whose power, if not life, the late Protector was conspiring, naturally alarmed him. He sent for Cecil (now Sir William Cecil, and Secretary of State), and inquired if he was in any danger. Cecil replied 'that, if he was not guilty, he might be of good courage; if he was, he had nothing to say but to lament him.' It was an answer calculated neither to soothe nor please. The Duke, says Edward, defied Cecil, and sent for and cross-questioned Palmer. Palmer, of course, denied that he had said anything against him, true or false; and he remained anxious and uncertain till the 16th, when he appeared as usual at the meeting of the privy council.

By this time Warwick's preparations were complete. It is to be hoped that the full extent of his iniquity was kept secret between himself and his instrument, that the council, like Edward, were his dupes. In the afternoon of that day Somerset was arrested on a charge of treason, and sent to the Tower, whither he was followed

⁴⁵¹The frigid hardness with which Edward relates in his *Journal* and one of his letters the proceedings against Somerset has been commented on with some sharpness. His age—he was but fourteen—and the miserable influences around him might excuse a greater crime. He believed that Somerset was guilty in the worst sense of the word, and with such a conviction the cold tone was natural and right.

⁴⁵²*Lords' Journal*.

immediately after by the Duchess, Lord Arundel, Sir Thomas Arundel, Paget, Grey, Stanhope, Partridge, and many more. Vane escaped across the river, and hid himself in a stable at Lambeth; but he was betrayed, or discovered, in a few hours.

Palmer now enlarged his evidence. The gendarmerie, he said, were to have been assaulted on the muster-day by Somerset's retinue and Sir Ralph Vane's two thousand footmen; the cry of liberty was to have been raised in London; and, in case of failure, the conspirators were to have fallen back on Poole or the Isle of Wight. Another witness supported this part of the story; and here, it is likely enough, that it was true. The banquet, it was further said, where the Lords were to have been killed, was to have been held at the house of Lord Paget.
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The next step was to send the usual circulars to the magistrates, informing them of the near escape of the King and commonwealth from conspiracy; and letters to the same effect were sent to Pickering and Chamberlain, to lay before the Courts of Paris and Brussels. Henry affected to believe—Northumberland being in the interests of France;⁴⁵⁴ the Regent Mary, perhaps for the same reason, scarcely cared to conceal her incredulity.⁴⁵⁵

The prosecution was temporarily interrupted by the arrival and entertainment in London of Mary of Guise, on her route from France to Scotland; and, at the same time, by an invitation from Maurice and the other Protestant princes, to join in the great enterprise about to be attempted against the Emperor. But the pageant of a royal entertainment was soon over, and Warwick and his friends were too deeply disloyal to the cause of which they were so loud professors, to join in a religious confederacy. Their own idea of foreign policy was the

⁴⁵³It is to be remarked that, in the subsequent proceedings, although the banquet was alluded to, the intended scene of it was not again mentioned. Neither Paget nor Arundel was tried, although, if any plot was really formed for the murder, Arundel was one of the principal persons concerned in it.

⁴⁵⁴Pickering to the Council: TYTLER, vol. ii.

⁴⁵⁵Chamberlain told her of 'his Majesty's escape.' 'She said she was sorry to hear of the Duke's so evil behaviour; yet was she glad and thanked God, who had so well preserved his Highness. But is it true, she said, that the Duke meant anything to the King's Majesty's person; demanding by what means he could be able to do the same, musing much at the matter why the Duke would shew himself so ingrate towards the King's Majesty. The thing, quoth she, is very strange, for that by all reason the Duke's whole wealth did depend upon the King's Majesty's prosperity and welfare.'—*MS. Flanders*, Edward VI. vol. i. State Paper Office.

balance of power, which no other object, divine or human, ought to derange; ⁴⁵⁶ and the Germans were put off with an evasive answer, and at last with an equivalent to a refusal. ⁴⁵⁷ Northumberland's attention was demanded for a more serious object.

November was spent in a series of private examinations of the prisoners in the Tower. Crane, the witness who had supported Palmer, declared, on being cross-questioned, that Somerset's intentions, whatever they were, had been abandoned. Lord Arundel admitted reluctantly, and after many denials, a design formed by himself and the Duke to arrest Northumberland and Northampton at the council, and to compel a change in the mode of government. ⁴⁵⁸ Hammond, one of the Duke's servants, deposed to a guard which the Duke kept in his ante-room. A collection of questions remain, which were addressed to the Duke himself, though his answers are lost; and these questions are important, as has been well observed, ⁴⁵⁹ since they contain no allusion to the intended assassination. Other evidence was obtained also, but of an immaterial kind. On the 30th the witnesses were examined severally before the peers who were to sit upon the trial, and they swore all of them that their confessions were true, 'without compulsion, fear, envy, or displeasure.' The next morning, the first of December, at five o'clock, in the winter darkness, the Duke was brought in a barge from the Tower to Westminster Hall. In fear of a demonstration, which the popularity of Somerset made more than likely, an order of council had been sent out the day before, that every household should keep within-doors, and that in each house one man at least should be ready with his arms, to be called out, if order should be disturbed. But the eagerness of the people defied the command to stay at home, and by daybreak

⁴⁵⁶It is well explained in a despatch of Doctor Wotton, who, to do him justice, did not affect much interest in the Reformation. France, in spite of professions of friendship, he looked upon as a treacherous neighbour. 'From France,' he said, 'danger may, perhaps, be suspected, if the Protestants, plucking their heads out of the yoke, and labouring to recover their oppressed liberty, deliver the French from all fear and suspicion of the Emperor.' To sacrifice the Protestants, lest the Emperor should be too much weakened, to irritate the quarrels between the Emperor and France, lest either of them should meddle with England, was the ignoble policy of an English liberal Government.—Wotton to Cecil: *MS. State Paper Office*.

⁴⁵⁷EDWARD'S *Journal*, November, 1551, and March, 1552.

⁴⁵⁸Confession of Lord Arundel: *MS. Domestic*, Edward VI. vol. xiii. printed partially by TYTLER.

⁴⁵⁹By Mr TYTLER.

Palace-yard and the court before the hall were thronged with a vast multitude, all passionately devoted to Somerset, all execrating his rival. The court was formed; Lord Winchester sitting as High Steward. Twenty- six peers, Northumberland, Northampton, and Pembroke among them, took their seats, and at nine o'clock the prisoner was led forward to the bar.⁴⁶⁰

Under the Act of Unlawful Assemblies⁴⁶¹ the late Protector was charged, under various counts, with having treasonably collected men in his house for an ill intent, as to kill the Duke of Northumberland; with having devised the death of the Lords of the Council; with having intended to raise the city of London to assault the Lords of the Council; and, finally, with having purposed to resist his arrest. On the last three counts he was further indicted for felony. As usual in trials for treason, the principal witnesses were not brought into court; their depositions, taken down elsewhere, were read aloud. The Duke, when called on to answer, admitted that he had collected men, and that he had spoken of killing Northumberland and Northampton; but afterwards he said he 'determined the contrary.'⁴⁶² He denied an intention of raising the city of London, or the northern counties. The story of the banquet, he said, was altogether false. When Crane's evidence was read, he desired that Crane might be produced in court and confronted with him. Palmer, he said, was a worthless villain. Lord Strange was the only witness who came forward in person. Strange declared that Somerset had moved him to persuade the King to break with France, and marry Lady Seymour. This, too, Somerset denied; but Strange persisted. The peers withdrew. Northumberland, possibly in pretended moderation,

⁴⁶⁰For the particulars of Somerset's trial, see *Edward's Journal*, STOW, HOLINSHEAD, the *Privy Council Register*, the papers in vol. xiii. of the *Domestic MSS.* of the reign of Edward VI., the *Grey Friars' Chronicle*, and the second volume of Mr TYTLER's *Edward and Mary*.

⁴⁶¹3 and 4 Edward VI. cap. 5: If any persons to the number of twelve or above, being assembled together, shall practise with force of arms unlawfully and of their own authority to murder, kill, slay, take, or imprison any of the King's most honourable privy council, or unlawfully to alter or change any laws made or established by authority of Parliament, and being commanded by the Sheriff of the shire, or any justice of the peace, to retire to their own houses, shall remain together for one hour after such proclamation, or after that shall attempt or do any of the things above specified, every such act shall be judged high treason.

⁴⁶²And yet, says Edward, 'he seemed to admit that he went about their deaths.'—*Journal*, December, 1551.

but more likely to ensure a condemnation,⁴⁶³ disclaimed a desire to press the treason charge; for a lighter verdict Somerset's own confession seemed sufficient. On the first count, therefore, the Lords returned a verdict of not guilty. Amidst a murmur of applause, the sergeant-at-arms left the hall with the axe of the Tower. The anxious crowd at the doors, mistaking his appearance for a final acquittal, sent up a shout again, and again, and again, which pealed up to Charing Cross, and was heard in Long Acre. But congratulations were premature. Acquitted of treason, the Duke was found guilty of felony, which would answer equally to ensure his destruction;⁴⁶⁴ Winchester pronounced sentence of death; and, amidst the awful silence which followed, the Duke fell on his knees, thanking the court for his trial, and, unless Edward was deceived by a purposely false report, asked Northumberland to pardon him, confessing that he had meant his destruction.⁴⁶⁵ 'Duke of Somerset,' Northumberland answered from his seat, 'you see yourself a man in peril of life and sentenced to die. Once before I saved you in a like danger, nor will I desist to serve you now, though you may not believe me. Appeal to the mercy of the King's Majesty, which I doubt not he will extend to you. For myself, gladly I pardon all things which you have designed against me, and I will do my best that your life maybe spared.'⁴⁶⁶

The truth is hard to read through such a maze of treachery. If it be true that Somerset confessed, either in the court or the Tower, that he had really meditated murder, he was no better than Northumberland; interest or sympathy is alike wasted upon either, and Palmer's

⁴⁶³ Lord Coke, commenting upon the trial, observes that, even admitting the truth of the evidence, the verdict was not justified, because there had been no proclamation calling on the Duke and his confederates to disperse; and it was only by persisting, after such proclamation had been read, that his conduct came under the Treason Act. Northumberland probably anticipated the objection, and was contented with an ordinary verdict of felony under the common law.

⁴⁶⁴ Edward, writing to his friend, Barnaby Fitzpatrick, says, 'After debating the matter till nine of the clock till three, the Lords went together, and there weighing that the matter seemed only to touch their lives, although afterwards more inconvenience might have followed, and that men might think they did it of malice, acquitted him of high treason, and condemned him of felony, *which he seemed to have confessed*.' Edward to Fitzpatrick: printed in FULLER'S *Church History*.

⁴⁶⁵ Edward to Fitzpatrick: *Ibid*. Edward adds, in his *Journal*, that two days after, Somerset confessed in the Tower that he had hired a man named Bertiville to kill Northumberland and Northampton; that Bertiville was arrested, and on being examined, confessed also.

⁴⁶⁶ John ab Ulmis to Bullinger: *Epistolæ TIGURINÆ*, p. 291.

evidence may, in that case, have been exaggerated only because the intended crime was certain, though the proof was insufficient. Yet, if Northumberland had but anticipated a blow which had been aimed against himself, his conduct would scarcely have sat so heavily on his conscience. Scarcely, too, would Cranmer or Ridley, unlike the pious flatterers of the now all-powerful statesman, have risked his anger with 'shewing their consciences' in such a cause.⁴⁶⁷

But if to the historical inquirer it seems doubtful whether the guilt was on both sides or but on one, the world at the time entertained no such uncertainty. So deep was the excitement, so general the suspicion of the verdict, that it was found necessary to overawe London two days after with a parade of the gendarmerie. Arundel and Paget were examined in the Star Chamber with closed doors, but a second trial was a risk too great to be ventured.

When Parliament was prorogued in October, there had been an evident dread of the humour which might be shown by the Lower House; and measures had been taken to secure assistance there which might be depended upon.⁴⁶⁸ Meantime Northumberland's friends gave out that, on the trial, and since the trial, he had exerted himself in Somerset's interests with unparalleled generosity. The execution was delayed perhaps to give colour to the story, and it was reported first that the King had granted a free pardon;⁴⁶⁹ next it was said that a pardon had been offered, but that the Duke, counting on his own or his friends' power, would not accept it, and had flung back the generous overtures of the council with scorn and insolence.⁴⁷⁰ The death of his brother was brought back against him with

⁴⁶⁷I have heard that Cranmer, and another, whom I will not name, were both in high displeasure; the one for shewing his conscience secretly, hut plainly and fully, in the Duke of Somerset's cause; and both of late, but especially Cranmer, for repugning against the spoil of the Church goods taken away without law or order of justice, by commandment of the higher powers.'—Ridley's Lamentation on the State of England: FOXE, vol. vii. p. 573. Ridley must be supposed to mean himself by the 'other' whom he will not name.

⁴⁶⁸A letter to be written to the Lord Chancellor to cause search to be made how many of the Parliament House be dead since the last session, to the intent that grave and wise men might be elected to supply their place, for the avoiding of the disorder that hath been noted in sundry young men and others of small judgment.'—*Privy Council Register*, MS. October 28, 1551. The Council had never ventured on a second trial of the disposition of the country. The same Parliament continued to sit which was elected in 1547.

⁴⁶⁹John ab Ulmis to Bullinger: *Epistolæ Tigurinæ*.

⁴⁷⁰Burgoyne to Calvin: *Ibid*.

ingenious misrepresentation. ⁴⁷¹ His arrogance, it was pretended, could no longer be endured, and, should he escape punishment, he would throw the whole realm into confusion to revenge himself. ⁴⁷²

Calvin, more keen-sighted than the correspondent who furnished him with these stories, meditated a remonstrance to the King, with a caution against the advisers who were betraying him. ⁴⁷³ In England the general indignation could not be concealed by the loud applauses of the revolutionists. It was likely enough that, were Somerset free, there would be a convulsion; but men could not be convinced that any change would be an evil which would deliver them from the hated Northumberland. ⁴⁷⁴

No alteration could be expected in the popular feeling, and the irritation would be inflamed by longer delay. The execution was fixed at last for the morning of the 22nd of January.

As an attempt at rescue was anticipated, an order of council again commanded all inhabitants of the city or the suburbs to keep to their houses. A thousand men-at-arms brought in from the country were drawn up on Tower Hill, and with the gendarmerie formed a ring round the scaffold; but the proclamation was not more effectual at the execution than at the trial. As the day dawned, the great square and every avenue of approach to it were thronged with spectators, pressing on all sides against the circle of armed men.

A little before eight o'clock the Tower guard brought up their prisoner. Somerset's countenance was singularly handsome, and both his features and his person were marked with an habitual expression of noble melancholy. Amidst his many faults he was every inch a gentleman. He was dressed in the splendid costume which he had worn

⁴⁷¹It is notorious to every one that he was the occasion of his brother's death, who was beheaded on his information, instigated by I know not what hatred and rivalry.—Ibid. Elizabeth, a better authority than Burgoyne, said that, so anxious was Somerset to save the admiral, that those who were determined on his death found it necessary to prevent an interview between the brothers.—Supra.

⁴⁷²Burgoyne to Calvin.

⁴⁷³Addebat ille te in animo habere de ducis morte nescis quid adversus nostros homines scribere immo ad regem ipsum.—Valerandus Pollanus Joanni Calvino: *Epistolæ TIGURINÆ*.

⁴⁷⁴The new coinage, good as it was, could find no favour, from the dread and suspicion in which the Duke of Northumberland was held.

'December 16, there was a proclamation for the new coin, that no man should speak ill of it: for because the people said divers ... that there was the ragged staff ... it ...'—Imperfect Fragment in the *Grey Friars' Chronicle*.

in receptions of state. As he stepped upon the scaffold, he knelt and said a short prayer; he then rose, and, bowing to the people, spoke bareheaded.⁴⁷⁵

Masters and good fellows. I am come hither to die; but a true and faithful man as any was unto the King's Majesty and to his realm. But I am condemned by a law whereunto I am subject, as we all, and therefore to show obedience I am content to die; wherewith I am well content, being a thing most heartily welcome to me; for the which I do thank God, taking it for a singular benefit as ever might have come to me otherwise. For, as I am a man, I have deserved at God's hand many deaths; and it has pleased his goodness, whereas He might have taken me suddenly, that I should neither have known Him nor myself, thus now to visit me and call me with this present death as you do see, where I have had time to remember and acknowledge Him, and to know also myself, for the which I do thank Him most heartily. And, my friends, more I have to say to you concerning religion: I have been always, being in authority, a furtherer of it to the glory of God to the uttermost of my power; whereof I am nothing sorry, but rather have cause and do rejoice most gladly that I have so done, for the greatest benefit of God that ever I had, or any man might have in this world, beseeching you all to take it so, and to follow it on still; for, if not, there will follow and come a worse and great plague.'

He was still speaking, when the crowd began suddenly to wave and shift. Through the breathless silence a noise was heard like the trampling of the feet of a large number of men approaching: some thought it was a rescue, some one thing, some another; shouts rose, away! away! the packed multitude attempted to scatter, and as the sound had created the alarm, the alarm now increased the sound. Some cried that it thundered, some that an army was coming down from heaven, some felt the earth shake under their feet. The mystery was merely that a company of soldiers, who had been ordered to be at Tower Hill by eight o'clock, and had found themselves late, were coming at a run through an adjoining street;⁴⁷⁶ but no one thought of

⁴⁷⁵There are several reports of Somerset's last words. That in the text is from an MS. printed by Sir Henry Ellis, which is simpler and shorter than the version given by Foxe and Holinshed, and was most likely the nucleus out of which the latter accounts were expanded. I have added one sentence, that marked between brackets, from Burgoyne's letter to Calvin.

⁴⁷⁶Stow was present, and ascertained carefully the origin of the alarm.

looking for a reasonable cause. 'There was a rumbling,' says Machyn,⁴⁷⁷ 'as it had been guns shooting, and great horses coming. A thousand fell to the ground for fear, for that they on the one side thought no other but that the one was killing the other; a hundred fell into the Tower ditch, and some ran away for fear.'

In the midst of the confusion, Sir Anthony Browne was seen forcing his horse through the throng towards the scaffold, and above the clamour rose a shout of 'Pardon, pardon; a pardon from the King.'

Had Somerset been deceived, it would have been a cruel aggravation of his suffering; but he knew Northumberland too well.

He had stood in the front of the scaffold with his cap in his hand, waiting till the noise should cease. At the cry of a pardon he exclaimed: 'There is no such thing, good people; there is no such thing.' His voice quieted them, and he went on with his address:—

'It is the ordinance of God thus to die, wherewith we must be content; [I beseech you do not grieve for my fortunes; keep yourselves quiet and still, and make no disturbance, or attempt to save me, for I do not desire a longer life;] and let us now pray together for the King's Majesty, to whose Grace I have always been a faithful, true, and most loving subject, desirous always of his most prosperous success in all his affairs, and ever glad of the furtherance and helping forward of the commonwealth of his realm.'

At the concluding words voices answered, 'Yes, yes, yes.' Some one cried above the rest, 'This is found now too true.'

The Duke then drew off his rings, and gave them to the executioner. Dropping his cloak, he unbuckled his sword, which he presented to the Lieutenant of the Tower, and, after a few words with the Dean of Christ Church, who had attended him, he loosened his shirt-collar, and knelt quietly before the block. Three times he was heard to say, 'Lord Jesus, save me.' The headsman's arm rose, fell, and all was over.

The English public, often wildly wrong on general questions, are good judges, for the most part, of personal character; and so passionately was Somerset loved, that those who were nearest the scaffold started forward to dip their handkerchiefs in his blood. His errors were forgotten in the tragedy of his end; and the historian who in his life sees much to censure, who, had he recovered his Protectorate, would, perhaps, have been obliged to repeat the same story of author-

⁴⁷⁷MACHYN's *Diary*, January 22.

ity unwisely caught at and unwisely used, can find but good words only for the victim of the treachery of Northumberland.

In revolutions the most excellent things are found ever in connection with the most base. The enthusiast for the improvement of mankind works side by side with the adventurer, to whom change is welcome, that he may better his fortune in the scramble: and thus it is that patriots and religious reformers show in fairest colours when their cause is ungained, when they are a struggling minority chiefly called upon to suffer. Gold and silver will not answer for the purposes of a currency till they are hardened with some interfusion of coarser metal; and truth and justice, when they have forced their way to power, make a compromise with the world, and accept some portion of the world's spirit as the price at which they may exercise their ever limited dominion. So it is at the best: too often, as the devil loves most to mar the fairest works, the good, when success is gained, are pushed aside as dreamers, or used only as a shield for the bad deeds of their confederates; they are happy if their own nature escape infection from the instruments which they use, and from the elements in which they are compelled to work.

While the lay ministers' of Edward VI. were 'sowing the wind,' where the harvest in due time would follow, Archbishop Cranmer, keeping aloof more and more from them and their doings, or meddling in them only to protest, was working silently at the English Prayerbook. No plunder of Church or Crown had touched the hands of Cranmer. No fibre of political intrigue, or crime, or conspiracy could be traced to the palace at Lambeth. He had lent himself, it was true, in his too great eagerness to carry out the Reformation, to the persecution and deposition of Bonner and Gardiner; but his share⁴⁷⁸ had been slight in the more recent acts of violence which recovered

⁴⁷⁸Underhill, 'the hot gospeller, tells in his *Narrative* how in the palmy days of Northumberland he arrested the Vicar of Stepney, 'Abbot quondam of Tower Hill,' and carried him to Croydon before the Archbishop. The vicar had disturbed the preachers in Stepney Church, caused the bells to be rung when they were at sermon, and challenged their doctrine in the pulpit. 'The Archbishop was too full of lenity,' 'a little he rebuked him, and bid him do no more so.' The Puritan's zeal was kindled. 'My Lord,' said Underhill, 'methinks you are too gentle unto so stout a Papist.'—'We have no law to punish them,' said the Archbishop.—'No law? my Lord,' the gospeller exclaimed, 'if I had your authority, I would be so bold to unvicar him, or minister some sharp punishment unto him. If ever it come to their turn, they will show you no such favour.'—'Well,' said the Archbishop, 'if God so provide, we must abide it.'—'Surely,' said Underhill, 'God will never thank you for this, but rather take

to the Catholics the hearts of the English people; and to the last he was considered by the ultras as timid and intellectually weak.

Whether the charge of timidity was true, he had an opportunity of showing when Edward died and Northumberland recanted; when the noisy tongues of the gospellers were heard only at a safe distance, and the so-called timid ones remained to witness to their faith in suffering. Happily for his memory, and happily for the Church of England, the Archbishop was more nobly occupied than the 'gospellers' desired to see him.

As the translation of the Bible bears upon it the imprint of the mind of Tyndal, so, while the Church of England remains, the image of Cranmer will be seen reflected on the calm surface of the Liturgy. The most beautiful portions of it are translations from the Breviary; yet the same prayers translated by others would not be those which chime like church bells in the ears of the English child. The translations, and the addresses which are original, have the same silvery melody of language, and breathe the same simplicity of spirit. So long as Cranmer trusted himself, and would not let himself be dragged beyond his convictions, he was the representative of the feelings of the best among his countrymen. With the reverent love for the past, which could appropriate its excellencies, he could feel at the same time the necessity for change. While he could no longer regard the sacraments with a superstitious idolatry, he saw in them ordinances divinely appointed, and therefore especially, if inexplicably, sacred.

In this temper, for the most part, the English Church services had now, after patient labour, been at length completed by him, and were about to be laid before Parliament. They had grown slowly. First had come the primers of Henry VIII.; then the Litany was added; and then the first Communion-book. The next step was the Prayer-book of 1549; and now at last the complete Liturgy, which survives after three hundred years. In a few sentences only, inserted apparently under the influence of Ridley, doctrinal theories were pressed beyond the point to which opinion was legitimately gravitating. The priest was converted absolutely into a minister, the altar into a table, the eucharist into a commemoration, and a commemoration only. But these peculiarities were uncongenial with the rest of the Liturgy, with which they refuse to harmonize; and on the final establishment of the

the sword from such as will not use it upon his enemies.' - *UNDERHILL'S Narrative, MS. Harleian, 425.*

Church of England, were dropped or modified.⁴⁷⁹ They were, in fact, the seed of vital alterations, for which the nation was unprepared; which, had Edward lived two years longer, would have produced, first, the destruction of the Church as a body politic, and then an after-fruit of re-action more inveterate than even the terrible one under Mary. But Edward died before the Liturgy could be further tampered with; and from amidst the foul weeds in which its roots were buried it stands up beautiful, the one admirable thing which the unhappy reign produced. Prematurely born, and too violently forced upon the country, it was, nevertheless, the right thing, the thing which essentially answered to the spiritual demands of the nation. They rebelled against it, because it was precipitately thrust upon them; but services which have overlived so many storms speak for their own excellence, and speak for the merit of the workman.

⁴⁷⁹*Prayer-book of 1549. The priest shall first receive the communion in both kinds, and next deliver it to other ministers, if any be there present, that they may be ready to help the chief minister, and after to the people. And when he delivereth the sacrament of the body of Christ, he shall say to every one—*

The body of our Lord Jesus Christ preserve thy body and soul to everlasting life.

And the minister delivering the sacrament of the blood, and giving every one to drink once, and no more, shall say—

The blood of our Lord Jesus Christ, which was shed for thee, preserve thy body and soul to everlasting life. Prayer-book of 1552. Then shall the minister first receive the communion in both kinds himself; and next deliver it to other ministers, if there be any present, that they may help the chief minister; and after to the people in their hands, kneeling. And when he delivereth the bread, he shall say—

Take and eat this in remembrance that Christ died for thee, and feed on him in thy heart by faith with thanksgiving.

And the minister that delivereth the cup shall say—

Drink this in remembrance that Christ's blood was shed for thee, and be thankful. Prayer-book of Elizabeth. Then shall the minister first receive the communion in both kinds himself; and then proceed to deliver the same to the bishops, priests, and deacons in like manner, if any be present; and after that to the people also in their hands, all meekly kneeling. And when he delivereth the bread to any one, he shall say—

The body of our Lord Christ Jesus Christ, which was given for thee, preserve thy body and soul to everlasting life. Take and eat this in remembrance that Christ died for thee, and feed on him in thy heart by faith with thanksgiving.

And the minister that delivereth the cup to any one shall say—

The blood of our Lord Jesus Christ, which was shed for thee, preserve thy body and soul to everlasting life. Drink this in remembrance that Christ's blood was shed for thee and be thankful. Similarly in the consecration of the elements, the sign of the cross was directed to be used in 1549, and omitted in 1552. There were other changes. The discerning reader will see the spirit of them in these comparisons.

As the Liturgy was prepared for Parliament and people, so for the Convocation and the clergy there were drawn up a body of articles of religion: forty-two of them, as they were first devised; thirty-nine, as they are now known to the theological student. These also have survived, and, like other things in this country, have survived their utility, and the causes which gave them birth. Articles of belief they have been called; articles of teaching; articles of peace. Protestants who have restored the right of private judgment, who condemn so emphatically the articles added by the Council of Trent to the Christian creed, not for themselves only, but because human beings are not permitted to bind propositions of their own upon the consciences of believers, will scarcely pretend that they are the first. If it be unlawful for a Catholic council to enlarge the dogmatic system of Christianity, no more can it be permitted to a local Church to impose upon the judgment a series of intricate assertions on theological subtleties which the most polemical divines will not call vital, or on questions of public and private morality, where the conscience should be the only guide.

The death of the Duke of Somerset was followed by the trial and execution of Vane, Partridge, Stanhope, and Sir Thomas Arundel. The condemnation of Arundel was effected with great difficulty. The jury were shut up on a day in January twenty-four hours, without fire, food, or drink, before they would agree upon a verdict, and the four sufferers died protesting their innocence.

On the 30th of January Northumberland met Parliament.

The Prayer-book passed without difficulty. Cuthbert Tunstal, the last bishop who would have opposed it, had joined Gardiner in the Tower, the letter found among Somerset's papers having furnished an excuse to lay hands upon him; and a second Act was passed for uniformity of religious worship—persons who refused to come to church being liable to censure or excommunication, those who attended any other service to imprisonment.

A zeal was affected also for the more practical parts of religion, the humour of the people becoming dangerous, and the more earnest among the Reformers insisting on being heard. In a sermon before the King, Ridley had spoken of the distress to which the spoliation of public charities had reduced the London poor. Edward sent for him afterwards, thanked him for what he had said, and asked him what should be done. Too wise to refer such a question to the council, the

Bishop said that the corporation of the city were the best persons to consult with, and Edward wrote a letter to Sir Richard Dobbs, the mayor, with which Ridley charged himself. The corporation, in the last few years, had shown in favourable contrast with the Government. While the dependents of Somerset and Northumberland were appropriating and absorbing hospitals and schools, the Lord Mayor and aldermen had founded others at their own expense; and now, on the invitation of the King, they proceeded in the same direction with more effective energy. The House of the Grey Friars was repaired and refitted for the education of poor children, under the name of Christ's Hospital. St Thomas's Hospital, which had been suppressed, was purchased by the corporation for the reception of the impotent and diseased poor. St Bartholomew's was surrendered by the Crown into the mayor's hands, with fresh endowments; and the royal palace of Bridewell, a little later, with the estate which had belonged to the Hospital of the Savoy, was made over as a workhouse for able-bodied labourers out of employ.⁴⁸⁰

⁴⁸⁰HOLINSHED, *Stow's Survey of London*. Bridewell was granted by the Crown at the particular entreaty of Ridley, whose characteristic letter to Cecil on the subject survives.

Good Mr Cecil,

I must be a suitor to you in our master Christ's cause. I beseech you be good unto him. The matter is, sir, alas, he hath lyen too long abroad, as you do know, without lodging, in the streets of London, both hungry, naked, and cold. Now thanks be unto Almighty God, the citizens are willing to refresh him, and to give him both meat, drink, clothing, and tiring. But alas, sir, they lack lodging for him; for in some one house they say they are fain to lodge three families under one roof. Sir, there is a wide large house of the King's Majesty's called Bridewell that would wonderful well serve to lodge Christ in, if he might find such good friends in the Court as would procure in his cause. Surely, I have so good an opinion in the King's Majesty, that if Christ had such faithful and hearty friends that would heartily speak for him, he should undoubtedly speed at the King's Majesty's hands. Sir, I have promised my brethren the citizens in this matter to move you, because I take you for one that feareth God, and would not that Christ should lie no more abroad in the street. There is a rumour that one goeth about to buy that house of the King's Majesty, and to pull it down. If there be any such thing, for God's sake speak you in our Master's cause. I have written unto Mr Gates more at large in this matter. I join you with him and all that look for Christ's benediction in the latter day. If Mr Cheke was with you, in whose recovery God be blessed, I would surely make him in this behalf one of Christ's special advocates, or rather one of his principal proctors; and surely I would not be said nay. And thus I wish you in Christ ever well to fare. From my house at Fulham this present Sunday.

Yours in Christ,

NIC. LONDON.

Not to be left too far behind by the citizens, the Government exerted themselves in the same direction. An Act was passed in Parliament for the collection of alms for the poor in every parish. The contributions were nominally voluntary, but payment might be enforced by the reproofs of the clergy, the censures of the Church, and by punishment at the discretion of the Bishop.⁴⁸¹ The scandalous frauds in the manufacture of woollen cloth having injured the credit of the trade,⁴⁸² the sheep-farming no longer yielded its disproportionate profits; the tillage question could, therefore, be taken up again with a chance of success. Commissioners were appointed to hold district courts, to empanel juries, and compel the owners to bring their recent pastures under the plough.⁴⁸³ The Flanders Jews having made the Government susceptible on money questions, they passed a Statute of Usury, which formed a curious complement to their general administration of the finances. By the 9th of the 37th of Henry VIII., the legal interest of money was limited to ten per cent. 'But this was not meant,' it was now declared,⁴⁸⁴ 'as if to allow usury, which was a thing unlawful,' 'a vice most odious and detestable;' but only 'for the avoiding of more ill and inconvenience that before that time was used:' and since a sense of their duties in this matter 'could by no godly teaching and persuasion sink into the hearts of divers greedy, uncharitable, and covetous persons,' it was decreed that thenceforward no interest of any kind should be demanded or given upon any loan, under pain of forfeiture, imprisonment, and fine.

So far all had gone smoothly. On other matters the Commons were more suspicious and less tractable. The forfeiture of the estates of the Duke of Somerset gave occasion to a sharp debate. A Protestant heresy bill, introduced 'for the protection of the King's subjects from such heresies as might happen by strangers dwelling among them,' was referred to a committee of bishops; but fell through and was lost.⁴⁸⁵ Northumberland, intending to appropriate the estates of the bishopric of Durham, brought in a bill to deprive Tunstal, on a charge of treason, and succeeded, in spite of Cranmer's opposition, in carrying it through the Lords. The Lower House, however, required that Tun-

—*Lansdowne MSS.* 3.

⁴⁸¹ 5 Edward VI. cap. 2.

⁴⁸² *Ibid.* cap. 6.

⁴⁸³ 5 Edward VI. cap. 5.

⁴⁸⁴ *Ibid.* cap. 20.

⁴⁸⁵ *Lords Journals*, 5 and 6 Edward VI.

stal's accusers should be brought face to face with him, and that he should be heard in his defence, which for many reasons would be inconvenient. The Duke, therefore, withdrew his bill, and proceeded by commission, which did the work for him less scrupulously, but did not improve his reputation. Cranmer refused to sit, and the Bishop of Durham was deposed by a court composed of laymen.

Still more significant was the treatment which a new Statute of Treason received in the House of Commons. As the administration became more detested, incendiary pamphlets and handbills multiplied, and it was desired to restore in some degree the sharp discipline of the last reign. The Lords again complied.⁴⁸⁶ The Commons rejected the Government measure, and drew another of their own.⁴⁸⁷ In the absence of a copy of the rejected bill, it is impossible to say what it contained; it may be conjectured, however, with some certainty, that it did not contain a clause which appears in the Act as it was finally passed, a clause providing that no person should in future be attainted or convicted of treason under that or any other statute, unless the charges in the indictment should have been first proved in the presence of the accused by two witnesses at least.⁴⁸⁸

Northumberland's endeavours to fill the vacant seats in the House with wise and discreet persons had been too successful. The composition did not please him, and on the 15th of April the first Parliament of Edward VI. was dissolved.

Outward events, however, continued to favour him, tempting him to believe himself irresistible, and leading him on to the fatal step

⁴⁸⁶It is easy to see why: there were but forty-seven lay peers who had seats in this Parliament; thirty-one was the fullest attendance during this session, the Catholic lords systematically absenting themselves. The council and their friends, therefore, being punctually at their seats, and having bishops of their own creation at their backs, were certain in almost all cases of a majority.

⁴⁸⁷*Commons Journals*. 5 and 6 Edward VI.

⁴⁸⁸'Provided always, and be it enacted by the authority aforesaid, that no person shall be indicted, arraigned, condemned, convicted, or attainted for any treasons that now be, or hereafter shall be, which shall hereafter be perpetrated, committed, or done, unless the same offender or offenders be thereof accused by two lawful accusers, which said accusers, at the time of the arraignment of the party accused, if they be then living, shall be brought in person before the party so accused, and avow and maintain that that they have to say against the said party, to prove him guilty of the treason or offences contained in the bill of indictment laid against the party arraigned.'—5 and 6 Edward, cap. xi. sec. 9. The Act containing this salutary order was repealed by the 1st of Mary, or the reform of the English treason law would have been antedated by a century.

which for the moment made shipwreck of the Reformation. The English council had refused the application of Duke Maurice and the princes of the League for assistance. They had declined to take part in a movement which was to break the power of Charles V. in Germany for ever, and give peace for three quarters of a century to the Lutheran churches. Magdeburg still held out; but the secret of Maurice's intentions was so well kept that, although Charles suspected him of voluntary negligence, he seems to have entertained no serious misgivings about him. He had spies in the Duke's camp; but his spies played him false, or were themselves deceived; and while Maurice was corresponding with England and France, and making preparations for a general revolt, the Emperor, in fancied security, had arranged to go to Innspruck, to be in the neighbourhood of the Council of Trent, when the Protestant representatives should present themselves there in the course of the winter.

On leaving Augsburg Charles ventured on a measure of imprudent intimidation. His inability to enforce the Interim there, even in his own presence, and under his own eyes, had exasperated him. On the 26th of August the Bishop of Arras sent for the Protestant clergy, accused them briefly of disobedience to the Imperial rescripts; and requiring them to take an oath to depart out of Germany, he ordered them at once, and without an hour's delay, to leave their houses and the town. In vain they appealed to the law, and claimed the privileges of citizens. They were driven out, and Sir Richard Morryson, writing from the spot, describes the consequences of this high-handed tyranny. 'Men do much marvel,' he wrote to the council, 'that M. d'Arras durst venture to do this; more, that he durst do it at this time; more than all, that the Emperor would consent to a thing that so easily might have turned him, his Court, yea, his whole city, to trouble; but what doth greedy ambition stick at, or what doth not desperate desire force men to attempt? The Emperor's friends be fleeting again, his enemies ready to do their worst; he must, therefore, make friends of Julius III., his surety so long as it lasteth. He must do displeasure to as many as he may, so his friend Julius be thereby pleased. The wound is yet green, and not so felt as perhaps it will be when time and trouble shall lay open the multitude and greatness of these men's miseries. Men and women are at this present so astounded at the whole of their misery that they have no leisure to peruse the parts thereof. There be few shops but some men or women be seen weeping

in them; few streets but there be men in plumps, that look as they had rather do worse than suffer their present thralldom. On Friday last there were about a hundred women at the Emperor's gates, howling, and asking in their outcries where they should christen their children, or whether their children not christened should be taken as heathen dogs. They would have gone to the Emperor's house, but our Catholic Spaniards kept them out, reviling them. The Papist churches have for all this no more customers than they had—not ten of the townsmen in some of their greatest synagogues. The churches are locked up; the people sit weeping at home, and do say they will beg among Protestants, rather than live in wealth where they must be Papists. Babes new born lie unchristened; they will have no Latin christening.⁴⁸⁹

The German troops mutinied; they were 'almost all wont to go to the Protestant service, and talked madly of the banishment of their preachers.'⁴⁹⁰ Fresh companies of Spaniards were brought into the town, and the Germans marched beyond the walls.

Having lighted the match with his own hands, the Emperor set out for Innsbruck, leaving Maurice behind him to follow out his own plans at his leisure. The Italian quarrel had expanded, and war with France was now openly declared. The Turkish fleet, as in the old times of Francis, came down into the Mediterranean as the allies of France; a Turkish army again threatened Hungary; and in the same spirit and in the same policy the French Court concluded a secret league with the Protestant princes. Maurice undertook to keep Charles in play with fair words till the moment came to strike, and, with the spring, the French troops were to enter Germany.

Over the thin crust of the mine which was to burst under their feet the Council of Trent recommenced their sessions on the 1st of September. The Italian and Spanish bishops were duly in their places; the German Catholics were reported as on the way; the Diet had undertaken for the appearance of the Lutherans; the French bishops had not come, and nothing was known of them. France was the point to which the eyes of the fathers were most anxiously turning. If France was true to the Church, her differences with the Emperor could be soon composed, and all would be well. But France, if the eldest child of the Church, was also the prodigal child, forgetful of her duties

⁴⁸⁹Morryson and Wotton to the Council: *MS. Cypher*, September 1, State Paper Office.

⁴⁹⁰Morryson and Wotton to the Council, September 1: *MS. State Paper Office*.

to her parent. Instead of bishops, there came a letter from the King, addressed to the assembly—not as *concilium*, a holy council with authority; but as *conventus*, a convention of mere human individuals. With many doubts they turned the covering over before they would acknowledge the irreverent despatch with reading it.⁴⁹¹ When the seal was broken they found professions of the utmost devotion to the Church, but a regret that the Gallican prelates would not be able to attend.

The terms on which the Lutherans were to be admitted were still unsettled. To the Pope, Charles had promised that they should appear as criminals. To Maurice he had said ambiguously that the council should be free. On this point Maurice made his first open move. He now demanded that the Protestant theologians should speak and vote with the Catholic bishops, and that the Scriptures should be the one single rule of the controversy.⁴⁹² Further, although Charles had promised the Protestants that their persons should be in no danger, the burning of Huss by the Council of Constance showed that Catholic prelates held ordinary engagements lightly when they had a chance of destroying a heretic. Maurice had a copy taken, therefore, of the safe-conduct extorted by Huss's followers from the Synod of Bâle, and he forwarded a duplicate for the signature of the fathers at Trent.

The first step was followed instantly by a second. Unpermitted by the Emperor, he made terms with Magdeburg, conceding, under a show of fair words, every point for which the city was contending; and the garrison immediately took service in Maurice's own army.⁴⁹³ Next, having so far thrown off the mask, he sent a formal demand for the liberation of the Landgrave of Hesse; the Elector Palatine, the

⁴⁹¹The Spanish bishops were for refusing altogether. As a middle course, the French ambassador was invited to request as a favour that the letter might be received; but the ambassador, with the utmost politeness, said, that he had no commission. At last a learned prelate suggested that, if they refused a letter which was addressed to them as a convention, they could not decently receive communications from the Germans, who called them *concilium malignantium*; and on the whole, therefore, it was decided to read.—PALLAVICINO.

⁴⁹²Mont to the Council: *MS. Germany*, bundle 15, State Paper Office. Compare SLEIDAN.

⁴⁹³The terms of submission were not generally made known, but the truth was felt before it was acknowledged. A letter from Hamburg to the English council, on the 4th of November, says: 'The city of Magdeburg hath taken good success in this treaty. They have a joyful peace. Duke Maurice is their defender, and hath taken all

Duke of Mecklenburg, the King of Denmark, Albert of Brandenburg, and Ferdinand of Austria, attaching their signatures to the petition.

The Emperor still affected to be blind to Maurice's attitude. It was his policy to avoid seeing what, if forced upon him, he would be obliged to resent, and, resenting, was for the moment unable to punish. About the Landgrave he answered vaguely neither yes nor no. On this and other matters he could speak best, he said, in person, and he desired that Maurice would follow him to Innsbruck: meantime, the ambassadors of the Lutheran States—among them Sleidan the historian—presented themselves at Trent to request the safe-conduct for the divines, and to settle the terms on which these divines were to be present. The differences between the intentions of one party and the expectations of the other became at once apparent. The ambassadors gave in a series of propositions on which their representatives expected to be heard. The Papal legates wondered at the indecency of a desire to argue where the only fit course was submission. The safe-conduct was drawn and signed; but it was altered from the Bohemian pattern, and the ambassadors would not receive it. The Archbishop of Toledo, who was acting for the Emperor, endeavoured to persuade them; but he could only prevail upon them to refer to Maurice, and Maurice ordered them to stand to their demands, and not to yield an inch. Fearful of provoking the Emperor, the fathers consented to grant the ambassadors a private audience, in which the Lutheran views could be generally stated.⁴⁹⁴ The ambassador of Wurtemberg required a reconstitution of the council; the Pope, he said, was a party to the suit, and was no fit judge in his own cause. The ambassador of Saxe insisted most on the safe-conduct, with an express allusion to Constance and the declaration of the bishops there that faith need not be kept with heretics.⁴⁹⁵ The so-called heretics, he said, further, must be admitted to vote; the past resolutions of the council must be reconsidered where they were at variance with the Confession of Augsburg. Finally, he desired to know what was to be said of the other resolution of the Council of Constance, that a council was above

the soldiers of the city and camp to serve him.'—John Brigantine to the Council: *MS. Germany*, bundle 15, State Paper Office.

⁴⁹⁴SLEIDAN.

⁴⁹⁵Pallavicino exclaims angrily that the bishops at Constance declared nothing of the kind. They ruled only that safe-conducts granted by temporal princes did not bind ecclesiastical judges. The modern Romanist will, perhaps, decline all defence of a council which he regards as half heretical.

a Pope. This last question, says Pallavicino, drove the fathers at once among the reefs and breakers, of which Clement VII. long before had warned the Emperor.

Thus the time wore away till March, when the match had burnt to the powder. Maurice moved on Augsburg, which opened its gates to him. A French army appeared on the Rhine, and Protestant Germany was once more openly in arms.

Panic-stricken a second time, the bishops at Trent melted like the snow before the returning sun. Maurice, after restoring the expelled preachers, summoned a Diet to meet at Passau in July; and while the French took possession of Verdun and Metz, he himself, with the Duke of Mecklenburg, made his way by rapid marches into the Tyrol. Charles had invited him to Innsbruck, and to Innsbruck he would go. The mountain passes were fortified, but the hatred of the Tyrolese for the Spaniards was so intense, that they offered their services as guides, and betrayed the defences. The detachments which had been set to guard them were cut in pieces; and so swift were the movements of the German army, that the first intimation which Charles received that they had left Augsburg was the sound of their guns but a few miles distant. It was said that a mutiny among the Lanzknechts delayed the last advance of Maurice, or the Emperor would have been a prisoner. It was said, also, that Maurice was unwilling to burden himself with so considerable a captive; 'he had no cage large enough for such a bird.' But Charles, to save himself, had to fly through a midnight storm. He himself weak with gout, in a litter, his Court with such comforts as they could carry on their backs and no more, made their way in the darkness through the mountain valleys and across the swollen streams to the Venetian frontier. Maurice did not follow. He gave his troops the plunder of the Imperial palace; for himself, it was enough to know that he had broken the spell which threatened Germany with slavery. In July he dictated the terms of the pacification of Passau; and the Emperor, at war with France, with the Turks in the Mediterranean, and the council for which he had so long laboured scattered to all the winds, gave up the battle with the Reformation. The Landgrave and John Frederick were set free. The Confession of Augsburg was again acknowledged. The Imperial chamber was reorganized as the Protestants had so long demanded. These points, few but vital, satisfied the moderate desires of the Lutheran princes; and making up his mind to leave them thenceforward un-

molested in their freedom, Charles directed his remaining strength upon France.

Broken as he was, England was now finally safe from the Emperor. In his present weakness, whatever party were dominant in England, Puritan, Anglican, or Papist, Charles V. would equally be compelled to recognize them, so long as he had France upon his hands; he would not only have to treat with them with courtesy, but be glad to accept their support. The opportunity was inviting. It tempted the Duke of Northumberland into dreams which, so long as Charles was powerful, he would not have dared to contemplate.

But, before I pass to the last phase of the Protestant administration, I must say something of the fortunes which during all this time had befallen Ireland. The men who had run so strange a course at home, had produced results no less astonishing in the sister country.

The Celtic and Celto-Norman chiefs, with whom anarchy was chronic and peace the least endurable of calamities, had for the last five years of the reign of Henry VIII., under the mild rule of Sir Anthony St Leger, remained in comparative quiet. The isolation of England in the midst of enemies, the French invasion in 1545, the internecine war with the Scots, had given them excellent opportunities for insurrection. But the temptation left them unaffected. Companies of gallowglass served in Henry's camp at Boulogne, and even in Leinster and Connaught there was a longer respite from murder and pillage than those provinces had experienced since the conquest.

Some part of his success St Leger owed to himself, but he owed more to fortune. The reins were placed in his hands, when, after a series of defeats, the Irish lords had gone to London, and had seen for the first time in their lives the wealth and resources of the country against which they had struggled; when they had been rewarded with peerages for the trouble which they had occasioned, and had been permitted to appropriate, on easy terms, the estates of the Irish monasteries.

The spoliation for a time compromised their orthodoxy, and committed them to English interests. It was not till Henry was gone that Ireland resumed her natural appearance. The policy of St Leger had been 'to make things quiet';⁴⁹⁶ to overlook small offences so long as the general order was unbroken, and to be contented if each year

⁴⁹⁶Edward Walsh to the Duke of Northumberland: *Irish MSS.* Edward VI. vol. iv. State Paper Office.

the forms of law could be pushed something deeper beyond the borders of the Pale. His greatest success had been in prevailing upon an O'Toole to accept the decent dignity of Sheriff of Wicklow. As a further merit, and a great one, he had governed economically. While the home exchequer was so heavily strained, the Deputy of Ireland had made but few applications for money—conciliation was cheaper than force, and he had been happy in having to deal with a set of circumstances which enabled him to conciliate. His maxim had been—Ireland for the Irish; he had recommended Henry to return to the old plan of appointing an Irish deputy, and he had especially recommended the Earl of Ormond.⁴⁹⁷ He had naturally not pleased every one. The all-censorious Chancellor Allen had occasionally found something to condemn, and even with Ormond the deputy had not always been on terms; but so long as Henry lived, good management and good fortune combined on the whole in his favour, and his term of government was creditable and happy.

But the reform gusts which were borne across St George's Channel on the accession of the child King, swept the strings of the Irish harp, and woke the old music. 'If the Lords of the Council,' sighed a later deputy, 'had letten all things alone in the order King Henry left them, and meddled not to alter religion, the hurley-burleys had not happened.'⁴⁹⁸ But the Protector's mission to regenerate the world, the pillaged cathedrals, the emptied niches, and the white-washed church walls, rapidly stirred the jealousies of a passionate and susceptible people, and gave the chiefs, who by this time had made themselves secure in their new properties, an opportunity for the display of their remaining devotion.

St Leger, the pilot of the calm, was unequal to the hurricane which instantly arose. He was recalled, and his place was taken by Sir Edward Bellingham.

The tourist who has visited Athlone may remember, on the edge of the town, a half-ruined castle, on which the letters E. R. [Edwardus Rex] stand out in high and distinct relief. It is one of the few surviving memorials of the brief administration of a remarkable man.

Edward Bellingham, brought up originally by the Duke of Norfolk, attracted, in 1540, the notice of Henry VIII., and was employed by him from that time forward in various secondary services. He

⁴⁹⁷ Correspondence of St Leger: *State Papers*, vol. iii.

⁴⁹⁸ Sir James Crofts to the Council: *Irish MSS.* Edward VI. vol. iv. State Paper Office.

was in Hungary with Sir Thomas Seymour when the Turks were at Pesth. He had been on a diplomatic mission at Brussels. He was in Wallop's army at Landrecy, and afterwards with the Earl of Surrey at Boulogne. His most distinguished achievement hitherto had been when, as Lieutenant of the Isle of Wight, he repulsed the attacks of the French in 1545.

When he arrived at Dublin the English Pale was fringed with a line of fire. The Irish harbours swarmed with pirates. Catholic refugees, disrobed monks, thieves, outlaws, vagabonds, had poured across the Channel, and, under the decent cloak of sufferers for religion, were dispersed among the castles of the Irish. French and Scottish agents had followed, with plans for a French invasion, for the restoration of Gerald Fitzgerald, for the fortification of the Skerries, and the maintenance there in permanence of a French fleet.⁴⁹⁹

⁴⁹⁹*Irish MSS.* Edward VI. vols. i. and ii. State Paper Office. Among other French emissaries came John de Monluc, Bishop of Valence, accompanied by young James Melville, then a boy of fourteen. The editor of Melville's manuscript misprinted the date of the visit, representing it as having taken place in 1545; the real date is 1547-8. Melville represents Edward as being on the English throne, and the Bishop's arrival is spoken of in the State Correspondence. In spite of scandal, I must borrow a page from the story.

John de Monluc, Bishop of Orleans, was sent ambassador from France to the queen-mother of Scotland, sister of the Duke of Guise; and when the said ambassador was to return to France, it pleased the queen-mother to send me with him. But the said Bishop went first to Ireland, commanded thereto by the King his master's letter, to know more particularly the motion and likelihood of the offer made by O'Neil, O'Donnell, O'Dochart, and O'Carroll, willing to shake off the yoke of England, and become subject to the King of France. We shipped for Ireland in the month of January. We were storm-stayed by the way at a little isle for seventeen days; and after great danger of the ship and our lives, we entered Loch Foyle in Ireland, upon Shrove Tuesday. Ere we landed we sent one George Paris, who had been sent to Scotland by the great O'Neil and his associates, who landed at the house of a gentleman who had married O'Dochart's daughter, dwelling at the side of a lake; who came to our ship and welcomed us, and conveyed us to his house, where we rested that night. The next morning O'Dochart came and conveyed us to his house, which was a great dark tower, where we had cold cheer, as herring and biscuit, for it was Lent. There finding two English grey friars who had fled out of England, the said friars perceiving the Bishop to look very kindly to O'Dochart's daughter, who fled from him continually, they brought with them a woman who spoke English to be with him; which harlot being kept quietly in his chamber, found a little glass within a case standing in a window, for the coffers were all wet with the sea waves that fell into the ship during the storm. She, believing it had been ordained to be eaten because it had an odoriferous smell, therefore she licked it clean out, which put the Bishop in such a rage, that he cried out for impatience, discovering his harlotry and

To repress the insurgents who were in the field, to prevent the spread of conspiracy, to maintain the authority of the Government, Bellingham had no more than 900 English men-at-arms, and 500 light Irish horse; and it is enough to say for him, that with this small force he accomplished his task. The State Paper Office contains many of his letters, notes, and loose memoranda. The handwriting and the spelling are alike frightful; but the meaning, when at last arrived at, conveys an impression of resolute strength, unequalled in any other despatches of the time; and the respect becomes intelligible with which his name was ever mentioned even by the Irish themselves.

For two years he governed. In that time he cut roads through forests, and made bogs passable. Castles rose as if by magic in the dangerous districts. The harbours were cleared, the outlaws banished, the chiefs not driven by cruelty, but drawn with a hand which they could not resist, into peace. O'Connor and O'More, two of the most troublesome, were caught, tried for treason, and their lands taken from them. But when Bellingham had made them feel that he was stronger than they, he restored O'Connor to liberty and his estates. The laws which interfered with the marriages of English and Irish, and forbade the inheritance of half-breeds, were relaxed or abolished; while mere robbery, as distinct from political conspiracy, was inexorably punished. A party of high-born marauders, who had committed an outrage in the Pale, took refuge in Thomond. O'Brien applied for their pardon, and O'Brien was one of the strongest of the Irish nobles.

his choler in such a sort as the friars fled and the woman followed. But the Irishmen and his own servants did laugh at the matter; for it was a vial of the most precious balm that grew in Egypt, which Solyman, the Great Turk, had given in a present to the said Bishop after he had been two years ambassador for the King of France in Turkey, and was esteemed worth 2000 crowns. In the time that we remained at O'Dochart's house, his young daughter, who fled from the Bishop, came and sought me wherever I was, and brought a priest with her who could speak English; and offered, if I would marry her, to go with me wherever I pleased. I gave her thanks, but told her I was but young, and had no estate, and was bound for France.

'Now the ambassador met in a secret part with O'Neil and his associates, and heard their offers and overtures. And the Patriarch of Ireland did meet him there, who was a Scotchman born, and was blind of both his eyes, and yet had been divers times at Rome by post. He did great honour to the ambassador, and conveyed him to see St Patrick's purgatory, which is like an old coalpit which has taken fire, by reason of the smoke that came out of the hole,' &c.—*Memoirs of Sir James Melville*, p. 15.

Bellingham answered him thus:

'Your assured friend warns you, if you list so to take it. Of this one thing I will assure you, that those that will most entice you to take other men's causes in hand, will be the first that shall leave you if ye have need. As heretofore I have declared unto you, whatsoever he be that shall, with manifest invasion, enter, burn, and destroy the King's people, I will no more suffer it than to have my heart torn out of my body. When the King's subjects commit such offences, they are traitors and rebels, and so I will take them and use them. My Lord, this privilege I challenge, on the King my master's duty, that what of gentleness I require touching the King's affairs, it be taken and weighed as a commandment.'⁵⁰⁰

He advised that the offenders should be sent in upon the instant, and to advice so given it was prudent to submit.

Lord Ormond had died, leaving his heir a minor in England. St Leger, or some one about the council who took the Irish view of things, thought the presence of a chief of a clan indispensable for their good behaviour, and sent him over. Bellingham protested. It would have been better, he said, to have kept him where he was, and brought him up with English habits. 'Authority, it was thought, would not take place without him. I pray God,' continued Bellingham, 'rather these eyes of mine should be shut up than it should be proved true; or that during the time of my deputation, I should not make a horse-boy sent from me to do as much as any should do that brought not good authority with him, how great soever they were in the land. I will not say it shall be the first day; but in small time, God willing, it shall be done with ease.'⁵⁰¹

There were few arrests; no hangings, except of thieves or murderers, no forays or terrible examples—only the resolutely expressed will of a man who intended to be obeyed, and whom men found it wiser to obey than to provoke. 'There was never deputy in the realm,' wrote an Irish gentleman to the Protector, 'that went the right way as he doth, both for the setting forth of God's word and his honour, and the honour of the King's Majesty to his Grace's commodity and the weal of his subjects.'⁵⁰² One special point was noted of him: a friend of Cecil's, reporting afterwards on the state of the country, said—'For

⁵⁰⁰Bellingham to O'Brien; *Irish MSS.* Edward VI. vol. i. State Paper Office.

⁵⁰¹*Irish MSS.* Edward VI. vol. i. State Paper Office.

⁵⁰²Richard Brasier to the Protector: *Irish MSS.* Ibid.

the short time Mr Bellingham had the charge here he did exceeding much good, as all men report. He was a perfect good justicer, and departed hence with clean hands.⁵⁰³ With clean hands—the one man in public employment of whom perhaps such words could be used. His successes, so far as they can be seen, were chiefly due to the woodman, the roadmaker, and the mason. His universal, system was to make the country passable, to build stout fortresses, and to place in them garrisons on whom he could depend; and, this done, everything was done. The castle at Athlone overawed the line of the Shannon; Sir Andrew Brereton was set down at Lecale with a colony of settlers within view of the Earl of Tyrone; another stronghold was built in Roscommon, another at Cork; soldiers of Bellingham's own metal were placed in command, and that was enough.

The Irish Council, unused to the presence of such a man, were troubled with him, especially as he went his own way, careless of traditions, and not always respectful to objectors. Chancellor Allen, who had seen other deputies fall into misfortune through neglect of his advice, failed to understand that, while he had a right to guide those who were less wise than himself, his business was to obey Sir Edward Bellingham; still less could Allen comprehend why Sir Edward, when he obtruded his opinion, should 'vilipend him.'

'My Lord Deputy,' he said, 'is the best man of war that ever I saw in Ireland, having since his coming hither done more service to the King than was done—after the repressing of the Geraldines—in all the King's father's lifetime, notwithstanding all his charges.' 'Nevertheless,' the Chancellor complained, 'it is as well to have no council. He doth all himself. They be but a shadow, as a corpse without life or spirit. He doth all himself, and no man dare say the contrary, except sometimes little I, and that seldom. Nay, he saith at times that the King hath not so great an enemy in Ireland as the council is; and if they were hanged, it were a good turn. Sometimes, when he committeth a man in anger to ward, he will say, 'Content thyself, for I do no worse to thee than I will do to the best of the council if he displease me.'⁵⁰⁴

Yet Allen had a true eye for merit; he had seen others in Bellingham's place filling their own coffers—making parties among the Irish, and lending themselves to the worst vices of the country. But

⁵⁰³ Wood to Cecil: *Irish MSS.* Ibid.

⁵⁰⁴ Allen to the Council in London: *Irish MSS.* Edward VI. vol. i. State Paper Office.

Bellingham was pure. The Chancellor admitted that he could see but one fault in him—that he sought 'to rule alone.'⁵⁰⁵

In the change of religion—since a change there was to be—the deputy proceeded with the same firmness; and although wilder task was never imposed on any man than the introduction of Protestantism with a high hand among the Irish, even here he was not wholly unsuccessful. Fitzwilliam, a priest of St Patrick's, and a personal friend of the deputy, said mass there after it was prohibited. 'Mr Fitzwilliam,' he wrote, 'where I am informed that you have gone about to infringe the King's Majesty's injunctions, being moved of charity, I require you to omit so to do, and by authority I command you, as a thing that may not be suffered, you incite nor stir no such schism amongst the King's faithful and Christian subjects; for, if you do, as by likelihood you are incited to do it, thinking, through friendship, it shall be overpassed in your behalf, trust me, as they say commonly, it shall not go with you.'⁵⁰⁶ Sir Edward was obeyed, being a man to whom disobedience was difficult; only it seems he gave no encouragement to the preachers. It was enough if the literal injunctions of the home Government were observed, without consigning the pulpits to voluble rhetoricians who turned their congregations into swarms of exasperated hornets.⁵⁰⁷

⁵⁰⁵ Ibid.

⁵⁰⁶ Ibid.

⁵⁰⁷ St Leger, at the end of 1549, informed the council 'that there had been but one sermon made in the country for three years, and that by the Bishop of Meath.'—MS. Ibid.—That one experiment was enough to deter Bellingham from encouraging a second. The Bishop, after the first venture had been made, wrote a piteous account of the prospects of Protestantism, and of his own prospects, if he persisted.

'After most hearty commendation, in like manner I thank you for your letter, and where by the same ye wished me to be defended from ill tongues—*res est potius optabilis quam speranda*. Ye have not heard such rumours as is here all the country over against me, as my friends doth shew me. One gentlewoman, unto whom I did christen a man child which beareth my name, came in great council to a friend of mine, desiring how she might find means to change her child's name. And he asked her why? and she said, because I would not have him bear the name of an heretic. A gentleman dwelling nigh unto me forbade his wife, which would have sent her child to be confirmed by me, so to do, saying, his child should not be confirmed by him that denied the sacrament of the altar. A friend of mine rehearsing at the market that I would preach the next Sunday, divers answered they would not come thereat, lest they should learn to be heretics. One of the lawyers declared to a multitude that it was great pity that I was not burned, for if I preached heresy, so was I worthy therefore; and if I preached right, yet was I worthy, for that I kept the truth from knowledge. This gentleman loveth no sodden meat, nor can skill but only of roasting.

Thus, after he had been in Ireland a year and a half, Walter Cowley, the Clerk of the Crown, was able to congratulate Bellingham on having doubled 'the King's possessions, power, obedience, and subjects in the realm, in respect as it was at his arrival.' 'The King having a force in each quarter of the country, will they or nill they,' Cowley said, 'the people must obey;' and if only 'they could now be also put from idleness,' 'if they could be compelled to inhabit and fall to husbandry, to put away their assemblies in harness, and take delight in wealth and quiet, Ireland in a little time would be as obedient and quiet as Wales.'

Unhappily for Ireland, perhaps fortunately for his own reputation, Sir Edward Bellingham, in the height of his success, was called away, it would seem by illness. In the summer of 1549 his name disappears from among the State Papers. In the autumn he was dead. The effect was immediate. The chiefs felt the rein drop loose upon their necks; French agents were again busy; and in the interregnum which followed, the Irish Council found themselves less able to do without their master than their master had been able to dispense with them. Allen having with great difficulty induced the Earl of Desmond to come to him, learnt that the country was in full relapse into disorder. 'The rough handling of the late deputy,' so Desmond said, had placed the chiefs 'in despair' of being able to continue their old habits. The natural hatred to the dominion of an alien race, the peril of religion, the promises of assistance from France and Scotland, with the

One of our judges said to myself that, it should be proved in my face that I preached against learning. A beneficed man of mine own promotion came unto me weeping, and desired that he might declare his mind unto me without my displeasure. I said, I was well content. My Lord, said he, before ye went last to Dublin, ye were the best beloved man in your diocese that ever came into it, and now ye are the worst beloved that ever came here. I asked wherefore. Why, said he, for ye have taken open part with the heretics, and preached against the sacrament of the altar, and deny saints, and will make us worse than Jews. If the county wist how, they would eat you. He besought me to take heed of myself, for he feared more than he durst tell me. He said, Ye have more curses than ye have hairs in your head; and I advise you, for Christ's sake, not to preach as I hear ye will do. Hereby ye may perceive what case I am in, but put all to God. And now, as mine especial friend, and a man to whom my heart beareth earnest affection, I beseech you give me your advice, not writing your name for chance.—The Bishop of Meath to Sir Edward Bellingham: *Irish MSS.* Edward VI. vol. i. State Paper Office.

opportunity created by the disorders in England, had led to a general combination through the whole island.⁵⁰⁸

The garrisons in the castles fell into loose habits when the master's eye was off them. Their wages had fallen into arrear, and they became mutinous and profligate. There was 'neither service nor communion within any of the walls, and there were as many women, it was said, as there were men.'⁵⁰⁹ Even such of the Irish as professed to be loyal began to be 'haughty and strange.' A 'huge army' of French was expected to land in the spring of 1550; and, unless the home Government could make peace with France, their rule in Ireland was once more likely to be near its end. But the peace, as has been related, was made. The intrigues ceased, the Irish had no longer hopes from abroad, and Bellingham had done his work so effectually, that without help they durst not stir.

In August, St Leger, the peace-maker, was restored to his place, and a new chapter in the administration of the country was about to commence. Ireland had long been a drain upon the English finances. The stream was now to flow the other way, and, with an enchanter's wand waving over the mint, it was to become an abundant fountain of revenue. The Irish standard had been always lower than the English. When the English silver was eleven ounces fine to one of alloy, the Irish had been eight ounces fine to four of alloy. The mines in Wicklow and Arklow having been brought again into working in the late reign, Henry VIII. had hoped that with the silver raised out of them, and with a mint upon the spot, the Irish Government might at least pay their own expenses. But the plan had not yet come into operation; the Irish money had latterly been coined in England; and in the depreciation in the last three years of the reign, the Irish standard had followed the English, the harp-groats, like the latest issues

⁵⁰⁸I asked the Earl what should be the cause of so great a combination of the wild Irish, and how long since the same had commenced. Whereunto he said the same conspiracy was concluded amongst them above a year past, only in the dread of the late deputy, which, with his rough handling of them, put them in such despair as they all conspired to join against him. To some others of council which I heard not he added the matter of religion. But, for my part, beside these causes, I judge they will the rather take the opportunity to execute their malice, hearing not only of the continuance of the outward wars and loss of our forts, and specially of the late civil displeasures in England, but also hope and comfort and aid of the Scots, promised, as it is said, by the blind bishop that came from Scotland out of Rome.'—Sir John Allen to his brother; January, 1550: *Irish MSS.* Edward VI. vol. ii. State Paper Office.

⁵⁰⁹St Leger to the Council, September, 1550: *MS.* Ibid.

in England, being half pure and half alloy.⁵¹⁰ On the conclusion of the peace with France, the experiment was to be tried on a grander scale.

By a resolution of the English council, on the 8th of July, 1550, it was determined that a mint should be forthwith established in Ireland, and that it should be let out to farm for twelve months on the following conditions:—

1. That the King should be at no manner of charge, great or small.
2. That the King should have thirteen shillings and fourpence clear out of every pound weight that should be coined.
3. That the bullion to be coined should be provided from other countries, and not from England or Ireland.
4. That by this means the sum of 24,000*l.* at the least should be advanced to the King's Majesty within twelve months.
5. That the King should appoint a master of assays and a controller.⁵¹¹

An indenture was drawn on the 9th of August, between the council and Martin Perry, granting to Perry the management of the establishment on these terms; the money to be made was to be four ounces fine with eight of alloy. The pound weight of silver, if coined at a pure standard, yielded forty-eight shillings; with two-thirds of alloy, therefore, it would produce one hundred and forty-four;⁵¹² and if the King was to make twenty-four thousand pounds by receiving thirteen shillings and fourpence on every seven pounds four shillings that were issued, three hundred thousand pounds' worth of base coin would be let out over the Irish people in a single year.

Sir Edward Bellingham had shown the Irish one aspect of English administration. The home Government were preparing to show them

⁵¹⁰*State Papers*, vol. iii. p. 534.

⁵¹¹*Privy Council Register. MS.*

⁵¹²See RUDING, vol. ii. p. 105. Ruding, describing the indenture and the proportions of alloy, says that the pound weight was to be made into a hundred and forty-four *groats*; in which statement, it seems, he must have mistaken the word. The pound weight of pure silver would produce a hundred and forty-four pure *groats*; but the two pounds of alloy, which he admits were added to it, must have produced twice as many more.

another. The seed was sown, the harvest would be certain, and not distant. It would not, however, be gathered in by Sir Anthony St Leger, whose footing in the now swollen waters was almost instantly lost. The Lords of the Council, more anxious for the purity of the gospel than of the currency, charged St Leger especially to keep pace with the movements in England. Vainly he protested that 'he would sooner be sent to Spain.' They told him that he must go to Ireland, there to follow his vocation of making rough things smooth.

He went, and proceeded at once to follow his old course of attempting to rule the Irish by pleasing them. Among his first acts he permitted high mass to be said at Christ's Church, in Dublin, and was himself present at the service.⁵¹³ 'To make a face of conformity he put out proclamations' for the use of the Prayer-book; but the Prayer-book was not used, and the disobedience was not noticed. The Archbishop of Dublin expostulated. St Leger put him off with a 'Go to, go to, your matters of religion will mar all;' and placed in his hands 'a little book to read,' which he found 'so poisoned as he had never seen to maintain the mass, with transubstantiation and other naughtiness.'⁵¹⁴

Bellingham's captains, too, troubled the new deputy with acting out their old instructions. Sir Andrew Brereton, one of the best of them, had been a thorn in the side of the Earl of Tyrone. No Bishop of Monluc, or other doubtful ecclesiastic, could land in Ulster but what Brereton had his eye on him; no French emissary could leave Tyrone's castle but what Brereton would attempt to waylay him and relieve him of his despatches; and he had succeeded in intercepting one letter in which the Earl invited a French invasion,⁵¹⁵ and undertook especially to betray Brereton and destroy the Lecale colony.⁵¹⁶

⁵¹³Sir Anthony, upon his arrival, went to the chief church of this nation, and there, after the old sort, offered to the altar of stone, to the great comfort of his too many like Papists and the discouragement of the professors of the gospel.—The Archbishop of Dublin to the English Council: *Irish MSS.* Edward VI. vol. iii. State Paper Office.

⁵¹⁴*Ibid.*

⁵¹⁵Tyrone desired the French King to come with his power, and if he would so prepare to do, to help him to drive out the Jewish Englishmen out of Ireland, who were such as did nothing to the country but cumber the same and live upon the flesh that was in it, neither observing fast-days nor regarding the solemn devotion of the blessed mass or other ceremony of the Church, the French King should find him, the Earl, ready to help him with his men and all the friends he could make.—Complaints of Sir Andrew Brereton: *Irish MSS.* vol. iii. State Paper Office.

⁵¹⁶*Ibid.*

When the expectations from France came to nothing, the Earl, unable to endure longer so insulting a surveillance, laid a claim to Brereton's lands, and sent a troop of kernes to drive his cattle. The English commander, waiting till they had commenced work, set upon them, and cut half of them to pieces, two brothers of Tyrone being among the slain.

St Leger's system could not prosper with a Brereton in command of troops. The Irish lords, who appreciated the merits of a deputy who allowed them their own way, waited on him at Dublin with congratulations on his appointment, and Tyrone took the opportunity of pressing his complaints. Brereton being called on for explanations, drew out a statement of the Earl's misdoings. He came to Dublin, and being told before the Irish Council that he was accused by Tyrone of murder, 'he said he would make answer to no traitor, threw his book upon the board, and desired that the same might be openly read.' The council—they shall relate their own behaviour—'considering the same Earl to be a frail man, and not yet all of the perfectest subject, and thinking, should he know the talk of the same Mr Brereton, having of his friends and servants standing by—for it was in the open council-house—it might be a means to cause him and others of his sort and small knowledge to revolt from their duties and refuse to come to councils'—recommended moderation. It was better to answer Tyrone's complaint meekly. 'Such handling of wild men had done much harm in Ireland.' 'They would read the book, and do therein as should stand with their duties.'

Presently the Earl, foaming with indignation, appeared in person. 'He took the name of traitor very unkindly,' and demanded justice; and the end of it was that Brereton was reprimanded and deprived of his rank; the council apologized for his indiscretion; and a young St Leger of more convenient humour was sent to govern the northern colony.⁵¹⁷

The humouring an Irish chief at the expense of an honest man might have been forgiven; but St Leger was less successful than before in keeping down the expenditure, and the home Government, trusting to the supplies from the mint, sent no remittances. His applications for money were in consequence vexatiously frequent. 'Religion' did not prosper with him; and the reviving uncertainty of the rela-

⁵¹⁷The Deputy and Council to Cecil: *Irish MSS.*; Edward VI. vol. ii. State Paper Office.

tions between England and France, in the winter of 1550–51, made the presence of a stronger hand desirable. Lord Cobham was first thought of as a fit person. On second thoughts, however, it was determined not immediately to supersede St Leger. Sir James Crofts was sent over with troops and ships under his separate command, and brought instructions to survey the southern harbours, and, wherever possible, to fortify them. Crofts arrived in March, 1551. In April he went, as he was directed, into Munster, and with him went a certain John Wood, who sent an account of the journey to Sir William Cecil, with maps and plans.

'In this voyage,' said Wood, 'I have seen, amongst others, two goodly havens at Cork and Kinsale, as by the plots thereof shall presently appear unto you, and also a large and fruitful country of itself; but the most thereof uninhabited, and the land wasted by evil dissensions, that it is pity to behold: which disorder hath continued of a long time by want of justice, insomuch that the most part of the gentlemen, yea, I might say all, be thieves or maintainers of thieves, which thing themselves will not let to confess, as I have presently heard; and have no other way to excuse their faults but that lack of justice forceth them to keep such people as may resist their neighbours, and revenge wrong with wrong, without which they are not able to live. Thus the poor be continually overrun, bereft of their lives, and spoiled of their goods; and no marvel, for neither is God's law nor the King's known nor obeyed. The father is at war with the son, the son with the father, brother with brother, and so forth. Wedlock is not had in any price; whoredom is counted as no offence; and so throughout the realm in effect vice hath the upper hand, and virtue is nothing at all regarded. The noblemen—at the least sundry of them—hang or pardon at their pleasure, whether it be upon a privilege granted unto them, or upon an usurped power, I know not; but, undoubtedly, it is needful to be reformed. There is no cause why these people should be out of order more than others. They have shape and understanding, and are meet to be framed to as good purpose as any other the King's subjects, if the like order were taken and executed as in England and other commonwealths.'⁵¹⁸

Such was Ireland in 1551. But English order was not for the moment likely to improve it. In the early summer St Leger was finally recalled. Sir James Crofts was appointed his successor, and entered

⁵¹⁸Wood to Cecil: *Irish MSS.* Edward VI. vol. ii.

office when the industry of Martin Perry was about to produce its fruits.

In July the rise of prices commenced. Crofts, surrounded by theorists, who assured him that the remedy for this and all other inconveniences was abundance of money, at first was simply perplexed. By November the truth was so far breaking upon him, that he protested against a continuance of the debasement, and entreated that the standard might be restored. The mischief had only commenced; yet even then he represented that the soldiers could no longer live upon their wages. The countrymen so suspected the money, that they would not take it upon any terms. The fortifications in the south were at a standstill; the workmen demanded to be paid in silver, not in silvered brass. 'The town of Dublin and the whole English army would be destroyed for want of victuals if a remedy were not provided.'⁵¹⁹

The remedy would be to cry down the money to its true value, as had been done at home, and to issue no more of it—the last thing which the home Government intended. The Irish mint was to indemnify them for the loss of the sluices which they had been forced to close in England. They replied to Crofts' remonstrances, therefore, with a letter of advice.

'The beginnings of all things in which we are to prosper,' wrote Northumberland or one of his satellites, 'must have their foundation upon God; and, therefore, principally, the Christian religion must, as far forth as may, be planted and restored, the favourers and promoters thereof esteemed and cherished, and the hinderers dismayed.' This was the first point to which Crofts was to attend. Next he was to see that the laws of the realm should be better obeyed; and especially that 'the King's revenue' should be more diligently looked to, his rents be properly collected, his woods and forests attended to, and the accounts of his bailiffs duly audited. The money was a secondary question; the reformation of the coin was impossible, and the calling down objectionable. The deputy might consult the principal people in the country about it; and in the mean time there were the jewels and plate in the churches. He might take those; and if he could not pay the soldiers, he might send them away.⁵²⁰

Sir James Crofts was well inclined to the Reformation, and under Mary almost lost his life for it. Yet, to answer the clamours of de-

⁵¹⁹ Crofts to the English Council, November 1, 1551: *Irish MSS.* vol. iii.

⁵²⁰ The English Council to Sir James Crofts; *Irish MSS.* vol. iii.

frauded tradesmen and labourers, and soldiers too justly mutinous, with a text or a homily, was a task for which he had no disposition. He was 'a man not learned,' he replied; and they had divines for such purposes.⁵²¹ 'The matter of the currency, in his simple opinion, was so apparent, it needed not to be consulted upon; as a proof of which he stated that to keep the army from starving, he had been driven, as the council at home had been driven, to purveying. 'We have forced the people for the time,' he said, 'to take seven shillings for that measure of corn which they sell for a mark, and twelve shillings for the beef which they sell for fifty-three shillings and four-pence. These things cannot be borne without grudge, neither is it possible it should continue.'

In obedience to his orders, however, the deputy invited representatives of the industrious classes in Ireland to Dublin, to discuss the first principles of commercial economy.

'I sent,' he reported after the meeting, 'for inhabitants of Dublin, Cork, Limerick, Waterford, and Drogheda, to know the causes of the dearth of corn and cattle, and how the same might be remedied. I declared unto them how the merchants were content to sell iron, salt, coal, and other necessities, if they might buy wine and corn as they were wont to do. And thereof grew a confusion in argument, that when the merchant should need for his house not past two or three bushels of corn, he could not upon so small an exchange live; and likewise the farmer that should have need of salts, shoes, cloth, iron, hops, and such others, could not make so many divisions of his grain, neither should he at all times need that which the merchants of necessity must sell. So it was that money must serve for the common exchange.'

But why, the question then rose, must money be only of gold and silver? why not of leather or of brass? Was it for the 'sovereign virtue' of the precious metals? was it for their cleanliness in handling? Plain only it was that when the coin was pure, all men sought for it; when it was corrupt, all men detested it. It might have been thought 'that, when the King's stamp was on the coin, it should be received of every man as it was proclaimed.' But experience showed that it was not so; and experience showed further, that good and bad money, though stamped alike, could not exist together; the bad consumed the good. One of the party then observed keenly, 'that among merchants, when

⁵²¹Crofts to Cecil: *Irish MSS.* Ibid.

cloth, silk, and other wares are sold, the owners do set on their marks, and upon proof made of the goodness of the wares and the making, with the true weight and measure, it cometh to pass that after such credit won there needeth no more but shew the mark, and sell with the best; and if the makers of such wares do after make them worse, their trade is lost, insomuch as if after they would reform the same fault, it will ask time before credit be won again.'

The Government was the merchant, the coin was the ware, the King's head was the mark. Prices had risen with bad money. Whether it was better that money should be scarce or plenty the meeting would not venture to say, only it must be pure. 'By the whole consent of the world gold and silver had gotten the estimation above other metals as meetest to make money of, and that estimation could not be altered by one little corner of the world, though it had risen but upon a fantastical opinion, when indeed it was grounded upon reason, according to the gifts that nature had wrought in those metals.'

The meeting concluded, therefore, that if the currency could not honestly be restored, they preferred the least of two evils, and desired that it should be immediately called down to its market valuation.⁵²²

The opinion of the country had been taken, as the English council recommended, and the result was before them; but either it was conveyed in too abstract a language, or the mint had not yet yielded the full sum which they intended to take from it. They waited for an increase of suffering, and prices continued to rise and rise.

'The measure of corn that was wont to be at two or three shillings,' and when Crofts landed in March, 1551, was 'at six shillings and eightpence,' was sold in March, 1552, for 'thirty shillings.' 'A cow that had been worth six shillings and eightpence sold for forty shillings; six herrings for a groat; a cow-hide for ten or twelve shillings; a tonne of Gascon wine for twelve pounds, of Spanish wine for twenty-four pounds.'⁵²³ The Irish beyond the Pale suffered the least. 'Every lord caused his people to keep their victuals within the country,' and the Irishman proper had little use for money—'he cared only for his belly, and that not delicately.'⁵²⁴ In Dublin, Meath, and Kildare schools

⁵²²Memoranda of the Irish Council.—Sir James Crofts to the Duke of Northumberland, December, 1551: *Irish MSS.* Edward VI. vol. iii. State Paper Office.

⁵²³Before the depreciation of the currency in England Gascon wine was sold for 4*l.* 13*s.* 4*d.* a tun; Spanish wine for 7*l.* 8*s.* —34 and 35 Henry VIII. cap. 7.

⁵²⁴Crofts to Cecil: *Irish MSS.* vol. iv.

were shut up; servants were turned away, from the cost of maintaining them; artisans and tradesmen would take no more apprentices: at last the markets were closed. Those who before had bought little at high prices could now buy nothing at any price; and fever followed in the rear of famine. 'All sorts of people,' Crofts passionately expostulated, 'cry for redress at my hands.' The actual cause of their misery they did not know; 'and no marvel,' 'when the wisest were blinded;' but they understood that it came from England and from English rule; 'and now,' Crofts said, 'they do collect all the enormities that have grown in so many years, so that there is among them such hatred, such disquietures of mind, such wretchedness upon the poor men and artificers, that all the crafts must decay, and towns turn to ruin, and all things either be in common, or each live by others' spoil; and thereof must needs follow slaughter, famine, and all kinds of misery.'⁵²⁵

The people had been tried far, yet still it was not enough. The reply which the home Government now vouchsafed was a cargo of German Protestants, whom they sent over to work the silver mines in Wicklow. When a sufficient mass of bullion had been raised, the complaints of the Irish might be considered. The Germans, the distracted deputy reported in return, were idle vagabonds, not worth their keep; the currency would run foul till the day of judgment if he was to wait till it was purified through labour of theirs; and then the council said that they were sorry, and would hope and would see about things, but the King's Government must be carried on, and money they had none. But the wail of the injured people rose at last in tones too piteous to be neglected; and in June, Northumberland made up his mind that he could persist no longer.

Three thousand pounds' weight of bullion were sent from the Tower to Dublin, with orders to Perry to call down the coin, buy it in at the reduced valuation, and make a new issue at the old standard;⁵²⁶ while, to turn the current of Irish feeling, the council passed a

⁵²⁵Crofts to Cecil, March 14: Ibid.

⁵²⁶Such I endeavour in charity to believe to be the meaning of a vaguely-expressed entry in the *Privy Council Register*. Edward, however, in his *Journal*, with the date of June 10, 1552, says:—

'Whereas it was agreed that there should be a pay now made to Ireland of 5000*l.*, and then the money to be cried down; it was appointed that 3000 lbs. weight which I had in the Tower should be carried thither and coined at 3 denar fine, and that incontinent, the coin should be cried down.' The question rises what Edward meant

resolution to restore Gerald Fitzgerald, the hero of Celtic romance, to his estates and country.

by 3 denar fine. Was it threepence in the shilling, or 3 oz. fine to 9 oz. of alloy? or was it threepence in the groat? a coin more honest than Ireland had seen for a century. Experience of the general proceedings of the Government in such matters would lead one to choose the worst interpretation.

CHAPTER XXIX

NORTHUMBERLAND'S CONSPIRACY

AMIDST the wreck of ancient institutions, the misery of the people, and the moral and social anarchy by which the nation was disintegrated, thoughtful persons in England could not fail by this time to be asking themselves what they had gained by the Reformation.

A national reformation, if the name is more than a mockery, implies the transfer of power, power spiritual, power political, from the ignoble to the noble, from the incapable to the capable, from the ignorant to the wise. It implies a recovered perception in all classes, from highest to lowest, of the infinite excellence of right, the infinite hatefulness of wrong.

The movement commenced by Henry VIII., judged by its present results, had brought the country at last into the hands of mere adventurers. The people had exchanged a superstition which, in its grossest abuses, prescribed some shadow of respect for obedience, for a superstition which merged obedience in speculative belief; and under that baneful influence, not only the higher virtues of self-sacrifice, but the commonest duties of probity and morality, were disappearing. Private life was infected with impurity to which the licentiousness of the Catholic clergy appeared like innocence. The Government was corrupt, the courts of law were venal. The trading classes cared only to grow rich. The multitude were mutinous from oppression. Among the good who remained unpolluted, the best were still to be found on the Reforming side. Lever, Latimer, Ridley, Cranmer, held on unflinching to their convictions, although with hearts aching and intellects perplexed; but their influence was slight and their numbers small; and Protestants who were worthy of the name which they bore were fewer far, in these their days of prosperity, than when the bishops were hunting them out for the stake. The better order of commonplace men, who had a conscience, but no especial depth of insight—who had small sense of spiritual things, but a strong perception of human rascality—looked on in a stern and growing indignation, and, judging the tree by its fruits, waited their opportunity for reaction.

'Alas, poor child,' said a Hampshire gentleman, of Edward, 'unknown it is to him what Acts are made now-a-days; when he comes of age he will see another rule and hang up an hundred heretic knaves.' John Bale replied to 'the frantic Papist' with interested indignation;

he wrote a pamphlet with a dedication to Northumberland, whom he compared to Moses,⁵²⁷ and earned a bishopric for his reward.⁵²⁸ But the words expressed a deep and general feeling; and, had the coming of age taken place, might not impossibly have proved true. Edward showed no symptoms of wavering in religion; but he was gaining an insight beyond his years into the diseases of the realm, which threatened danger to those who had abused his childhood. He had followed and noted down the successive tamperings with the currency. He was aware of his debts, and of the scandal of them; and we have seen him seeking political information without the knowledge of the council. He understood the necessity of economizing the expenditure, of scrutinizing the administration of the revenues, and of punishing fraud.⁵²⁹ He could actively interfere but little, but the little was in the right direction. The excessive table allowances for the household were reduced. Irregular claims for fees, which had grown up in the minority, were disallowed; the wardrobe charges were cut down; the garrisons of the forts and the Irish army were diminished, according to a schedule which Edward himself had the reputation of devising.⁵³⁰ Further, he began to inquire into the daily transactions of the council. He required notice beforehand of the business with which the council was to be occupied, and an account was given in to him each Saturday of the proceedings of the week: while in a rough draft of his will which he dictated to Sir William Petre in the year which preceded his death, he showed the silent thought with which he had marked the events of his boyhood. Should his successor, like himself, be a minor, his executors, unlike his father's, should meddle with no wars unless the country was invaded. They should alter no part of 'religion;' they should observe his 'device' for the payment of his debts, and use all means for their early settlement; and there

⁵²⁷ 'Considering in your noble Grace the same mighty, fervent, and religious zeal in God's cause which I have diligently marked in Moses, the servant of God.'—STRYPE, vol. iv. p. 39.

⁵²⁸ Ossory in Ireland.

⁵²⁹ See especially a remarkable Discourse on the Reformation of Abuses, printed by Burnet, and a draft of provisions which Edward intended for insertion in his will.—STRYPE, vol. iv. p. 120. If Edward really wrote or dictated those two papers, the 'Miracle of Nature' was no exaggerated description of him. I am bound to add, however, that his *Essays and Exercises*, a volume of which remains in MS. in the British Museum, show nothing beyond the ordinary ability of a clever boy.

⁵³⁰ Device for the payment of the King's Debts: STRYPE's *Memorials*, vol. iii. p. 594. Compare EDWARD's *Journal*, 1552.

should be no return of extravagance in the household.⁵³¹ More remarkable is an imperfect fragment on the condition of England.

Following, boylike, the Platonic analogy between the body of the individual and the body politic, Edward saw in all men the members of a common organization, where each was to work, and each ought to be contented with the moderate gratification of his own desires. The country required an order of gentlemen; but gentlemen should not have so much as they had in France, where the peasantry was of no value. In a well-ordered commonwealth no one should have more than the proportion of the general stock would bear. In the body no member had too much or too little; in the commonwealth every man should have enough for healthy support, not enough for indulgence. Again, as every member of the body was obliged 'to work and take pains,' so there should be no unit in the commonwealth which was not 'laboursome in his vocation.' 'The gentleman should do service in his country, the serving-man should wait diligently on his master, the artisan should work at his trade, the husbandman at his tillage, the merchant in passing the tempests;' the vagabond should be banished as 'the superfluous humour of the body,' 'the spittle and filth which is put out by the strength of nature.'

Looking at England, however, as England was, the young King saw 'all things out of order.' 'Farming gentlemen and clerking knights,' neglecting their duties as overseers of the people, 'were exercising the gain of living.' 'They would have their twenty miles square of their own land or of their own farms.' Artificers and clothiers no longer worked honestly; the necessities of life had risen in price, and the labourers had raised their wages, 'whereby to recompense the loss of things they bought.' The country swarmed with vagabonds; and those who broke the laws escaped punishment by bribery or through foolish pity. The lawyers, and even the judges, were corrupt. Peace and order were violated by religious dissensions and universal neglect of the law. Offices of trust were bought and sold; benefices impropriated, tillage-ground turned to pasture, 'not considering the sustaining of men.' The poor were robbed by the enclosures; and extravagance in dress and idle luxury of living were eating like ulcers into the State. These were the vices of the age: nor were they likely, as Edward thought, to yield in any way to the most correct formula of justification. The 'medicines to cure these

⁵³¹ STYPE, vol. iv. p. 120.

sores' were to be looked for in good education, good laws, and 'just execution of the laws without respect of persons, in the example of rulers, the punishment of misdoers, and the encouragement of the good.' Corrupt magistrates should be deposed, seeing that those who were themselves guilty would not enforce the laws against their own faults; and all gentlemen and noblemen should be compelled to reside on their estates, and fulfil the duties of their place.⁵³²

A king who at fifteen could sketch the work which was before him so distinctly, would in a few years have demanded a sharp account of the stewardship of the Duke of Northumberland. Unfortunately for the country, those who would have assisted him in commencing his intended improvements, Lord Derby, Lord Oxford, Lord Huntingdon, Lord Sussex, or Lord Paget, were far away in the country, sitting gloomily inactive till a change of times. Ridley was working manfully, as we have seen, in restoring the London hospitals; but Cranmer, after the destruction of Somerset, shrunk from confronting Northumberland; and, the Liturgy being completed, he was now spending his strength in the pursuit of objects which were either unattainable or would have been mischievous if attained. In the spring of 1552 he was endeavouring to take away the reproach of Protestantism by bringing the Reformed Churches to an agreement. Edward offered his kingdom as an asylum for a Protestant synod, which might meet at Oxford or Cambridge; and the Archbishop wrote to Calvin and Melancthon, entreating their support. But oil and water would combine before Zuinglian and Lutheran would acquiesce in common formulas. Protestants, as Calvin assured him, hated each other far too heartily.⁵³³ In another direction his exertions were equally unprofitable; and he was acting here under Calvin's advice.

The interference of the Church officials in the private concerns of the people had been among the chief provoking causes of the original revolt under Henry. The laity had flung off the yoke of the clergy. The ministers of the new order, mistaking the character of the change, imagined that the privileges and powers of the Catholic priesthood would be transferred to themselves. As teachers of 'the truth,' they were the exponents, in their own eyes, of the divine law, and they demanded the right to punish sin by spiritual censures—spiritual censures enforced by secular penalties.

⁵³² Discourse on the Reformation of Abuses: BURNET's *Collectanea*.

⁵³³ Correspondence between Cranmer, Calvin, and Melancthon: *Epistolæ TIGURINÆ*.

Mankind, notwithstanding their frailties, are theoretically loyal to goodness; and, could there have been any security that the clergy would have confined their prosecutions to acts of immorality, that desire might perhaps have to some extent been indulged. But to the Church of Calvin, as well as to the Church of Rome, the darkest breach of the moral law was venial in comparison with errors of opinion; and the consequence which England had to expect from a restoration of clerical authority might be seen in the language of one who was loudest in the demand for it. John Knox, the shrewdest and one of the noblest of the Reformers, did not conceal his opinion that Gardiner, Bonner, and Cuthbert Tunstal might have been justly put to death for nonconformity.⁵³⁴ But Parliament had not refused absolutely to entertain the question. The Lords rejected, as we have seen; a scheme which would simply replace the bishops in the position which they had forfeited; but the old mixed commission of thirty-two had been re-established for the revision of the canon law; and in March, 1552, the commissioners would have made some progress, it was said, had not Ridley, and Goodrich, Bishop of Ely, who had succeeded Lord Rich as Chancellor, 'stood in the way with their worldly policy.'⁵³⁵ The thirty-two were afterwards reduced to eight, and in the following November a fresh commission was appointed, consisting of Cranmer, Goodrich, Coxe, and Peter Martyr, with four lawyers and civilians. The work was allowed to devolve on the Archbishop, who, with the assistance of Foxe the Martyrologist, produced the still-born volume,⁵³⁶ in which, as I have already mentioned, he claimed the continued privilege of sending obstinate heretics to the stake; and which remains to show to posterity the inability of the wisest of the clergy to comprehend their altered position. The King was already more clear-sighted than the Archbishop of Canterbury. He admitted the desirableness of

⁵³⁴'God's justice,' says Knox, in his *Admonition to the Faithful in England*, 'is not wont to cut off wicked men till their iniquity is so manifest that their very flatterers cannot excuse it. If Stephen Gardiner, Cuthbert Tunstal, and butcherly Bonner, false bishops of Winchester, Durham, and London, had, for their false doctrines and traitorous acts, suffered death when they justly deserved the same, then would Papists have alleged that they were men reformable,' &c. In the Constitution of the Church of Scotland, which was drawn under Knox's influence, to say mass, or to hear it, was made a capital crime—under the authority of the text, 'The idolater shall die the death.'

⁵³⁵Micronius to Bullinger: *Epistolæ TIGURINÆ*.

⁵³⁶*The Reformatio Legum*.

discipline; 'so,' however, 'that those that should be executors of that discipline were men of tried honesty, wisdom, and judgment.' 'But because,' he said, 'those bishops who should execute it, some for Papistry, some for ignorance, some for age, some for their ill names, some for all those causes, were men unable to execute discipline, it was, therefore, a thing unmeet for such men.'⁵³⁷

Meanwhile, amidst discussions on the remedies of evils, the evils themselves for the most part continued. Discipline could not be restored. The King's abilities did not anticipate his majority; the revenues were still misapplied, the debts of the Crown still unpaid. Officials indeed in the interests of Northumberland were permitted to indemnify themselves for their services. Bishop Ponet, for instance, composed a catechism, which was ordered for general use, and was allowed a 'monopoly of the printing.'⁵³⁸ But ordinary persons, servants, artisans, tradesmen in public employment, 'fed upon the chameleon's dish,' and still cried in vain for their wages—it might be from prison.⁵³⁹ Prices of provisions would not abate. Vainly the Duke of Northumberland reprimanded the Lord Mayor in the Guildhall—vainly butchers' carts were seized, and the meat was forfeited—vainly the dealers were threatened with the loss of their freedom and expulsion from the towns and cities;⁵⁴⁰ the distrust and hatred of the administration were too strong for menace.

⁵³⁷ Discourse on the Reformation of Abuses: BURNET.

⁵³⁸ Northumberland to Cecil: *MS. Domestic*, Edward VI. vol. xv. State Paper Office.

⁵³⁹ The state of the ordnance department was but a specimen of the state of all the departments. On the 3rd of August, 1552, the Master of the Ordnance wrote to Cecil:—

'These be to beseech you for God's sake, charity's sake, yea, at this my contemplation, to help the miseries that be in the office of the ordnance for lack of money, as it is high time, being daily sundry and many poor men crying and calling for the same, to my no little grief; amongst the which is one named Charles Wolmar, gunpowder maker, now in very pitiful case, who is presently in the Counter, for that the rent of the house he dwelleth in is unpaid for a year and a half, which amounteth to 13 pounds and odd money, which cometh by reason there hath been no money paid in this office a long time. The King's Majesty is charged with the rent thereof, being put there by the King's appointment, both for the making of gunpowder, when there is money to set him a work, and also to look to certain things of his Highness's there under his charge. I heartily pray you, seeing that the said poor man, as is great pity, is nevertheless troubled for this the King's Majesty's care, to move my Lords of the Council in that behalf. Sir, I pray you that I may have an answer hereof.'—*MS. Domestic*, Edward VI. vol. xiv. State Paper Office.

⁵⁴⁰ STYRPE's *Memorials*.

The churches, the lead having been torn from the roofs, crumbled into ruins. Parishes were still left without incumbents, or still provided with curates who were incapable or useless. 'A thousand pulpits in England were covered with dust.' In some, four sermons had not been heard since the Preaching Friars were suppressed. 'If,' said Bernard Gilpin before the Court, 'if such a monster as Darvel Gatheren, the idol of Wales, could have set his hand to a bill to let the patron take the greater part of the profits, he might have had a benefice.'⁵⁴¹ In October, 1552, there was a menace of rebellion.⁵⁴² In December, the Government was threatened with some further unknown but imminent danger, which called out from Northumberland the most seeming admirable sentiments, which he knew so well how to affect, and could, perhaps, persuade himself that he felt.⁵⁴³ In March, so general was the disaffection, that martial law was proclaimed in many parts of the country.⁵⁴⁴

The periodic sore of bankruptcy was again running. The revenue still clung to the hands by which it was collected. Fines, confiscations, church plate, church lands, mint plunder, vanished like fairy gold. The languid efforts of the council to extricate themselves availed only to show how helpless was their embarrassment. In August, 1552, a

⁵⁴¹STRYPE'S *Memorials*.

⁵⁴²Northumberland to Cecil: *MS. Domestic*, vol. xiv. Edward VI. State Paper Office.

⁵⁴³He may have the benefit of his words so far as it will extend. He 'instantly and earnestly required the Lords of the Council to be vigilant for the preventing of these treasons so far as in them was possible to be foreseen;' 'that thereby,' he said, 'we may to our master and the world discharge ourselves like honest men, which, if we do not, having the warning that we have which cometh more of the goodness of God than of our search or care, the shame, the blame, the dishonour, the lack and reproach should, and may justly, be laid upon us to the world's end. The old saying which ever among wise men hath been holden for true, seemeth by our proceedings to be had either in derision or in small memory, being comprehended in these words—*mora trahit periculum*—beseeching your Lordships, for the love of God and the love which we ought to have to our master and country, let us be careful, as becometh men of honour, truth, and honesty to be. For we be called in the time of trial and trouble; and therefore let us show ourselves to be as we ought to be; that is, to be ready, not only to spend our goods, but our lands and lives, for our master and our country, and to despise the flattering of ourselves with heaping riches upon riches, house upon house, building upon building, and all through the infection of *singulare commodum*. And let us not only ourselves beware and fly from it as the greatest pestilence in the commonwealth, let us also be of that fortitude and courage that we be not blinded and abused by those that be infected with these infirmities.'—Northumberland to the Council: *MS. Domestic*, Edward VI. vol. xv. State Paper Office.

⁵⁴⁴STRYPE'S *Memorials*.

bill fell due in Antwerp for 56,000*l*. Sir Thomas Gresham had been in the Low Countries in July; and as there was no money to meet the bill, he brought back with him a proposal for a further postponement on the usual terms; with a condition to which also the home Government was accustomed, that certain wares, fustians and diamonds, should be purchased of the lenders. Such transactions, however disguised, could have but one meaning: the bankers sold their jewels at their own prices; the English Government had to dispose of them for such prices as they would fetch in the market.

Northumberland was absent on the Scottish Border, and the council, freed from his authority, refused to submit to the imposition. They instructed Gresham to return to Antwerp and to say that the King would pay as soon as he could, but the times were troublesome, and he had other employment for his money: the bankers must be reasonable, and wait.

The trader sympathized with his order. Gresham pledged his own credit for payment, and he wrote earnestly to Northumberland, through whom bargains of this kind could be best conducted, to save the country from shame. It was 'neither honourable nor profitable,' he said, to put off money-lenders with a high hand. The credit of England would 'fall as low as the credit of the Emperor,' who was at that moment 'offering 16 per cent, for money, and could not obtain it.' 'The King's father, who first began to take up money upon interest, did use to take his fee penny in jewels, copper, gunpowder, or fustian, and wares had been taken ever since, when the King had made any prolongation.' So long as the loans could not be repaid the system must be continued. Thus much, however, Gresham undertook to do. Lead was fetching a high price in Antwerp. If the export of lead from England was forbidden, the price would rise still higher, while at home it would fall. The Government might take possession of the trade and make its own profits; while he would himself remain on the Continent, and would watch the exchanges, and if he could be supplied with 1200*l*. a week he would clear the Crown of its foreign debts in two years.⁵⁴⁵

Northumberland listened to the advice upon the lead trade. He stopped the exports, and in two months learnt to his sorrow that 'princes' affairs in the Government of realms and merchants' trades

⁵⁴⁵ Gresham to Northumberland: STYVE's *Memorials*, vol. iv.

were of two natures.⁵⁴⁶ The City of London extricated the Crown from its embarrassments by an advance of 40,000*l.* The bills were renewed, but only with a slight increase. In August, the entire debts at Antwerp were 108,000*l.* On the 3rd of October, after the renewal, they were something under 111,000*l.* ; while the home debts 'certainly known to be due' were, on the same 3rd of October, 125,000*l.*⁵⁴⁷ The loan from the City of London partially satisfied the foreign creditors, partially it was applied for the payment of wages, and other obligations at home. The home debts by November were reduced to 109,000*l.*⁵⁴⁸ At last, therefore, there was an attempt to do something, though the something was but small.

But these petty difficulties were not absolutely the results of carelessness and fraud. In this autumn of 1552, England narrowly escaped being again drawn into the European whirlpool.

The Peace of Passau left Charles at war with France; and by the revised treaty of 1543, as has been often said, England was bound to assist the Emperor if the Low Countries or the Rhine provinces were invaded. A French army had entered Luxembourg in July; and Charles, whose misfortunes had rendered him less scrupulous in connecting himself with heretics, applied through his ambassador for the stipulated support. The abandonment of Henry VIII. in the late war might have exonerated Edward from compliance. The treaty had been renewed since the Peace of Crêpy; but Charles had left England, notwithstanding, to work its way out of its difficulties alone⁵⁴⁹ in the

⁵⁴⁶I pray you, and most heartily require you, to have in remembrance the restraint lately taken for the stay of lead through the realm, that it may be substantially considered; for I put you out of doubt the clamour and exclamation grow great, and may breed more dangers than can now be seen. I have, since my being in the council chamber, heard of that matter, which maketh me sorry that ever it was my hap to be a meddler in it; but shall teach me to beware of the wayne of a dry spring while I live; for princes' affairs specially touching the government of realms and merchants' trades are of two natures; therefore, though they be full of devices with appearance of profit, yet must they be weighted with other consequences; as in this case as much requisite as any matter that was in use a great while, for such reasons as this day were rehearsed, as knoweth the Lord.—Northumberland to Cecil, November, 1552: *MS. Domestic*, Edward VI. vol. xiv. State Paper Office.

⁵⁴⁷Note in Cecil's hand: *MS Domestic*, Edward VI. vol. xiv. State Paper Office.

⁵⁴⁸Second Note in Cecil's hand: *Ibid.*

⁵⁴⁹Chancellor Granvelle's defence of the Peace of Crêpy was probably unknown in England, or it would have spared the council all difficulty. 'De dire,' he wrote to the Emperor, 'que le Roy d'Angleterre par la dicte paix pourra se malcontenter et pretendre que votre Majesté a contrevenu à traicté—il y a, Sire, une maxime en

place of sending help, he had himself assumed an attitude of hostility. But either Northumberland was uncertain of his prospects and projects at home, and desired to conciliate the Emperor and Mary, or he was doubtful of the intentions of France, or he was possessed by the traditionary belief that the safety of England depended on the maintenance of the balance of power. The Emperor, without money and without friends, was contending with difficulty against an alliance between the Turks and the French. Ugly misunderstandings had sprung up between the Courts of London and Paris. The French had avenged their supposed wrongs in the usual way, by seizing English merchant ships; and Charles's request for assistance came at the moment when the council were besieged with the complaints of the owners.⁵⁵⁰ From the uncertain conduct of the council, it would seem that either there were conflicting opinions which balanced each other, or that one and all were perplexed and irresolute. The ambassador was first answered evasively. He was next told that the demand should be taken into consideration. Then suddenly, on the 2nd of September, the council made up their minds definitely to declare war against France.⁵⁵¹ But the resolution was taken only to be abandoned immediately, and the ambassador was informed that the King could not, in his present embarrassments, hold himself bound by his

matières d'estat comme en toutes choses, qu'il faut regarder plus à la réalité des choses que se traictent, en y conjoignant ce qu'est possible et faysable, selon Dieu et raison, que de advanturer et hazarder pour crainte de scrupules non fondez.'—Granvelle to Charles V.: *Papiers d'Etat*, vol. iii. p. 27.

⁵⁵⁰ 'It is an old saying that we should not laugh at our neighbour when his house is on fire. I do every day hear more and more of the cruel dealings of the French against the subjects and merchants of this realm, in such lamentable sort that a number almost is ready to be desperate: wherein the honour of the prince, his council, and realm, is vehemently touched.'—Northumberland to Cecil, September, 1552: *MS. Domestic*, Edward VI. vol. xiv. State Paper Office.

⁵⁵¹ 'Which things considered, we have more regarded our faith in our religion, our old amity and alliance with our good brother the Emperor, and the antient natural friendship that hath, in all times and adversities, continued betwixt the two noble houses of England and Burgundy, than other worldly perils and lacks that might, in appearance of reason, move us to be quiet and sit still; and be content to declare the French King's countries and subjects common enemies to us and our good brother the Emperor—no wise doubting but our said good brother will naturally, like a brother, consider this our well-tried constancy and natural love towards him. And herein you shall declare to our said good brother, that our desire is to have his advice for our best means of entry to this demonstration.'—Minute of Instructions to Sir R. Morryson, September 2, 1552: *MS. Germany*, Edward VI. bundle 15, State Paper Office.

father's treaties. Again in a few days the scale wavered. Sir Thomas Stukeley, a west-country gentleman, and a dependent of Somerset, had escaped abroad on the arrest of his master, and now returned with a story by which he hoped to purchase his pardon. Being believed to be a disaffected subject, he had been admitted, as he said, into the French counsels, and he was able to affirm as a certainty that Calais was about to be attacked. The King of France himself had spoken to him of the weak points in the defences, had pointed out the very plan of assault, by which, six years later, Calais was actually taken. Although, however, Henry said, 'he would in short space recover Calais, yet to adventure the same was in vain, otherwise than to seek the whole realm.' The Scots, therefore, were to enter Northumberland; he himself would land with troops at Falmouth, while the Duke of Guise would land at Dartmouth, which he knew to be undefended. That done 'he intended to proclaim and restore the mass.' Stukeley told him that 'he would be twice or thrice fought withal.' Henry said that 'he esteemed that but a peasant's fight;' at all events, he would fortify both Falmouth and Dartmouth, and hold them in gage for Calais.⁵⁵²

The French were confident in themselves, in their fortunes, in the especial graces which attended the consecration of their sovereign.⁵⁵³ Neither promises nor alliances would stand in their way when opportunity of aggrandizement should offer itself. If either France or the Empire became dominant in Europe, England would equally find an enemy in either; and if Stukeley's story was true, the Empire must be supported.

Again, therefore, the question of peace or war was anxiously discussed, and, according to the official habit of the time, the arguments on either side were drawn out in form. Should the King join the Emperor? it was asked. For the affirmative it was urged that he was bound by treaty. The Emperor might be ruined, or would lose Burgundy, and in that case England would lose Calais; the French were bringing the Turks into Christendom, and again some redress must be obtained for the English merchants; the attitude of France was sus-

⁵⁵²Stukeley's Deposition: MS. *France*, Edward VI. bundle 10, State Paper Office.

⁵⁵³The Cardinal of Lorraine showed Sir William Pickering the Holy Ampulla [St Ampull, Pickering calls it, like St Cross or St Sepulchre,] 'wherewith the King of France was sacred, which he said was sent from Heaven above a thousand years ago, and since by miracle preserved; through whose virtue also the King healed *les escrouelles*.'—Pickering to the Council: MS. *Ibid*.

picious and menacing, and 'enter into war alone the King might not well;' finally, the Emperor might make peace with France exasperated by desertion, and the Catholic powers might unite against England.⁵⁵⁴ For the negative; the exchequer was empty: should the Emperor die, as was not unlikely, England would be left again to fight the battle alone. The German Protestants would be offended, and France, after all, might not have the intentions which were attributed to her. It might be possible so to help the Emperor as to induce the Protestant princes to unite also; to make the Turks the ground of quarrel, and to declare France an enemy of Christendom. A war on such terms would be inexpensive, and England would be strengthened by taking part in a general league. On the other hand, such a league could not be formed either rapidly or secretly; and if the attempt should be made, and fail, France would be inexpiable offended.

The ultimate resolution was to reply with a general assurance of sympathy; to offer active assistance against the Turks, and so to feel the way towards a larger combination. The Lutheran powers, having secured their own liberties, were known to be looking suspiciously on the French movements. If the Emperor would consent to act with them, England might then go further. Meantime she would recruit her finances, and prepare for all contingencies.⁵⁵⁵

Charles was unable to quarrel with so meagre an answer. He had deserved no better; nor could England afford more. He was at the moment on the Rhine, just recovering from a severe attack of gout, and collecting an army to wrest Metz from the Duke of Guise. Fortune at that time seemed again turning in his favour. The French invading force had been compelled to retreat out of Lorraine, decimated by

⁵⁵⁴While the preservation of the holy ointment assured France of the continued favour of Heaven, the French preachers informed their congregations, on analogous grounds, that England had been forsaken. 'No wonder,' said a Jacobin monk in a sermon at Angiers, 'that the King of England has broken faith with France, seeing that he had broken faith with God; disant qu'il estoit hérétique et mèschant, et que le peuple de France devroit bien louer Dieu et luy rendre grâces, et que nostre roy avoit tournu sa robe et estoit ennemy des François. Depuys continuant sa mèschante affection, il a dict en publique que notre Roy d'Angleterre estoit infidèle, ce qu'il disoit estre notoire par ce que le don de faire miracles luy estoit ostée; disant que ses prédécesseurs Roys d'Angleterre avoient de cousturae de guérir du mal caduc, mais que ceste vertu luy avoit este ostée, et n'en guérissoit, plus à cause de son infidélité.'—*MS. France*, Edward VI. bundle 10, State Paper Office.

⁵⁵⁵EDWARD'S *Journal*, September, 1552.—Discussion on the War with France, with the Instructions to Sir Richard Morryson: *Cotton. MSS. Galba*, 12.

fever, Guise himself remaining with a few picked troops. De Roulx, the Imperialist general in Flanders, had carried fire and sword to the banks of the Somme, and penetrated France to within fifty miles of Paris, sacking houses, and burning towns, villages, and farms. A company of English volunteers from the Calais Pale had joined him in an attack, which all but succeeded, upon Ambletue; while Albert of Brandenburg, who had quarrelled with Maurice, and was now in the Emperor's camp, had taken the Duke of Aumale in a skirmish.

Accounts, by competent persons, of interviews with Charles V. are always interesting. When Sir Richard Morryson waited upon him with the reply of the English Government to his request for assistance, 'the Emperor,' he said, 'was at a bare table, without carpet or anything else upon it, saving his cloke, his brush, his spectacles, and his picktooth.' His lower lip had broken out during his illness, and he kept 'a green leaf' upon it, which, adding to his 'accustomed softness in speaking,' 'made his words hard to be understood.' He listened to the message kindly, but coldly, 'thinking, as Morryson might perceive, to have heard somewhat of joining force against another enemy of his' beside the Turk: but he spoke warmly of England; he talked of Henry VIII., and of the regard which they had ever entertained for each other; and it seemed as if he was speaking sincerely. 'But he hath a face,' said Morryson, 'unwont to discover any hid affection of his heart, as any face that ever I met with in all my life. White colours, which, in changing themselves, are wont in others to bring a man word how his errand is liked, have no place in his countenance. His eyes only do betray as much as can be picked out of him. He maketh me often think of Solomon's saying, Heaven is high, the earth is deep, a King's heart is unsearchable. There is in him almost nothing that speaks besides his tongue.'⁵⁵⁶

Meantime the French King assured Sir October. William Pickering that in Stukeley's story there was no word of truth. He had never thought of attacking England since the conclusion of the peace, far less had he spoken of it. How these foreign difficulties might turn out was quite uncertain. Nevertheless, for domestic purposes or for war purposes, one thing was steadily necessary, *i.e.*, money. Northumberland, following the steps of his father, who filled the treasury of Henry VII., and brought his own head to the block, set himself to the work with heart and goodwill. In the autumn and winter of 1552-3,

⁵⁵⁶Morryson to the Council: TYTLER, vol. ii.

no less than nine commissions were appointed with this one object; four of which were to go again over the often-trodden ground, and glean the last spoils which could be gathered from the churches. In the business of plunder the rapacity of the Crown officials had been distanced hitherto by private peculation. The halls of country-houses were hung with altar-cloths; tables and beds were quilted with copes; the knights and squires drank their claret out of chalices, and watered their horses in marble coffins. Pious clergy, gentlemen, or church-wardens had in many places secreted plate, images, or candlesticks, which force might bring to light. Bells, rich in silver, still hung silent in remote church-towers, or were buried in the vaults. Organs still pealed through the aisles in notes unsuited to a regenerate worship, and damask napkins, rich robes, consecrated banners, pious offerings of men of another faith, remained in the chests in the vestries. All these were valuable, and might be secured, and the Protestants could be persuaded into applause at the spoiling of the house of Baal. Ridley in London lent his hand. On the 4th of September the organ at St Paul's was ordered into silence preparatory to removal. On the 25th of October 'was the plucking down of all the altars and chapels in Paul's church, with all the tombs, at the commandment of the Bishop, and all the goodly stone-work that stood behind the high altar.'⁵⁵⁷ The monument of John of Gaunt himself would have gone down, had not the council stepped in to save it. Vestments, copes, plate, even the coin in the poor-boxes, were taken from the churches in the city.⁵⁵⁸ Some few peals of bells were spared for a time, but only under condition of silence. A sweep as complete cleared the parish churches throughout the country. There was one special commission for bells, vestments, and ornaments; two for plate and jewels; a fourth to search private houses for church property, and, should any such be found, to make a further profit by the fine of the offenders. A commission, again, was to examine into the rents of the Crown estates; another to sell chantry lands. The accounts of the disposition of all estates which had fallen to the Crown by confiscation or Act of Parliament since the suppression of the monasteries were to be produced and examined. The armorial bearings of families residing south of the Trent were to be investigated by the College of Heralds, and illegal quarter-

⁵⁵⁷*Grey Friars' Chronicle.*

⁵⁵⁸It is to be said for Ridley that he begged and obtained the linen surplices, &c., for the use of the hospitals.

ings to be paid for by fine or forfeit. Lastly, Northumberland himself, assisted by others on whose discretion he could rely, undertook to examine the accounts of the treasurer and receiver of the Court of Augmentations and the Court of Exchequer; of the collectors of first-fruits and of the officers of the Duchy of Lancaster; and, finally, in one frightful sweep, to call on every one who had received money in behalf of the Crown since the year 1532 to produce his books and submit them to an audit. Paymasters, purveyors, victuallers, engineers, architects, every one to whom money had been paid from the treasury for the army and navy, for the household, or for any other purpose, were included under the same schedule. If the account-books of twenty years of confusion, during the latter portion of which almost all public persons, from the council downwards, had vied with each other in the race of rapacity, were not forthcoming and in order, they were to be proceeded against without mercy.

The sale of chantry lands was expected to yield 40,000*l.* ; the surrendered lands of the bishopric of Worcester would produce 5000*l.* more; the church plate and linen 20,000*l.* ; the confiscated estates of the late fraudulent Master of the Rolls, and of Sir Thomas Arundel, who had been executed as an accomplice in Somerset's conspiracy, with a fine inflicted on Lord Paget for the same cause, were estimated at 25,000*l.* , 'or thereabouts;' from 90,000*l.* to 100,000*l.* might be expected from the remaining commissions,⁵⁵⁹ could those commissions be enforced. But setting aside the injustice of calling suddenly for the accounts of twenty years, when the disorders had been so universal and the example of the ruling powers so flagrantly bad, the conduct of Northumberland and Northumberland's friends could bear inspection as little as any man's. Another large sum of 40,000*l.* might be looked for from the sale of the estates of the See of Durham, which was about to be suppressed; but these estates Northumberland designed for himself, and obtained a grant of them; and as he now really intended to pay off the Crown debts⁵⁶⁰—as, in fact, he was supplying, and intended to continue to supply, the 1200*l.* weekly for which Gresham had applied for that purpose, he was obliged to look to other resources. A Parliament had become a

⁵⁵⁹Further Calculations of the King's Debts and of the Means of paying them: *MS. Domestic*, Edward VI. vol. xiv.

⁵⁶⁰From a report presented in the first year of Queen Mary, it appeared that in the last year of Edward he cleared off 60,000*l.*

necessity, unwelcome but inevitable. A Parliament must meet. The blame of the public embarrassment could be cast upon Somerset; and in a letter to the council the Duke explained the arguments on which he intended to apply for a subsidy.⁵⁶¹ As the subsidy, however, could not be collected till after the next harvest, the meeting, he at first thought, might be postponed till the following Michaelmas.⁵⁶²

Circumstances, or the influence of others, or the necessity of pacifying the people, forbade the anticipated delay. The writs were sent out in January, and as Parliament would not grant money without inquiry, and inquiry could only be faced before interested or otherwise favourable judges, the best security was to fill the Lower House with men who could be depended upon. It has been maintained or assumed, by some writers, that the election of members of Parliament under the Tudor princes had but the form of freedom; that the constituencies were treated with no more respect than if they had been deans and chapters of cathedrals, who, though permitted to pray to Heaven to be guided in the selection of their bishop, must nevertheless receive that guidance through the nomination of the Crown. The account of the election of 1552–3 will enable us to form a more discriminating judgment. Northumberland's House of Commons was, in fact, chosen, like the bishops, by a *congé d'élire*; it was a 'convention of notables,' such as Northumberland was pleased to direct to be

⁵⁶¹ 'There is none other remedy,' he said, 'to bring his Majesty out of the great debts wherein, for one great part, he was left by his Highness's father, and augmented by the wilful government of the late Duke of Somerset, who took upon him the Protectorship and government of his own authority. His Highness, by the prudence of his father, left in peace with all princes, suddenly by that man's unskilful Protectorship, was plunged in wars, whereby his expenses were increased unto the point of six or seven score thousand pounds a year over and above the charges for the keeping of Boulogne. These things being now so onerous and weighty to the King's Majesty, and having all this while been put off by the best means we have been able to devise, although but slender shifts, the same is grown to such an extremity, as without it speedily be holpen by your wise heads, both dishonour and peril may follow; and seeing there is none other honourable means to reduce these evils, I think there be no man that beareth his obedient duty to his sovereign lord and country but must conform himself to think this way [of a Parliament] most honourable. The sale of lands ye have proved; the seeking of every man's doings in office ye mind to try; and yet you perceive all this cannot help to salve the sore that hath been so long suffered to fester for lack of looking unto.'—Northumberland to the Council; *MS. Domestic*, Edward VI. vol. xv.

⁵⁶² *Ibid.*

elected; but such a mode of election is expressly stated to have been introduced on this occasion, and if freshly introduced, did not exist before.⁵⁶³ How the voting was conducted does not appear; and it is plain that the constituencies possessed no recognized means of enforcing their own choice; but it is plain, also, that the experiment of nomination was tried as the general rule of an election for the first time.

A nomination Parliament, however, was on this occasion actually assembled. Either a circular⁵⁶⁴ was addressed to the sheriffs of coun-

⁵⁶³On the 16th of August, 1553, Simon Renard, the Flemish Ambassador, writing to Charles V. of the Parliament about to be called by Mary, consulted him in Mary's name, 'si le dict parlement se doit faire général, ou y appellir particuliers et notables du pays par représenter le parlement *selon que le Duc de Northumberland l'a introduict*.'—Despatches of Renard, copied from the Archives at Brussels: *MS. Rolls House*. Charles advised Mary to trust the people as completely as possible.

⁵⁶⁴A first draft of the circular is in the British Museum: *Lansdowne MSS.* 3.

'Trusty and well-beloved, we greet you well. Forasmuch as we have, for divers good considerations, caused a summonition of a Parliament to be made, as we doubt not ye understand the same, by our writs sent in that behalf to you, we have thought it meet, for the furtherance of such causes as are to be propounded in the same Parliament for the commonweal of our realm, that in the election of such persons as shall be sent to our Parliament, either from our counties as knights of the shire, or from our cities and boroughs, there be good regard had that the choice be made of men of gravity and knowledge in their own counties and towns, fit for their understanding and qualities to be in such a great council. And, therefore, since some part of the proceeding herein shall rest in you by virtue of your office, we do, for the great desire we have that this our Parliament may be assembled with personages out of every county of wisdom and experience, at this present recommend two gentlemen of the same county, being well furnished with all good qualities, to be knights of that shire, that is to say, — and —, to whom we would ye should signify this our meaning, to the intent they may prepare themselves to enter into this office, being for the weal of their country; and likewise our pleasure is that ye shall, at or before the day of the election, communicate this our purpose to the gentlemen and such other our subjects of the same, being freeholders of that county, as shall seem requisite, so as they may both see our consideration and care for the weal of the same shire, and our good memory of those two personages whom we have named unto you.'

Transversely written on the same page, in the handwriting of Northumberland's secretary, is a second form, more general.

'I will and command you that ye shall give notice, as well to the freeholders of your county as to the citizens or burgesses of any city or borough which shall have any of our writs for the election of citizens or burgesses, that they shall choose and appoint, as nigh as they possibly may, men of knowledge and experience within their counties, cities, or boroughs, so as, by the assembly of such, we may, by God's goodness, provide for the redress of the lacks in our commonwealth more effectually than hitherto hath been.

ties or mayors of towns, simply naming the persons who were to be chosen, or the electors were instructed to accept their directions from some member of the privy council. In some instances the orders of the Crown were sent direct to the candidate himself,⁵⁶⁵ and the language in which the communications were conveyed implied the most entire assurance on the part of the Government that the disposition of the seats was under their control.

But for especial interference Northumberland's position especially called. The writs with the letters and circulars were sent out on the 19th of January. On the 14th, Northumberland held in his hands a document which avowedly caused him uneasiness. The threatened inquiry into the distribution of the Church lands under Henry VIII. had not, perhaps, been pursued; but 'a book' had been drawn, 'of the charges of the present King and of his debts,' to the production of which, without considerable modifications, the Duke felt that he could not consent. This particular book I have been unable to discover; but it contained, among other things, an account of the various grants professing to have been made by Edward to his ministers, or, in truer language, appropriated by these ministers to their own use during Edward's reign. On the 14th of January the Duke had the report in his hands; he sent it to the Marquis of Northampton, with side-notes and reflections, the occasion and meaning of which he expressed very frankly in a letter which has fortunately survived.

'The causes,' he said, 'why I have scribbled the book so much, is that I am of opinion that we need not to be so ceremonious as to imagine the objections of every froward person, but rather to burden their minds and hearts with the King's Majesty's extreme debts and necessities, grown and risen by such occasion and means as can be denied

'And yet, nevertheless, our pleasure is, that when our privy council, or any of them, with their instructions in our behalf, shall recommend men of learning and wisdom, in such cases their direction be regarded and followed.'

⁵⁶⁵Ye shall understand that his Majesty is right desirous to have the Parliament now coming to be assembled of the chiefest men of wisdom and good counsel for the better consideration of things for the commonwealth of this realm; and, therefore, amongst divers others, hath willed us to signify unto you this his pleasure, to have you one of the Commons House, which thing we also require you to foresee, that either for the county where ye abide ye be chosen knight, or else otherwise to have some place in the House like as all others of your degree be appointed. And herein, if either his Majesty or we knew where to recommend you, according to your own desires, we would not fail but provide the same.'—The Council to Sir P. Hoby, January 19: *Harleian MSS.* 523.

by no man; and that we need not to seem to make account to the Commons of his Majesty's liberality and bountifulness in augmenting of his nobles, or his benevolence shewed to any his good servants, lest you might thereby make them wanton and give them occasion to take hold of your own arguments. But as it shall become no subject to argue the matter so far, so, if any should be so far out of reason, the matter will always answer itself with honour and reason to their confuting and shame.⁵⁶⁶

Although the 'scribbled' document has disappeared, the substance of it remains in a separate table of reports, which were submitted, eventually, to a subsequent Parliament,⁵⁶⁷ and it explains the Duke's anxiety.

The total value of the lands which had passed from the Crown, in the reign of Edward VI., by gift, sale, or exchange, had been something over a million and a half.⁵⁶⁸ Four hundred and thirty-five thousand pounds had professedly been paid into the treasury as purchase-money. The lands exchanged were worth 350,000*l.* The value of the lands given away was 730,000*l.* Of these given lands, estates to the extent of 1200*l.* a year, worth perhaps, 25,000*l.*, went to endowments of schools and hospitals; 3600*l.* a year was reserved to the Crown upon the rents of the rest; and 9000*l.* had been paid in money to the Crown by the recipients of the royal bounty. On the exchanged land there was a reservation also of 1900*l.* a year.

After liberal deductions on these and all other imaginable grounds, after reasonable allowances for grants legitimately made as a reward for services, there will remain, on a computation most favourable to the council, estates worth half a million—in the modern currency about five millions—which the ministers of the Minority with their friends had appropriated—I suppose I must not say stolen—and divided among themselves. In the different lists the names of the council appear nowhere as purchasers. They exchanged occasionally, being nearest to the fountain, and having the privilege of the first draught: but, in general, when any minister of the Crown is mentioned, it is as an object merely of unmixed

⁵⁶⁶Northumberland to the Lord Chamberlain: *MS. Domestic*, Edward VI. vol. xvi.

⁵⁶⁷*MS. Domestic*, Edward VI. vol. xix.

⁵⁶⁸The annual proceeds of the land *sold* were 21,304*l.* 14*s.* 4*d.*; the money paid for them, 435,277*l.* 12*s.* 1*d.* The average value, therefore, was a fraction over twenty years' purchase. The annual proceeds of the lands *given* were 36,746*l.* 15*s.* 8*d.* which, on the same calculation, would give something over 730,000*l.*

liberality. The literal entries are an imperfect guide, since it appeared, in the inquiries which followed the deposition of Somerset from the Protectorate, that conveyances had been made out in other names, to cover the extent of the appropriations. From the report as it stands the Lord Paget and Sir William Petre would seem, to have made the smallest use of their opportunities; Lord Pembroke to have made the best.⁵⁶⁹

With the danger of these revelations impending, Northumberland must have doubtless felt the meeting of Parliament an anxious occasion, notwithstanding his care of the elections. The session opened on the 1st of March; and, to neutralize opposition, he had attempted to gain over, by a promise of long-coveted concessions, the support of the old-established guilds and corporations of the city of London.

The sixteenth century had seen the shipwreck of more than one time-honoured institution. The foreign trade from the port of London had been carried on from the time of the Norman sovereigns, down to a recent period, under the jurisdiction of a close body of monopolists, representatives of the various guilds and companies, entitled the Fellowship of the London Merchants. An organization which arises spontaneously has in its origin right upon its side. It springs into being as the answer to an acknowledged want which, in some degree, more satisfactory or less, it contrives to meet. It may be believed that so long as the desire to do right among them was stronger than the desire to grow rich, a close corporation conducted the trade of the country with more inherent equity, and with greater honour to the English name, than would have resulted from general competition. But exclusive privileges had ended, as usual, in the abuse of those privileges. In the twelfth year of Henry VII. the Merchant Adventurers, or unattached traders, petitioned for the right which belonged to them as freeborn Englishmen of carrying their goods into foreign countries, and selling them as they pleased, on their own terms. 'The Fellowship of London Merchants,' they said, 'for their own singular lucre, contrary to every Englishman's liberty,' had made an ordinance among themselves that no Englishman should buy or sell in the markets of the Low Countries without paying a fine to the Fel-

⁵⁶⁹*MS. Domestic*, Edward VI. vol. xix. The summary at the close of the report is made up to the death of Edward, who is there described as the late King. The report itself is stated to have been drawn up for Parliament, and was probably, therefore, presented in the first year of Mary.

lowship; and the fine had been gradually raised, till at last a demand of forty pounds was made upon every young merchant who was entering life before he could be permitted to trade.

The petition of the Adventurers was heard by Parliament. The conduct of the corporation was held to be 'contrary to all law, reason, charity, right, and conscience.' Their jurisdiction was closed, and the foreign trade was declared free.⁵⁷⁰

In the first half of the century the old-established London houses had suffered from the competition; and they took advantage of the necessities of an embarrassed Government to make an effort to recover their privileges.

The reputation of English goods had unquestionably suffered in the foreign markets; and the fraudulent manufactures, which were in reality the natural growth of an age of infidelity, they represented as the effect of a disorganized intrusion of unauthorized persons into 'the feat and mystery' of merchandise.

The fall of the exchange, notoriously due to the debasement of the currency, they attributed with equal injustice to the same cause; and Northumberland, to gain the support of so strong a body, and too happy to rest on others the consequences of his own misdoings, undertook, if possible, to gratify them.⁵⁷¹

⁵⁷⁰12 Henry VII. cap. 6.

⁵⁷¹When the House of Commons petitioned Henry VIII. against the abuses of the spiritual courts, the bishops replied to the special charges of misconduct with a defence of the principle on which their authority was founded. It is amusing to find Sir Thomas Gresham addressing Northumberland with precisely similar arguments. All that was urged, either by prelate or merchant, was most excellent, provided only that the wisdom and honesty of the jurisdiction which they defended was equal to its claims and professions. 'The exchange,' wrote Gresham, 'is one of the chiefest points in the commonweal that your Grace and the King's Majesty's Council hath to look unto; for, as the exchange riseth, so all the commodities in England falleth; and as the exchange falleth, so all the commodities in England riseth; as, also, if the exchange riseth it will be the right occasion that all our gold and silver shall remain within our realm. And, to be plain with your Grace, you shall never be able to bring this to pass except you take away one of the greatest occasions of the let and stay thereof, that there shall be no more made free of this company of Merchant Adventurers from this day forward. For verily they have been and are one of the chiefest occasions of the falling of the exchange; as also, for lack of experience they have brought the commodities of our realm clean out of reputation, as also the merchants of the same, which times past hath been most in estimation of all the merchants of the world. In the few years since the Act was made for the new Hanse the merchants and our commodities hath fallen in decay, and like to fall daily more and more, except the matter be prevented in time. For, as your Grace doth right well know, where

there is no order kept, all things at length falleth to confusion. So, an it please your Grace, how it is possible that either a minstrel player, or a shoemaker, or any crafty man, or any other that hath not been brought up in the science, to have the present understanding of the feat of the Merchant Adventurers; to the which science I myself was bound prentice eight years, to come by the experience and knowledge that I have; nevertheless, I need not have been prentice, for that I was free by my father's copy. Albeit my father, Sir Richard Gresham, being a wise man, knew, although I was free by his copy, it was to no purpose except I was bound prentice to the same. So that by this it may appear to your Grace that these men that be made free by this new Hanse, for lack of knowledge, hath been and is one of the chiefest occasions of the fall of the exchange, as also hath brought our commodities out of reputation.

'As a further example to your Grace, it is not passing twenty or thirty years ago since we had for every twenty shillings sterling thirty-two shillings Flemish; and the notable number that hath from time to time run in headlong into the feat of merchandise, and so entered into credit, when they had overshot themselves and had bound themselves with more than their substance would bear, then, for saving of their names, were fain to run upon the exchange and rechange; and the merchants, knowing that they had need thereof, would not from time to time deliver their money, but at their prices. So that in these few years the plenty of these new merchants, for lack of experience, substance, and credit, hath been only the occasion that the exchange fell from thirty-two shillings to 26s. 8d. , which was done afore any fall of money passed in England.

'To make an end of this matter, it may please you to understand till that the King's Majesty and you, with the rest of his Most Honourable Council, have wholly set an order in the premises, that you shall never be able to bring the commodities of this realm to such purpose as heretofore hath been; for plenty of merchants without experience is the uttermost destruction of any realm that hath the like commodities that we have to transport, which must be kept in reputation by merchants, or else in process of time things will grow to small estimation.

'Also there is another matter which is most convenient to be looked unto in time. And this is to make a general stay that there may be no retailer occupy the feat of Merchant Adventurers, but only to keep him, and to live upon his retail; and likewise the Merchant Adventurer to occupy his feat only, and to touch no retail, for divers considerations of damage, as doth daily ensue thereof; and, for an example, the retailer comes over with the commodities of our realm, which, if a cannot sell them at his price, then a falls to bartering of them for silks and such like merchandise, and careth not to win by his cloth, for that a is sure to win by the retail of his silks. Now, the Merchant Adventurer that occupyeth no retail cometh over with our commodities to have his gains and his living thereby; and for that the retailer doth sell the self commodities better cheap than he is able to afford them, a doth not only take away the living of the Merchant Adventurer, but in process of time the few numbers of forty or fifty retailers in London will eat out all the merchants within our realm.'

Gresham seemed unconscious of the practical commentary which he was making upon his doctrine that only men who understood their business should be allowed to trade. His complaint against the retailers was merely that they were more skilful than their competitors.

An Act was prepared in compliance with the request of Sir Thomas Gresham, to limit the number of the Adventurers, and to interfere with and hamper their trade with restrictions and disqualifications.⁵⁷² Having thus conciliated at least one powerful party, the Duke, on the 6th of March, introduced his Subsidy Bill in the House of Commons.⁵⁷³ The preamble was drawn by himself or under his immediate direction. It repeated, as the occasion for the required grant, the words of his own letter; and the exhaustion of the exchequer was attributed exclusively to the recklessness of the Duke of Somerset, and the wars into which he had plunged the country. To relieve the country of the debt which had been thus increased, two fifteenths and tenths were demanded of the laity, to be paid in two years; with an income-tax of five per cent, on the rents of their lands for an equal period. The clergy were required to give ten per cent, for three years on their benefices or other promotions.⁵⁷⁴ The debates are lost. It is known only that the bill was long argued, notwithstanding Northumberland's precaution, and was carried with difficulty.⁵⁷⁵ Carried it was at last; but the House of Commons was far from complaisant. The retrospective examination of the public accounts had been abandoned, or if not the examination, yet the prosecution of defaulters. A measure, however, was introduced for an annual audit of the books of all collectors and receivers, with precautions to prevent peculation

'For your Grace's better instruction in the matter,' he continued, 'it may please you to understand that this last March there was one Rowland Haywood and Richard Foulkes, both retailers, as also this last year they both came in by the Hanse; which parties sold here in barter 1500 cloths of the best sort in England and took half silks for them; and the said cloths so sold here was offered by the party that bought them to sell in this town for four pounds better cheap than any Merchant Adventurer was able to afford them; which is a matter in the commonweal to be looked upon. In consideration whereof, the merchants here with one assent have made an Act to take effect at Midsummer next coming, with a proviso so far forth as the King's Majesty and his Most Honourable Council be agreeable to the same, that the retailer shall occupy only his retail, and the Merchant Adventurer his feat accordingly, to be at their liberty betwixt this and then to take to one of them which they shall seem most to their profit, which in my poor opinion seems to me a thing most reasonable.'—Gresham to the Duke of Northumberland: *Flanders MSS.* Edward VI. State Paper Office.

⁵⁷²Note for an Act be prepared for the Parliament: *MS. Domestic*, Edward VI. vol. xvi. *Ibid.*

⁵⁷³*Commons Journals*, 7 Edward VI.

⁵⁷⁴7 Edward VI. 12, 13.

⁵⁷⁵BURNET.

for the future; and so jealously was the wording of the Act examined and sifted, that it was twice drawn and redrawn before it was finally passed.⁵⁷⁶

A creditable bill had been designed for the protection of the poor tenants of small cottages 'against the severing of land from houses;' and another to prevent the bishops and cathedral chapters from granting long leases on the Church lands, to be renewed upon fines. Both these measures were, unfortunately, dropped, as leading up to inconvenient questions. Again, to pacify the clergy after the late spoliations, a measure was brought forward that 'no person not a deacon should hold ecclesiastical promotions.' The Lords passed it, but the Commons declined. The country gentlemen refused to unclothe their grasp upon the impropriated benefices, and the bill was lost upon the third reading.

A defeat on this last point Northumberland perhaps endured with patience. It was of more consequence to him that he was compelled to disappoint Sir Thomas Gresham and the merchants of the city. The bill which had been prepared in their favour was never introduced. A bill to repeal the Act of Henry VII. was carried in the Upper House, but the Commons were again obstinate, and the monopoly could not be restored.⁵⁷⁷

Nor was it only in Parliament that the Duke encountered awkward opposition.

John Knox, who since his dismissal from France had held a commission as a preacher in Durham and Northumberland, was looked upon as a desirable person to be promoted to a bishopric. The See of Rochester was vacated in the autumn of 1552 by the translation of Ponet to Winchester, and the Duke thought of nominating Knox to it; partly, he said, 'as a whetstone to quicken the Archbishop of Canterbury, whereof he had need,' and partly—a more singular reason—to put an end to Knox's ministrations in the north, where he had habitually disobeyed the Act of Uniformity, and had not cared to conceal his objections to the Prayerbook.⁵⁷⁸ Northumberland communicated his intentions in a personal interview, and was not grat-

⁵⁷⁶It is remarkable that in an official list of measures intended to be introduced during the session there is no mention of this Act. It was probably forced upon the Government by the debates on the subsidy.—Compare 7 Edward VI. cap. 1, with the Preparatory List: *MS. Domestic*, Edward VI. vol xvi. State Paper Office.

⁵⁷⁷*Lords' Journals*, *Commons' Journals*, 7 Edward VI.

⁵⁷⁸Northumberland to Cecil, October 28, 1552: TYTLER, vol. ii.

ified at the manner in which the intimation was received. Under no temptation would Knox have accepted an office which he believed to be antichristian; but with his hard grey eyes he looked through and through into the heart of the second Moses of John Bale, and he could not tell, he said, whether he were not 'a dissembler in religion.'⁵⁷⁹ In fact, he thought he could tell; and, not contented with refusing to take a favour at his hands, he held it to be his duty to make known his opinions to the world. Preaching before the Court in the spring, while Parliament was sitting, in the presence of the King, Northumberland, and the council, he asked how it was that the most godly princes had officers and chief councillors the most ungodly, enemies to religion, and traitors to their princes; and quoting the characters of Ahithophel, Shebna, and Judas, he fastened the first with a transparent allusion on Northumberland; the second he gave to Paulet, Marquis of Winchester. Judas was present also, though he pointed less certainly to the person whom he regarded as the counterpart of the treacherous apostle.⁵⁸⁰ He vituperated from the pulpit the vices of the Court, and the worldliness of the faction who were misgoverning the country. Since discipline could not be restored, he, and those

⁵⁷⁹Northumberland to Cecil, December 7, 1552: TYTLER, vol. ii.

⁵⁸⁰Who, I pray you, ruled the roast in the Court all this time by stout courage and proudness of stomach? who, I pray you, ruled all by counsel and wit? Shall I name the man? I will write no more plainly than my tongue spake even to the face of such as of whom I meant. I recited the histories of Ahithophel, Shebna, and Judas; of whom the two former had high offices and promotions, with great authority, under David and Hezekiah, and Judas was purse-bearer unto Christ Jesus.' 'Was David, said I, and Hezekiah abused by crafty councillors and dissembling hypocrites? What wonder is it that a young and innocent king be deceived by crafty, covetous, wicked, and ungodly councillors? I am greatly afraid that Ahithophel is councillor, that Judas bears the purse, and that Shebna is scribe, controller, and treasurer.' And yet Knox afterwards accused himself for want of boldness. 'I did speak of men's faults,' he says, 'so that all men might know whom I meant; but, alas! this day my conscience accuseth me that I spake not as my duty was to have done—for I ought to have said to the wicked man expressly by his name, thou shalt die the death. Jeremiah the prophet, Elijah, Elisha, Micah, Amos, Daniel, Christ Jesus himself, and after him his apostles, expressly warned the bloodthirsty tyrants and dissembling hypocrites of their danger. Why withheld we the salt? I accuse none but myself. The blind love that I did bear to this my wicked carcase was the chief cause why I was not fervent and faithful enough. I had no will to provoke the hatred of men against me. So touched I the vices of men in the presence of the greatest that they might see themselves to be offenders; hut yet, nevertheless, I would not be seen to proclaim manifest war against the manifest wicked; whereof unfeignedly I ask God mercy.'—*Admonition to the Faithful in England*.

who felt with him the enormity of the times, established by their own authority this second form of excommunication.⁵⁸¹

Northumberland, who had witnessed the fall of the old clergy, had no intention of enduring the insolence of the new. At the end of March Cranmer produced in the House of Lords his reformed code of canon law. Northumberland rose, and, turning fiercely on the Archbishop, bade him attend to the duties of his office. The clergy were going beyond their province, presuming in their sermons to touch the doings of their superiors. 'You bishops,' he said, 'look to it at your peril. Take heed that the like happen not again, or you and your preachers shall suffer for it together.' The Archbishop ventured a mild protest. He had heard no complaints of the preachers, he said; they might have spoken of vices and abuses; he did not know. 'There were vices enough,' Northumberland answered violently, 'no doubt of that;' 'the fruits of the Gospel in this life were sufficiently meagre.'⁵⁸² Assailed in the pulpit, thwarted in the Commons, hated by the people, the haughty minister found his temper failing him, and the smooth exterior less easy to maintain. 'Those about me,' he complained to Cecil, 'are so slack as I can evil bear it; indeed, of late, but for my duty to the State, my heart could scarce endure the manner of it.'⁵⁸³ He had secured the subsidy; the continued sitting of a Parliament was inconvenient when his own nominees had opposed him; on the last of March, within a month of the meeting, it was dissolved.

It is a question on which much depends, yet one which, nevertheless, there is little chance of adequately answering, whether the fortunes of Northumberland were not now bringing him to a point where he must either rise higher or fall utterly, irrespective of the life or death of the young King. The enthusiastic correspondents of Bullinger assured him that Edward regarded the Duke as a father, and Edward by his conduct at the close of his life proved that his

⁵⁸¹ Knox was not always just. He afterwards accused the Marquis of "Winchester of having been the first contriver of the conspiracy to set aside Mary; whereas, he was among the most consistent opponents of that conspiracy. He charged Gardiner with having advised the Spanish marriage, although there was nothing which Gardiner so much dreaded. Nevertheless, the power of passing censures on the conduct of public men, in the name of right and wrong, is one which, in some form or other, has existed, and ought to exist, in every well-ordered community. The most effective and the least objectionable instrument of such criticism is the public press as it is conducted at the present day in this country.

⁵⁸² Scheyfne to Charles V.: *MS. Rolls House*, transcribed from the Brussels Archives.

⁵⁸³ Northumberland to Cecil: *Lansdowne MSS.* 3.

own confidence was not yet shaken; but the power of English ministers rarely survived intense unpopularity. By the accidents of the revolution, by 'stout courage and proudness of stomach,' by dexterity, perhaps by crime, Northumberland was become almost absolute—absolute as the able man can always make himself in times of disorder, if he is untroubled with moral scruples, when his competitors for power are as unprincipled as himself, and only his inferiors in capacity. But, as it was only a temporary convulsion which placed a person of so poor a type of character at the head of the Government, so Northumberland was detested while he was obeyed. Those who, like Cecil, were treated by him with apparent cordiality, those whom he had addressed as his friends, whom he seemed to intrust with his most secret thoughts, felt his influence like a nightmare.⁵⁸⁴ The growing discernment, the earnest interest in public affairs, and the consciousness of the disorganization of the State, which Edward exhibited more and more as he grew older, would have sooner or later brought forward other ministers; in two years he would be of age, when inquiry could not have been avoided; and Northumberland's influence would scarcely have survived the revelations which Arundel, whom he had imprisoned, Paget, whom he had stripped of his estates and expelled from the Order of the Garter,⁵⁸⁵ with the friends of Somerset, would have brought to light when opportunity permitted. His unpopularity in the country was a present fact, which every day became more embarrassing; and he had no friends except among the incapable or the dreamers. Wolsey, Cromwell, Somerset, had fallen successively from the same height to which Northumberland had climbed; and the Nemesis which haunts political supremacy irregularly obtained, would not have failed to overtake one whose administration had been scandalous to the empire, whose errors had arisen, not from generous weakness, not from large purposes too unscrupulously followed, but from a littleness of mind rarely combined with

⁵⁸⁴Northumberland's Correspondence with Cecil in the *State Paper Office* flows over with confidence, public spirit, and zeal for religion, with all those studied graces of expression, which charmed and deceived the eager Protestants. Yet, on his release from the Court, when Edward was dead, and the spell was broken, entered in his Journal '7 Julii libertatem adeptus sum morte regis, ex misero aulico factus liber et mei juris.'—*Life of Burghley*, by NARES.

⁵⁸⁵Chiefly,' says Edward, in his *Journal*, 'because he was no gentleman born neither by the father's nor the mother's side.' Revolutionary Governments are not generally so scrupulous about high birth.

talents and with courage so considerable as those with which the Duke must be credited. His overthrow could not but at times have seemed likely to him, unless he could by some means rest his power on a harder foundation; and therefore it was that, as Sir Richard Morryson said, he never moved forward directly upon any subject without looking to the possible consequences to himself. He had played a double game with the Emperor. After risking the peace of the kingdom on the question of Mary's mass, he had contrived that in private she should not further be interfered with. He affected extreme Protestant opinions to keep his place with the Reformers. He was Imperialist, he was French, he had an anchor thrown out in all quarters from which a wind might blow. However events might turn, he had done something, or he had affected something, which would provide him a resource should he be driven to shift his colours.

But this uncertain attitude could not be maintained for ever. A crisis came which compelled him to choose his course.

Edward with varying health had arrived at the age fatal to the male Tudors, the age at which Prince Arthur had died, at which his brother the Duke of Richmond had died. The cough to which he was always subject had increased in the late winter. He dissolved Parliament in person, but immediately after he was removed to Greenwich in a state of marked debility, and by the end of April the gravest alarms were entertained for his life. Philosophers, who believe that great events are enveloped in great causes, that the future is evolved out of the present by laws unerring as those which regulate the processes of nature, can see in the grandest of individual men but instruments which might easily have been dispensed with; and in the cracking of the thread of a human soul but a melting raindrop, or a leaf fluttering from a bough. Centuries, it may be, take their complexion from these large influences; and broad laws of progress may shape the moulds for the casting of eras; but the living Englishman of the sixteenth century would have seen in these closet speculations but the shadow of a dream compared with the interests which depended on the result of the illness of a boy who was not yet sixteen. The eyes of England, of the Emperor, of the Pope, of the King of France, of all the civilized world, were turned with almost equal agitation to the sick-bed at Greenwich.

The reverses of France in the autumn of 1552 had produced a return of civility to England. Stukeley's stories, as we have seen,

were denied or explained away. The complaints of the merchants were disposed of peaceably by commissioners, and the efforts and the anxieties of the Court of Paris were directed wholly towards Metz, where Charles in person, with the Duke of Alva and 45,000 men, had sat down to wrench his conquest from the Duke of Guise. A winter siege was an enterprise at which the Emperor in his better days would have hesitated; but since the flight from Innspruck he had been observed to be unequal to himself; and illness and bad fortune had made him obstinate. On the 24th of November the siege was opened. The Spaniards pushed their trenches towards the walls; the French pushed trenches forwards from the walls to meet them; and the works were so close, that besiegers and besieged were in shot of each other's hand-guns.' The batteries played incessantly on the city, and breaches were opened; but fresh walls rose behind the ruins; midnight sallies carried off the Imperial guns; fever and dysentery wasted the Imperial troops. In December there came a frost harder than any living man remembered, and the gout came back to Charles, so violently, that Morryson 'supposed the Emperor should not much longer need any ambassador; there were few that could better digest Fortune's foul play than he; yet good-nature might be provoked too far.'⁵⁸⁶ The Spaniards might shiver to death in their tents, but Metz could not be taken; and Charles was carried back to Luxemburg, as he believed, to die.

As soon as the failure was known in England Northumberland, either thinking the opportunity a good one to increase his own influence, or to recover for the country its weight in the councils of Europe, offered to mediate. Sir William Pickering was instructed to make overtures for a peace at Paris. Sir Andrew Dudley, the Duke's brother, was sent to Luxemburg.⁵⁸⁷

⁵⁸⁶ Morryson to Cecil, *MS. Germany*, bundle 15, State Paper Office.

⁵⁸⁷ Dudley and Morryson were admitted into the Emperor's bed-room. 'We found there,' wrote the latter, 'the Prince of Piedmont, the Duke of Alva, the Bishop of Arras, Don Diego, M. de Vaux, the Count of Egmont, with all those of his chamber, it being better furnished with hangings than ever I found it before. Mr Dudley, after reverence done to him at our entry, being almost come to his Majesty, did press to kiss his hand; but he, putting his hand to his cap, not being able, as it should seem, to put it so high as to take it off, would not suffer him to kiss it. Mr Dudley declared his instructions. The Emperor took them in very thankful part; and not being able to speak loud, and Mr Dudley, by reason of his extreme cold, not being able to hear him, did with signs will me to mark. Whereupon the Emperor, somewhat perceiving the matter, I said that Mr Dudley was so stuffed and stopped in his head, that he could

The Emperor was in extremity of sickness; so ill that Morryson, who accompanied Dudley to his bedroom, said that he had often seen him suffering, but 'never so nigh gone, never so dead in the face, his hand never so lean and pale and wan.' 'His eyes, that were wont to be full of life when all the rest had yielded to sickness, were now heavy and dull, as nigh death in their looks,' 'as ever' Morryson 'saw any.' The cunning Arras, the iron Alva, the chivalrous Egmont, were standing mournfully at the bed-side. The Prince of Savoy forced a smile as the ambassadors entered, but talked like 'a man amazed.'⁵⁸⁸

Charles roused himself with an effort. He spoke with extreme difficulty, but with courtesy and clearness. He thanked the English Government for their kindness, which he said he would ever remember. But as for the peace, he did not begin the war, and he could not with honour be the first to propose terms on which to end it. His 'enemy' must speak first; and as he spoke of his enemy his fiery nature kindled up, and the faint voice sounded out clear and stern.

The same spirit was shown at Paris. Henry, too, was ready for peace; he would accept the advances of the Emperor, but he would not commence; and for the first few weeks of the year, while the season caused a compulsory armistice, the arbitration could not advance over the first preliminaries.

Yet, if peace there was to be, both parties appeared anxious to arrive at it through the mediation of England. A nuncio came in February from Rome, with an offer of the Pope's services, but he could not

not well hear unless his Majesty did speak louder, nor I well understand, unless it would please his Majesty to speak Italian. Whereupon, being willinger to speak Italian than able to speak louder, he said to me in Italian—I thank my good brother the King for his friendly sending and for his noble and princely offers, and for my part will leave nothing undone that may by any means either maintain or increase the amity. I, for my part, will at all times bear the King my good brother the affection of a father, and not fail him when my friendship may do him profit. It is much to his honour, and no small praise to him, that he, so young, hath this zeal and this care for the quietness and concord of Christendom, and such a desire to see it conserved from the Turk's tyranny.

'And where my good brother doth offer his travail with the spending of his treasure for the atoning of the French King and me, I do give him my hearty thanks for it. Marry, as I did not begin the wars, so I cannot with, mine honour make any answer to this my good brother's request till I understand what mine enemy would do.

'And here, though in very deed his Majesty was hoarse at the beginning, yet, when he came to name his enemy, he spake so loud as Mr Dudley might hear easily what he said.'—Morryson to the Council: *MS. Germany*, Edward VI. State Paper Office.

⁵⁸⁸Ibid.

obtain admission into the Emperor's presence.⁵⁸⁹ The King of France assured Pickering that, so far as he was concerned, he desired nothing better than to place himself in English hands. Yet Pickering, who was a shrewd, clear-sighted man, at the close of a long and smooth interview, came to a conclusion 'that England would do well to trust neither of those princes.' They would regard no promise, no duty, no obligation, which might interfere with 'their own convenience.'⁵⁹⁰ He might have added that England also was only consulting her convenience; but, from the correspondence of the three Courts, there appear to have been in each of them, as usual, separate parties with separate policies whose views crossed and intercepted one another.

On the 2nd of April, the Bishop of Norwich and Sir Philip Hoby went to Brussels, whither Charles had removed, to repeat the proposals which had been made through Dudley.⁵⁹¹ Morryson was recalled, but his recall was immediately countermanded; and in May, Northumberland was corresponding with him on the feasibility of the league which had been spoken of before between England, the Empire, and the German States against France.⁵⁹² At the same time he was assuring Boisdaulphin, the French ambassador in England, 'that he would never bear arms unless in the service of his own sovereign, or of his Most Christian Majesty.'⁵⁹³ And again, simultaneously, an agent of the English Government in the Netherlands was privately betraying the secrets, so far as he knew them, of Northumberland's party to Charles.⁵⁹⁴

It is at once useless and unnecessary to trace the complicated involutions of a general distrust. It is clear only that so long as they were at war, both France and the Empire desired really the support of England. The Emperor was exhausted.⁵⁹⁵ France had its eye on

⁵⁸⁹'And because it will not be,' said Morryson, 'he is in such a chafe that there are few here that can get leave from him to eat eggs this Lent. If men were as wise as he is stubborn, they might perhaps drive him to be the suitor, and to pray them to take his licenses, not only to eat eggs, but to eat eggs' sons and daughters, if they come in their way.'—Morryson to the Council: *MS. Germany*, Edward VI. State Paper Office.

⁵⁹⁰Pickering to the Council: *MS. France*, bundle 10, State Paper Office.

⁵⁹¹Their commission was signed somewhat singularly by all the Council *except* Northumberland. *MS. Germany*, Edward VI. State Paper Office.

⁵⁹²*MS. Ibid.*

⁵⁹³Boisdaulphin to the King of France: *Ambassades de Noailles*, vol. ii.

⁵⁹⁴*MS. Germany*, Edward VI. State Paper Office.

⁵⁹⁵Sir Philip Hoby sent a second sad picture of Charles's condition to Cecil. 'The Prince here is very feeble and weak of body, and every day decayeth more and more

Calais, but was in no condition, as yet, to strike for it. Northumberland, professing to be an impartial friend to both, was making secret and separate overtures to each, unknown to the other. Up to the time that Edward's illness showed a likelihood of terminating fatally, the Duke was uncertain in which direction it would be most for the advantage of England to incline the balance, while his own interests had no special bias either way. And again, aware of the disposition of the man with whom they had to deal, both Charles and Henry felt the necessity of watching the Duke; under the ostensible pretext of meeting the English offer of mediation, the ablest of their diplomatists were despatched to London to intrigue, to watch events, to obtain information by fair means, by foul means, by any means.

Simon Renard, the minister of the Emperor, had been governor of a district in Franche Comté. Unknown, as yet, to European fame, Renard was known to Sir Philip Hoby, who, writing to Cecil of the probability of Edward's death, and of the influence which he might exercise over Mary, should Mary succeed, exclaimed, 'If England should be ruled by such a councillor, woe, woe to England, for then it would come to ruin and destruction, and them that favour God's Word would be in worse case than those that were in the time of Sodom and Gomorrah.'⁵⁹⁶ Antoine de Noailles, one of three distinguished brothers, of old and noble family had served with, honour in the wars of Francis I. He was present at the defeat of the Emperor in Provence in 1536. Succeeding d'Annebault, as admiral of the French fleet, it was he who despatched Villegaignon to Scotland with the ships which brought Mary Stuart into France; and he was governor of Bordeaux at the time when he was chosen by the King for the delicate mission to England. Noailles reached London in the middle of May. Renard not till six weeks later. From the despatches of these two, and before their arrival, from those of Scheyfne and Boisdaulphin, the ambassadors in ordinary, is to be gathered so

in the same. So doth his credit in like manner decay, both in Germany, Italy, and all other places—nothing beloved, but disobeyed in a manner of all. Also out of soldiers' estimation. Yea, and his proceedings in every place go very ill forward. So as it seemeth unto me good fortune hath forsaken him, and he is like every day faster and faster to diminish in love, estimation, and power, than presently he doth in strength of body, all be so earnestly bent against him so far as I can perceive.'—Hoby to Cecil: *Burleigh Papers*, vol. i.

⁵⁹⁶Hoby to Cecil: *Burleigh Papers*, vol. i.

much as can be ascertained of the secret history of the attempt of Northumberland to alter the succession to the Crown.

No sooner was Edward known to have been removed to Greenwich in consequence of illness, than his death was instinctively anticipated. Only once, after his arrival there, he was seen in the garden; after that he was confined entirely to his room. By the end of April he was spitting blood, his disorder presenting the same symptoms which had preceded the death of his brother the Duke of Richmond, and the country was felt to be on the eve of a new reign. Vast as, at such a prospect, the excitement must have been, the accession of Mary, should the King die, was looked forward to as a matter of course. The long agitation of the subject, the anxieties and the scandals which the uncertainty had occasioned in the last reign, and the deliberate settlement of the Crown by Act of Parliament as well as by her father's will, in Mary's favour, had familiarized the minds of all men with the name of the Princess as their future sovereign, should Edward leave no children. The question had been mooted, had been discussed, had been decided; and on grounds of public safety there was no disposition to raise further doubt on a subject of so much magnitude. Although a queen was a novelty in the constitution, the people would rather submit to a queen, and to a queen of ambiguous legitimacy, than risk the chance of another War of the Roses.

Personally Mary was popular. She had lived in retirement, and her objections to the later developments of the Reformation were well known; but on this point she had the support of a powerful party. The sufferings of her mother, and the religious persecution which she had herself undergone, had secured her the affection of the people, which as yet she had done nothing to forfeit. A return to communion with the See of Rome was unthought of. Mary herself was not supposed to desire what, in common with the rest of the country, she had renounced under her father. A return to the constitution of religion as her father left it, was probably the wish of three quarters of the English nation. The orthodox Catholics were outraged by the imprisonment of the bishops, and the establishment by law of opinions which they execrated as heresy. The moderate English party had no sympathy with a tyranny which had thrust the views of foreign Reformers by force upon the people. Even the citizens of London, where Protestantism had the strongest hold, had been exasperated by the offensive combination of sacrilege and spoliation with a pedantry

which could not bear the sound of the church-bells, and regarded an organ as impious. The clergy at the moment when the King's illness became serious were being subjected to a compulsory subscription to the Forty-two Articles, under pain of ejection from their benefices; while the universal corruption of public functionaries, the sufferings of the poor, the ruin of the currency, and the embarrassment of the finances, reflected double discredit on the opinions of which these were considered the results. It was assumed that Mary was English, that she would govern only through an English Parliament and with English ministers. The tyranny of Rome had not been broken that it might be followed by a more intolerable tyranny of Protestantism.

Northumberland bowed outwardly to the general feeling. He supplied the Princess, who was then at Hunsdon in Hertfordshire, with regular bulletins of the King's health; and he restored to her the arms and quarterings which she had borne as heir-presumptive before the divorce of her mother.⁵⁹⁷ Yet it was observed that he was collecting money with unusual eagerness. There were rumours of disagreement at the council-board. It was said that Lord Pembroke had desired to leave London, and had been forcibly compelled to remain;⁵⁹⁸ and at the end of April a marriage was announced as about to take place between Lord Guilford Dudley, the Duke's fourth son, a boy of seventeen, and Lady Jane Grey.⁵⁹⁹ Whatever may have been his internal speculations, however, Northumberland had so far given no hints of intending a change to the privy council. Mary's friends among the Lords were in constant communication with Scheyfne, and through Scheyfne with the Princess. Not a word was spoken, not a move of importance was made, but the ambassador had instant notice. In fact, Northumberland himself was still hesitating. Three times in the month of May his instructions to Sir Richard Morryson were altered. At the beginning there was to be a league between England, the Empire, and the Germans. A few days later Morryson was told to go no further with it.⁶⁰⁰ On the 24th he was informed doubtfully that he might feel his way towards it with the Emperor again. Had the Duke intended merely to throw the Emperor off his guard, vacillation

⁵⁹⁷Scheyfne to the Emperor: Scheyfne's Despatches: *MS. Rolls House*. Transcript from the Brussels Archives.

⁵⁹⁸Scheyfne.

⁵⁹⁹*Ibid.*

⁶⁰⁰Instructions to Sir Richard Morryson. *Cotton. MSS. Galba*, 13.

would have been unnatural and out of place. Deliberate hypocrisy cannot afford to be inconsistent.

It is needless to credit Northumberland with anxiety for the public interest. He must first have endeavoured to satisfy himself of the effects which Mary's accession would produce upon his own fortunes. Could he have hoped to retain his present authority, ambition for his family would not have tempted him into an effort to set her aside; and he may have believed that his underhand manœuvring had given him a hold on the Princess's gratitude. But he must soon have convinced himself that any such expectation would be disappointed. On the day that Mary set her foot upon the throne the gates of the Tower would open; Norfolk and Gardiner would return to the council, and the conservative lords to the Court. The lips of those that he had oppressed would be opened. Somerset's murder would rise in judgment against him. He knew too well 'the dead men's bones and all uncleanness' which lay concealed behind the fair surface of his godly professions. Was there, then, any hope that the succession could be changed? The fanatics dreaded Mary as much as Northumberland dreaded her. However moderate might be her policy, the best which they could look for would be toleration. They would lose their supremacy, and the privilege of forcing their opinions upon others. The Duke might rely, therefore, on them and on their leaders among the bishops. But the ultra-faction was numerically small and unless he could strengthen his hands with more influential support, his chances were nothing. It was possible for him, however, to work upon many of the laity with the phantom of reaction, which, under the mildest form, had its terrors for those to whom, by grant or purchase, the estates of the Church had fallen. It was possible to work upon the superstition of the King, who had been made bitter against his sister by the collision into which he had been forced with her. The weak Duke of Suffolk could be led away by the prospect of a crown for his daughter; and there were others among the new-made lords whose influence, if not fortune, depended on the continuance in power of the revolutionary party. Above all Northumberland had possession of the situation. He had the organized military force of the kingdom at his disposal, which was at this time considerable. The fleet, the arsenals, the fortresses, the treasury were all in his hands; and he might count with certainty on the support of France, which would be only too happy to prevent

the Crown of England from falling to so close a connection of the Emperor.

These considerations (and there were others, perhaps, which we do not know) might have seemed to the most calculating statesman to offer a reasonable chance of success. A desperate man, with ruin staring him in the face if he left events to take their course—with power for himself and the kingdom for his family if he tried fortune and found her favourable—would have thrown the hazard with far lighter grounds of hope. The Duke waited, however, before he moved—before, probably, he took his own final resolution—till it became quite certain that Edward could not recover.

The prospect of Mary becoming Queen was naturally raising the spirits of the Imperialists. Boisdaulphin, with Noailles, who had just arrived, was correspondingly anxious; Scheyfne, they saw, was 'not asleep;' and on the 4th of May they pressed for a private interview with the Duke. They had been long anxious, they said, to be admitted to the King's presence. They had been answered that his illness made it impossible for him to receive them; but in the mean time the longer they were kept from the Court, the more significant of the approaching attitude of England their absence would appear. They suggested that, if they could not see the King, the world might be made to suppose that they had seen him. A plan was arranged. The next day they were invited to dine at Greenwich, and as they were rising from the table, Northampton brought a message into the room that Edward was expecting them. They followed into a private apartment; and while the Court believed that they were by the sick-bed, they were joined by Northumberland and others of the council, who entered at large with them on the great question of the moment. The Duke declared that he was wholly French; and as the conversation went forward, he at last asked them what they would do, were they in his (the Duke's) position. Noailles, cautious of what he committed to paper, informed his master that he did not fail to suggest what would be most to the advantage of France.⁶⁰¹

The same day, Edward being reported worse, and his attendants requiring further advice, the family physician of Northumberland was

⁶⁰¹Il est venu jusques à nous demander ce que nous ferions si nous estions en sa place, à quoi nous n'avons obmis, sire, de luy respondre et proposer tout ce que nous avons peu juger tendre au bien faveur et avantage de vos affaires.'—Boisdaulphin and Noailles to the King of France: *Ambassades*, vol. ii. pp. 6, 7.

called in, with a professor of medicine from Oxford; to these a woman was afterwards added, who professed to be in possession of some mysterious specific; and before they were admitted to the sick-room they were sworn, in the presence of Northumberland, Northampton, and Suffolk, to reveal to no one the King's condition.⁶⁰² The guard at the Tower was doubled, and a rumour spread in London that Elizabeth had been sent for to be married to Lord Warwick, whose wife was to be divorced to make room for her. A few days later Scheyfne reported that something (he knew not what) was going forward. Five hundred men had been quietly introduced into Windsor Castle by Northampton. He had been privately informed that the same nobleman, with Suffolk and two or three others, was going down into Hertfordshire, to form a cordon silently round Hunsdon, to take possession of Mary's person, when the signal should be given them from London. With evident alarm, he added that Pembroke was one of the conspirators,⁶⁰³ which, on the 25th of May, received a further and a strange confirmation. On that day London was startled with three extraordinary marriages extraordinary, and, considering the King's illness, and the rank of the ladies concerned, in the highest degree indecent. Lady Catherine Dudley was married to Lord Hastings. The two elder daughters of the Duke of Suffolk, princesses of the blood, and possible heirs of the crown, were disposed of together; Lady Jane Grey to Lord Guilford Dudley; and Lady Catherine to Pembroke's son, Lord Herbert. There had been an alarm lest Mary or Elizabeth might make some objectionable alliance with a foreigner. Care was taken that there should be no such fear on account of those who were next to them in the order of succession. That some project was concealed behind these precipitate unions, and that the Duke had secured a powerful supporter in the Earl of Pembroke, was no longer doubted.

Yet what the project was continued a mystery. On the 30th Scheyfne wrote again that the King was sinking slowly but surely. His head and legs were swelling, and he could only sleep with the assistance of opiates; he might perhaps live two months, but that was the longest; while an attempt, it was now certain, would be made to exclude Mary from the throne. Religion would be one pretext,

⁶⁰²Scheyfne.

⁶⁰³Northumberland said afterwards that Pembroke was the first originator of the plot. This is not likely; but the evidence does not warrant a certain conclusion.

and others could be made or found. France would assist bribed, so Scheyfne had been told, by the promise of Ireland. Elizabeth could be got rid of, or married to Warwick, or Northumberland would take her, and seize the crown for himself.⁶⁰⁴

Through the first days of June the ambassador's reports acquired more and more consistency. As each step was taken he had instant and accurate information. There had been a difficulty in arranging the plans for the seizure of Mary. The Lords, who were to have been her captors, had either disagreed among themselves, or their fidelity was doubtful. Northumberland and his friends were buying up or securing all the arms in London; ships in the river were preparing for sea. The plan was now to wait for the King's death, and then at once to seize the noblemen who were expected to take Mary's side. Mary herself was to be invited to the Tower to receive the Crown, and then to be secured. The Duke was keeping up an appearance of studied respect towards her. He flattered himself that his secret had been kept, and that she would fall without difficulty into the snare. The Tower gates safely locked behind her, the ports were to be closed, and the evangelical preachers were to inform the people from the pulpits that, being illegitimate, she was incapable of sovereignty; that religion would be in danger; that the holders of Church property would be deprived of their estates; that the Papal jurisdiction would be restored; and that, on constitutional grounds, England could not be ruled over by a woman. Elizabeth's person would be secured with Mary's, but she would be treated with more respect, since the Duke might find it necessary to make use of her.

So stood the plot as it was communicated to Scheyfne in the first week in June. But, although Northumberland was confident of success, he was assured privately that the opposition would be more considerable than was anticipated. Mary was as generally popular as the Duke was detested; all the peers but a few, Reformers as well as Catholics, would take her side; they might appear to be swimming with the stream, but they would strike clear from it when the time came for action. The supposed secrecy was a delusion. The conspiracy was in every one's mouth, and the people were furious. The Duke was accused of having sold the country to France; but the King of France, men said, should never set foot in England. The jealousy with which Edward was guarded only stimulated suspicion. Some said

⁶⁰⁴Scheyfne to Charles V., May 30: *Rolls House MSS.*

that he was already dead, others that the Duke had poisoned him; to which the Protestants had their answering accusation that his sister Mary had 'overlooked' him; that his illness became mortal from the day when she was last in his presence.⁶⁰⁵

In other times the popular discontent would have expressed itself in a violent form; but London was overawed by the 'gendarmerie,' who could have extinguished in blood any merely popular tumult. The council had not been formally consulted, and no opinions on either side had been officially expressed: yet none of those who were suspected of being unfavourable to the Duke felt their lives secure; Cecil, walking with a friend in Greenwich Park, whispered his own misgivings; for himself, he said, he would be no party to treason, and he had resigned his office of secretary; but he went about ever after armed, in dread, he avowed, of assassination; he secreted his money and papers and prepared to fly.⁶⁰⁶

Meantime Northumberland had made important progress; he had persuaded Edward. Edward had consented by a strained imitation of the precedent of Henry VIII. to name his successor by letters patent, or by will; and the council and the Lords could thus be forced into an appearance of acquiescence which they would find it difficult to refuse to the entreaties of a dying prince. When Edward's mind was first set working upon the subject, the extremity of his danger was concealed from him, and Scheyfne was informed rightly, that one of the points pressed upon his consideration was the objection to a female sovereign. The plot was altogether precipitate and inconsistent: the Duke had resolved on nothing beyond setting Mary aside. Some time in the beginning of June Edward wrote with his own hand what he called 'his device for the succession.'⁶⁰⁷

For lack of issue *male* of my body to the issue *male* coming of the issue female, as I have after declared: to the Lady Frances's⁶⁰⁸ heirs

⁶⁰⁵Scheyfne to Charles V., May 30: *Rolls Home MSS.*

⁶⁰⁶Alford to Cecil: TYTLER, vol. ii.

⁶⁰⁷It was altered by him in the interval between the first draft and his death, and the omissions and insertions mark the progress of the design. The reader will observe that the words which have a pen-stroke through them were in the original device, and were subsequently crossed out. The words in italics were insertions; but, like the original, were written by Edward himself. I transcribe from the careful copy printed for the Camden Society by Mr John Gough Nichols.—*Queen Jane and Queen Mary*, Appendix.

⁶⁰⁸Frances, Duchess of Suffolk, daughter of Mary, sister of Henry VIII. and Charles Brandon.

males, for lack of *if she have any* such issue *before my death*: to the Lady Jane's *and her* heirs males. To the Lady Catherine's heirs males. To the Lady Mary's heirs males. To the heirs males of the daughters which she [*i.e.* the Duchess of Suffolk] shall have hereafter. Then to the Lady Margaret's heir's males.⁶⁰⁹ For lack of such issue, to the heirs males of the Lady Jane's daughters. To the heirs males of the Lady Catherine's daughters; and so forth, till you come to the Lady Margaret's *daughter*' heirs males.⁶¹⁰

The 'device' tells its own story; a female sovereign was not contemplated, nor was Edward, when he drew it, aware of the near approach of his death. He evidently expected to live till one or both of the recent marriages had proved fruitful; he considered the possibility of his having children of his own; and the male offspring of his cousins was preferred to his own daughters, should daughters be born to him. But such an arrangement would not have answered Northumberland's intention. The King was now made to feel that he was dying. 'The Lady Jane's heirs males' were converted, by erasure and an insertion, into 'the Lady Jane and her heirs male.' Her mother, Lady Frances, was but thirty-seven years old and might still bear a son. This contingency was anticipated by a provision that the son, to succeed, must be born while Edward was alive. Thus altered,

⁶⁰⁹ Margaret Clifford, daughter of Eleanour, Countess of Cumberland.

⁶¹⁰ The remaining clauses refer to the Government during the Regency, should Edward die before the heir should be of age.

'If, after my death, the heir male be entered into 18 years old, then he to have the whole rule and governance thereof.

'But if he be under 18, then his mother to be governess till he enters 18 years old: but to do nothing without the advice and agreement of 6 parcel of a council to be appointed by my last will to the number of 20.

'If the mother die before the heir enter into 18, the realm to be governed by the council, provided that after he be 14 years all great matters of importance be opened to him.

'If I died without issue, and there were none heirs male, then the Lady Frances to be governess Regent. For lack of her, then her eldest daughters; and for lack of them, the Lady Margaret to be governess after, as is aforesaid, till some heir male be born, and then the mother of that child to be governess.

'And if during the rule of the governess there die four of the council, then shall she by her letters call an assembly of the council within one month following, and choose four more, wherein she shall have 3 voices: but after her death, the 16 shall choose among themselves till the heir come to 14 years old, and then he by their advice shall choose them.'

the weak, incoherent, impracticable arrangement was submitted to the Lords as the King's desire.

The reception of it was not favourable. The Marquis of Winchester, Lord Bedford, Sir Thomas Cheyne, Lord Shrewsbury, and Lord Arundel made the obvious objections that the power of bequeathing the crown had been granted exceptionally to Henry VIII., for peculiar reasons; that the disposition which had been made by Henry had been confirmed by statute; and that it was grotesque to suppose that a prince under age, and unauthorized, could set aside an Act of Parliament at his own pleasure:⁶¹¹ the French, too, whatever present face they might please to wear, would be as little satisfied as the Emperor; if the late King's daughter were to be set aside in favour of another queen, they would, sooner or later, insist on the prior claims of Mary Stuart. The resistance was so decided that, on the 15th of June, it was believed that Northumberland would be driven after all to take possession of Elizabeth and try his fortune thus.⁶¹²

But the indispensable consent of Elizabeth herself, perhaps, could not be obtained; or else among the many difficulties of a hazardous enterprise those attending the substitution of Jane Grey were the least. Northumberland could not retreat; the King was eager, and force could compensate for illegality. The lives of the opposition were in Northumberland's power; and they hesitated, or they could not on the instant resolve on the course which they should pursue. A promise was made to them that Parliament should be called immediately, and that any steps which might be taken, should be subject to parliamentary revision.⁶¹³ They bent, therefore, before the immediate danger, and waited till they could have the support of the country in taking further measures.

The question of legality was referred to the judges.

On the 11th of June Chief Justice Montague received a letter, bearing the council's signatures, requiring him to present himself at Greenwich the following day with Sir Thomas Bromley, Sir John Baker, and the Attorney- and Solicitor-General. The learned body were admitted into the King's apartment, and the King, in the last stage of exhaustion, informed them that during his illness he had reflected on the condition and prospects of the country; the Lady

⁶¹¹Scheyfne: *MS.*

⁶¹²Scheyfne to the Emperor: *MS.*

⁶¹³Scheyfne to the Emperor: *MS.*

Mary might marry a stranger; the laws and liberties of England might be sacrificed, and religion might be changed; he desired, therefore, that the succession might be altered. The scheme, in the corrected form, was read aloud in the room, and Edward required the judges to draw out letters patent embodying his directions.

The judges listened, and declared unanimously that the King demanded an impossibility. Letters patent would have no force against an Act of Parliament. But Edward would hear of no objections. He would have the letters patent drawn, and drawn immediately. The judges retired, requesting time.

The two next days the council were in close session, the clerks and secretaries being excluded. Noailles, since the Queen of Scots had been named as a difficulty, had been admitted no further into confidence, and could learn nothing of what was going forward; only on all sides there were notes of preparation; the equipment of the fleet was hastened; a body of troops were reviewed in the Isle of Dogs, and forty pieces of cannon were shipped for Guisnes and Calais; at last an order appeared commanding all peers and great men in England to repair at once to London.⁶¹⁴

Meanwhile the judges were studying the Act of Succession, and had discovered, beyond all doubt, that, if they obeyed the King, they would lay themselves open to prosecution as traitors.⁶¹⁵ They returned to Greenwich, and repeated to the council their inability to comply. Northumberland was absent when they entered; but, hearing of their arrival and of their answer, 'he came into the council chamber, being in great rage and fury, trembling for anger; and amongst, his outrageous talk he called Sir Edward Montague traitor, and said that he would fight in his shirt with any man in the quarrel.'⁶¹⁶ He was so savage, that the judges thought he would strike them, if they remained in the room. They escaped in haste; but the next day they were again sent for. They were introduced in the midst of dead silence. 'The Lords looked on them with earnest countenance, as though they had not known them.'⁶¹⁷ Not a word was spoken till they were called to the King's bed-side.

⁶¹⁴Noailles to the King of France: *Ambassades*, vol. ii. p. 34.

⁶¹⁵The tenth section of the Act declares that any person going about to undo the Act or interfere with the succession as therein ordered, should be guilty of high treason.

⁶¹⁶Montague's Narrative: printed in FULLER's *Church History*.

⁶¹⁷*Ibid.*

Edward, dying as he was, 'with sharp words and angry countenance, asked where were the letters patent? Why had they not been drawn?' Montague said that they would be useless without an Act of Parliament, and when Edward answered that he would call a Parliament, the Chief Justice begged that the question might be deferred till the meeting. But Edward would not hear of delay. The ratification might follow; for the present, he chose to be obeyed. A voice at Montague's back exclaimed, if the judges still refused, they were traitors. No lips were opened to support them; partly, perhaps, because the King's death-bed was not a fit place for an altercation; partly because opposition at that time might have led to instant bloodshed.⁶¹⁸

Bromley was timid, Baker would go with Sir Edward, and Sir Edward was 'an old man without comfort.' They reflected that they could not be committing treason by obeying the King as long as the King was alive; and they satisfied their consciences by resolving to meddle no further after he was gone. They demanded for their greater security special instructions in writing, and a pardon if their consent should prove to have been a crime. This being granted, they complied. The remaining judges, who were next called in, agreed to the same terms, Sir James Hales, a Protestant, alone holding out to the last. The Solicitor-General Gosnold resisted long. 'How the Duke and the Earl of Shrewsbury handled him,' says Montague, 'he can tell himself.'⁶¹⁹ Gosnold, too, yielded at last, and the letters patent were drawn out, engrossed, and passed under the Great Seal. The King's sisters were declared incapable of succeeding to the Crown, as being both of them illegitimate. With a strange inconsequence of reasoning, it was added that, even had their birth been pure, being

⁶¹⁸Noailles thought that at this time the Duke had gained over his opponents. On the 17th June, he says, he found the council in better spirits than he had seen them since his arrival. Their own explanation was that the King's health had improved. Noailles believed, however, that their satisfaction '*provenoit plus du contentement en quoy les milords se trouvent pour s'estre resolus tous en une opinion, où pour y parvenir ont tenu beaucoup de journées, estant resserrez et ne se pouvant accorder pour raison de ce que le milord trésorier et aucuns aultres estoient de contrarie volonté a celle du Due de Northumberland, lequel les avoit depuis unis et faict condescendre a la sienne.*'—NOAILLES, vol. ii. p. 40. Scheyfne on the contrary, was assured, and believed, that the compliance was throughout assumed.

⁶¹⁹It were curious to know—Shrewsbury had been active in opposition to the Duke, and, after Edward's death, was among the first to declare against him.

but of half-blood to the King, they would not be his heirs;⁶²⁰ and, further, they might compromise the country by undesirable marriages. The succession was therefore disposed in the altered order which Edward had prescribed; and the document being prepared, it remained only that Northumberland should compel every one whose rank or influence made him formidable, to commit himself to the substitution by his signature.

On the 21st of June he collected at Greenwich the Archbishop of Canterbury, the Lord Chancellor, twenty-two peers, eight eldest sons of peers, ministers, secretaries of State, judges, officers of the household. Of all whose support would be useful, of all whose opposition had to be dreaded, Lord William Howard and Lord Derby alone were absent, and Lord Derby was represented by his son. The rest came together at the Duke's bidding, and, willingly or unwillingly, gave their names to his design.⁶²¹

⁶²⁰As also for that the said Lady Mary and Lady Elizabeth be unto us but of the half-blood, and, therefore, by the antient laws, statutes, and customs of this realm, be not inheritable unto us, although they vvere legitimate, as they be not indeed.'—Letters Patent for the Limitation of the Crown: *Queen Jane and Queen Mary*, p. 93.

⁶²¹I transcribe Mr Nichols's excellent analysis of the signatures;—

Great officers of State and Peers:

The Archbishop of Canterbury; Goodrich, Bishop of Ely, Lord Chancellor; Marquis of Winchester, Lord Treasurer; Duke of Northumberland, Grand Master of the Household; Earl of Bedford, Lord Privy Seal; Duke of Suffolk; Marquis of Northampton; Earls of Arundel, Oxford, Westmoreland, Shrewsbury, Worcester, Huntingdon, and Pembroke; Lord Clinton, Lord Darcy; the Bishop of London; Lords Aberghavenny, Cobham, Grey de Wilton, Windsor, Bray, Wentworth, Rich, Willoughby, and Paget.

Eldest Sons of Peers:

Lords, Warwick, son of the Duke of Northumberland, Fitzwalters, of the Earl of Sussex, Talbot, of the Earl of Shrewsbury, St John of Basing, of the Marquis of Winchester, Russell, of the Earl of Bedford, Fitzwarren, of the Earl of Bath, Gerald Fitzgerald, heir of the earldom of Kildare, Strange, son of Lord Derby, Lord Thomas Grey, brother of the Duke of Suffolk.

Officers of the Household:

Sir R. Cheyne, Treasurer and Warden of the Cinq Ports, commonly called Lord Warden; Sir William Cavendish, Treasurer for the Chamber; Sir Richard Cotton, Controller; Sir John Gates, Vice-Chamberlain.

Secretaries of State:

Sir William Petre, Sir William Cecil, Sir John Cheke.

Judges:

Sir Roger Cholmeley, Chief Justice of the King's Bench; Sir Edward Montague, Chief Justice of the Common Pleas; Henry Bradshaw, Chief Baron of the Exchequer; Sir John Baker, Chancellor of the Exchequer; Sir Humfrey Brown, Justice of the Com-

They signed without order; ardent Protestants side by side with the attached friends of Mary; city merchants intermixed with privy councillors; and some names appear in so singular a connection, that it is hazardous to suggest the principle which guided the arrangement.⁶²² The judges, when they produced the document, again protested that it was worthless, and they must have signed as a form; Cecil, after long refusal, wrote his name at last at the King's desire; but insisting, as he did it, that he signed only as a witness. Many, perhaps, like Montague, saved their consciences with an intention of resisting afterwards when the King should have died. Some signed, it can hardly be doubted, with a deliberate intention of deceiving and betraying the Duke of Northumberland. Winchester, Bedford, and Cheyne continued their opposition, notwithstanding their apparent compliance; and were insisting in council, two days after, on the necessity of maintaining the original Act of Succession.⁶²³

Cranmer, though he headed the list, was the last who subscribed on the 21st of June. The Archbishop, who had been on bad terms with the Duke since Somerset's death, was among the latest to be informed of his project. He, of all men, had most to fear from the accession of the daughter of Queen Catherine; but Northumberland

mon Pleas; Sir William Portman, Justice of the King's Bench; Sir Robert Bowes, Master of the Rolls.

The King's Sergeant:

James Dyer.

The Solicitor General:

John Gosnold.

Privy Councillors:

Sir John Mason, Sir Ralph Sadler, Sir Richard Sackville, Sir Edward North, Sir Anthony St Leger, Sir Richard Southwell.

Knights of the Privy Chamber.

Sir Thomas Wroth, Sir Henry Sydney, Sir Maurice Berkeley, Sir Nicholas Throgmorton, Sir Richard Blount, Sir Henry Gage.

The Lord Mayor: Sir George Barnes.

Aldermen: Sir John Gresham, Sir Andrew Judd, Sir Richard Dobbs, Sir Augustine Hinde, Sir John Lambard, Sir Thomas Offley.

Sheriff of Middlesex: Sir William Garrard.

Sheriffs of Kent and Surrey: Sir Anthony Brown, Sir Robert Southwell.

Six Merchants of the Staple; Six Merchants Adventurers.]

The mayor and the citizens did not sign till the 8th of July.

⁶²²Lord Paget, for instance, is separated from the peers, and appears between Sir Anthony St Leger and Sir Thomas Wroth.

⁶²³Scheyfne to Charles V., June 23.

knew his disposition too well to seek his confidence or expect his support; ⁶²⁴ he had been informed only as soon as his outward concurrence became necessary. On learning the Duke's intentions, he went at once to Edward, and in the presence of Lord Northampton, remonstrated with him. Finding the King obstinate, he requested a private audience, which the Duke was too prudent to permit. He then endeavoured to move the council. Northumberland told him that the judges had acquiesced, and that it was not for him to interfere with the King's pleasure; ⁶²⁵ yet he continued to hold off, and, finding his remonstrances useless, he absented himself from Greenwich on the day of the signature. But the Archbishop's name could not be dispensed with. He was sent for, and came in only after the rest had signed. He said that he had sworn to maintain the will of Henry VIII. If he signed the letters patent, he was perjured. The Duke and his friends replied that they had sworn as well as he, and if he had a conscience, so had they. He did not judge their consciences, he said, but he must act for himself by his own. He would not sign till he had again seen his master; and he was taken to the King's room.

Edward there assured him that the change of the succession had the sanction of the judges; neither himself nor his subjects could be bound by his father's will; he had a right to act for the good of the commonwealth by his own judgment. ⁶²⁶ The Archbishop had not been present at Montague's protest, and knew nothing of it. He desired to see the judges himself; and the judges having satisfied their own consciences that treason was not treason while the King lived, now told him that he might sign, if he wished it, without breach of the law. He returned, still hesitating, to the King's bed-side. Edward told him he hoped that he would not stand out alone, 'and be more repugnant to his will than all the rest of the council;' and at this last appeal the Archbishop yielded. Others signed with mental reservations, of which, in their subsequent defence of themselves, they made the most. Cranmer made no reservations, and pretended to none. When

⁶²⁴The Duke never opened his mouth to me to move me; nor his heart was not such towards me, seeking long time my destruction, that he would ever trust me in such a matter, or think that I would be persuaded by him.'—Cranmer to Mary: STYPE'S *Life of Cranmer*.

⁶²⁵STYPE'S *Life of Cranmer*.

⁶²⁶*Ibid.*

called to account by Mary, he said frankly that, when he signed at last, 'he did it unfeignedly and without dissimulation.'⁶²⁷

The letters patent were thus completed; but the Duke still felt himself insecure, and those who might be suspected of equivocating were compelled to bind themselves with a second chain. An engagement was attached to the scheme as drawn by the King, by which all the council, except Lord Arundel, promised that they would maintain the succession as it was there determined, 'to the uttermost of their power,' and 'never at any time during their lives would swerve from it.'⁶²⁸

The last precautions were thus taken, and the conspirators had then to sit still till the King's death, which was now every day expected. Since the 11th of June he had eaten nothing; on the 14th he was thought at one time to be gone. The care of him was now exclusively committed to the nameless woman, who, when the physicians despaired, had professed a belief that she could effect a cure.⁶²⁹ But his disorder evidently grew worse, and assumed anomalous forms; it was said to be an affection of the lungs; but symptoms appeared which could have been occasioned by no disorder of the lungs. Eruptions came out over his skin; his hair fell off, and then his nails, and afterwards the joints of his toes and fingers;⁶³⁰ and rumour said that Northumberland, having made his arrangements, could not afford to wait, and was hastening the natural arrival of death with poison.⁶³¹

⁶²⁷STRYPE'S *Life of Cranmer*.

⁶²⁸*Queen Jane and Queen Mary*, p. 90.—Montague subscribed to this, with Baker and the Attorney- and Solicitor-General, although they had assured the council to the last that the letters patent were valueless, and had, as they said, resolved to move no step, after the King's death, to carry them into effect. I suppose that the bond was devised to catch those who might have signed with reservations, and the judges having given their names once, could not help themselves.

⁶²⁹HAYWARD'S *Life of Edward VI*. Scheyfne.

⁶³⁰SCHHEYFNE.

⁶³¹The suspicion that Edward was poisoned was shared both by Catholic and Protestant. Machyn, a contemporary citizen of London, says that no one doubted it.—*Diary*, p. 35. Burcher, writing to Bullinger, says: 'That wretch, the Duke of Northumberland, has committed an enormous crime. Our excellent King was taken off by poison; his nails and hair fell off,' &c. Renard, on the 6th of August, informed Charles V. that, by Mary's order, Edward's body had been examined, and it was found 'que les artoix des piedz luy estoient tumbes et qu'il a esté empoisonné.'—Renard's Despatches: *MS. Rolls House*. The symptoms certainly, do not resemble those of any known disorder. On the other hand, when a life came to an end on which much depended, there was always a suspicion of poison; and although

While these events were in progress, Mary, whom the Duke believed to be ignorant of all that had passed, found means, though she was narrowly watched, to communicate with Scheyfne, and desired him to let the Emperor know her situation, and ask his advice. On the 23rd of June, a rising was expected in London.⁶³² The Protestant clergy, who were the only persons that heartily exerted themselves in the conspiracy, gave out in their pulpits that the King was dying, and that religion would be in danger from Mary. The people listened so ominously, that the guards at the gates were doubled. The Duke of Norfolk, Gardiner, and the other prisoners in the Tower, who had been allowed to walk on the leads and in the gardens, were confined to their rooms; Lord Dacres, who was leaving London, was detained, and other suspected persons were arrested; and on the 24th of June Scheyfne was told that the Duke found his embarrassments so great, that he was giving up the game. Three quarters of the country were determined to support Mary, and her friends on the council sent a message through Scheyfne to the Emperor, to say that the slightest demonstration, on his part, in his cousin's favour, would suffice to insure her accession.⁶³³

In his extremity Northumberland was obliged again to appeal to France. It was now whispered at Paris that, should Mary become Queen, Charles had already destined her for Philip of Spain; and the union of England and Spain, under a common sovereign, was a danger which every French statesman felt himself called upon to make an effort to prevent. In the last week in June, therefore, fresh communications passed between the King of France and the conspirators; promises were given of help, at which the Duke recovered heart; he demanded a loan from the city, and when there was hesitation, he threatened that the voluntary loan should be a forced one. Troops were raised in all directions; the forts in Essex were dismantled of cannon to furnish the fleet; and by the 1st of July twenty sail were ready armed and manned at Greenwich to intercept any descent which

Northumberland was not a man to have hesitated, had the acceleration of the death been important to him he would have gained no advantage from it in the least commensurate with the crime. The probable truth was perhaps this: that the woman to whose exclusive care the King was culpably committed, administered mineral medicines in over-doses, and that Edward was in fact poisoned, though not by deliberate malice.

⁶³²NOAILLES.

⁶³³Scheyfne to Charles V.: *MS. Rolls House*.

might be attempted from Flanders: Scheyfne comforted himself with ascertaining that the crews had been pressed, and were not to be depended on; but the preparations in London threatened to crush resistance in the capital.

On the 4th of July the King was believed to be dead. A wan face had been seen at a window of the palace at Greenwich; Edward had been lifted out of bed, and carried to the casement, that the people might assure themselves with their own eyes that he was living. But the suspicion was only deepened; the spectators believed that they had seen a corpse.⁶³⁴ Scheyfne was by this time informed minutely of the circumstances of the letters patent. Parliament was to meet in September, and Parliament he was assured would replace the Princess Mary in her rights; but the danger was that in the mean time she would be made away with. She had been warned by some secret friend to move further from London, if possible, to Framlingham Castle, in Norfolk, where she would find friends.⁶³⁵

On the first Sunday in the month it was observed that the preacher at Paul's Cross 'did neither pray for the Lady Mary's Grace, nor the Lady Elizabeth's.'⁶³⁶ On the Friday following the French ambassador detected an unusual movement; he had been promised an audience, but a message was brought to put him off. There was no longer any king in England. On the evening of Thursday, the 6th of July, the anniversary, as pious Catholics did not fail to observe, of the execution of Sir Thomas More, the last male child of the Tudor race had ceased to suffer.

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⁶³⁴SCHEYFNE.

⁶³⁵Scheyfne to the Emperor, July 4.

⁶³⁶*Grey Friars' Chronicle*.